

William the Conqueror
and the Rule of the Normans

FRANK MERRY STENTON, M.A.

1908



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Footnotes have been collected at the end of each chapter, and are linked for ease of reference.

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Heroes of the Nations

EDITED BY
H. W. C. Davis

FACTA DUCIS VIVENT, OPEROSAQUE
GLORIA RERUM—OVID, IN LIVIAM, 255.
THE HERO'S DEEDS AND HARD-WON
FAME SHALL LIVE.

WILLIAM THE CONQUEROR



SEAL OF WILLIAM THE CONQUEROR

WILLIAM
THE CONQUEROR
AND THE RULE OF THE NORMANS

BY
FRANK MERRY STENTON, M.A.

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G. P. PUTNAM'S SONS
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PREFACE

In attempting to write a life of William the Conqueror, one is confronted, at the outset, by a question of considerable urgency. The mere details of the King's history, if full discussion were given to all matters which have been the subjects of controversy, would far exceed the possible limits of a volume to be included in the series to which the present book belongs. On the other hand, a life of William the Conqueror which ignored the changes in constitutional organisation and social life which followed the events of 1066 would obviously be a very imperfect thing. Accordingly, I have reserved the last three chapters of the book for some examination of these questions; and I hope that the footnotes to the text may serve as, in some sort, a guide to the more difficult problems arising out of the Conqueror's life and reign.

There is no need to enter here upon a description of the authorities on which the following book is based. For the most part they have been the subjects of thorough discussion; and, with one exception, they are sufficiently accessible in modern editions. The writs and charters issued over England by William I. are only to be found scattered among a great number of independent publications; and the necessity of forming a collection of these documents has materially delayed the appearance of the present work.

It remains that I should here tender my thanks to all those who have rendered assistance to me during the writing of this book. In particular I would express my gratitude to my friend Mr. Roland Berkeley-Calcott, and to the general editor of this series, Mr. H. W. C. Davis. To Mr. Davis I am indebted for invaluable help and advice given to me both during the preparation of the book and in the correction of the proof-sheets. To those modern writers whose works have re-created the history of the eleventh century in England and Normandy I hope that my references may be a sufficient acknowledgment.

F. M. S.

SOUTH HILL, SOUTHWELL, NOTTS,
August 27, 1908.

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WILLIAM THE CONQUEROR

INTRODUCTION

I

Since the current of barbarian immigration which overthrew the civilisation of Rome in the West, probably no national movement of the kind has more profoundly affected the general course of history than the expansion of Scandinavia which fills the ninth and tenth centuries. Alike in their constructive and destructive work, in the foundation of new communities on conquered soil, as in the changes produced by reaction in the states with which they came in contact, the Northmen were calling into being the most characteristic features of the political system of medieval Europe. Their raids, an ever-present danger to those who dwelt near the shores of the narrow seas, wrecked the incipient centralisation of the Carolingian Empire, and gave fresh impetus to the forces which were already making for that organisation of society which we describe as feudalism; and yet in other lands the Northmen were to preserve their own archaic law and social custom longer than any other people of Germanic stock. The Northmen were to bring a new racial element into the life of Western Europe, but whether that element should adapt itself to the conditions of its new environment, or whether it should develop new forms of political association for itself, was a question determined by the pre-existing facts of history and geography.

For the geographical extent of Scandinavian enterprise is as remarkable as its political influence. At the close of the third quarter of the tenth century it seemed likely that the future destinies of northern Europe would be controlled by a great confederation of Scandinavian peoples. In the parent lands of Norway, Denmark, and Sweden three strong kingdoms had been created by Harold Fair Hair, Gorm the Old, and Eric of Upsala; the Orkneys and Shetlands formed a Norwegian earldom, and a number of vigorous Norse principalities had been planted along the east coast of Ireland. In the extreme north Scandinavian adventurers were already settling the inhospitable shores of Greenland, and lawless chieftains from Norway had created the strange republic of Iceland, whose stormy life was to leave an imperishable memorial in the wonderful literature of its sagas. Normandy was still the "pirates' land" to the ecclesiastical writers of France, and the designation was correct in so far that the duchy still

maintained frequent relations with the Scandinavian homeland and had as yet received no more than a superficial tincture of Latin Christianity. England, at the date we have chosen, was enjoying a brief respite between two spasms of the northern peril, but the wealthiest portion of the land was Scandinavian in the blood of its inhabitants, and within twenty years of the close of the century the whole country was to be united politically to the Scandinavian world.

The comparative failure of this great association of kindred peoples to control the subsequent history of northern Europe was due in the main to three causes. In the first place, over a great part of this vast area the Scandinavian element was too weak in mere numbers permanently to withstand the dead weight of the native population into which it had intruded itself. It was only in lands such as Iceland, where an autochthonous population did not exist, or where it was reduced to utter subjugation at the outset, as in the Orkneys, that the Scandinavian element permanently impressed its character upon the political life of the community. And in connection with this there is certainly to be noted a distinct decline in the energy of Scandinavian enterprise from about the middle of the eleventh century onward. For fully a hundred years after this time the Northern lands continued to send out sporadic bodies of men who raided more peaceful countries after the manner of the older Vikings, but Scandinavia produced no hero of more than local importance between Harold Hardrada and Gustavus Vasa. The old spirit was still alive in the North, as the stories of the kings of Norway in the *Heimskringla* show; but the exploits of Magnus Bareleg and Sigurd the Jerusalem-farer are of far less significance in general history than the exploits of Swegen Forkbeard and Olaf Tryggvasson, and trade and exploration more and more diverted the energy which in older times would have sought its vent in warlike adventure. And of equal importance with either of the causes which have just been described must be reckoned the attraction of Normandy within the political system of France. By this process Normandy was finally detached from its parent states; it participated ever more intimately in the national life of France, and the greatest achievement of the Norman race was performed when, under the leadership of William the Conqueror, it finally drew England from its Scandinavian connections, and united it to the richer world of western Europe. It was the loss of England which definitely

compelled Scandinavia to relapse into isolation and comparative political insignificance.

But the Norman Conquest of England was a many-sided event, and its influence on the political destiny of Scandinavia is not its most important aspect. The events of 1066 derive their peculiar interest from the fact that they supply a final answer to the great problem which underlies the whole history of England in the eleventh century—the problem whether England should spend the most critical period of the Middle Ages in political association with Scandinavia or with France. The mere fact that the question at issue can be stated in this simple form is of itself a matter of much significance; for it implies that the continuance of the independent life of England had already in 1000 become, if not an impossibility, at least a very remote contingency. To explain why this was so will be the object of the following pages, for it was the weakness of the Anglo-Saxon polity which permitted the success of William of Normandy, as it gave occasion of conquest to Cnut of Denmark before him, and the ill governance on which their triumph was founded takes its main origin from events which happened a hundred years before the elder of them was born.

At the beginning of the third quarter of the ninth century, England was in a state of utter chaos under the terrible strain of the Danish wars. Up to the present it has not been possible to distinguish with any certainty between the various branches of the great Scandinavian race which co-operated in the attack on England, nor is the question of great importance for our immediate purpose. The same may be said of the details of the war, the essential results of which were that the midland kingdom of Mercia was overrun and divided in 874 into an English and a Danish portion; that England, north of the Humber, became a Danish kingdom in or about 875; and that Wessex, after having been brought to the brink of ruin by that portion of the Northern host which had not founded a permanent settlement in the north, was saved by its King Alfred in a victory which he won over the invaders at Edington in Wiltshire, in 878. As a result of this battle, and of some further successes which he gained at a later date, Alfred was enabled to add to his dominions that half of the old kingdom of Mercia which the Danes had not already appropriated^[4]; a district which included London and the shires west of Buckinghamshire, Northamptonshire, Leicestershire, and Derbyshire. For the first half of the tenth century, the main interest of English history centres round the relations between the

rulers of Wessex and its Mercian dependency, and the people of the Danelaw.

As the final result of twenty years of incessant warfare, the Danes had succeeded in establishing three independent states on English soil. Guthrum, the leader with whom Alfred had fought at Edington, founded in East Anglia and the eastern midlands a short-lived kingdom which had been reconquered by Edward the Elder before his death in or about 924. To the north of Guthrum's kingdom came the singular association of the Five Boroughs of Derby, Nottingham, Lincoln, Leicester, and Stamford, whose territory most probably comprised the shires to which the first four of them have given name, together with Rutland and north-east Northamptonshire. Apart from its anomalous government, of which nothing is really known, this district is distinguished from Guthrum's kingdom by the fact that the Danish invaders settled there in great numbers, founded many new villages, and left their impress upon the administrative and fiscal arrangements of the country. The Five Boroughs were occupied by Edward the Elder and conquered by his son Edmund, but their association was remembered in common speech as late as the time of the wars of Ethelred and Swegen, and the district, as surveyed in *Domesday Book*, is distinguished very sharply from the shires to its south and west.^[5]

Beyond the Humber the Northmen had founded the kingdom of York, which maintained its independent existence down to Athelstan's time and which was only connected with the south of England by the slackest of political ties when William the Conqueror landed at Pevensey. In this kingdom, whose history is very imperfectly known, but of which abundant numismatic memorials remain, the Norwegian element appears to have predominated over the Danish and its kings were closely connected with the rulers of the Norse settlements in Ireland. But the peculiar importance of this Northumbrian kingdom lies in the persistent particularism which it continued to display long after it had been nominally merged in the kingdom of the English. Its inhabitants were barbarous beyond the ordinary savagery of the Anglo-Saxons, and bitterly resented any attempt to make them conform to the low standard of order which obtained elsewhere in the land. Among so anarchical a people, it would be useless to look for any definite political ideas, and the situation was complicated by the union of Scandinavian Yorkshire with English Bernicia in one earldom, so that it is difficult to say how far the separatist spirit of Northumbria was due to the

racial differences which distinguished it from the rest of the land, how far to surviving memories of the old kingdom which had existed before the wars of the ninth century, and how far to simple impatience of ordered rule by whomsoever administered. But the existence of such a spirit is beyond all doubt; it manifested itself in 957 when Northumbria joined with Mercia in rejecting King Edwy of Wessex; it is strikingly illustrated in the northern legend which represents the sons of Ethelred the Unready as offering Northumbria to Olaf of Norway as the price of his assistance in their struggle with Cnut; it came to the front in 1065, when the northern men rebelled against their southern earl, Tostig Godwinsson; it culminated in the resistance which they offered to William of Normandy, and was finally suppressed in the harrying to which he subjected their province in the winter of 1069. For a century and a half the men of Northumbria had persisted in sullen antagonism to the political supremacy of Wessex.

But the fact remained that within fifty years of Alfred's death the house of Wessex had succeeded in extending its sway, in name at least, over all the Scandinavian settlers within the limits of England. The "Rex Westsaxonum" had become the "Rex Anglorum," and Edmund and Edgar ruled over a kingdom which to all appearance was far more coherent than the France of Louis d'Outremer and Hugh Capet. But the appearance was very deceptive, and the failure of the kings of Wessex was so intimately connected with the success of William the Conqueror that its causes demand attention here.

In the first place, the assimilation of the Scandinavian settlers into the body of the English nation should not hide from us the fact that a new and disturbing element had in effect been intruded into the native population. This amalgamation was very far from resulting in a homogeneous compound. The creation of the "Danelaw" in its legal sense—that is, a district whose inhabitants obeyed a new law perfectly distinct from that of any native kingdom—was an event of the greatest consequence. It imposed a tangible obstacle to the unification of the country which was never overcome until the entire system of old English law had become obsolete. The very fact that the geographical area of the Danelaw did not correspond with that of any English kingdom or group of kingdoms makes its legal individuality all the more remarkable. The differences of customary practice which distinguished the east from the west and south were a permanent witness to the success of the Danes in England and they applied to just

those matters which concerned most deeply the ordinary life of the common people. A man of Warwickshire would realise the fact that his limbs were valued at a higher or lower rate than those of his neighbour of Leicestershire, when he would be profoundly indifferent to the actions of the ruler of both counties in the palace at Winchester.

More important for our purpose than these general legal peculiarities were the manifold anomalies of the Old English land law. Were it not for the existence of Domesday Book we should be in great part ignorant of the main features of this system; as it is we need have no hesitation in carrying back the tenorial customs which obtained in 1066 well beyond the beginning of the century. So far as the evidence before us at present goes, it suggests that for an indefinite period before the Norman Conquest the social structure of the English people had remained in a condition of unstable equilibrium; in a state intermediate between the primitive organisation of Anglo-Saxon society and the feudalism, though rudimentary, of contemporary France. However strong the tie of kindred may have been in drawing men together into agrarian communities in former days, by the eleventh century at latest its influence had been replaced by seignorial pressure and the growth of a manorial economy. Of itself this was a natural and healthy process, but in England, from a variety of causes it had been arrested at an early stage. The relationship between lord and man was the basis of the English social order, but this relationship over a great part of the country was still essentially a personal matter; its stability had not universally acquired that tenorial guarantee which was the rule in the Frankish kingdom. The ordinary free man of inferior rank was expected to have over him a lord who would be responsible for his good behaviour, but the evidence which proves this proves also that in numberless cases the relationship was dissoluble at the will of the inferior party. In the Domesday survey of the eastern counties, for example, no formula occurs with more striking frequency than that which asserts that such and such a free man "could depart with his land whither it pleased him"; a formula implying clearly enough that the man in question could withdraw himself and his land from the control of his temporary lord, and seek, apparently at any time, another patron according to the dictate of his own fancy. In such a system there is room for few only of the ideas characteristic of continental feudalism; it is clear that the man in no effective sense holds his land of his lord, nor is the former's tenure conditional upon the rendering of service to

the latter. The tie between lord and man was that of patronage rather than vassalage; and its essential instability meant that the whole of the English social order was correspondingly weak and unstable. The Old English state had accepted the principle that a man must needs look for protection to someone stronger than himself, but it had not advanced to the further idea that, for the mere sake of social cohesion, the relationship thus created must be made certain, permanent, and, so far as might be, uniform throughout the whole land.

On the whole it is probable that this result was mainly due to the peculiar settlement which the Danish question had received in the early tenth century. Had the Danes conquered Wessex in Alfred's time, so that the whole of England had been parcelled out among four or five independent Scandinavian states, the growth of seignorial control over free men and their land might have been indefinitely postponed. Had Alfred's successors been able to effect the incorporation of the Danelaw with the kingdom of Wessex, the incipient manorialism of the south might have been extended to the east and a rough uniformity of custom in this way secured, giving scope for the gradual development of feudalism according to the continental model. But the actual course of history decided that the native kingdom of Wessex should survive, assert its superiority over the Scandinavian portion of the land, and yet be unable to achieve the conformity of its alien subjects to its own social organisation. Such at least is the conclusion suggested to us by the evidence of Domesday Book. Broadly speaking, Wessex and its border shires had presented in 1066 social phenomena which Norman lawyers were able to co-ordinate with the prevailing conditions of their native land. In Wessex each village would probably belong to a single lord, its land would fall into the familiar divisions of demesne and "terra villanorum," its men would owe labour service to their master. But beyond the Warwick Avon and the Watling Street, the Normans encountered agrarian conditions which were evidently unfamiliar to them, and to which they could not easily apply the descriptive formula which so admirably suited the social arrangements of the south. They had no previous knowledge of wide tracts of land whose inhabitants knew no lord of lower rank than king, earl, or bishop; of villages which furnished a meagre subsistence to five, eight, or ten manorial lords; of estates whose owner could claim service from men whose dwellings were scattered over half a county. In twenty years the Normans, by conscious alterations, had done

more to unify the social custom of England than had been accomplished by the gradual processes of internal development in the previous century; but it was the social division, underlying the obvious political decentralisation of the country, which had sent down the Old English state with a crash before the first attack of the Normans themselves.

But social evils of this kind do their work beneath the surface of a nation's history, and it is the complete decentralisation of the Old English commonwealth which first occurs to our minds when we wish to explain the double conquest which the land sustained in the eleventh century; a decentralisation expressed in the creation of the vast earldoms which controlled the politics of England in the last years of its independence. The growth of these earldoms is in many respects obscure; to a limited extent they represent old kingdoms which had lost their independence, but in the main they are fortuitous agglomerations of territory, continually changing their shape as the intrigues of their holders or the political sense of the king of Wessex might from time to time determine. From the narrative of the Danish war presented by the *Anglo-Saxon Chronicle*, it seems certain that each county south of Thames possessed an earl of its own in the ninth century; but this arrangement appears to have been modified by Edward the Elder, and it has been estimated that from the accession of Edward to the close of the tenth century Wessex and English Mercia were divided into a group of earldoms whose number never exceeded eight, a change which inevitably magnified the importance of the individual earl. In the meantime, Northumbria and the territory of the Five Boroughs were being ruled by men of Scandinavian blood, who claimed the title of earl but are very rarely found in attendance at the courts of the King of Wessex.^[6] In the wars of Ethelred II. and Edmund Ironside with Swegen and Cnut, the issue of each campaign is decided by the attitude of such men as Aelfric, ealdorman of Hampshire, or Eadric of Mercia, to whom it belonged of right to lead the forces of their respected earldoms, and who seem to have carried their troops from one side to the other without being influenced in the smallest degree by any tie of allegiance which would bind them permanently to either the English or the Danish king. To Cnut himself is commonly attributed a reorganisation of the earldoms, in which their number was temporarily reduced to four, and in which for the first time Wessex as a whole was placed on an equality with the other provincial governments. The simplicity of this arrangement was soon distorted by the occasional

dismemberment of the West Saxon and Mercian earldoms, and by the creation of subordinate governments within their limits; but throughout the reign of Edward the Confessor it is the earls of Wessex, Mercia, East Anglia, and Northumbria who direct the policy of the kingdom.

The privileges and powers inherent in the dignity of an earl were very considerable. We have already referred to his military authority, but he also seems to have enjoyed a judicial prerogative overriding the competence of the local assemblies of the hundred. His wergild was seemingly fixed at a higher rate than that of the ordinary noble, and the fine paid to him for a breach of his peace was half the amount which would be paid to the king, and double the amount paid to the thegn on account of a similar offence.^[7] More important from the standpoint of politics was the fact that in every shire certain lands seem to have been appurtenant to the comital office,^[8] and these lands formed a territorial nucleus around which an unscrupulous man like Godwine could gather the vast estates of which *Domesday* reveals him to have been in possession. In practice, too, it was the earls who seem to have gained more than any other men of rank by the growth of that system of patronage which has been described in a preceding paragraph; the natural influence of their position attracted to them the unattached free men of their spheres of government, and they became possessed of a body of personal retainers who might be expected to fight for them at any crisis in their fortunes and who would not be unduly scrupulous as to the causes of a quarrel in which they might be called upon to take part. Fortified by such advantages, the earls were able at an early date to make their dignities hereditary under all normal circumstances, and the attempt of Ethelred to nominate an earl of his own choice to Mercia in the person of Eadric Streona, and of Edward the Confessor to displace the house of Godwine in Wessex in 1051, led to disaster in each case, though the occasion of the respective disasters was somewhat different.

Just as the power of the great earls limited the executive freedom of the monarchy, so in general matters of policy the king's will was circumscribed by the opinion of the body of his counsellors, his Witanagemot. Now and then a strong king might perhaps enforce the conformity of his witan to his personal wishes; but the majority of the later Anglo-Saxon kings were not strong, and when, on rare occasions, we obtain a glimpse into the deliberations of the king and the wise men, it is the latter who decide the course of action which shall be pursued.^[9] That this was a serious evil

cannot possibly be disputed. The political supremacy of the Witanagemot bears no analogy to constitutional government in the modern sense of the term: the witan were not responsible to the nation; they were not, in fact, responsible to anybody, for a king who tried to insist on their obedience to his will might find himself, like Ethelred II., deserted by his leading nobles at some critical moment. Also, if we estimate the merit of a course of policy by its results, we shall not be disposed to rate the wisdom of the wise men very highly. In 1066 England was found with an obsolete army, a financial system out of all relation to the facts on which it was nominally based, and a social order lacking the prerequisites of stability and consistency; that the country had recently received a comprehensive restatement of its ancient laws was due not to its wise men, but to its Danish conqueror Cnut. The composition of the Witanagemot—a haphazard collection of earls, bishops, royal officials, and wealthy thegns—afforded no security that its leading spirits would be men of integrity and intelligence; if it gave influence to men like Dunstan and Earl Leofric of Mercia, men who were honestly anxious to further the national welfare, it gave equal influence to unscrupulous politicians like Eadric Streona and Godwine of Wessex. The results of twenty-five years of government by the Witanagemot would supply a justification, if one were needed, for the single-minded autocracy of the Anglo-Norman kings.

The early history of the Witanagemot, like that of so many departments of the Anglo-Saxon constitution, is beset by frequent difficulties; but it seems certain that the period following the middle of the tenth century witnessed a great extension of its actual influence. In part, no doubt, this is due to the increasing power of its individual members, on which we have already commented in the case of the earls, but we certainly should not fail to take into account the personal character of the kings of England during this time. The last members of the royal house of Wessex are a feeble folk. Their physical weakness is illustrated less by the rapidity with which king succeeded king in the tenth century—for Edmund and Edward the Martyr perished by violence—than by the ominous childlessness of members of the royal house. Of the seven kings whose accession falls within the tenth century, four died without offspring. The average fertility of the royal house is somewhat raised by the enormous family of Ethelred the Unready; but fifty years after his death his male line was solely represented by an old man and a boy, neither of whom was destined to leave issue. Nor do the

kings of this period appear in a much more favourable light when judged by their political achievements. Edward the Elder, Athelstan, and Edmund make a creditable group of sovereigns enough, though their success in the work they had in hand, the incorporation of Scandinavian England into the kingdom of Wessex, was, as we have seen, extremely limited. Edred, the next king, crippled as he was by some hopeless disease, made a brave attempt to assert the supremacy of Wessex over the midlands and north, but Edwy his successor was a mere child, and under him the southern kingdom once more becomes bounded by the Thames and Bristol Avon. The reign of Edgar was undoubtedly regarded by the men of the next generation as a season of good law and governance, and the king himself is portrayed as a model prince by the monastic historians of the twelfth century; but on the one hand the long misery of Ethelred's time of itself made men look back regretfully to Edgar's twenty years of comparative quiet, and also there can be no doubt that the king's association with St. Dunstan gave him a specious advantage in the eyes of posterity.^[10] Nothing in Edgar's recorded actions entitles him to be regarded as a ruler of exceptional ability. The short reign of Edward the Martyr is fully occupied by the struggle between the monastic party and its opponents, in which the young king cannot be said to play an independent part at all, and the twenty years during which Ethelred II. misconducted the affairs of England form a period which for sheer wretchedness probably has no equal in the national history. Had Ethelred been a ruler of some political capacity, his title of "the Unready," in so far as it implies an unwillingness on his part to submit to the dictation of the Witanagemot, would be a most honourable mark of distinction; but the series of inopportune acts^[11] and futile expedients which mark the exercise of his royal initiative were the immediate causes of a national overthrow comparable only to the Norman conquest itself. With Edmund Ironside we reach a man who has deservedly won for himself a place in the accepted list of English heroes and we may admit his claim to be reckoned a bright exception to the prevailing decadence of the West Saxon house, while at the same time we realise that the circumstances of his stormy career left him no opportunity of showing how far he was capable of grappling with the social and political evils which were the undoing of his country. And then, after twenty-five years of Danish rule, the mysterious and strangely unattractive figure of Edward the Confessor closes the regnal line of his ancient dynasty. Of Edward we shall have to speak at more

length in the sequel, noting here only the fact that under his ineffective rule all the centrifugal tendencies which we have considered received an acceleration which flung the Old English state into fragments before the first impact of the Norman chivalry.

It follows from all this that, according to whatever standard of political value we make our judgment, the England of the tenth and eleventh centuries will be found utterly lacking in all qualities which make a state strong and keep it efficient. The racial differences which existed within the kingdom were stereotyped in its laws. The principles which underlay its social structure were inconsistent and incoherent. It possessed no administrative system worthy of the name and the executive action of its king was fettered by the independence of his counsellors and rendered ineffective by the practical autonomy of the provincial governments into which the land was divided. The ancient stock of its kings had long ceased to produce rulers capable of rectifying the prevailing disorganisation and was shortly to perish through the physical sterility of its members. Nor were these political evils counterbalanced by excellence in other fields of human activity. Great movements were afoot in the rest of Europe. The Normans were revolutionising the art of war. The Spanish kingdoms were trying their young strength in the first battles of the great crusade which fills their medieval history; in Italy the great conception of the church purified, and independent of the feudal world, was slowly drawing towards its realisation. England has nothing of the kind to show; her isolation from the current of continental life was almost complete, and the great Danish struggle of the ninth century had proved to be the last work undertaken by independent England for the cause of European civilisation. In Alfred, the protagonist of that struggle, the royal house of Wessex had given birth to a national hero, but no one had completed the task which he left unfulfilled.

II

On turning from the history of England between 950 and 1050 to that of Normandy during the same period, one is conscious at once of passing from decadence to growth; and this although the growth of the Norman state was accompanied by an infinity of disorder and oppression, and the decadence of England was relieved by occasional manifestations of the older and more heroic spirit of the race. Nothing is more wonderful in Norman history than the rapidity with which the pirates' land became transformed into a foremost member of the feudal world of France, and the extraordinary rapidity of the process seems all the more remarkable from the sparseness of our information with regard to it. The story of the making of Normandy, as told by the Norman historians, is so infected with myth that its barest outlines can scarcely now be recovered. We can, however, see that during the ninth century the north and west coasts of France had been subjected to an incessant Scandinavian attack similar in character to the contemporary descents which the Northmen were making upon England. It is also certain that the settlement of what is now Normandy did not begin until thirty or forty years after the conquest of the English Danelaw, and that for a considerable, if indefinite, term of years new swarms of Northmen were continually streaming up the valleys which debouch on the Channel seaboard. Of Rollo, the traditional founder of the Norman state, nothing is definitely known. The country from which he derives his origin is quite uncertain. Norwegian sagamen claimed him for one of their own race, the Normans considered him to be a Dane, and a plausible case has been made out for referring him to Sweden.^[12] His followers were no doubt recruited from the whole of the Scandinavian north, but it is probable that the great mass of the original settlers of Normandy were of Danish origin, and therefore closely akin to the men who in the previous century had found a home in the valleys of the Yorkshire Ouse and Trent. As in the case of Guthrum in East Anglia the conquests of Rollo were defined by a treaty made between the invading chief and the native potentate of greatest consequence; and the agreement known in history as the treaty of Claire sur Epte is the beginning of Norman history. Great obscurity overhangs the terms of this settlement, and we cannot define with any approach to

certainly the extent of territory ceded by it to the Northmen.^[13] On the east it is probable that the boundary line ran up the Epte, thence to the Bresle, and so down that stream to the port of Eu; but the extension of the original Normandy towards the west is very uncertain, and with regard to its southern frontier there was still room in the eleventh century for border disputes in which William the Conqueror became engaged at an early date. The succeeding history, however, proves clearly enough that the Bessin, Cotentin, and Avranchin formed no parts of Normandy as delimited at Claire sur Epte, and it was in this last quarter, peopled by an influx of later immigrants, that the Scandinavian element in the duchy presented the most obstinate resistance to Romance influences.

The prince with whom Rollo had concluded this memorable treaty was Charles III., king of the West Franks, and the reputed descendant of Charlemagne. The importance of the settlement of Claire sur Epte lay in the future, and in its immediate significance it was little more than an episode in a struggle which had been carried on for nearly half a century between the Carolingian sovereign and the powerful house of the counts of Paris, of which the head at this time was Robert, the grandfather of Hugh Capet. The conquests of Rollo had been made at the expense of Count Robert, and Charles III. in his session of Normandy, like Alfred in the treaty of Wedmore, was abandoning to an invading host a district which had never been under his immediate rule. It was certain that the counts of Paris would sooner or later attempt to recover the valley of the lower Seine, and this fact produced an alliance between the first two dukes of Normandy and their Carolingian overlords which lasted for twenty years. The exact nature of the legal tie which united the earliest dukes of Normandy to the king of France is a disputed question, but we may well doubt whether Rollo had done more than commend himself personally to Charles III., and it is not even certain that the Viking leader had received baptism at the time when he performed the act of homage. As a final question which still awaits settlement, we may note that the date of the treaty of Claire sur Epte is itself uncertain, but that 921 seems the year to which with most probability it may be referred.

If this is so, the conclusion of this settlement must have been the last event of importance in the reign of Charles III., for in 922 he was overthrown by his enemy Robert of Paris, and spent the remaining eight years of his life in prison. Robert thereupon assumed the title of king, but was killed in 923; and the crown passed to Rudolph of Burgundy, who held

it until 936. On his death the royal title was offered to Hugh, surnamed the Great, count of Paris, but he preferred to restore the Carolingian line, rather than to draw upon himself the enmity of all his fellow-nobles by accepting the precarious throne himself. Charles III. had married Eadgifu, one of the many daughters of Edward the Elder of Wessex, and Louis the Carolingian heir was residing at Athelstan's court when Hugh of Paris called on him to accept his inheritance. The refusal of Hugh the Great to accept the crown did not materially improve the relations existing between the Carolingian house and the Parisian county, and Louis "from beyond the sea" found it expedient to maintain the alliance which his father had founded with the Norman lords of Rouen. But, long before the accession of Louis d'Outremer, Rollo the old pirate had died, and William Longsword, his son, felt himself less vitally dependent on the support of the king of the Franks. In the confused politics of the period William was able to assert a freedom in making and breaking treaties and in levying external war no less complete than that which was enjoyed by the other princes of France. In general he remained true to the Carolingian friendship; and at the close of his reign Normandy and the French monarchy were jointly opposed to the Robertian house, leagued with the counties of Vermandois and Flanders. The latter county, in particular, was directly threatened by the growth of a powerful state within striking distance of her southern borders; and in 943 William Longsword was murdered by Arnulf of Flanders, the grandson of Alfred of England.

We should naturally wish to know in what way the foundation of Normandy was regarded by the contemporary rulers of England. It is generally assumed, and the assumption is reasonable enough, that Athelstan feared the assistance which the Normans might give to the men of the Danelaw, and that he endeavoured to anticipate any movement on the part of the former by forming a series of marriage alliances with powers capable of forcing Normandy to remain on the defensive. It is probable that Athelstan's sister Eadhild married Hugh the Great,^[14] the natural enemy of William Longsword, and we know that Athelstan lent his support to Alan Barbetorte, who at this time was struggling with indifferent success to preserve Brittany from being overrun by Norman invaders. On the other hand, it would be easy to exaggerate the solidarity of feeling which existed between the Northmen in Normandy and in England; nor do our authorities countenance the belief that the various continental marriages of Athelstan's

sisters formed part of any consistent scheme of policy. There is no evidence that direct political intercourse existed at any time between Athelstan and William Longsword; although we know that the Englishmen who were appointed by the king to negotiate for the reception of Louis d'Outremer in France paid a visit to the court of Rouen.

The murder of William Longsword was followed by the first of the two minorities which occur in Norman history, for Richard the illegitimate heir of the late duke was only a child of ten on his father's death. The opportunity was too good to be missed, and Louis d'Outremer succeeded for a brief period in making himself master of Normandy, not improbably asserting as a pretext for his intervention a claim to the guardianship of the young duke. Whatever its legal foundation Louis's action outraged the political individuality of the duchy, and when Richard came to years of discretion he abandoned the traditional Carolingian friendship and attached himself to the Robertian house. He commended himself to Hugh the Great, and thus began a friendship between the lords of Paris and their Norman neighbours which continued for nearly a century and was not the least among the causes which enabled the Robertian house in 987 to crown its existing pre-eminence with the royal title. The reign of Richard I. lasted for more than fifty years, and the history of Normandy during this period is extremely obscure, but there can be no question that it witnessed the gradual consolidation of the duchy, and its no less gradual absorption into the political system of France.

The seventh year of the reign of Richard II. was marked by an event of the first importance for the history of both England and Normandy—the marriage of Ethelred II. and Emma the duke's sister. England was at the time in the very centre of the great Danish war which marks the close of the tenth and the beginning of the eleventh century, and it is distinctly possible that the match may have been prompted by a desire on Ethelred's part to close the Norman harbours to his enemies' ships. But, apart from all dubious attributions of political motive, the importance of the marriage lies in the fact that Normandy remains thenceforward a permanent factor in English politics. The marriage must have produced an immediate immigration of Normans into England; so early as 1003 we find a French reeve of Queen Emma in charge of the city of Exeter. The mere union of the dynasties—the marriage of the representative of the ancient and decadent royal house of Wessex to the great-granddaughter of the pirate chief Rollo

—was alone a sufficiently striking event. But by chance it happened that the strain of Norman blood in the offspring of the marriage came of itself to produce political results of the gravest consequence. No one in 1002 could foresee that the new queen would bear a son whose early life would be passed in exile in his mother's land, and who would return thence to his father's inheritance saturated with Norman ideas of the art of government; still less could anyone foresee that in virtue of this marriage a Norman duke would one day claim the throne of England by right of inheritance. But less striking results of the new alliance would soon enough become apparent. The ubiquitous Norman trader would become a more frequent visitor to the English ports, and Normandy would at once become a friendly land to Englishmen crossing the Channel for purposes of trade or pilgrimage. Nor should the marriage be considered exclusively from the English standpoint. The reception of a Norman princess as queen of England proved at least that the Norman duke was no longer a barbarian intruder among the higher nobility of France; he might not be a sovereign prince as yet, but he was certainly a ruler of greater consequence beyond the borders of the French kingdom than were any of his fellow-vassals of the French crown. It is true that the alliance of 1002 marks no immediate change in the French relations of the duke of Normandy; his energies were still confined to the petty struggles which he, like his father and grandfather, carried on with varying success against this neighbour or that. But events were soon to prove how strong a state had really been created in Normandy by the obscure dukes of the tenth century, and the marriage of Ethelred and Emma pointed to the quarter in which the strength of Normandy would find its field at last.

It must be owned that we can only describe the internal condition of Normandy, as it existed at the beginning of the eleventh century, in very general terms. Normandy, like the rest of the French kingdom, was passing through a phase in which the legislative power of the sovereign was in abeyance; and in default of written laws we can only rely upon the incidental information afforded by legal documents or by the casual expressions of later chroniclers.^[15] But the main features of Norman feudalism at this time are fairly certain, and sufficient to point a contrast with the contemporary constitution of England in almost every particular in which the details of the two systems are known to us.^[15]

In the first place, vassalage had become localised in Normandy. The relationship between lord and man would in most cases imply that the latter

held his land of the former. So far as we can tell, the course of Norman feudalism started from a point of departure different from that with which the English system takes its origin. The history of the terms employed to designate dependent tenure seems to make this clear. At an early date a great man's vassal will hold of him a *precarium*; he will be a tenant at will, his tenure will be revocable at his lord's instance. To the *precarium* succeeds the *beneficium*; a term which sufficiently expresses the fact that the tenant's rights over his land are derivable from his lord, although it does not, like the older word, imply their temporary character. In the meantime, the hereditary principle in regard to dependent tenure is continually securing a wider extension, and the *feudum*, the fee, the term which ultimately supplanted the *precarium* and *beneficium*, denotes an estate which will in the normal course of things descend to a tenant's heir. Some such succession of ideas can distinctly be traced in the Frankish kingdom, and the Anglo-Saxon land books here and there contain words and phrases which suggest that the English land law would have followed a similar development, had it not been arrested by the general dislocation of society occasioned by the wars of the ninth century. The wide estates with which the newly converted kings of Wessex, the Hwicce and the Middle Angles, endowed the churches founded in their dominions afforded an excellent field for the growth of dependent tenure, which was not neglected by thegn and free man, anxious to participate in the wealth of the saints by virtue of discharging military obligations which monks and clerks could not perform in person. But the Danish wars stripped the eastern churches of their possessions and peopled the eastern counties with settlers of approximately equal rank; and when in the century before the Norman Conquest the land loan reproduces many of the features of the continental *precarium*, it appears as an exotic institution rather than as a normal development of previous tenurial custom. It would be very easy to exaggerate the distinction which exists between England and Normandy in this matter; the mass of our contemporary information about Old English land tenure relates to ecclesiastical estates; but with *Domesday Book* before us we cannot doubt that the distinction was very real and of deep importance in connection with the other divergent features of the Anglo-Saxon social organisation.

Everything, then, seems to show that, for at least a hundred years before 1086, dependent tenure and the hereditary descent of fiefs had been

recognised features of the land system of Normandy. We also know that these principles had, long before the conquest of England, produced their corollaries in the rights of wardship, marriage, and relief, which a lord would enjoy upon occasion with reference to his vassals.^[16] Women were capable of inheriting land and Norman custom allowed at least to the duke the privilege of choosing a husband for his female vassal. The rights of assuming the guardianship of a minor's land, and of receiving a money payment upon the succession of a new heir, were obvious developments of the originally precarious character of the fief, and we shall see that King Henry of France exercised the former right over Normandy itself upon the death of Duke Robert in 1035. There does not seem to be any direct evidence for the existence of the relief as a Norman custom before 1066, but its appearance in England immediately after the Conquest is sufficient proof of its previous recognition by the feudal law of Normandy. None of these customs, so far as we can tell, had found a place in the social system of independent England.

Private jurisdiction was undoubtedly an essential feature of Norman feudalism, though we may well doubt whether the principles on which it was based had ever been defined by Norman lawyers. It is also clear that the duke possessed upon occasion the power of overruling the judgment of his barons, and that his exercise of this power was applauded by all who were interested in the welfare of the humbler classes of society. The military character of feudalism made it imperative that there should be some power in the land capable of vindicating right by force, and the stronger dukes of Normandy were not slow in the assertion of their judicial supremacy. How far the ubiquitous manorial court of Norman England represents an imitation of continental practice, and how far it is referable to the "sake and soke" possessed by Anglo-Saxon thegns, is a difficult question, and the explanation given by the legal writers of the generation succeeding the Conquest must be reserved for a later chapter.

It is, however, clear, that one custom which to modern ideas would be ruinous to any social order distinguishes Norman life from that of England in the eleventh century. Private war was a recognised custom in Normandy. For obvious reasons this custom was fenced round with stringent regulations; the duke's license was necessary before a campaign could be opened and its conduct was subject to his general supervision. But private war is separated by no certain barrier from anarchy, and under a weak duke

or during a minority the barons of Normandy would take the law into their own hands. Herein lay the real cause of the disorders which prevailed during the minority of William the Conqueror; and in the abeyance of state intervention the church endeavoured with considerable success to confine the practice within reasonable limits. The Truce of God, in the limitations which it enforced upon the operations of war, made life more tolerable for peasant and burgess, but it was at best an inefficient substitute for the hand of a strong ruler. William the Conqueror made good peace in Normandy, as well as in England, and we may well doubt whether even private war, so long as its legal sanctions were respected, was not less harmful to the well-being of a community than were the savage outbreaks of internal strife which from time to time occurred under the helpless government of Edward the Confessor.

The exact nature of the feudal tie which bound the duke of Normandy to the king of France is a very difficult question.^[17] It undoubtedly comprised all those obligations which were implied in the performance of the act of homage, but these would vary indefinitely in stringency according to the status of the parties concerned. An oath of fealty and service was certain to be kept only so long as the man to whom the oath was sworn could compel its observance by the threat of confiscation. When made between two parties who were for effective purposes equal in power, there was no certainty that the oath would imply more than an assertion of dependence on the part of the man who swore. On the other hand, it would be an error to regard the homage which a duke of Normandy paid to his overlord merely as a ceremonial form. Even in the early feudal times the sense of personal honour would generally serve to prevent a man from wantonly attacking his lord. William the Conqueror, whenever possible, refrained from violating the fealty which he had sworn to King Henry; and if put on his defence for his conduct at Varaville, he would probably have pleaded that the necessity of self-preservation outweighed all other considerations. But in earlier times the maintenance of feudal relations between Normandy and France was less dependent upon the personal loyalty of the reigning duke. Occasionally, the king of France will confirm the grants of land with which the duke of Normandy endowed some religious house; he may, as we have seen, claim the right of wardship over a duchy during a minority. Also, it should not be forgotten that in the case of the dukes between Richard I. and Robert I. the traditional alliance between Normandy and the Capetian dynasty disguised

the practical autonomy of the former. So long as the knights of Normandy were at the disposal of the king of France for an attack upon Flanders or Blois, the king would not be concerned to argue the question whether they were furnished to him in obedience to his claim to feudal service, or merely in pursuance of the territorial interests of his vassal.

Within the limits of his territory, the duke of the Normans enjoyed an almost absolute sovereignty. The external limitation of his authority—the suzerainty of the king of France—was at its strongest very ineffectual, and within the duchy the barons were to an exceptional degree subject to the ducal power. All the members of the Norman baronage stood very much on a level in regard to the extent of their fiefs, and the political influence which any individual baron might from time to time exercise depended mainly on his personal favour with the duke. Here and there among the mass of the Norman nobility we meet with a family claiming a more ancient origin and a purer descent than that of the ducal house, and disposed towards insurrection thereby; but such cases are highly exceptional, and the names which are of most significance in the history of William the Conqueror are those of men who held official positions at his court, or were personally related to his line. In Normandy there were no baronies of the first rank, and the number of counties was small; also most of them, by the policy of dukes Richard I. and II., had been granted on appanages to junior members of the reigning family. One striking exception to the territorial significance of the Norman baronage existed in the great fief of Bellême, which lay on the border between Normandy and Maine, and was regarded as dependent on the French crown.^[18] The lords of Bellême in early times are certainly found behaving as sovereign princes, but it fortunately happened that the male line of the family became extinct during William's reign, and a standing obstacle to the centralisation of the duchy was removed when Mabel, the heiress of this formidable house, carried its vast possessions to her husband, the duke's loyal friend, Roger de Montgomery.

The ecclesiastical, like the lay, baronage of Normandy had no members fitted by their territorial influence to lead an opposition to the ducal power. The greater abbeys of Normandy, Fécamp, St. Wandrille, Jumièges, had been founded or refounded by the dukes themselves, and the restoration of the western bishoprics had mainly been the pious work of Richard I. The re-establishment of the Norman episcopate after the disorder of the settlement could never have been effected had it not been for the countenance afforded

to the movement by successive dukes, and the connection between church and state in Normandy was peculiarly intimate. The rights of patronage, elsewhere jealously guarded by the king of the French, in Normandy belonged to the duke, and his power of nominating the official leaders of the church enabled him to govern the whole ecclesiastical policy of the land. Naturally, there occur from time to time gross instances of nepotism, as when Odo, Duke William's brother, was thrust into the see of Bayeux at the age of ten; but in general the dukes of Normandy were at pains to select worthy candidates for bishoprics and abbeys, and in 1066 the spiritual quality of the Norman episcopate was extraordinarily high. Over the independent ecclesiastical jurisdiction which had arisen in the duchy under the influence of the great Cluniac movement the duke kept a steady control; when in England the Conqueror is found insisting that no ecclesiastical law shall be introduced into the country without his sanction, he was but asserting a principle which had governed his conduct in regard to those matters in Normandy.

This intimate connection of church and state had, even before the accession of William, produced a powerful indirect result upon the ecclesiastical culture of Normandy. In Normandy, as in England, the Danish wars of the previous century had been fatal to the monastic life of the districts affected, and with monasticism perished such elements of literary culture as the Carolingian age could show. It was nearly a century after the treaty of Claire-sur-Epte before monasticism revived in Normandy, and this revival was due almost entirely to the importation of foreign monks into the duchy under the patronage of Richard II. and his successors. In connection with the newly founded monasteries there arose schools, some of which in a surprisingly short time rivalled the older institutions of Chartres and Tours, and participated to the full in the cosmopolitan culture which underlay the development of medieval scholasticism. Of these schools, the most famous was undoubtedly that of Bec, the rise of which well illustrates the character of the revival of learning in Normandy.^[19] The abbey of Bec itself was only a recent institution, having been founded in 1034 by an unlettered knight, named Herlwin, who was desirous of living a monastic life in association with a few chosen companions. Nothing in any way distinguished Bec from half a dozen other abbeys founded during the same decade, and the house owes its unique distinction to the circumstance that in 1042 an able young Italian jurist and grammarian, Lanfranc of Pavia, undertook the direction of

its school. As a logical and speculative theologian Lanfranc is said to display small original ability, but no one was better fitted than he by nature to superintend the early development of an institution to which we may conveniently, if inaccurately, apply the designation of a university. In the eleventh and twelfth centuries the reputation of the individual teacher was a matter of much greater importance than were the traditions of the school which he taught, and the school of Bec, under Lanfranc's guidance, rapidly became the education centre of eastern Normandy. Its fame was vastly increased by the fact that its leader became involved in a theological controversy in which the whole of the Catholic Church was interested. A famous theologian, Berengar, a teacher in the school of Tours, had taken upon himself the task of controverting the received opinion as to the nature of the Eucharist, and Lanfranc stepped forward as the leading controversialist on the conservative side. In the dialectical struggle which followed, the honours of debate fell to Lanfranc; Berengar's opinions were condemned both by a provincial synod under Archbishop Maurilius, of Rouen, and also by a general council held at Rome in 1056, and Lanfranc, to the men of his time, appeared to be the foremost theologian in Normandy. But wider duties than the charge of the school of Bec rapidly devolved upon him as the friend and intimate counsellor of the duke, and on his translation to the newly founded abbey of St. Stephen's, at Caen, his place was taken by a man of greater subtlety of mind if no less administrative capacity. The career of Anselm of Aosta, who succeeded Lanfranc in the priorate of Bec, raises issues which lie beyond the life and reign of William the Conqueror, but reference should certainly be made to the educational work which Anselm performed in the days before his name was famous as the champion of Hildebrandine ideas in the ecclesiastical polity of England. As a teacher, it is probable that Anselm had no rival among the men of his time, and if his educational efforts were solely directed at the production of learned and zealous monks, this does not in the least detract from the greatness of the work to which the prime of his life was devoted. It is under Anselm, rather than under Lanfranc, that the influence of the school of Bec reaches its height, and the gentle character and deep philosophical insight of the monk from Aosta supply a pleasant contrast to the practical and at times unscrupulous activity of his predecessor at Bec and Canterbury.

III

It must be owned that we possess very little information as to the causes which towards the close of the tenth century led to a revival of the Scandinavian raids upon England. No consistent tradition upon this matter was preserved in the north, and the first descent of the Vikings upon England in 981 provokes no especial comment from the native chroniclers who have recorded it. Now, as in the previous century, the Danes had the command of the sea, and the settlements of the ninth-century Vikings in the east of England offered to their descendants an excellent base of operations in the heart of the realm. For the first ten or twelve years after 980 the Danish and Norse raiders contented themselves with plunder and tribute, and the definite conquest of England was not achieved before 1013, when Swegen Forkbeard, king of Denmark, expelled Ethelred from his kingdom and enjoyed a few months' uncontested reign as the uncrowned king of the land. The English reaction under Edmund Ironside is a brief although brilliant episode in the war, but the superior numbers of the enemy told in the end, and from 1016 to 1042 England remained politically united to the Scandinavian world.

The rule of Cnut, Swegen's son, met with no opposition on the part of his English subjects. But although Cnut ruled England with such strictness and justice that on the eve of the Norman Conquest his reign was still regarded as a model of good government, his rule was nevertheless that of a Scandinavian king.^[20] All the surviving sons of Ethelred met with death or banishment at his hands, and his marriage with Ethelred's widow was much more probably the result of passion than of policy. In the personnel of the local government of England his reign witnessed a complete change. His earldoms were given either to the companions of his early warfare, such as Eric of Northumbria^[21] and his son Hakon of Worcestershire, or to new men, such as Godwine of Wessex, whom he had raised from insignificance and could depose at pleasure. So far as we know only one native family of ancient rank received favour from the foreign king. The earldom of Mercia, which had been left vacant by the summary execution of Eadric Streona early in 1017, was given to Leofwine, a representative of a noble midland family and the father of the more famous Leofric, the wisest of the

counsellors of Edward the Confessor. Such Englishmen as received secular promotion at Cnut's hand received it for the most part in Scandinavia, where the honour which they enjoyed had apparently become a cause of discontent to the Danes before Cnut's death. In general policy also Cnut's attention was directed towards the north rather than towards the Romance lands, with which Ethelred's marriage had brought England into contact. It is very probable that Cnut dreamed of an empire which should include England and the whole of Scandinavia, and it is certain that in 1028 he conquered Norway and claimed the submission of the king of Sweden. In all this Cnut was behaving as the heir of Harold Blue-tooth and Swegen Forkbeard, rather than as the successor of Edgar and Ethelred. His rule brought peace to England and Englishmen needed no more to induce them to submit to it.

In the machinery of the English government, it does not appear that Cnut's reign marks any changes of importance. He governed England, as he governed Norway, through viceroys; and if his earls bear more the character of royal officials than did Ethelred's ealdormen, this was due rather to Cnut's superior power than to any fundamental change in the character of their positions. Under Edward the Confessor the provincial governments became again as autonomous as ever. It was a matter of great importance that Cnut ordered the compilation of a general code of the law current at this time, a work which may be held to earn for him the title of the greatest legislator of the eleventh century.^[22] When the battle of Hastings was fought, Cnut's code was still the newest and most explicit statement of Old English custom, and the additions which the Conqueror made to it were few and for the most part of minor importance.

Cnut's death was followed by the immediate disruption of his empire. Norway passed to Swegen, his eldest son; and on his death after a brief and troubled reign was rapidly conquered by Magnus, the son of Cnut's Norwegian rival Olaf the Holy. Denmark was taken by Harthacnut, a son of Cnut and Emma of Normandy, and Harold, the third surviving brother, secured England and held it for five years. His short reign was marked by a dramatic event which is of importance as furnishing one of the ostensible motives assigned by the Conqueror's apologists for his invasion of England. In 1036 the Etheling Alfred, son of Ethelred and Emma, left his secure exile in Normandy and came to England. His object, we are told, was to visit his mother, the lady Emma, and to take council with her how he might best

endeavour to gain the kingdom for himself. He therefore landed with but few companions, and before he had seen his mother he was met by Godwine, the Earl of Wessex, who received him peaceably and entertained him with lavish hospitality at Guildford. Thereupon Godwine's name vanishes from the story, but the same night the etheling and his party were surrounded by King Harold's men and taken prisoners; Alfred was so horribly blinded that he soon died from his injuries, and his companions were mutilated, imprisoned, or sold as slaves according to the king's fancy. The whole affair was clearly the result of foul treachery and it is impossible to doubt that the surprise at Guildford was Godwine's work.^[23] The traitorous earl, indeed, skilfully evaded the penalty of his crime, but when William of Normandy was about to cross the sea, he was careful to appear as the avenger of the wrongs which his cousin had suffered thirty years before.

At some time between the death of Cnut in 1035 and the death of Harold I. in 1040, the latter's brother Harthacnut, as king of Denmark, had made a treaty with Magnus of Norway which served as the pretext for twenty years of war between the two states, and as the foundation of the Norwegian claims on England which were asserted by Harold Hardrada in the campaign which ended at Stamfordbridge. The secession of Norway under Magnus from the Danish connection was not likely to pass uncontested, and the host of both nations prepared to try the matter in a great battle at the Elf in the winter following Magnus's succession. On both sides, however, there was a strong party in favour of peace, and a compromise was arranged by which the kings swore brotherhood and promised that in the event of either dying without a son to succeed him his dominions should pass to the survivor or his heir.^[24] The succession of Harthacnut to England in 1040 took place without protest from Magnus, but on the former's childless death in 1042 the treaty should have come into operation, and Magnus was careful to claim the crown of England from Edward the Confessor. Edward denied the Norwegian king's right, and he was so strongly supported by the leading men of the land that Magnus deemed it best to let him reign in peace, but the claim was undoubtedly present to the mind of Magnus's heir, Harold Hardrada, when he started on his memorable expedition in 1066,^[25] and it accounts for the alarm which noblemen of Scandinavian tendencies were able to arouse in England during the earliest years of Edward's rule.

The man who had played the leading part in the events which led to the acceptance of Edward as king of England, was undoubtedly Earl Godwine; and the chief interest of Edward's reign lies in the varying fortunes of the family of which Godwine was the founder. With notable skill the earl used the influence which he possessed as King Edward's protector to further the territorial interests of his family, and within three years of Edward's accession Godwine and his sons were in possession of a belt of earldoms which extended without a break along the south coast of England, from the Wash to the Bristol Channel. By 1050 the whole of England was divided between Godwine and his two eldest sons, Swegen and Harold, Leofric of Mercia, Siward of Northumbria, and Ralf of Mantes, a nephew of King Edward, who had received from his uncle the earldom of Hereford, and was making of that distant shire an outpost of Norman influence already before the middle of the century.

In 1051 the power of the house of Godwine was suddenly overthrown for a time by an unexpected revolution. The immediate cause of the catastrophe was very trivial, but there can be little doubt that it was really due to the jealousy which the king felt at the inordinate power possessed by the Earl of Wessex. Godwine in 1042 had played the part of a king-maker; but, like other king-makers, he found that the sovereign whom he had created began to resent his influence. In the summer of 1051 Count Eustace of Boulogne, who had married King Edward's sister, paid a visit to his brother-in-law, and on his return prepared to cross the Channel from Dover to the capital of his own country. Arrived at Dover, Eustace demanded from the citizens entertainment for himself and his suite; a demand which was seemingly quite in accordance with the custom by which the inhabitants of a town in the eleventh century were liable to find quarters for the retinue of a king, or for persons whom the king might send down to them.^[26] On the present occasion, however, the men of Dover showed signs of disallowing the custom, and a fight ensued in the streets of the town, in which each side lost some twenty men. Eustace immediately returned to the king's court, and demanded the punishment of the citizens, which was granted to him, and its execution entrusted to Godwine, within whose earldom Dover lay. The earl flatly refused to carry out the king's orders, whether through a magnanimous objection to the justice of the sentence or through fear of incurring local unpopularity by enforcing it. Thereupon, Edward for once asserted his royal independence, and events proved that for the moment at

least he had reserves of strength upon which Godwine and his party cannot have counted. The king summoned a meeting of the Witanagemot to be held at Gloucester, at which, among other charges, Godwine was to be accused of complicity in the death of Alfred the Etheling, fifteen years before. Godwine refused to stand his trial, and proceeded to collect troops from all the family earldoms, a move which was discovered by a similar levy made on the king's behalf by the earls of Hereford, Mercia, and Northumbria. Civil war was averted by the moderation of the chiefs of the king's party, who arranged a postponement of the charges against Godwine until the next Michaelmas, when a gemot was to be held in London for their discussion. Godwine agreed to this; and, that he might not be taken unawares, he moved from the west country to Southwark, where he took up his abode supported by a great host drawn from his earldom. But the delay was fatal to his cause: his troops lost heart and deserted, and before long the king was able to decree summary banishment for the earl and all the family. The earl fled to Flanders, Harold to the Ostmen of Dublin,^[27] and for a year Edward remained the undisputed master of his own realm.

The royalist party which had achieved this memorable success was in the main recruited from two sources. The hostility of Mercia and Northumbria to the domination of a West Saxon earl brought over to the king's side a vast number of supporters who were doubtless no more loyal in reality to the king than were Godwine and his men, but who welcomed so fair an opportunity of striking a blow at the rule of the southern family. On the other hand, it is clear that racial feeling entered into the quarrel, and that the Norman settlers whom Edward had invited to take land and lordship in England were the avowed enemies of Godwine and his party. It is only natural to infer that Edward, in addition to the predilection which he must have felt for men of the race among which he had found shelter in the days of his exile, should wish to find in them some counterpoise to the power of the Earl of Wessex and his associates. It is certain that there was a powerful Norman element at court, and in the country, which contributed very materially to the king's success in 1051. The archbishopric of Canterbury and the sees of London and Dorchester were held by Norman priests, and in Herefordshire, under the jurisdiction of Earl Ralf, a flourishing Norman colony had been planted on the Welsh border. Under this Norman influence the art of castle-building was introduced into England, to the infinite disgust of the country folk in the neighbourhood of the new fortresses, and the Earl

of Hereford tried very unsuccessfully to induce the local militia, of which he was the official leader, to serve on horseback in their campaigns against the Welsh. In another direction, the king's "chancery," which was gradually becoming an organised medium for the discharge of the king's legal business, was largely staffed by Norman clerks, and the service of the royal chapel was in part, at least, conducted by priests from across the Channel. In the sphere of commerce the connection between England and Normandy, which can be traced already in the time of King Ethelred, was steadily becoming closer and more permanent; before 1066 at least five of the ports of Sussex were in Norman hands, and Norman merchants possessed a haven of their own in the estuary of the Thames. We can never hope to form an exact estimate of the extent of Norman influence in the last days of the Anglo-Saxon state, but there can be no doubt either of its general significance or of its importance in lessening the shock occasioned by the rapid Normanisation of England after 1066.

For the present, however, the Normans in England were not strong enough permanently to assume the direction of the commonwealth, and in 1052 Godwine and his sons made a triumphant return. The old earl had no difficulty in recruiting a powerful force in Flanders, and Harold in Danish Ireland found numbers of adventurers only too eager to follow the fortunes of a leader who could promise excitement and booty. In the middle of 1052, Harold, acting no doubt in concert with his father, set sail from Ireland with nine ships, landed on the coast of Somerset at Porlock, and there proceeded to slay and harry in true Viking fashion, passing on round the Land's End and so along the Channel. In the meantime Godwine with his Flemish pirates had reached the Isle of Wight and plundered it until the inhabitants were driven to pay whatever ransom the earl might demand. Off the Isle of Wight Harold joined forces with his father, and the earls sailed on past Pevensey and Hastings and along the Kentish shore, drawing many volunteers from the friendly ports at which they called, while their crews indulged in sporadic devastation elsewhere. Without serious opposition the exiles entered the Thames, and sailed up the river as far as London Bridge; Godwine disembarked at Southwark and the feeling of the city declared itself unmistakably on his side. The archbishop of Canterbury and the bishop of Dorchester made a hurried escape from the town and rode for their lives to the Essex coast, where they crossed to Normandy. The king, powerless to protect his friends in the moment of the reaction, had no

option but to restore Godwine and his family to all their honours and offices, and he was forced to declare outlaw “all Frenchmen who had raised disorder and proclaimed bad law and had plotted evil against the land.” He was, however, even allowed to retain about his person such Normans as Godwine’s party chose to consider loyal to the king and his people; and indeed it does not appear that the triumph of the nationalists in 1052 was followed by any considerable exodus of foreign settlers from the country.

Godwine had thus secured an unequivocal victory, but he and his friends proceeded to make a false move, the result of which was to throw the whole influence of the church on to the side of the Norman invader in 1066. The flight of the archbishop of Canterbury had left the metropolitan see at the mercy of Godwine’s party, and it was immediately given to Stigand, bishop of Winchester, the leading ecclesiastical partisan of the earl of Wessex. The act was a gross violation of law and decency, for the exiled archbishop had been deposed by no clerical tribunal, and Stigand did not improve his position by continuing to hold the see of Winchester in plurality with that of Canterbury. The Curia refused to recognise him as metropolitan, and in 1058 Stigand aggravated his guilt by accepting the pallium, the badge of the archiepiscopal rank, from an antipope, thereby in effect giving defiance to that section of the church which represented its highest ideals, and was destined to exercise most influence in the coming years. Before long Stigand’s political associates perceived the mistake that had been made, and for the next fifteen years the province of Canterbury was, in matters of spiritual jurisdiction, left without a head. Between 1058 and 1066 Stigand never consecrated a bishop, and at ecclesiastical ceremonies of especial importance his place was taken by the primate of York. To all strict churchmen the nominal head of the church in England was a schismatic, disowned by his own suffragans and banned by the Holy See; and it would be difficult to overestimate the importance of this fact in preparing the public opinion of Europe to support the enterprise of William of Normandy in 1066.

Godwine survived his restoration for little more than a year, and on his death in 1053 his earldom of Wessex passed to Harold as his eldest surviving son. For thirteen years it is probable that Harold was the real head of the English government. Until the very close of this period the internal history of England is almost barren of recorded events, and its significance lies in the steady aggrandisement of the family of which Harold was now

the head. By the beginning of 1065 the wealthiest and most warlike parts of the country were divided into earldoms held by members of the house of Godwine. Wessex, Harold kept under his own rule, with the addition of the shires of Gloucester and Hereford; Leofwine, his youngest brother, governed a province comprising Essex, Hertford, Middlesex, Kent, Surrey, and Sussex; Gyrth, a third brother, held East Anglia; to which was added the midland shire of Oxford.^[28] Even Northumbria had been secured by an earl of the family, for Tostig, the only one of Godwine's sons for whom King Edward seems to have felt personal affection, had received the government of that lawless land upon the death of its native earl, Siward, in 1055. Less obvious, but equally suggestive of the general trend of Harold's policy, is the enormous amount of land of which he held direct possession at the Confessor's death. There was scarcely a shire in which a certain number of estates were not held by the earl of Wessex in 1066; and *Domesday Book*, in recording the fact of his ownership, will often also record that it had been acquired by force or injustice. Harold, like his father, was quite unscrupulous in the advancement of his interests, and his greed for land and revenue is one of the few traits in his character of which we can be certain. Of his brothers, Gyrth and Leofwine are very imperfectly known to us, although in the Norman traditions of the twelfth century the former is represented as the real hero of the campaign of Hastings on the English side. But Tostig, the earl of Northumbria, was a man of stronger character, and the circumstances of his fall from power demand a brief account in this place.

Tostig's appointment in 1055 had been an experiment and a rash one. From the overthrow of the Northumbrian kingdom by Edred, down to the last year of Harthacnut, a dynasty of native earls had presided over the north. The succession in the southern half of the earldom, between Tees and Humber, had been broken in the reign of Cnut, but the ancient family continued to rule in Bernicia until in 1041 Ealdwulf II., the last earl of the house, was murdered by Siward the Danish ruler of Yorkshire. Siward thereupon reunited the two halves of the Northumbrian earldom, gaining in local eyes some title to the government by his marriage with Aelflaed, the niece of his victim Eadwulf; and for fourteen years his ruthless severity kept his province in comparative quiet. In Tostig, Siward's successor, the Northumbrians for the first time were expected to obey a south-country stranger, and hence there was no qualification to the hatred which Tostig

caused by his imitation of his predecessor's methods of government. As a personal favourite of the king, Tostig was absent from his province for long spaces of time, and it is not easy to understand why the Northumbrians submitted for ten years to the spasmodic tyranny of a stranger. But at last, in 1064, Tostig entrapped and murdered two leading thegns of the north, named Gamel the son of Orm, and Ulf; and at Christmas time in the same year Gospatric, the last male descendant of the ancient earls of Bernicia, was slain at the king's court in Tostig's interest.^[29] For nine months there was ominous peace in Northumbria, and then, very unexpectedly, in October, 1065, a great revolt burst out. Two hundred thegns marched to York, held a meeting in which we may possibly recognise a Northumbrian *gemot*, deposed Tostig, and offered the earldom to Morcar, brother of Edwin the reigning earl of Mercia, and grandson of Leofric. These events were followed by a general massacre of Tostig's adherents in York, and then the rebel army, with Morcar, the new earl, at its head, rolled southwards to force a confirmation of its revolutionary acts from the king.

At the moment of the outbreak Tostig was absent in Hampshire, hunting with King Edward. Events had now passed quite beyond his control; Morcar had been joined by his brother Earl Edwin with the fyrd of Mercia, and a contingent of Welshmen, and the combined force had reached Northampton, their line of advance being marked with wholesale ravages which can be traced very clearly in the pages of the Northamptonshire *Domesday*.^[30] At Northampton the rebels were met by Harold bearing a message from the king to the effect that, if they were to disperse, their charges against Tostig should be heard and decided in lawful manner. They returned a blank refusal to accept Tostig again as their earl, swept on down the Cherwell Valley, and next appear in occupation of Oxford. In the meantime Edward had called a council at Bretford near Salisbury, at which there was a long and angry debate, and Harold was roundly accused of stirring up the present rising for his own advantage. The earl cleared himself of the charge with an oath, and the discussion turned to the measures to be adopted to restore order. Edward himself was for putting down the revolt by force; but his counsellors urged the difficulty of conducting a campaign in winter, and the king was seized with a sudden illness which left the immediate control of affairs in the hands of Harold. Accordingly Harold paid a second visit to the rebels' camp, this time at Oxford, and formally granted their demands. Tostig was outlawed, Morcar

was recognised as earl of Northumbria, and Waltheof, the son of Siward, who might consider himself aggrieved by this alienation of his father's earldom, was portioned off with the midland shires of Northampton, Huntingdon, Bedford, and Cambridge. Tostig himself, to the king's great regret, took ship for Flanders, and spent the winter at St. Omer.

The above course of events is clear, and attested by good contemporary authority, but there is evidently much beneath the surface which is not explained to us. The revolt must clearly have been planned and organised some time before its actual outbreak, but who was really responsible for it? It would be natural enough to lay the blame on Edwin and Morcar, and on any showing they can hardly be acquitted, but it is at least doubtful whether the causes of the rising do not lie deeper. It is hard to avoid suspicion that the men who accused Harold in the council at Bretford may have had knowledge of the facts behind their accusation. It is quite certain that Harold was forming plans for his own succession to the throne upon Edward's death—would those plans be furthered by the substitution of Morcar for Tostig as earl of Northumbria? From this point we are in the region of conjecture, but our authorities give us certain hints which are significant. It was certain that the last wishes of the king would be a most powerful factor in determining the choice of his successor; Tostig was Edward's favourite, Harold might well feel anxious about the manner in which the old king would use his influence when the end came. Then, too, there is evidence that Harold about this time was trying to conciliate the great Mercian family; and the suspicion is raised that Edwin's acquiescence in Harold's schemes in 1066 was not unconnected with Morcar's elevation in 1065. Lastly, Harold's action in granting the demands of the rebels, the moment that Edward's illness had given him a free hand, is itself suggestive of some collusion with the authors of the rising. If Harold's policy had been strictly honourable his conduct should hardly have given rise to doubts like these; and if on the evidence before us we may hesitate to condemn him outright, we may at least acknowledge that his contemporary accusers deserved a respectful hearing.

More important and less conjectural than the nature of Harold's conduct is the picture given by these events of the conditions of England in 1065. All the symptoms of political disorganisation on which we have already commented—the independence of the great earls, the importance of the executive, the fatuity of the royal counsellors, the personal weakness of the

king—are illustrated by the narrative of Tostig's expulsion. For just another year the Old English state was to stand trembling to its fall, and then the final test of political stability would be applied and a conquering race would slowly rebuild the social fabric which it had overthrown.

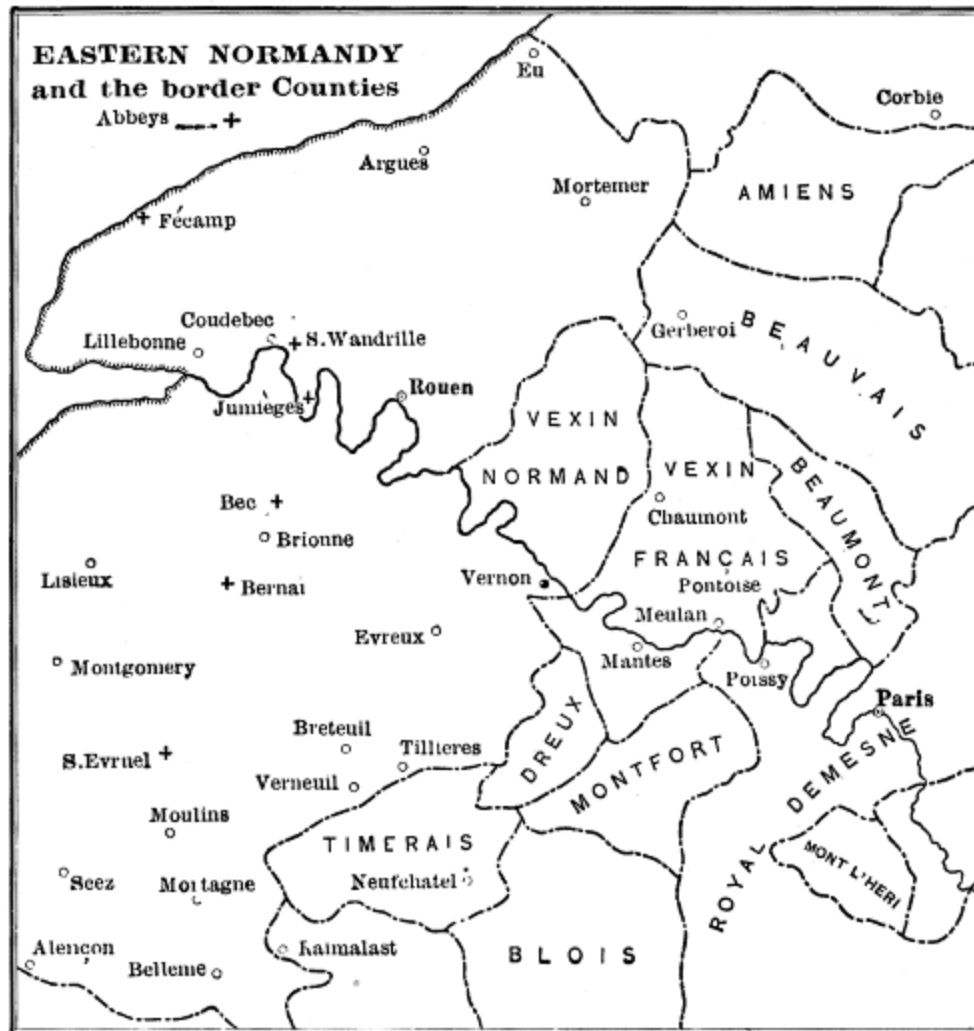


Penny of Edward the Confessor

CHAPTER I

THE MINORITY OF DUKE WILLIAM AND ITS RESULTS

Among the famous stories which enliven the history of the early dukes of Normandy there stands out prominently the tale of the romantic circumstances which led to the birth of Duke William II., the greatest of his line. The substantial truth of the legend has never been called in question, and we may still read in safety how Robert, the young count of the Hiesmois, the Son of Duke Richard I. and the fourth in descent from Rollo, was riding towards his capital of Falaise when he saw Arlette, the daughter of a tanner in the town, washing linen in a stream, according to one account—dancing, according to another; how he fell in love at first sight, and carried her off straightway to his castle; and how the connection thus begun lasted unbroken until Robert's death seven or eight years later. The whole course of William's early history was determined by the fact of his illegitimacy, and the main points of the story as we have it must already have been known to the citizens of Alençon when they cried out "Hides for the tanner" as the duke came up to their defences in the famous siege of 1049. In fact, the tale itself is thoroughly in keeping with the sexual irregularity which was common to the whole house of Rollo, with the single exception of the great Conqueror himself, and we may admit that there is a certain dramatic fitness in this unconventional origin of the man who more than any other of his time could make very unpromising conditions the prelude to brilliant results.^[31] The exact date of William's birth is not certain; it is very probable that it fell between October and December, 1027, but in any case it cannot be placed later than 1028, a fact which deserves notice, for even at the latter date Robert himself cannot possibly have been older than eighteen and may very well have been at least a year younger.



EASTERN NORMANDY
and the border Counties

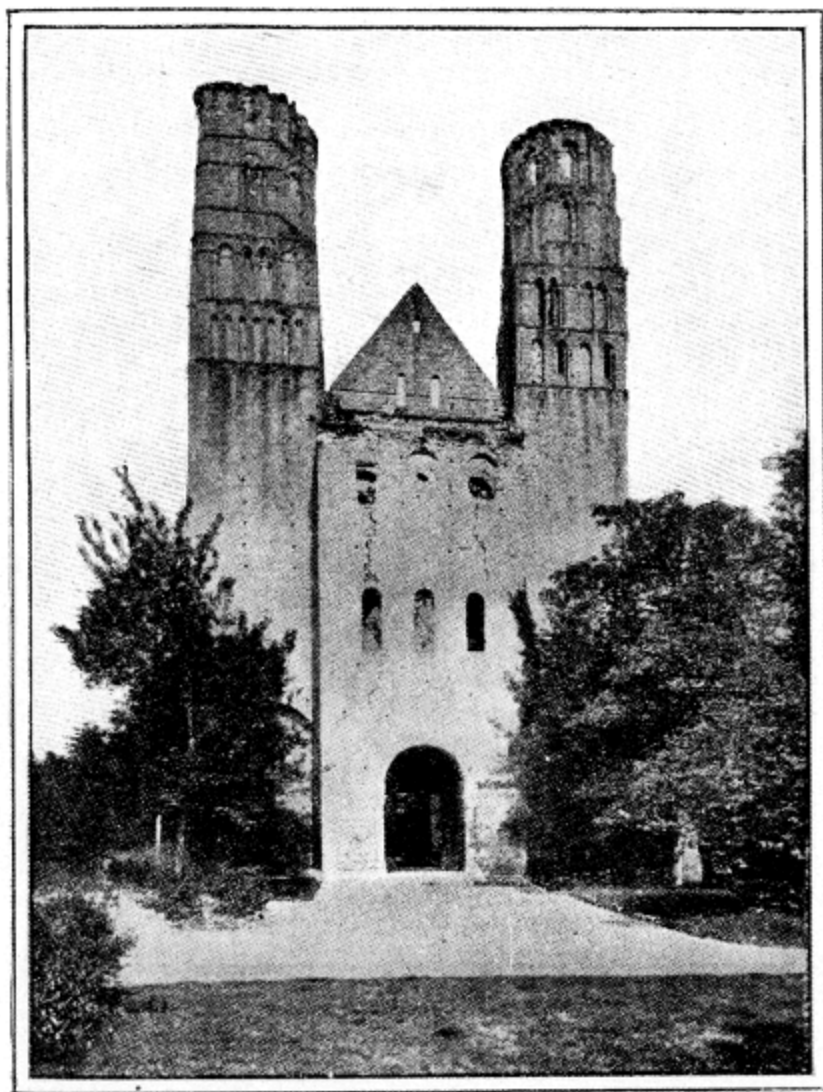
The reign of Robert I., by some caprice of historical nomenclature surnamed the Devil, was a brilliant period of Norman history. Succeeding to the ducal throne on the sudden, perhaps suspiciously sudden, death of his brother Richard III., in 1028, Robert, in the six years of his rule, won for the duchy an unprecedented influence in the affairs of the French kingdom. The first duty of a Norman duke, that of keeping his greater vassals in order, Robert seems to have performed very effectively; we may perhaps measure the strength of his hand by the outburst of anarchy which followed the news of his death. And his intervention in the general feudal politics of France, interesting enough in itself, gains in importance when viewed with

reference to the history of his greater son. William the Conqueror inherited the rudiments of a policy from his father; throughout much of his reign he was following lines of action which had been suggested between 1028 and 1035.

This was so with reference to the greatest of all his achievements, the conquest of England. There seems no reason to doubt that Robert had gone through the form of marriage with Estrith, the sister of Cnut, and there is a strong probability that he planned an invasion of England on behalf of the banished sons of Ethelred. The marriage of Robert's aunt, Emma, first to Ethelred and then to Cnut,^[32] began, as we have seen, that unbroken connection between England and Normandy which culminated in the Norman Conquest. Norman enterprise was already in Robert's reign extending beyond the borders of the French kingdom to Spain and Italy; that it should also extend across the Channel would not be surprising, for Normandy was connected with England by commercial as well as dynastic ties. And William of Jumièges, writing within fifty years of the event, has given a circumstantial account of Robert's warlike preparations. According to him the invasion of England was only prevented by a storm, which threw the duke and his cousin Edward, who was accompanying him, on to the coast of Jersey. Robert does not seem to have repeated the attempt, and before it was made again England had suffered a more subtle invasion of Norman ideas under the influence of Edward the Confessor.

Nor was Norman intervention lacking at the time beyond the western border of the duchy. Robert had inherited old claims to suzerainty over Brittany, and he tried to make them a reality. For some time past Normandy and Brittany had been drawing nearer to each other; Robert was himself a Breton on his mother's side, and if one aunt of his was queen of England, another was the dowager countess of Brittany. Breton politics were never quite independent of one or other of the great powers of north France, Normandy, Anjou, or Blois, each of which could put forward indeterminate feudal claims over the peninsula. Anjou, under its restless, aggressive counts, was here as elsewhere a formidable rival to Normandy, and in face of its competition Robert could not allow his claims on Brittany to lapse. Hence, when Count Alan repudiated his homage, a Norman invasion followed, the result of which was a fresh recognition of Robert's overlordship, and the establishment of still closer relations between the two states.^[33] Alan is found acting as one of the guardians of William's minority

—in fact he died, probably from poison, while besieging the revolted Norman castle of Montgomery in his ward's interest—and his successor Conan was never really friendly towards Normandy. Yet, notwithstanding his hostility, Norman influence steadily gained the upper hand in Brittany during William's life. It is significant that he drew more volunteers for his invasion of England from Brittany than from any other district not under his immediate rule.



JUMIÈGES ABBEY—FAÇADE

The relations of Robert with the French crown were still more important. The ancient alliance between the dukes of Normandy and the Capetian dynasty which William inherited, and which was to be his chief safeguard during the first fifteen years of his reign, had been greatly strengthened by the action taken by Robert in the internal affairs of the Isle de France. One of the few threads of consistent policy which run through the complicated history of this period is the persistent mistrust of successive kings of France towards their formidable neighbours, the counts of Blois. The possessions of the latter lay astride the royal demesne in two great blocks, the county of Blois, which bordered it on the west, and the county of Troyes or Champagne, which lay along its eastern frontier. The whole territorial group far exceeded the royal possessions in extent and resources, and its geographical position gave its lords the strategical advantage as well. Accordingly, the French kings were driven to seek countervailing support among their greater vassals, and at this time they found it in the duchy of Normandy. A similar alliance had been formed in the tenth century against the Carolingians; the traditional friendship was readily adapted to new conditions.

Its value was clearly proved by the events which followed the death of King Robert the Pious. Henry, his eldest surviving son, had been associated with him in the kingship and designated as his successor, but Constance the queen dowager intrigued against the eldest brother in favour of her younger son Robert. Odo II., the able and ambitious count of Blois, took the side of the latter and drove Henry out of the royal demesne. He fled to Normandy and was well received by Robert; there exists a charter of the latter to the abbey of St. Wandrille which Henry attests as a witness in company with his fellow-exiles, Edward, afterwards king and confessor, and Edward's unlucky brother the Etheling Alfred.^[34] Well supported with Norman auxiliaries Henry returned and conquered the royal demesne piecemeal; and, in return for Robert's help, we are told that the king ceded to him the Vexin Français, the district between the Epte and the Oise.^[35]

The internal condition of Normandy at this period might perhaps compare favourably with that of any of the greater fiefs of north France. A succession of able dukes had, for the time being, reduced the Norman baronage to something like order. Other countries also at this time offered a fairer field for the exercise of superfluous activity; the more unquiet spirits went off to seek their fortune in Spain or Italy. But in Normandy, as

elsewhere, everything depended on the head of the state. All the familiar features of feudal anarchy, from the illicit appropriation of justice and the right of levying taxes to simple oppression and private war, were still ready to break out under a weak ruler. And there existed an additional complication in the large extent of territory which was in the hands of members of the ducal house. The lax matrimonial relations of the early dukes had added a very dangerous element to the Norman nobility in the representatives of illegitimate or semi-legitimate lines of the reigning family. They are collectively described by William of Jumièges as the “Ricardenses,” and he tells us with truth that it was these oblique kinsmen of William who felt most aggrieved at, and offered most opposition to, his accession. They were especially formidable from the practice, which had been followed by the early dukes, of assigning counties to younger brothers of the intended heir. Duke Robert himself had before his accession held the county of the Hiesmois. Of the illegitimate sons of Richard I., Robert, archbishop of Rouen, the eldest, held in his lay capacity the county of Evreux; his next brother, Malger, the county of Mortain; his youngest brother, William, the county of Eu; while William, the youngest son of Richard II., possessed the county of Arques. It is noteworthy that each of these appanages was, at one period or another in the life of William, the scene of a real or suspected revolt against him.

Such was the general condition of the Norman state when Robert, in the winter of 1034, meditating a pilgrimage to the Holy Land, held a council at Fécamp to decide who should be his successor in case of misadventure, and brought with him in that capacity his seven-year-old son William.^[36] Notwithstanding the discreet reticence of the later writers who describe the scene, we can see that the proposal was intensely distasteful to the Norman baronage. To any law-abiding section of the assembly it must have meant entrusting the welfare of the duchy to the most doubtful of hazards, and it was a direct insult to the family pride of the older Norman nobility. Had there existed at this time any member of the ducal house who combined legitimacy of birth with reasonable proximity in the scale of succession, Duke Robert would undoubtedly have had the greatest difficulty in carrying his point. But among his many kinsmen there was not one who did not labour under some serious disqualification. Nicholas, the illegitimate son of Richard III., would have been a possible claimant, but Duke Robert had taken the precaution of compelling him, child as he was, to become a monk,

and he was now safely bestowed in the ducal monastery of Fécamp.^[37] Guy of Brionne, the son of Robert's sister, was legitimate indeed, but was younger than William, and would be counted a member of a foreign house; Malger and William, Robert's two surviving brothers, were both illegitimate, and the former was a churchman. Members of the older line, descending from Richard I., probably stood too far back from the line of succession to admit of their appearance as serious competitors, and after all there was a strong probability that the question would not become a matter of immediate importance. Pilgrimages to Jerusalem were not infrequent events at this time^[38] and Robert's age was considerably under thirty. He had previously secured the assent of his overlord King Henry to his proposed heir, and the end of the deliberations at Fécamp was the recognition of William by the Normans as their future duke.

As it happened, Duke Robert's pilgrimage turned out ill; he died on the homeward journey, at Nicea, on the second of July, 1035, and the government fell to William, or rather to the guardians whom his father had provided for him before his departure. Of these the highest in rank was Count Alan of Brittany, William's cousin,^[39] with whom were associated Count Gilbert of Brionne, the ancestor of the mighty house of Clare,^[40] Osbern the seneschal of Normandy, and a certain Thorold or Thurcytel de Neufmarché, the latter having personal charge of the young duke. It was an ominous circumstance that each of these men came to a violent end within five years of William's accession. The house of Montgomery alone accounted for two of them: Osbern the seneschal was cut down in William's bedroom by William, son of Roger de Montgomery; Count Alan met his death, as we have seen, during the siege of Montgomery Castle itself. The assassins of Thurcytel de Neufmarché are not recorded by name, and a certain amount of confusion hangs over the end of Count Gilbert of Brionne; but William of Jumièges, a good authority, states that he fell a victim to murderers hired by Ralf de Wacy, the son of Archbishop Robert of Rouen. It is at least certain that shortly after this last event Ralf de Wacy was chosen by William himself, acting, as is said, upon the advice of his chief men, as his guardian and the commander of the Norman army.

More important than this list of crimes is the general question of the relations which existed at this critical period between William and the king of France. We have seen that Duke Robert had secured the king's consent to his nomination of William as the heir of Normandy; and we have good

reason for believing that William after his accession was, in the feudal sense of the phrase, under the guardianship of his overlord. Weak as the French monarchy seems to be at this time it had not, thus early in the eleventh century, finally become compelled to recognise the heritable character of its greater fiefs. Its chances of interfering with credit would vary with each occasion. If a tenant in chief were to die leaving a legitimate son of full age, the king in normal cases would not try to change the order of inheritance; but a dispute between two heirs, or the succession of a minor, would give him a fair field for the exercise of his legal rights. Now William of Normandy was both illegitimate and a minor and his inheritance was the greatest fief of north France; by taking up the office of guardian towards him the king would at once increase the prestige of the monarchy, and also strengthen the ancient friendship which existed between Paris and Rouen. Nor are we left without direct evidence on this point. William of Malmesbury, in describing the arrangements made at Fécamp, tells us that Count Gilbert of Brionne, the only one of William's guardians whom he mentions by name, was placed under the surveillance of king Henry^[41]; and Henry of Huntingdon incidentally remarks that in 1035 William was residing with the king of France and that the revenues of Normandy were temporarily annexed to the royal exchequer. In view of the statements of these independent writers, combined with the antecedent probability of the case, we may consider it probable that William, on his father's death, became the feudal ward of his suzerain,^[42] and that very shortly after his own accession he spent some time in attendance at the royal court.

It must be confessed that we know very little as to the events of the next ten years of William's life. They were critical years, for in them William was growing up towards manhood and receiving the while a severe initiation into the art of government. The political conditions of the eleventh century did not make for quiet minorities; they left too much to the strength and discretion of the individual ruler. Private war, for instance, might be a tolerable evil when duly regulated and sanctioned by a strong duke; under the rule of a child the custom merely supplied a formal excuse for the prevailing anarchy. Later writers give various incidental illustrations of the state of Normandy at this period. We read, for instance, how Roger de Toeny, a man of most noble lineage, on returning to Normandy from a crusade against the Moors in Spain, started ravaging the land of his neighbours in sheer disgust at the accession of a bastard to the duchy, and

was killed in the war which he had provoked.^[43] But such stories only concern the history of William the Conqueror in so far as they indicate the nature of the evils the suppression of which was to be his first employment in the coming years. To turn the fighting energy inherent in feudal life from its thousand unauthorised channels, and to direct it towards a single aim controlled and determined by himself, was to be the work which led to his greatest achievements. In the incessant tumults of the first ten years of his reign we see the aimless stirring of that national force which it is William's truest glory to have mastered and directed to his own ends.

We get one glimpse of William at this time in a charter^[44] which must have been granted before 1037, as it is signed by Archbishop Robert of Rouen, who died in that year. The document is of interest as it shows us the young duke surrounded by his court, perhaps at one of the great church festivals of the year. Among the witnesses we find Counts Waleran of Meulan, Enguerrand of Ponthieu, and Gilbert of Brionne; the archbishop of Dol, as well as his brother metropolitan of Rouen; Osbern the seneschal, and four abbots, including the head of the house of Fécamp, in whose favour the charter in question was granted. The presence of the count of Ponthieu and the archbishop of Dol is important as showing that even at this stormy time the connection between Normandy and its neighbours to east and west had not been wholly severed; and it is interesting to see two of William's unlucky guardians actually, in attendance on their lord. It may also be noted that at least one other charter^[45] has survived, probably a little later in date, but granted at any rate in or before 1042, in which among a number of rather obscure names we find the signature of "Haduiardus Rex," which strange designation undoubtedly describes Edward of England, then nearing the end of his long exile at the court of Normandy.

To this difficult period of William's reign must apparently be assigned a somewhat mysterious episode which is recorded by William of Jumièges alone among our authorities. One of the strongest border fortresses of Normandy was the castle of Tillières, which commanded the valley of the Arve and was a standing menace to the county of Dreux. The latter was at this time in the hands of the crown, but in the tenth century it had been granted to Richard the Fearless, duke of Normandy. He had ceded it to Count Odo of Blois as the marriage portion of his daughter Mahaut, but on her speedy death without issue Odo had refused to return it to his father-in-law; and in the border warfare which followed, the duke founded the castle

of Tillières as a check upon his acquisitive neighbour.^[46] On Odo's death in 1018 the county of Dreux passed to his overlord the king of France, but Tillières continued to threaten this latest addition to the royal demesne. We know very little as to what went on in the valley of the Arve during the twenty years that followed Odo's death, but by the beginning of William's reign it seems certain that the Norman claims on Dreux itself had been allowed to lapse, and the present dispute centres round Tillières alone. At some unspecified period in William's minority we find King Henry declaring that, if William wished to retain his friendship, Tillières must be dismantled or surrendered. The young duke himself and some of his barons thought the continued support of the king of France more valuable than a border fortress and were willing to surrender the castle; but its commander, one Gilbert Crispin, continued to hold out against the king. Tillières was thereupon besieged by a mixed force of Frenchmen and Normans, and William, possibly appearing in person, ordered Gilbert Crispin to capitulate. He obeyed with reluctance and the castle was at once burned down, the king swearing not to rebuild it within four years, but within the stipulated period it seems that the treaty was broken on the French side. The king at first retired, but not long afterwards he recrossed the border, passed across the Hiesmois, burned Argentan, and then returning rebuilt the castle of Tillières in defiance of his oath, while at the same time it would appear that the viscount of the Hiesmois, one Thurstan surnamed "Goz," was in revolt against William and had garrisoned Falaise itself with French troops. Falaise was at once invested, William again appearing on the scene to support Ralf de Wacy, the commander of his army, and it seemed probable that the castle would be taken by storm; but Thurstan Goz was allowed to come to terms with the duke and was banished from Normandy, his son Richard continuing in William's service as viscount of Avranches. The family is of great interest in English history, for Hugh the son of the latter Richard was to become the first earl "palatine" of Chester. And so it may be well to note in passing that the rebel Thurstan is described by William of Jumièges as the son of Ansfrid "The Dane," a designation which is of interest both as proving the Scandinavian origin of the great house of which he was the progenitor, and also as suggesting that a connection, of which we have few certain traces, may have been maintained between Normandy and its parent lands for upwards of a century after the treaty of Claire-sur-Epte.

The above is the simplest account that we can give of these transactions, which are not very important in themselves, but have been considered to mark the rupture of the old friendship between the Capetian dynasty and the house of Rollo.^[47] But the whole subject is obscure. The king's action, in particular, is not readily explicable on any theory, for there is good reason to believe that at this time he was actually William's feudal guardian and certainly a few years later he appears as fully discharging the duties of that office on the field of Val-es-dunes; so that it is not easy to see why on the present occasion he should inflict gratuitous injury on his ward by sacking his towns and burning his castles. The affair of Tillières would be quite intelligible if it stood by itself: it was only natural that the king should take advantage of his position to secure the destruction or surrender of a fortress which threatened his own frontier, and the fact that William himself appears as ordering the surrender would alone suggest that he was acting under the influence of his overlord. But the raid on Argentan is a more difficult matter. We do not know, for instance, whether there was any connection between the revolt of Thurstan Goz and the king's invasion of the Hiesmois; the mere fact that the rebel commander of Falaise took French knights into his pay, by no means proves that he was acting in concert with the French king. The story as we have it suggests that there may have been two parties in Normandy at this time, one disposed to render obedience to the king of France as overlord, the other maintaining the independence of the Norman baronage; a state of affairs which might readily lead to the armed intervention of the king of France, half in his own interest, half in that of his ward. But considering the fact that we owe our knowledge of these events to one chronicler only, and that he wrote when the rivalry between Normandy and France had become permanent and keen, we may not improbably suspect that he antedated the beginning of strife between these two great powers, and read the events of William's minority in the light of his later history.

The revolt of western Normandy which took place in the year 1047 marks the close of this obscure and difficult period in William's life; it is in the crisis of this year that something of the personality of the future Conqueror is revealed to us for the first time. With the battle of Val-es-dunes William attained his true majority and became at last the conscious master of his duchy, soon to win the leading place among the greater vassals of the French crown. For ten years more, indeed, he was to be

confronted, at first by members of his own family, whose ill-will became at times something more than passive disaffection, and afterwards by his overlord made jealous by his increasing power, but the final issue was never again in serious doubt after his barons had once tried conclusions with him in pitched battle and had lost the game.



JUMIÈGES ABBEY—INTERIOR

For all this, the revolt of 1047 came near putting a summary close to William's career and life. Normandy at this time was far from being a homogeneous state; apart from the general tendency of feudalism towards

the isolation of individual barons, the greater divisions of the duchy had as yet little real cohesion; and a line of cleavage which is all-important in this revolt is marked by the river Dive, which separates Rouen and its territory, where the ducal power might be expected to be at its strongest, from the lands of the Bessin and Cotentin, which were always predisposed to local independence. These districts, as we have seen, formed no part of the territory ceded to Rollo by the treaty of Claire-sur-Epte, and it is quite possible that the course of events in the present year may have been affected by the distinction between the Gallicised Northmen of the Rouennais and Evrècin and the more primitive folk of the lands west of Dive. At any rate it was from the latter quarter that the main strength of the rising was drawn. The Bessin and Cotentin revolted under their respective viscounts, Randolph de Brichessart and Neel de Saint Sauveur, the latter being the most prominent leader in the whole affair; and with them were associated one Hamo, nicknamed "Dentatus," the lord of Thorigny and Creuilly, and Grimbald the seigneur of Plessis. The nominal head of the revolt was William's cousin Guy, son of Reginald, count of the Burgundian Palatinate by Adeliz, daughter of Duke Richard II. of Normandy, a young man, who up to this time had been the constant companion of William, and had received from him Brionne and Vernon, two of the most important castles of eastern Normandy. Guy was one of the few legitimate members of the ducal family, and he and his confederates found a justification for their rising in the stain which rested upon William's birth. We are told that their ultimate object was to divide the duchy among themselves, and we may suppose that Guy would have taken Rouen and the surrounding country with the title of duke, leaving the western lords in practical independence. The latter took an oath to support his claims and to depose William, and they put their castles into a state of defence.

When the revolt broke out William was in the heart of the enemies' country at Valognes, a town which seems to have been his favourite hunting seat in the west of Normandy. The opportunity was too good to be missed, and a plot was laid for his capture which came within an ace of success, and according to later tradition was only discovered, on the point of its execution, by Gallet, William's fool. The duke had gone to bed when Gallet burst into his room and called on him to escape for his life. Clad in such garments as came to hand William sprang on horseback, and rode away through the dead of night eastwards towards his native and loyal town of

Falaise. He took the coast road, crossing the estuary of the Vire at low water, and by day-break he had covered the forty miles which separate Valognes from Rye. It so chanced that Hubert the lord of Rye was standing between his castle mound and the neighbouring church as the duke came riding by, and recognising his lord he asked the reason of his haste. Upon learning of his danger Hubert called three of his sons and bade them escort the duke to Falaise; but even in the capital of his native province William made no delay, and hastened across the borders of his duchy to ask help of his overlord and guardian, King Henry of France.^[48] The king and the duke met at Poissy, and a French army prepared to enter Normandy under the leadership of the king in person, while on his part William summoned the men of Rouen, Auge, Lisieux, Evreux, and the Hiesmois, men, that is, from all Normandy east of the Dive and from the territory belonging to Falaise, west of that river. The Normans assembled in the latter district and concentrated on the Meance near Argences; the French army drew together on the Laison between Argences and Mezidon. King Henry heard mass and arranged his troops at Valmeray, then crossed the Olne on to the plain of Val-es-dunes and drew up his men on the bank of the river. In that position he was joined by William, who had crossed at the ford of Berangier, and the combined force prepared for battle, the Frenchmen forming the left wing and the Normans the right.^[49]

In the meantime the revolt had spread apace. The rebels had seized the duke's demesne and, it would seem, were prepared to invade the loyal country across the Dive, for they had reached Val-es-dunes before the king and the duke had arrived there. Like their opponents, they drew up their army in two divisions, the men of the Cotentin forming the right wing and those of the Bessin the left. The battle seems to have begun by a charge of the Cotentin men on the French, but of the struggle which followed we have only a confused and indefinite account; it appears to have been a simple cavalry encounter, calling for no special tactical skill in the leaders of either side. Even in most of the Norman accounts of the battle William plays a part distinctly secondary to that of his overlord, although the latter had the ill luck to be unhorsed twice during the day, once by a knight of the Cotentin and once by the rebel leader Hamo "Dentatus." Before long the fight was going decisively in favour of the loyal party. The rebel leaders seem to have mistrusted each other's good faith. In particular Ralf of Brichessart began to fear treachery; he suspected that Neel de Saint Sauveur

might have left the field, while one of his own most distinguished vassals had been cut down before his eyes, by the duke's own hand as later Norman tradition said. Accordingly, long before the fight was over he left the field, but the western men were still held together by Neel, who made a determined stand on the high ground by the church of St. Lawrence. At last he too gave way, the flight became general, and it was at this point that the rebel force suffered its heaviest losses, for the broken army tried to make its way into the friendly land of the Bessin, and the river Olne lay immediately to the west of the plateau of Val-es-dunes. Large numbers of the rebels perished in the river and the rest escaped between Alegmagne and Farlenay, while Guy himself, who had been wounded in the battle, fled eastward to his castle of Brionne.

The reduction of this fortress must have been for William the most formidable part of the whole campaign. Even in the middle of the eleventh century the art of fortification was much more fully developed than the art of attack, and at Brionne the site of the castle materially aided the work of defence. The castle itself stood on an island in the river Risle, which at that point was unfordable, and it was distinguished from the wooden fortifications common at the time by the fact that it contained a stone "hall," which was evidently considered the crowning feature of its defences.^[50] Immediately, it would seem, after the battle of Val-es-dunes King Henry retired to France, while William hastened to the siege of Brionne. A direct attack on the castle being impossible, William built counterworks on either bank of the Risle and set to work to starve the garrison into surrender. By all accounts the process took a long time,^[51] but at last the failure of supplies drove Guy to send and ask for terms with William. These were sufficiently lenient; Guy was required to surrender Brionne and Vernon, but was allowed to live at William's court if he pleased. No very drastic measures were taken with regard to the rebels of lower rank, but William, realising with true instinct where his real danger had lain, dismantled the castles which had been fortified against him; and with the disappearance of the castles the fear^[52] of civil war vanished from Normandy for a while. The capital punishment of rebellious vassals was not in accordance with the feudal custom of the time.^[53] The legal doctrine of sovereignty, which made the levying of war against the head of the state the most heinous of all crimes, was the creation of the revived study of Roman law in the next century; and a mere revolt, if unaggravated by any special act of treason,

could still be atoned for by the imprisonment of the leaders and the confiscation of their lands. To this we must add that William as yet was no king, the head of no feudal hierarchy; the distance that separated him from a viscount of Coutances was far less than the distance that came to separate a duke of Somerset from Edward IV. The one man who was treated with severity on the present occasion was Grimbold of Plessis, on whom was laid the especial guilt of the attempt on William's life at Valognes. He was sent into perpetual imprisonment at Rouen, where he shortly died, directing that he should be buried in his fetters as a traitor to his lord.^[54] Guy of Burgundy seems to have become completely discredited by his conduct in the war, life in Normandy became unbearable to him, and of his own free will he retired to Burgundy, and vanishes from Norman history.

The war was over, and William's future in Normandy was secured, but the revolt had indirect results which extended far beyond the immediate sequence of events. It was William's duty and interest to return the service which King Henry had just done to him, and it was this which first brought him into hostile relations with the rising power on the lower Loire, the county of Anjou. The history of Anjou is in great part the record of a continuous process of territorial expansion, which, even by the beginning of the eleventh century had raised the petty lordship of Angers to the position of a feudal power of the first rank. Angers itself, situated as it was in the centre of the original Anjou, was an excellent capital for a line of aggressive feudal princes, who were enabled to strike at will at Brittany, Maine, Touraine, or Saintonge, and made the most of their strategical advantage. With Normandy the counts of Anjou had not as yet come into conflict; the county of Maine had up to the present separated the two states, and the collision might have been indefinitely postponed had not the events of 1047 compelled William of Normandy to bear his part in a quarrel which shortly afterwards broke out between the king of France and Count Geoffrey II. of Anjou.

The first five years of William's minority had coincided, in the history of Anjou, with the close of the long reign of Count Fulk Nerra, who for more than fifty years had been extending the borders of his county with unceasing energy and an entire absence of moral scruple, and has justly been described as the founder of the Angevin state. His son and successor Geoffrey, commonly known in history, as to his contemporaries, under the significant nickname of Martel, continued his father's work of territorial

aggrandisement. He had three distinct objects in view: to round off his hereditary possessions by getting possession of Touraine, and to extend his territory to the north and south of the Loire at the expense of the counts of Maine and Poitou respectively. His methods, as described by Norman historians, were elementary; his favourite plan was to seize the person of his enemy and allow him to ransom himself by the cession of the desired territory. This simple device proved effective with the counts of Poitou and Blois; from the former, even before the death of Fulk Nerra, Geoffrey had extorted the cession of Saintonge, and from the latter, after a great victory at Montlouis in 1044, he gained full possession of the county of Touraine. The conquest of Touraine was undertaken with the full consent of the king of France; the counts of Blois, as we have seen, were ill neighbours to the royal demesne, and King Henry and his successors were always ready to ally themselves with any power capable of making a diversion in their favour. On the other hand their policy was not, and could not be, consistent in this respect; the rudimentary balance of power, which was all that they could hope to attain at this time, was always liable to be overthrown by the very means which they took to preserve it; a count of Anjou in possession of Saintonge and Touraine could be a more dangerous rival to the monarchy than the weakened count of Blois. Accordingly, less than four years after the battle of Montlouis, we find King Henry in arms against Geoffrey Martel, and William of Normandy attracted by gratitude and feudal duty into the conflict.^[55]

When William, archdeacon of Lisieux, the Conqueror's first biographer, was living, an exile as he styles himself, in Poitou shortly after this time, the prowess of the young duke in this campaign was a matter of current conversation.^[56] The Frenchmen, we are told, were brought to realise unwillingly that the army led by William from Normandy was greater by far than the whole force supplied by all the other potentates who took part in the war. We are also told that King Henry had the greatest regard for his protégé, took his advice on all military matters, and remonstrated with him affectionately on his too great daring in the field. William seems in his early days to have possessed a full share of that delight in battle which is perhaps the main motive underlying the later romances of chivalry, and his reputation rose rapidly and extended far. Geoffrey Martel himself said that there could nowhere be found so good a knight as the duke of Normandy. The princes of Gascony and Auvergne and even the kings of Spain sent him

presents of horses and tried to win his favour.^[57] Also it must have been about this time that William made overtures to Baldwin, count of Flanders, for the hand of his daughter, while in 1051 we know that he made a journey, fraught with memorable consequences, to the court of Edward the Confessor. In fact, with the subjugation of his barons and his first Angevin war William sprang at a bound into fame; the political stage of France lacked an actor of the first order, and William in the flush of his early manhood was an effective contrast to the subtle and dangerous count of Anjou.

At some undetermined point in the war an opportunity presented itself for Geoffrey Martel to gain a foothold in Norman territory. On the border between Normandy and Maine stand the towns of Domfront and Alençon, each commanding a river valley and a corresponding passage from the south into Normandy. Domfront formed part of the great border fief of Bellême, and at this time it was included in the county of Maine, over which, as we shall see later, Geoffrey Martel was exercising rights of suzerainty. Alençon was wholly Norman, but its inhabitants found William's strict justice unbearable, and being thus predisposed for revolt they admitted a strong Angevin garrison sent by Geoffrey Martel. William decided to retaliate by capturing Domfront, leaving Alençon to be retaken afterwards.^[58] The plan was reasonable, but it nearly led to William's destruction, for a traitor in the Norman army gave information as to his movements to the men of Domfront, and it was only through his personal prowess that William escaped an ambush skilfully laid to intercept him as he was reconnoitring near the city. The siege which followed was no light matter. It was winter, Geoffrey had thrown a body of picked men into the castle, and, unlike Brionne, Domfront was a hill fortress, accessible at the time only by two steep and narrow paths. It would thus be difficult to carry the place by sudden assault; so William, as formerly at Brionne and later at Arques, established counterworks and waited for the result of a blockade, harassing the garrison meanwhile by incessant attacks on their walls. The counterworks, we are told, consisted of four "castles," presumably arranged so as to cover the base of the hill on which Domfront stands, and William contented himself for the present with securing his own supplies and preventing any message being carried from the garrison to the count of Anjou, in the meantime making use of the opportunities for sport which the neighbouring country offered. At last the men of Domfort contrived to get a

messenger through the Norman lines and Geoffrey advanced to the relief of his allies with a large army. What followed may be told in the words of William of Poitiers:

“When William knew this he hastened against him [Geoffrey], entrusting the maintenance of the siege to approved knights, and sent forward as scouts Roger de Montgomery and William fitz Osbern, both young men and eager, who learned the insolent intention of the enemy from his own words. For Geoffrey made known by them that he would beat up William’s guards before Domfront at dawn the next day, and signified also what manner of horse he would ride in the battle and what should be the fashion of his shield and clothing. But they replied that he need trouble himself no further with the journey which he designed, for he whom he sought would come to him with speed, and then in their turn they described the horse of their lord, his clothing and arms. These tidings increased not a little the zeal of the Normans, but the duke himself, the most eager of all, incited them yet further. Perchance this excellent youth wished to destroy a tyrant, for the senate of Rome and Athens held such an act to be the fairest of all noble deeds. But Geoffrey, smitten with sudden terror, before he had so much as seen the opposing host sought safety in flight with his whole army, and lo! the path lay open whereby the Norman duke might spoil the wealth of his enemy and blot out his rival’s name with everlasting ignominy.”^[59]

It is painful to pass from this rhapsody to what is perhaps the grimmest scene in William’s life. The retreat of Geoffrey, to whatever cause it is to be assigned, exposed Alençon to William’s vengeance. Leaving a sufficient force before Domfront to maintain the siege, in a single night’s march he crossed the water-parting of the Varenne and the Sarthe, and approached Alençon as dawn was breaking. Facing him was the fortified bridge over the Sarthe, behind it lay the town, and above the town stood the castle, all fully defended. On the bridge certain of the citizens had hung out skins, and as William drew near they beat them, shouting “Hides for the tanner.”^[60] With a mighty oath the young duke swore that he would prune those men as it were with a pollarding knife, and within a few hours he had executed his threat. The bridge was stormed and the town taken, William unroofing the houses which lay outside the wall and using the timber as fuel to burn the gates, but the castle still held out. Thirty-two of the citizens were then

brought before the duke; their hands and feet were struck off and flung straightway over the wall of the castle among its defenders.^[61] With the hasty submission of the castle which followed William was free to give his whole attention to the reduction of Domfront, and on his return he found the garrison already demoralised by the news of what had happened at Alençon, and by the ineffective departure of Geoffrey Martel. They made an honourable surrender and Domfront became a Norman possession,^[62] the first point gained in the struggle which was not to end until a count of Anjou united the thrones of Normandy, Maine, and England.



Denier of Geoffrey Martel

CHAPTER II

REBELLION AND INVASION

Between the first Angevin war and the outbreak of overt hostilities between Normandy and France, there occurs a period of five or six years the historical interest of which lies almost entirely in the internal affairs of the Norman state. It was by no means an unimportant time; it included one external event of great importance, William's visit to England in 1051, but its real significance lay in the gradual consolidation of his power in Normandy and its results. On the one hand it was in these years that William finally suppressed the irreconcilable members of his own family; on the other hand the gradual dissolution of the traditional alliance between Normandy and the Capetian house runs parallel to this process and is essentially caused by it. From the very time when William attained his majority these two powers begin steadily to drift apart; the breach widens as William's power increases, and the support given by the king of France in these years to Norman rebels such as William Busac and William of Arques is naturally followed by his invasions of Normandy in 1054 and 1058. As compensation for this William's marriage with Matilda of Flanders falls within the same period, and events ruled that the alliance thus formed was to neutralise the enmity of the Capetian house at the critical moment of the invasion of England. There is indeed a sense in which we may say that it was William's success in these six years which made the invasion of England possible; whether consciously or not, William was making indispensable preparation for his supreme endeavour when he was taking the castles of his unquiet kinsmen and banishing them from Normandy.

The first of them to go was William surnamed "the Warling," count of Mortain and grandson of Duke Richard the Fearless. His fall was sudden and dramatic. As we have only one narrative of these events it may be given here at length:

“At that time William named the Warling, of Richard the Great’s line, was count of Mortain. One day a certain knight of his household, called Robert Bigot, came to him and said, ‘My Lord, I am very poor and in this country I cannot obtain relief; I will therefore go to Auplia, where I may live more honourably.’ ‘Who,’ said William, ‘has advised you thus?’ ‘The poverty which I suffer,’ replied Robert. Then said William, ‘Within eight days, in Normandy itself, you shall be able in safety to seize with your own hands whatever you may require.’ Robert therefore, submitting to his lord’s counsel, bided his time, and shortly afterwards, through Richard of Avranches his kinsman, gained the acquaintance of the duke. One day they were talking in private when Robert among other matters repeated the above speech of Count William. The duke thereupon summoned the count and asked him what he meant by talk of this kind, but he could not deny the matter, nor did he dare to tell his real meaning. Then said the duke in his wrath: ‘You have planned to confound Normandy with seditious war, and wickedly have you plotted to rebel against me and disinherit me, therefore it is that you have promised booty to your needy knight. But, God granting it, the unbroken peace which we desire shall remain to us. Do you therefore depart from Normandy, nor ever return hither so long as I live.’ William thus exiled sought Apulia wretchedly, accompanied by only one squire, and the duke at once promoted Robert his brother and gave him the county of Mortain. Thus harshly did he abuse the haughty kindred of his father and honourably exalt the humble kindred of his mother.”^[63]

The moral of the story lies in its last sentence. The haughty kindred of the duke’s father were beginning to show themselves dangerous, and William threw down the challenge to them once for all when he disinherited the grandson of Richard the Great in favour of the grandson of the tanner of Falaise. But, apart from the personal questions involved, the tale is eminently illustrative of William’s conception of his duty as a ruler. By policy as well as prepossession he was driven to be the stern maintainer of order; the men who would stir up civil war in Normandy wished also to disinherit its duke, and from this followed naturally that community of interest between the ruler and his meaner subjects as against the greater baronage which was typical of the early Middle Ages in Normandy and England alike. It is inadvisable to scrutinise too narrowly the means taken by William to secure his position; if on the present occasion he exiled his

cousin on the mere information of a single knight, he had already been taught the wisdom of striking at the root of a rebellion before it had time to grow to a head. We must not expect too much forbearance from the head of a feudal state in his dealings with a suspected noble when the banishment of the latter would place a dangerous fief at the former's disposal. Lastly, we may notice the way in which Apulia is evidently regarded as a land of promise at this time by all who seek better fortune than Normandy can give them. In the eleventh century, as in the fifteenth, Italy was exercising its perennial attraction for the men of the ruder north, and under the leadership of the sons of Tancred of Hauteville a new Normandy was rising on the wreck of the Byzantine Empire in the West by the shores of the Ionian Sea.

Probably about this time, and possibly not without some connection with the disaffection of William the Warling, there occurred another abortive revolt, of which the scene was laid, as usual, in one of the semi-independent counties held by members of the ducal house. In the north-east corner of Normandy the town of Eu with its surrounding territory had been given by Duke Richard II. to his illegitimate brother William. The latter had three sons, of whom Robert, the eldest, succeeded him in the county, Hugh, the youngest, subsequently becoming bishop of Lisieux. The remaining brother, William, surnamed Busac, is a mysterious person whose appearance in history is almost confined to the single narrative which we possess of his revolt. The latter is not free from difficulty; William was not his father's eldest son, and yet at the period in question he appears in possession of the castle of Eu, and, which is much more remarkable, he is represented as laying claim to the duchy of Normandy itself. At present this is inexplicable, but it is certain that the duke besieged and took Eu and drove William Busac into exile. The place of refuge which he chose is very suggestive. He went to France and attached himself to King Henry, who married him to the heiress of the county of Soissons, where his descendants were ruling at the close of the century.^[64] It is plain that the king's opportunist policy has definitely turned against William of Normandy, when we find a Norman rebel received with open arms and given an important territorial position on the border of the royal demesne.^[65]

The third and last of this series of revolts can be definitely assigned to the year 1053. It arose like the revolt of William Busac in the land east of Seine, and its leader was again one of the "*Ricardenses*," a member of a collateral branch of the ducal house. William count of Arques was an

illegitimate son of Duke Richard II., and therefore brother by the half blood to Duke Robert I., and uncle to William of Normandy. With the object of conciliating an important member of his family the latter had enfeoffed his uncle in the county of Arques, the district between Eu and the Pays de Caux. Before long, however, relations between the duke and the count became strained; William of Arques was said to have failed in his feudal duty at the siege of Domfront, and when a little later he proceeded to fortify the capital of his county with a castle, it was known that his designs were not consonant with loyalty towards the interests of his lord and nephew. In the hope of anticipating further trouble the duke insisted on his legal right of garrisoning the castle with his own troops, but the precaution proved to be quite futile, for the count soon won over the garrison, defied his nephew, and spread destruction over as wide an area as he could reach from his base of operations. At this time, as at the similar crisis of 1047, William seems to have been at Valognes; he was certainly somewhere in the Cotentin when the news of what was happening at Arques was brought to him.^[66] Without a moment's delay he rode off towards the scene of the revolt, crossing the Dive estuary at the ford of St. Clement and so past Bayeux, Caen, and Pont Audemer to the Seine at Caudebec, and then to Baons-le-Comte and Arques, his companions dropping off one by one in the course of his headlong ride until only six were left. Near to Arques, however, he fell in with a party of three hundred horsemen from Rouen, who had set out with the object of preventing the men of Arques from carrying supplies into the castle. William had not yet outgrown the impetuosity which called forth King Henry's admonitions in the campaign of 1048: he insisted on delivering an instant attack, believing that the rebels would shrink from meeting him in person, and dashed on to the castle regardless of the remonstrances of the Rouen men, who counselled discretion. Charging up the castle mound he drove the count and his men within the fortress as he had anticipated, and we are given to understand that but for their hastily shutting the gates against him the revolt would have been ended then and there.

The surprise assault having failed, nothing was left but a blockade, and accordingly William established a counterwork at the base of the castle and entrusted it to Walter Giffard, lord of the neighbouring estate of Longueville, while he himself went off, "being called by other business," as his panegyrist tells us. As a matter of fact it is probable that he withdrew

from a sense of feudal propriety,^[67] for no less a person than King Henry of France was advancing to the relief of the garrison. On all grounds it was desirable for William to refrain from setting a bad example to his barons by actually appearing in arms against his own overlord, and so the operations against the king were left to the direction of others. At the outset they were fortunate. There were still a few barons in the county of Arques who had not joined the rebels, and one of them, Richard of Hugleville, possessed a castle, a few miles from Arques itself, at St. Aubin, which lay on the line of march of the French king. Possibly it was this fact which suggested to the besiegers the idea of intercepting the king before he reached Arques; at any rate, they formed a plan of the kind, which proved successful and curiously anticipates one of the most famous episodes in the greater battle of Hastings. The king, who had been marching carelessly with a convoy of provisions intended for the garrison within Arques, halted near to St. Aubin. In the meantime the Normans before Arques had sent out a detachment which they divided into two parts, the greater part secreting itself not far from St. Aubin, while the rest made a feint attack on the royal army. After a short conflict the latter division turned in pretended flight, drew out a number of the king's army in pursuit, and enticed them past the place where the trap was laid, whereupon the hidden Normans sallied out, fell on the Frenchmen, and annihilated them, slaying Enguerrand, count of Ponthieu, and many other men of note. Notwithstanding this check, the king hurried on to Arques, and succeeded in throwing provisions into the castle, and then, eager to avenge the disaster at St. Aubin, he made a savage attack on the counterwork at the foot of the hill. But its defences were strong and its defenders resolute: so the king, to avoid further loss, beat a hasty retreat to St. Denis, and with his withdrawal Duke William reappeared upon the scene.^[68] Then the blockade was resumed in earnest, and we are told that its severity convinced the count of Arques of his folly in claiming the duchy against his lord. Repeated messages to King Henry begging for relief found him unwilling to risk any further loss of prestige, and at last hunger did its work. The garrison surrendered, asking that life and limb might be guaranteed to them, but making no further stipulation, and William of Poitiers gleefully describes the ignominious manner of their exit from the castle.^[69] Here, as after Val-es-dunes, it was not the duke's policy, if it lay in his power, to proceed to extremities against the beaten rebels, and William was notably lenient to his uncle, who was deprived of his county and his

too-powerful castle, but was granted at the same time a large estate in Normandy. However, like Guy of Burgundy, he declined to live in the country over which he had hoped to rule and he went into voluntary exile at the court of Eustace of Boulogne.

One outlying portion of the duchy remained in revolt after the fall of Arques. On the south-western border of Normandy the fortress of Moulins had been betrayed to the king by Wimund, its commander, and had received a royal garrison under Guy-Geoffrey, brother of the duke of Aquitaine. The importance of this event lay in the fact that Moulins in unfriendly hands threatened to cut off communications between the Hiesmois and the half-independent county of Bellême. Fortunately for the integrity of the duchy, the fate of Moulins was determined by the surrender of Arques; the garrison gave up their cause as hopeless, and retired without attempting to stand a siege.^[70]

At some indefinite point in the short interval of peace which followed the revolt of William of Arques, William of Normandy was married to Matilda, daughter of Baldwin count of Flanders, in the minster at Eu. On William's part the consummation of the marriage was an act of simple lawlessness noteworthy in so faithful a son of Holy Church, for in 1049 the General Council of Rheims had solemnly forbidden Count Baldwin to give his daughter to William of Normandy, and had simultaneously inhibited William from receiving her.^[71] A mystery which has not been wholly solved hangs over the motives which underlay this prohibition; for genealogical research has hitherto failed to discover any tie of affinity which might furnish an impediment, reasonable or otherwise, to the proposed marriage, while at the middle of the eleventh century the provisions of the canon law on the subject of the prohibited degrees were much less rigid and fantastic than they subsequently became. Yet the decree is duly entered among the canons of the Council of Rheims, and it served to keep William and his chosen bride apart for four years. Early in 1053, however, Pope Leo IX. had been taken prisoner by the Normans in Italy at the battle of Aversa, and the coincidence of his captivity with William's defiance of the papal censure has not escaped the notice of historians.^[72] By all churchmen of the stricter sort a marriage celebrated under such conditions was certain to be regarded as a scandal. Normandy was laid under an interdict, and in the duchy itself the opposition was headed by two men of very different character. Malger, the archbishop of Rouen at the time, was a brother of the fallen count of

Arques, and the excommunication which he pronounced against his erring nephews was probably occasioned as much by the political grievances of his family as by righteous indignation at the despite done to the Council of Rheims. William speedily came to an understanding with the Pope by means of which he was enabled to remove Malger from his archbishopric, but the marriage was also condemned by the man who both before and after that event held above all others the place of the duke's familiar friend. The career of Lanfranc of Pavia, at this moment prior of Bec, will be more fittingly considered elsewhere, but his opposition to William's marriage was especially significant because of his great legal knowledge and the disinterestedness of his motives, and the uncompromising attitude of his most intimate counsellor cut the duke to the quick. In the outburst of his anger William savagely ordered that the lands of the monastery of Bec should be harried, and that Lanfranc himself should instantly depart from Normandy. A chance meeting between the duke and the prior led to a reconciliation, and Lanfranc was thereupon employed to negotiate with the papal court for a recognition of the validity of the marriage. Nevertheless five years passed before Pope Nicholas II. in 1059 granted the necessary dispensation, accompanied by an injunction that William and his wife should each build and endow a monastery by way of penance for their disobedience; and the reasons for this long delay are almost as difficult to understand as are the grounds for the original prohibition in 1049. But it is probable that William, having once taken the law into his own hands and gained possession of his bride, was well content that the progress of his suit at Rome should drag its slow length along, trusting that time and the chances of diplomatic expediency might soften the rigours of the canon law, and bring the papal curia to acquiescence in the accomplished fact.

The county of Flanders, with which Normandy at this time became intimately connected, held a unique position among the feudal states of the north. Part only of the wide territory ruled by Baldwin IV. owed feudal service to the king of France, for the eastern portion of the county was an imperial fief, and the fact of his divided allegiance enabled the count of Flanders to play the part of an international power. By contemporary writers Count Baldwin is occasionally graced with the higher title of Marquis,^[73] and the designation well befitted the man who ruled the wealthiest portion of the borderland between the French kingdom and the German empire. The constant jealousy of his two overlords secured him in practical

independence, and in material resources it is probable that no prince between the English Channel and the Alps could compete with the lord of Bruges and Ghent; for the great cities of Flanders were already developing the wealth and commercial influence which in the next generation were to give them the lead in the movement for communal independence. For some thirty years we find Baldwin cultivating the friendship of England, as became a ruler whose subjects were already finding their markets in English ports; and as the political situation unfolded itself, the part he chose to take in the strife of parties across the Channel became a matter of increasing concern for English statesmen. "Baldwin's land," as the English chronicler terms it, was the customary resort of political exiles from England, and in 1066 it was the attitude of the count of Flanders which, as we shall see, really turned the scale in favour of William of Normandy. At the early date with which we are dealing no one could have foreseen that this would be so, but the value of a Flemish alliance was already recognised in England by the aggressive house with which William was at last to come into deadly conflict. In 1051, Tosig, son of Earl Godwine of Wessex, wedded Judith, Count Baldwin's sister,^[74] and this fact inevitably gave a political complexion to William's marriage to Matilda, two years later. Godwine, as leader of the English nationalists, and William as ultimate supporter of the Normans in England, were each interested to secure the alliance of a power which might intervene with decisive effect on either side and could not be expected to preserve strict neutrality in the event of war. William was too shrewd a statesman to ignore these facts; yet after all he probably regarded his marriage rather as the gratification of a personal desire than as a diplomatic victory.

Long before the political results of William's marriage had matured themselves, the relations between the duke of Normandy and the king of France had entered upon a new phase. The event of the war of 1053 had shewn that it was eminently in the interests of the French monarchy that the growth of the Norman power should be checked before it could proceed to actual encroachment on the royal demesne; and also that if this were to be accomplished it would no longer suffice for King Henry to content himself with giving support to casual Norman factions in arms against their lawful ruler. This plan had led to ignominious failure, and it was clear that in future it would be necessary for King Henry to appear as a principal in the war and test whether the Norman duke was strong enough to withstand the direct

attack of his suzerain. These considerations produced a phenomenon rarely seen at this date, for the king proceeded to collect an army in which, through the rhetoric in which our one contemporary writer veils its composition, we must recognise nothing less than the entire feudal levy of all France. So rarely does French feudalism combine to place its military resources at the disposal of its sovereign that the fact on this occasion is good evidence of the current opinion as to the strength of Normandy under its masterful duke. In the war which followed, the territorial principles which found their fullest expression in the policy of the dukes of Normandy gained a signal victory over incoherent feudalism represented by the king of France at the head of the gathered forces of his heterogeneous vassals. Not until successive kings had reduced the royal demesne to such unity as had already been reached by Normandy in the eleventh century, could the French crown attempt successful aggressive war.

In addition to their feudal duty, certain of the king's associates in the forthcoming campaign had their individual reasons for joining in an attack on Normandy. The ducal house of Aquitaine would naturally be attracted into the quarrel by the failure of Guy-Geoffrey to hold Moulins in the late war; Guy of Ponthieu had to avenge his brother's death at St. Aubin. Little as the several feudal princes of France may have loved their suzerain, their jealousy would readily be roused by the exceptional power of one of their own number, and the king seems to have found little difficulty in collecting forces from every corner of his realm. From the Midi the counts of Poitou and Auvergne and the half-autonomous dukes of Aquitaine and Gascony sent contingents; north of the Loire, every state from Brittany to the duchy of Burgundy was represented in the royal army with one singular exception. Whatever the reason of his absence, Geoffrey Martel, William's most formidable rival, does not appear in the list of the king's associates as given by William of Poitiers.^[75] This may be due to a mere oversight on the latter's part, or more probably it may be that Geoffrey was too independent to take part in an expedition which, although directed against his personal enemy, was commanded by his feudal lord. But with or without his aid the army which obeyed the king's summons was to all seeming overwhelmingly superior to any force which the duke of Normandy could put into the field.

With so great an army at his disposal, the king could well afford to divide his forces and make a simultaneous invasion of Normandy at two different

points. The lower course of the Seine supplied a natural line of demarcation between the spheres of operation of the two invading armies, and accordingly the royal host mustered in two divisions, one assembling in the Beauvoisis to ravage the Pays de Caux, the other assembling at Mantes, and directed at the territory of Evreux, Rouen, and Lisieux. The first division was drawn from those lands between the Rhine and the Seine, which owed allegiance to the French crown, and was placed under the command of Odo the king's brother and Reginald of Clermont. The army which gathered at Mantes comprised the Aquitanian contingent, together with troops drawn from the loyal provinces north of Loire and west of Seine, and was led by the king in person. The general plan of campaign is thus intelligible enough, but its ultimate purpose is not so clear, perhaps because the king himself had formed no plans other than those which related to the actual conduct of the war. On his part William formed a scheme of defence corresponding to his enemies' plan of attack. He took the field in person with the men of the Bessin, Cotentin, Avranchin, Auge, and Hiesmois, the districts, that is, which were threatened by the king and his southern army, entrusting the defence of the Pays de Caux to leaders chosen on account of their local influence, Count Robert of Eu, Hugh of Gournai, Hugh de Montfort, Walter Giffard, and Gilbert Crispin, the last a great landowner in the Vexin. William's object was to play a purely defensive game, a decision which was wise as it threw upon the king and his brother the task of provisioning and keeping together their unwieldy armies in hostile territory. The invading force moved across the country, laying it waste after the ordinary fashion of feudal warfare, William hanging on the flank and rear of the king's army, cutting off stragglers and foraging parties and anticipating the inevitable devastation of the land by removing all provisions from the king's line of advance. The king had penetrated as far as the county of Brionne when disaster fell on the allied army across the Seine. Thinking that William was retiring in front of the king's march the leaders of the eastern host ignored the local force opposed to themselves in the belief, we are told, that all the knights of Normandy were accompanying the duke. But the count of Eu and his fellow-officers were deliberately reserving their blow until the whole of their army had drawn together, and the French met little opposition until they had come to the town of Mortemer, which they occupied and used as their headquarters while they ravaged the neighbourhood in detail at their leisure. Spending the day in plunder they kept bad watch at night, and this

fact induced the Norman leaders to try the effect of a surprise. Finding out the disposition of the French force through spies, they moved up to Mortemer by night and surrounded it before daybreak, posting guards so as to command all the exits from the town; and the first intimation which the invaders received of their danger was the firing of the place over their heads by the Normans. Then followed a scene of wild confusion. In the dim light of the wintry dawn the panic-struck Frenchmen instinctively made for the roads which led out of the town, only to be driven in again by the Normans stationed at these points. Some of course escaped; Odo the king's brother and Reginald of Clermont got clear early in the day, but for some hours the mass of the French army was steadily being compressed into the middle of the burning town. The Frenchmen must have made a brave defence, but they had no chance and perished wholesale, with the exception of such men of high rank as were worth reserving for their ransoms. Among these last was Count Guy of Ponthieu, whose brother Waleran perished in the struggle, and who was himself kept for two years as a prisoner at Bayeux before he bought his liberty by acknowledging himself to be William's "man." The victory was unqualified, and William knew how to turn it to fullest account.

He received the news on the night following the battle, and instantly formed a plan, which, even when described by his contemporary biographer, reads like a romance. As soon as he knew the result of the conflict he summoned one of his men and instructed him to go to the French camp and bring to the king himself the news of his defeat. The man fulfilled his directions, went off, climbed a high tree close to the king's tent, and with a mighty voice proclaimed the event of the battle. The king, awakened by these tidings of disaster from the air, was struck with terror, and, without waiting for the dawn, broke up his camp, and made with what haste he might for the Norman border. William, seeing that his main purpose was in a fair way of achievement, refrained from harassing the king's disorderly retreat; the French were anxious to end so unlucky a campaign, and peace was soon made. According to the treaty the prisoners taken at Mortemer were to be released on payment of their ransoms, while the king promised to confirm William in the possession of whatever conquests he had made, or should thereafter make, from the territory of Geoffrey of Anjou.^[76] Herein, no doubt King Henry in part was constrained by necessity, but in view of his defeat it was not inappropriate that he

should make peace for himself at the expense of the one great vassal who had neglected to obey the summons to his army.^[77] And it should be noted that William, though he has the French king at so great a disadvantage, nevertheless regards the latter's consent to his territorial acquisitions as an object worth stipulation; King Henry, to whatever straits he might be reduced, was still his overlord, and could alone give legal sanction to the conquests made by his vassals within the borders of his kingdom.

It would, however, be a mistake to regard this treaty as marking a return to the state of affairs which prevailed in 1048, when the king and the duke of Normandy were united against the count of Anjou in the war which ended with the capture of Alençon. The peace of 1054 was little more than a suspension of hostilities, each party mistrusting the other. The first care of the duke, now that his hands were free, was to strengthen his position against his overlord, and one of the border fortresses erected at this time was accidentally to become a name of note in the municipal history of England. Over against Tillières, the border post which King Henry had taken from Normandy in the stormy times of William's minority, the duke now founded the castle of Breteuil, and entrusted it to William fitz Osbern, his companion in the war of Domfront.^[78] Under the protection of the castle, by a process which was extremely common in French history, a group of merchants came to found a trading community or *bourg*. The burgesses of Breteuil, however, received special privileges from William fitz Osbern and when he, their lord, became earl of Hereford these privileges were extended to not a few of the rising towns along the Welsh border. The "laws of Breteuil," which are mentioned by name in Domesday Book, and were regarded as a model municipal constitution for two centuries after the conquest of England, thus take their origin from the rights of the burgesses who clustered round William's border fortress on the Iton.^[79]

Another castle built at this time was definitely intended to mark the reopening of hostilities against the count of Anjou. At Ambrières, near the confluence of the Mayenne and the Varenne, William selected a position of great natural strength for the site of a castle which should command one of the chief lines of entry from Normandy into the county of Maine. The significance of this will be seen in the next chapter, and for the present we need only remark that in 1051, on the death of Count Hugh IV., Geoffrey Martel, by a brilliant *coup d'état* had secured his recognition by the Manceaux as their immediate lord, and was therefore at the present moment

the direct ruler of the whole county. On the other hand, the widow of the late count had sought refuge at William's court, and her son Herbert, the last male of the old line of the counts of Maine, had commended himself and his territory to the Norman duke. For three years, therefore, William had possessed a good legal pretext for interference in the internal affairs of Maine; and but for the unquiet state of Normandy during this time, followed by the recent French invasion, it is probable that he would long ago have challenged his rival's possession of the territory which lay between them. That the foundation of the castle of Ambrières was regarded as something more than a mere casual acquisition on William's part, is shewn by the action of Geoffrey of Mayenne, one of the chief barons of the county of Maine, on hearing the news of its intended fortification. With the punctiliousness which distinguishes all William's dealings with Geoffrey Martel, William had sent word to the count of Anjou that within forty days he would enter the county of Maine and take possession of Ambrières. Geoffrey of Mayenne, whose fief lay along the river Mayenne between Ambrières and Anjou, thereupon went to his lord and explained to him that if Ambrières once became a Norman fortress his own lands would never be safe from invasion. He received a reassuring answer; nevertheless, on the appointed day, William invaded Maine and set to work on the castle according to his declaration; and, although rumour had it that Geoffrey Martel would shortly meet him, the days passed without any sign of his appearance. In the meantime, however, the Norman supplies began to run short, so that William thought it the safest plan to dismiss the force which he had in the field, and to content himself with garrisoning and provisioning Ambrières, leaving orders that his men should hold themselves in readiness to reassemble immediately on receiving notice from him. Geoffrey Martel, who had probably been counting on some action of the kind, at once seized his opportunity, and, as soon as he heard that the Norman army had broken up, he marched on Ambrières, having as ally his stepson William, duke of Aquitaine, and Éon, count of Penthievre, the uncle of the reigning duke of Brittany. With William still in the neighbourhood and likely to return at any moment, it was no time for a leisurely investment, so Geoffrey made great play with his siege engines, and came near to taking the place by storm. His attack failed, however, and William, drawing his army together again, as had been arranged, compelled the count to beat a hasty retreat. Shortly afterwards Geoffrey of Mayenne was taken prisoner; and William, with a

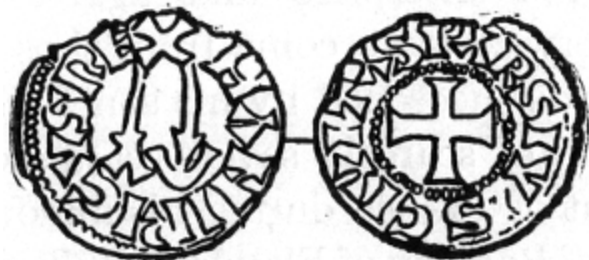
view to further enterprises in Maine, seeing the advantage of placing a powerful feudatory of that county in a position of technical dependence upon himself, kept him in Normandy until he consented to do homage to his captor.^[80] It is also probable that on this occasion William still further strengthened his position with regard to Maine by founding on the Sarthon the castle of Roche-Mabille, which castle was entrusted to Roger of Montgomery, and derives its name from Mabel, the heiress of the county of Bellême, and the wife of the castellan.

Three years of quiet followed these events, about which, as is customary with regard to such seasons, our authorities have little to relate to us. In 1058 came the third and last invasion of Normandy by King Henry of France, with whom was associated once more Count Geoffrey of Anjou. No definite provocation seems to have been given by William for the attack, but in the interests of the French crown it was needful now as it had been in 1053 to strike a blow at this over-mighty vassal, and the king was anxious to take his revenge for the ignominious defeat he had sustained in the former year. Less formidable in appearance than the huge army which had obeyed the king's summons in the former year, the invading force of 1058 was so far successful that it penetrated into the very heart of the duchy, while, on the other hand, the disaster which closed the war was something much more dramatic in its circumstances and crushing in its results than the daybreak surprise of Mortemer. This expedition is also distinguished from its forerunner by the fact that the king does not seem to have aimed at the conquest or partition of Normandy: the invasion of 1058 was little more than a plunder raid on a large scale, intended to teach the independent Normans that in spite of his previous failures their suzerain was still a person to be feared. The king's plan was to enter Normandy through the Hiesmois; to cross the Bessin as far as the estuary of the Dive and to return after ravaging Auge and the district of Lisieux. Now, as five years previously, William chose to stand on the defensive; he put his castles into a state of siege and retired to watch the king's proceedings from Falaise. It was evidently no part of the king's purpose to attempt the detailed reduction of all the scattered fortresses belonging to, or held on behalf of, the duke^[81]; and this being the case it was best for William to bide his time, knowing that if he could possess his soul in patience while the king laid waste his land, the trouble would eventually pass away of its own accord. And so King Henry worked his will on the unlucky lands of the Hiesmois and the

Bessin as far as the river Seule, at which point he turned, crossed the Olne at Caen, and prepared to return to France by way of Varaville and Lisieux. William in the meantime was following in the track of the invading army. The small body of men by which he must have been accompanied proves that he had no thought of coming to any general engagement at the time, but suddenly the possibilities of the situation seem to have occurred to him, and he hastily summoned the peasantry of the neighbourhood to come in to him armed as they were. With the makeshift force thus provided he pressed on down the valley of the Barent after the king, who seems to have been quite unaware of his proximity, and came out at Varaville at the very moment when the French army was fully occupied with the passage of the Dive. The king had crossed the river with his vanguard^[82]; his rearguard and baggage train had yet to follow. Seizing the opportunity, which he had probably anticipated, William flung himself upon the portion of the royal army which was still on his side of the river and at once threw it into confusion. The Frenchmen who had already passed the ford and were climbing up the high ground of Bastebourg to the right of the river, seeing the plight of their comrades, turned and sought to recross; but the causeway across the river mouth was old and unsafe and the tide was beginning to turn. Soon the passage of the river became impossible, the battle became a mere slaughter, and the Norman poet of the next century describes for us the old king standing on the hill above the Dive and quivering with impotent passion as he watched his troops being cut to pieces by the rustic soldiery of his former ward. The struggle cannot have taken long; the rush of the incoming tide made swimming fatal, and the destruction of the rearguard was complete. With but half an army left to him it was hopeless for the king to attempt to avenge the annihilation of the other half; he had no course but to retrace his steps and make the best terms he could with his victorious vassal. These terms were very simple—William merely demanded the surrender of Tillières, the long-disputed key of the Arve valley.^[83] With its recovery, the tale of the border fortresses of Normandy was complete; the duchy had amply vindicated its right to independence, and was now prepared for aggression.

Thus by the end of 1058 King Henry had been definitely baffled in all his successive schemes for the reduction of Normandy. With our knowledge of the event, our sympathies are naturally and not unfairly on the side of Duke William, but they should not blind us to the courage and persistency with

which the king continued to face the problems of his difficult situation. In every way, of course, the weakest of the early Capetians suffers by comparison with the greatest of all the dukes of Normandy. The almost ludicrous disproportion between the king's legal position and his territorial power, his halting, inconsistent policy, and the ease with which his best-laid plans were turned to his discomfiture by a vassal who studiously refrained from meeting him in battle, all make us inclined to agree with William's panegyric biographer as he contemptuously dismisses his overlord from the field of Varaville. And yet the wonder is that the king should have maintained the struggle for so long with the wretched resources at his disposal. With a demesne far less in area than Normandy alone, surrounded by the possessions of aggressive feudatories and itself studded with the castles of a restive nobility, the monarchy depended for existence on the mutual jealousy of the great lords of France and on such vague, though not of necessity unreal, respect as they were prepared to show to the successor of Charlemagne. The Norman wars of Henry I. illustrated once for all the impotence of the monarchy under such conditions, and the kings who followed him bowed to the limitations imposed by their position. Philip I. and Louis VI. were each in general content that the monarchy should act merely as a single unit among the territorial powers into which the feudal world of France was divided, satisfied if they could reduce their own demesne to reasonable obedience and maintain a certain measure of diplomatic influence outside. Accordingly from this point a change begins to come over the relations between Normandy and France; neither side aims at the subjugation of the other, but each watches for such advantages as chance or the shifting feudal combinations of the time may present. Within a decade from the battle of Varaville the duke of Normandy had become master of Maine and England, but in these great events the French crown plays no part.



Denier of Henry I. of France

CHAPTER III

THE CONQUEST OF MAINE AND THE BRETON WAR

By a curious synchronism both King Henry of France and Count Geoffrey Martel died in the course of the year 1060; and, with the disappearance of his two chief enemies of the older generation, the way was clear for William to attempt a more independent course of action than he had hitherto essayed. Up to this year his policy had in great measure been governed by the movements of his overlord and the count of Anjou, both of them men who were playing their part in the political affairs of France at the time when he himself was born. From this date he becomes the definite master of his own fortunes, and the circumstances in which the king and the count left their respective territories removed any check to his enterprise and aggression which might otherwise have come from those quarters. The king was succeeded by his son Philip, at this time a child of scarcely seven years old, and the government of France during his minority was in the hands of Baldwin of Flanders, William's father-in-law. In Anjou a war of succession broke out which reduced that state to impotence for ten years. Geoffrey Martel had left no sons, but had designated as his successor another Geoffrey, nicknamed "*le Barbu*," the elder son of his sister Hermengarde by Geoffrey count of the Gatinais.^[84] The younger son, however, Fulk "*le Rechin*," had determined to secure the Angevin inheritance for himself, and by the time that he had accomplished his purpose most of the territorial acquisitions of Geoffrey Martel had been torn from Anjou by the neighbouring powers. Saintonge and the Gatinais fell respectively into the possession of the duke of Aquitaine and the king of France; and, more important than all, the Angevin acquisition of Maine, the greatest work of Geoffrey Martel, was reversed when in 1063 William of Normandy entered Le Mans and made arrangements for the permanent annexation of the country.

The counts of Maine had never enjoyed such absolute sovereignty over their territory as was possessed by the greater feudatories of the French crown.^[85] In addition to the usual vague claims which both Normandy and Anjou were always ready to assert over their weaker neighbours, and which nobody would take seriously when there was no immediate prospect of their enforcement, the suzerainty of the king of France was much more of a reality over Maine than over Flanders or Aquitaine. In particular the patronage of the great see of Le Mans rested with the king for the first half of the eleventh century; and this was an important point, for the bishops of the period are prominent in the general history of the county. For the most part they are good examples of the feudal type of prelate, represented in Norman history by Odo of Bayeux and Geoffrey of Coutances; and several of them were drawn from a house fertile in feudal politicians, that of the counts of Bellême, whose great fief lay on the border between Maine and Normandy. This connection of the episcopate of Le Mans with a great Norman family might be taken as itself implying some extension of Norman influence over Maine were it not that the house of Bellême, half independent and altogether unruly, was quite as likely to work against its overlord as in his favour. In fact, it was largely through the Bellême bishops of Le Mans that Angevin power came to be established in Maine for a while; the bishops were steadily opposed to the line of native counts, and looked to Anjou for a counterpoise. In particular, Bishop Gervase (1036–1058) brought it about that King Henry made a grant of all the royal rights over the see to Count Geoffrey Martel for the term of his life, the bishop taking this step in pursuance of an intrigue against the guardian of the reigning count, who was at the time a minor. Having served his turn Gervase quickly fell into disfavour with Geoffrey and endured a seven years' imprisonment at his hands; but it was through his false step that Geoffrey first secured a definite legal position in Mancel politics.

The counts of Maine themselves are rather shadowy people, but it is necessary to get a clear idea of their mutual relationships. Count Herbert, surnamed "*Eveille Chien*," the persistent enemy of Fulk Nerra of Anjou and the last of his line to play a part of his own in French affairs, had died in 1035, leaving a son, Hugh IV., and a daughter, Biota, married to Walter of Mantes, count of the Vexin Français. Hugh, being under age, was placed under the governance of his father's uncle, Herbert "Bacco," the regent with whom Bishop Gervase was at enmity. When the above-mentioned grant of

the patronage of the bishopric of Le Mans to Geoffrey Martel had given the latter a decent pretext for interference in the quarrel, the expulsion of Herbert Bacco quickly followed; and while the bishop was in captivity Geoffrey ruled the country in the name of the young count. Upon his death, in 1051, Geoffrey himself, in despite of the claims of Hugh's own children, was accepted by the Manceaux as count of Maine—for it should be noted in passing that the Mancel baronage was always attached to Anjou rather than to Normandy. The date at which these events happened is also worthy of remark, for it shows that during that rather obscure war in the Mayenne valley which was described in the last chapter William of Normandy was really fighting against Geoffrey Martel in his position as count of Maine. A legal foundation for Norman interference lay in the fact, which we have already noticed, that Bertha of Blois, the widow of Hugh III., had escaped into Normandy, and that by her advice her son Herbert, the heir of Maine, had placed himself and his inheritance under the protection of his host. William, seeing his advantage, was determined to secure his own position in the matter. He made an arrangement with his guest by which the latter's sister Margaret was betrothed to his own son Robert, who here makes his first appearance in history, with the stipulation that if Hugh were to die without children his claims over Maine should pass to his sister and her husband. We do not know the exact date at which this compact was made, but it is by no means improbable that some agreement of the kind underlay that clause in the treaty concluded with King Henry after Mortemer by which William was to be secured in all the conquests which he might make from Geoffrey of Anjou.

On the latter's death in 1060 Norman influence rapidly gained the upper hand in Maine.^[86] The war of succession in Anjou prevented either of the claimants from succeeding to the position of Geoffrey Martel in Maine; and if Count Herbert ruled there at all during the two years which elapsed between 1060 and his own death, in 1062, it must have been under Norman suzerainty. With his death the male line of the counts of Maine became extinct, and there instantly arose the question whether the county should pass to Walter, count of Mantes, in right of his wife Biota, the aunt of the dead Herbert, or to William of Normandy in trust for Margaret, Herbert's sister, and her destined husband, Robert, William's son. In the struggle which followed, two parties are clearly to be distinguished: one—and judging from events the least influential—in favour of the Norman

succession, the other, composed of the nationalists of Maine, supporting the claims of Biota and Walter. The latter was in every way an excellent leader for the party which desired the independence of the county. As count of the Vexin Français, Walter had been steadily opposed to the Norman suzerainty over that district, which resulted from the grant made by Henry I. to Robert of Normandy in 1032. His policy had been to withdraw his county from the Norman group of vassal states, and to reunite it to the royal demesne; he acknowledged the direct superiority of the king of France over the Vexin, and he must have co-operated in the great invasion of Normandy in 1053; for it was at his capital that the western division of the royal host assembled before its march down the Seine valley. Even across the Channel the interests of his house clashed with those of William. Walter was himself the nephew of Edward the Confessor, and his brother Ralph who died in 1057 had been earl of Hereford. The royal descent of the Vexin house interfered seriously with any claim which William might put forward to the inheritance of Edward the Confessor on the ground of consanguinity. It is only by placing together a number of scattered hints that we discover the extent of the opposition to William which is represented by Walter of Mantes and his house, but there can be no doubt of its reality and importance.

In Maine itself the leaders of the anti-Norman party seem to have been William's own "man" Geoffrey of Mayenne and the Viscount Herbert, lord of Sainte-Suzanne. There is no doubt that the mass of the baronage and peasantry of the county were on their side, and this fact led William to form a plan of operations which singularly anticipates the greater campaign of the autumn of 1066. William's ultimate objective was the city of Le Mans, the capital of Maine and its strongest fortress, the possession of which would be an evident sanction of his claims over the county. But there were weighty reasons why he should not proceed to a direct attack on the city. Claiming the county, as he did, in virtue of legal right, it was not good policy for him to take steps which, even if successful, would give his acquisition the unequivocal appearance of a conquest; nor from a military point of view was it advisable for him to advance into the heart of the county with the castles of its hostile baronage unreduced behind him. He accordingly proceeded to the reduction of the county in detail, knowing that the surrender of the capital would be inevitable when the whole country around was in his hands. The initial difficulties of the task were great, and

the speed with which William wore down the resistance of a land bristling with fortified posts proves by how much his generalship was in advance of the leisurely, aimless strategy of his times. We know few particulars of the war, but it is clear that William described a great circle round the doomed city of Le Mans, taking castles, garrisoning them where necessary with his own troops, and drawing a belt of ravaged land closer and closer round the central stronghold of the county. By these deliberate measures the defenders of Le Mans were demoralised to such an extent that William's appearance before their walls led to an immediate surrender. From the historical point of view, however, the chief interest of these operations lies in the curiously close parallel which they present to the events which followed the battle of Hastings. In England, as in Maine, it was William's policy to gain possession of the chief town of the country by intimidation rather than by assault, and with the differences which followed from the special conditions of English warfare his methods were similar in both cases. London submitted peaceably when William had placed a zone of devastation between the city and the only quarters from which help could come to her; Le Mans could not hope to resist when the subject territory had been wasted by William's army, and its castles surrendered into his hands. Nor can we doubt that the success of this plan in the valleys of the Sarthe and Mayenne was a chief reason why it was adopted in the valley of the Thames.

At Le Mans, as afterwards at London, William, when submission had become necessary, was received with every appearance of joy by the citizens; here, as in his later conquest, he distrusted the temper of his new subjects, and made it his first concern to secure their fidelity by the erection of a strong fortress in their midst—the castle which William planted on the verge of the precincts of the cathedral of Le Mans is the Mancel equivalent of the Tower of London. And, as afterwards in England, events showed that the obedience of the whole country would not of necessity follow from the submission of its chief town; it cost William a separate expedition before the castle of Mayenne surrendered. But the parallel between the Norman acquisition of Maine and of England should not be pressed too far; it lies rather in the circumstances of the respective conquests than in their ultimate results. William was fighting less definitely for his own hand in Maine than afterwards in England; nominally, at least, he was bound to respect the rights of the young Countess Margaret, and her projected marriage with Robert of Normandy proves that Maine was to be treated as an appanage

rather than placed under William's immediate rule. And to this must be added that the conquest of Maine was far less permanent and thorough than the conquest of England. The Angevin tendencies of the Mancel baronage told after all in the long run. Before twelve years were past William was compelled to compromise with the claims of the house of Anjou, and after his death Maine rapidly gravitated towards the rival power on the Loire.

While the body of the Norman army was thus employed in the reduction of Maine, William despatched a force to make a diversion by ravaging Mantes and Chaumont, the hereditary demesne of his rival,—an expedition in its way also anticipating the invasion which William was to lead thither in person in 1087, and in which he was to meet his death. Most probably it was this invasion, of which the details are entirely unknown, which persuaded Walter of Mantes to acquiesce in the *fait accompli* in Maine; at least we are told that “of his own will he agreed to the surrender [of Le Mans], fearing that while defending what he had acquired by wrong he might lose what belonged to him by inheritance.” Within a short time both he and his wife came to a sudden and mysterious end, and there was a suspicion afloat that William himself was not unconcerned in it. It was one of the many slanders thrown upon William by Waltheof and his boon companions at the treasonable wedding feast at Exning in 1075 that the duke had invited his rival and his wife to Falaise and that while they were his guests he poisoned them both in one night. Medieval credulity in a matter of this kind was unbounded; and a sinister interpretation of Walter's death was inevitably suggested by the fact of his recent hostilities against his host.

One check to the success of William's plans followed hard on the death of Walter and Biota. Margaret, the destined bride of Robert of Normandy, died before the marriage could be consummated. In 1063 Robert himself could not have been more than nine years old; while, although Margaret must have reached the age of twelve, the whole course of the history suggests that she was little more than a child, a fact which somewhat tends to discount the pious legend, in which our monastic informants revel, that the girl shrank from the thought of marriage and had already begun to practise the austerities of the religious profession. She left two sisters both older than herself, whose marriage alliances are important for the future history of Maine^[87]; but their claims for the present were ignored, and William himself adopted the title of count of Maine.

Somewhere about the time of these events (the exact date is unknown) William was seized with a severe illness, which brought him to the point of death. So sore bestead was he that he was laid on the ground as one about to die, and in his extreme need he gave the reliquary which accompanied him on his progresses to the church of St. Mary of Coutances. No chronicler has recorded this episode, of which we should know nothing were it not that the said reliquary was subsequently redeemed by grants of land to the church which had received it in pledge; yet the future history of France and England hung on the event of that day.^[88]

It was probably within a year of the settlement of Maine that William engaged in the last war undertaken by him as a mere duke of the Normans, the Breton campaign which is commonly assigned to the year 1064. As in the earlier wars with Anjou, a border dispute seems to have been the immediate occasion of hostilities, though now as then there were grounds of quarrel between the belligerents which lay deeper. Count Alan of Rennes, William's cousin and guardian, had been succeeded by his son Conan, who like his father was continually struggling to secure for his line the suzerainty of the whole of Brittany as against the rival house of the counts of Nantes, a struggle which, under different conditions and with additional competitors at different times had now been going on for more than a century. The county of Nantes at this particular time was held by a younger branch of the same family, and there are some slight indications that the counts of Nantes, perhaps through enmity to their northern kinsmen, took up a more friendly attitude towards Normandy than that adopted by the counts of Rennes. However this may be, Count Conan appears in the following story as representing Breton independence against Norman aggression; and when William founded the castle of Saint James in the south-west angle of the Avranchin as a check on Breton marauders, Conan determined on an invasion of Normandy, and sent word to William of the exact day on which he would cross the border.

By the majority of Frenchmen it would seem that Brittany was regarded as a land inhabited by savages; in the eleventh century the peninsula stood out as distinct from the rest of France as it stands to-day. Its inhabitants had a high reputation for their courage and simplicity of life, but they were still in the tribal stage of society, and their manners and customs were regarded with abhorrence by the ecclesiastical writers of the time. Like most tribal peoples they had no idea of permanent political unity; and the present war

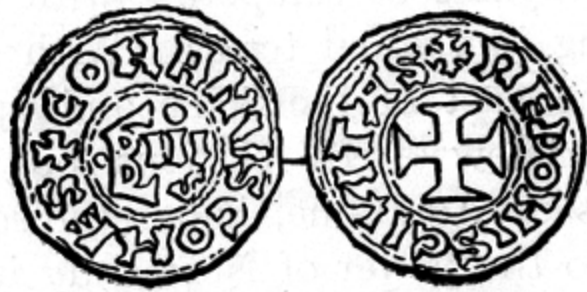
was largely influenced by the fact that within the county of Rennes a Celtic chief named Rhiwallon was holding the town of Dol against his immediate lord on behalf of the duke of Normandy.^[89] Instead of invading Normandy as he had threatened, Conan was driven to besiege Dol, and it was William's first object in the campaign to relieve his adherent there.

What gives exceptional interest to the somewhat unimportant expedition which followed is the undoubted presence in William's army of his future rival for the crown of England, Harold the earl of Wessex.^[90] The reason for, and the incidents connected, with, his visit to Normandy will have to be considered in a later chapter, but there cannot be any question as to its reality; and in a famous section, the Bayeux tapestry, our best record of this campaign, shows us Harold rescuing with his own hand a number of Norman soldiers who were being swept away by the Coesnon as the army crossed the border stream of Brittany. On the approach of the Norman army Conan abandoned the siege of Dol and fell back on his capital of Rennes; but relations soon seem to have become strained between Rhiwallon and his formidable ally, for we find Rhiwallon remarking to William that it mattered little to the country folk around Dol whether their substance were to be consumed by a Norman or a Breton army. Possibly it may have been the remonstrances of Rhiwallon which induced William to retire beyond the Norman border, but we are told that as he was in the act of leaving Brittany word was brought to him that Geoffrey (*le Barbu*) count of Anjou had joined himself to Conan with a large army and that both princes would advance to fight him on the morrow. It does not appear that William gave them the opportunity, but the tapestry records what was probably a sequel to this campaign in the section which represents William as besieging Conan himself in the fortress of Dinan. From the picture which displays Conan surrendering the keys of the castle on the point of his spear to the duke it is evident that the place was taken, but we know nothing of the subsequent fortunes of the war nor of the terms according to which peace was made. Within two years of these events, if we are right in assigning them to 1064, Conan died suddenly,^[91] and was succeeded by his brother-in-law Hoel, count of Cornouaille, who united in his own person most of the greater lordships into which Brittany had hitherto been divided.



THE SIEGE OF DINANT FROM THE BAYEUX TAPESTRY

It may be well at this point briefly to review the position held by William at the close of 1064. With the exception of his father-in-law of Flanders, no single feudatory north of the Loire could for a moment be placed in comparison with him. Anjou and the royal demesne itself were, for different reasons, as we have seen, of little consequence at this time. The influence of Champagne under its featureless rulers was always less than might have been expected from the extent and situation of the county; and just now the attention of Count Theobald III. was directed towards the recovery of Touraine from the Angevin claimants rather than towards any rivalry with the greater power of Normandy. Brittany indeed had just shown itself hostile, but the racial division between *Bretagne Bretonnante* and the Gallicised east, which always prevented the duchy from attaining high rank among the powers of north France, rendered it quite incapable of competing with Normandy on anything like equal terms. With the feudal lords to the east of the Seine and upper Loire William had few direct relations, but they, like the princes of Aquitaine, had received a severe lesson as to the power of Normandy in the rout of the royal army which followed the surprise of Mortemer. On the other hand, Normandy, threaded by a great river, with a long seaboard and good harbours, with a baronage reduced to order and a mercantile class hardly less prosperous than the men of the great cities of Flanders, would have been potentially formidable in the hands of a ruler of far less power than the future conqueror of England. Never before had Normandy attained so high a relative position as that in which she appears in the seventh decade of the eleventh century; and, kind as was fortune to the mighty enterprise which she was so soon to undertake, its success and even its possibility rested on the skilful policy which had guided her history in the eventful years which had followed Val-es-dunes.



Denier of Conan II. of Brittany

CHAPTER IV

THE PROBLEM OF THE ENGLISH SUCCESSION

The idea of a Norman conquest of England was no new thing when the actual blow fell in the autumn of 1066. The fateful marriage of Ethelred and Emma, sixty years before, had made it impossible that the politics of the island and the duchy should ever again be independent of each other; it led directly to the English expedition of Robert of Normandy in 1034, and in Edward the Confessor it gave England a king who was half a Norman in blood, and whose ideas of government were derived from the political conditions of his mother's land. To whatever aspect of the history of this period we may turn, this Norman influence will sooner or later become apparent; in religion and commerce, as in the narrower field of politics, the Norman is working his way into the main current of English national life.

All this, however, is somewhat apart from the question as to the date at which Duke William began to lay plans for carrying out the conquest of England in his own person. There are two unknown quantities in the problem: the date at which it was generally recognised that Edward the Confessor would leave no direct heir to the English throne, and the king's own subsequent intentions with respect to the succession. Had such an heir been forthcoming in 1066 we may be sure that his inheritance would have been undisturbed from the side of Normandy, for William's claim to succeed his childless cousin by right of consanguinity was something more than a matter of form. Now Edward was married in 1045, being then in the very prime of life, and we must certainly allow for the passage of a reasonable period of time before we can feel certain that the politicians of England and Normandy were treating the succession as an open question. In particular it is difficult to be confident that in 1049, when the negotiations for the marriage of William and Matilda of Flanders were in progress, the

ultimate childlessness of Edward the Confessor was known to be inevitable.
[\[92\]](#)

A similar uncertainty hangs over the plans which the Confessor formed in the latter event for the future of his kingdom. His Norman blood, his early residence in the duchy, and the marked predilection which he showed for men of Norman race, very naturally lead to the impression that, in the earlier part of his reign at least, his desire was to provide for the transmission of his inheritance to his mother's family. But even this conclusion is not beyond question. Edward on his accession in 1042 occupied a most difficult position. After twenty-five years of Danish rule a very distinct party in the state wished to maintain the Scandinavian connection. Edward's recognition as king was mainly the work of Earl Godwine and his party, and the earl expected and could enforce full payment for his services. Edward would have shown less than the little intelligence with which he is to be credited if he had failed to see that some counterpoise to the power of his overmighty subject might be found by giving wealth and influence to strangers from across the Channel. Hence arose that stream of Norman immigration which distinguishes the reign and the consequent formation of a royalist, non-national party; for each individual settler must have understood that all he might possess in the island depended on the king's favour. Such a policy was bound sooner or later to produce a reaction on the part of Godwine and his associates; and thus arose the famous crisis of the autumn of 1051. Godwine, trying to reassert his influence in the state, fails to carry with him the other earls of England in an attack on the king's favourites and is driven to flee the country. What Godwine resented was clearly the existence of a rival power at court, and the apathy in his cause of such men as Leofric of Mercia and Siward of Northumbria suggests that he was not recognised by them as in any real sense the champion of national as against foreign influences. With his flight the first period of the reign of Edward the Confessor ends, and in the interval before his restoration William of Normandy made his first appearance on the shores of England.

Of this visit we know very little; the native chronicler of Worcester simply tells us that "Earl William came from over sea with a great company of Frenchmen, and the king received him and as many of his companions as pleased him and let them go again." The question at once presents itself, did Edward at this time make any promise of the English crown to William? If

he ever did make an explicit promise to this effect it can scarcely be placed at any other date, for this was the only occasion after Edward's departure from Normandy in 1042 on which the king and the duke are known to have met in person. The fact that such a promise forms an essential part of the story of the Conquest as told by all Norman writers is an argument in its favour which would more than counterbalance the natural silence of the English authorities, were they much better informed upon matters of high policy than is actually the case. But, after all, the question is really of secondary importance, for in the next year Godwine returned to power, and Edward for the rest of his reign seems to have made no serious attempt to disturb the ascendancy of the English party.

The death of Godwine in 1053 made little immediate difference to the political situation in general nor to the existing relations between Normandy and England. The succession of his son Harold to the earldom of Wessex provokes no comment on the part of the contemporary chroniclers; the semi-hereditary character of the great earldoms was by this time recognised for all working purposes. Nevertheless, we can see that the accession of Harold to a provincial government of the first rank, and most probably to the unofficial primacy in the state which had been held by Earl Godwine, takes place among the chief events in the sequence of causes which ended in the great overthrow of 1066. On the other hand we should not be led by the actual cause of the history into the assumption that Harold's designs upon the crown had already begun at this early date. With all his personal weakness, King Edward's own wishes were likely to be the decisive factor in the choice of his successor, nor have we any record that Harold opposed the candidate whom we know to have received the king's favour shortly after this time.

This candidate, whose appearance in the field with the king's sanction was likely to prove fatal to any aspirations to the throne in which either William or Harold might have begun to indulge, was Edward the Etheling, son of the famous Edward Ironside, and therefore nephew by the half-blood to the Confessor. He had been sent by Cnut into remote exile, and the summons which brought him back to England as its destined heir was the work of King Edward himself. By a strange chance, immediately on his arrival in 1057, and before he had even seen the king, the etheling fell ill and died,^[93] and, although there was something about his end which was rather mysterious, there is nothing to suggest that it was accelerated in the

interest of any other pretender to the crown. With his death there really passed away the one promising chance of perpetuating the old English dynasty, for Edgar, the son of the dead etheling, who was to live until 1126 at least, can only have been the merest child in 1057.



SEAL OF EDWARD THE
CONFESSOR

It would seem then that 1057 is the earliest possible year from which the rivalry of William of Normandy and Harold Godwinson for the throne of England can be dated. The recall of Edward the Etheling suggests that it cannot be placed earlier, while the state of preparedness in which both parties are found at the beginning of 1066 shows that their plans must have been formed for some years at least before the Confessor's death. And there is one mysterious episode which may very possibly have some connection with the change in the succession question caused by the death of Edward the Etheling. In or about 1058 Earl Harold made a tour on the continent, reaching as far as Rome, but also including Normandy and North France generally, and we are told that he made arrangements for receiving help from certain French powers if he should need it at any time.^[94] The passage in which we are told of these negotiations is very obscure, but it is by no means improbable that Harold, when the death of the etheling had opened for him a possibility of succeeding to the crown, may have tried to find allies who would hamper the movements of his most formidable rival when the critical time came. Also it is not without significance that 1058 is the year of Varaville, a date at which French jealousy of Norman power would be at its height. At any rate we may at this point stop to consider the relative position occupied by the earl and the duke respectively with respect to their

chances of succeeding to the splendid inheritance of the oldest dynasty in Western Europe.

The first point which deserves discussion is the nature of the title to the English crown. "Hereditary" and "elective," the words which one naturally contrasts in this connection, are terms of vague and fluctuating meaning in any case, while it has always been recognised that neither can be employed in relation to the tenure of the crown at any period of English history without due qualification. To say simply that the English monarchy was "elective" at the period with which we are dealing, is an insufficient statement unless we also consider the limits within which the choice lay on any given occasion, the process involved in the act of election, and the body which exercised the elective right. With regard to the first of these matters there undoubtedly existed an ancient and deep-seated feeling that a king should only be chosen from a kingly stock; in the eleventh century the sentiment still survived with which at an earlier period the nation had demanded that its rulers should have sprung from the blood of the gods. This idea was far older than any feeling of nationality, to which it might from time to time run counter—it helps, for instance, to explain the ease with which the English had accepted the royal Dane Cnut for their ruler—but with this highly important reservation it is very improbable that the succession was determined by anything which could be called general principles. The crown would naturally pass to the most popular kinsman of the late ruler, and the question of the exact relationship between the dead king and his heir would be a secondary matter.

William of Normandy was of sufficiently noble birth to satisfy the popular sentiment in the former respect, for Rollo himself was the scion of an ancient line of Norwegian chieftains. Harold on his mother's side inherited royal blood, for Gytha, Earl Godwine's wife, was descended from the family of the kings of Sweden; but whereas no writer near the time remarks on this feature in Harold's descent, the origin of the "jarls of Normandy" was still a living memory in the north. Far more important in every way, however, was the undoubted kinship between William and King Edward, a fact which William made the very foundation of his claim and which was undoubtedly recognised by the men of the time as giving him an advantage which could not be gainsaid. At the present day, indeed, it is rather difficult to understand the influence exercised by the somewhat distant relationship which was all that united William and Edward,

especially in view of the fact that Edgar, son of Edward the Etheling, still continued the male line of the royal house of Wessex. We can only explain it on the ground that in 1066 Edgar was under the age at which he would be competent to rule independently, and that the public opinion of the time would not accept a minor as king so long as there existed another candidate connected with the royal house and capable of taking up the reins of government in his own hands. In fact, of the three candidates between whom the choice lay on the Confessor's death William, after all, was the one who combined the greatest variety of desirable qualifications. Edgar was nearest to the throne by order of birth, but his youth placed him at a fatal disadvantage; Harold was a man of mature years and of wide experience in the government, but his warmest supporters could not pretend that he was a kinsman of King Edward; William was already a ruler whose fame had spread far beyond the borders of his own duchy, and in the third generation he could claim a common ancestor with the dead king. Lastly, we should remember that the fact which under modern conditions would outweigh all other considerations, the fact that William was a foreigner, was less important in the eleventh century than at any later time. It was certainly a disadvantage, but one which was shared in a less degree by both William's competitors: if he was a pure Norman, Harold was half a Dane, Edgar was half a German. The example of Cnut showed that there was nothing to prevent a man of wholly foreign blood from receiving general acceptance as king of England; and if the racial differences which existed in the country prepared the way for his reception, something of the same work was done for William by those Normans who had flocked into England under King Edward's protection.

In all those cases in which the late king had left no single, obvious, heir to the throne, the succession would naturally be settled by the great men of the land—by that informal, fluctuating body known as the “witan.” So far as we can tell, the witan would be guided in part by the prevailing popular opinion, but more effectually by the known wishes of the dead sovereign with respect to his successor; we know, for instance, that both these influences contributed to the election of Edward the Confessor himself.^[95] It is, however, probable that, so far from the elective nature of the monarchy having been a main principle of English institutions from the earliest date, the idea was really an importation of the eleventh century. It has recently been suggested that the action of the witan in early times with regard to the

choice of a new king was something which would be much better described as “recognition” than as election in any modern sense, that there is no evidence to prove that the witan behaved as a united body, and that it was the adhesion of individual nobles to the most likely heir which really invested him with the royal power.^[96] According to this account, such traces of election in the wider sense as are discernible in the eleventh century may with probability be set down to Danish influence, for the three Scandinavian nations had advanced much further than other Teutonic peoples in the development of their native institutional forms. But, even so, there is much in the history of the year 1066 to suggest that the older ideas still prevailed: William claimed the throne by hereditary right and it was the submission of Stigand, Edwin, Morcar, Edgar the Etheling, and the citizens of London, not the vote of any set assembly, which gave sanction to his claim.

In the light of this anticipation we may now consider the most perplexing question in William’s life, the truth underlying the famous story of Harold’s visit to Normandy and the oath which he there swore to William. Unlike most questions relating to the eleventh century, the difficulty in the present case arises from the wealth of our information on the subject; with the exception of those purely English writers Florence of Worcester and the authors of the Anglo-Saxon chronicle, the significance of whose silence will be seen shortly, every historical writer of the fifty years succeeding the Conquest tells the story at length, and no two writers tell the same story. And yet we cannot safely reject the tale as fabulous for two reasons: the silence of those who wrote with native sympathies proves that there was an element of truth in the Norman story which they did not feel themselves at liberty to deny, while the rapid diffusion of the tale itself among writers widely separated in point of place and circumstance would be unintelligible if it were the result of sheer invention. Nor is a story necessarily suspicious because its details are romantic.

The skeleton of the tale is that Harold, happening, for reasons diversely stated, to be sailing in the Channel, was driven by a storm on to the coast of Ponthieu, and that being thereby regarded as the lawful prey of the count he was thrown into prison at Beaurain, evidently to be held to ransom. While Harold was in prison the Duke of Normandy became apprised of the fact, and sending to Count Guy, who had become his feudal dependant after the battle of Mortemer, William had Harold brought with all honour into the

duchy. For an indefinite time the earl stayed at the court of the duke, and even accompanied him on the Breton expedition which was described in the last chapter; but before his departure he placed himself under some obligation to his host, the nature of which is the key to the whole matter, but with regard to which scarcely any two writers are in unison. There is no doubt that Harold became William's man, and it would seem certain that he took an oath which bore some reference to the rivalry for the English throne in which both were evidently engaged. Most writers make the essence of the oath to be a promise on the part of Harold to do all in his power to secure the crown for William upon Edward's death, and there is a powerful current of tradition which asserts that Harold pledged himself to marry one of William's daughters. In other words, Harold undertook to recognise William as king of England in due season, and to secure for him the adhesion of such of the English nobility as were under his influence; his marriage with William's daughter being doubtless intended to guarantee his good faith when the critical moment came. Such an agreement would still leave Harold obviously the first man in England; indeed the relationship which would have been created between William and Harold, if it had been carried into effect, would in some respects have reproduced the relationship in which Edward the Confessor had stood with regard to Earl Godwine in 1042. This fact makes it difficult to believe that Harold was necessarily acting under compulsion when he took the oath; he had many rivals and enemies in England, and it was well worth his while to secure his position in the event of Edward's death before his own plans were mature.^[97]

William on his part had everything to gain by causing Harold to enter into such an engagement. If the oath were kept William would have turned a probable rival into an ally; if it were broken he would secure all the moral advantage which would accrue to him from the perjury of his opponent. But there is no reason to believe that he insisted on Harold taking the oath merely in order that he might break it, nor is there any good authority for the famous story that William entrapped Harold into taking a vow of unusual solemnity by concealing a reliquary beneath the chest on which the latter's hand rested while he swore. It was inevitable that an incident of this kind should gather round it a mythical accretion: but the whole course of the history proves that some such episode really took place. William's apologists could put it in the forefront of their narratives of the Conquest, and all subsequent writers have dwelt upon it as a main cause of the

invasion; yet, although scepticism is from time to time expressed upon this detail or that, not one of the historians of the next century, some of whom were possessed of distinct critical powers, and had access to good sources of information, has given a hint that the whole story was a myth.

On January 5, 1066, King Edward died, and on Thursday, January 6th, Earl Harold was chosen as king by the Witan assembled at Westminster for the Christmas feast, and crowned that same day by Ealdred, archbishop of York. We possess a circumstantial account of the last days of Edward, written only a few years after these events, which describes how the King, within an hour of his death, had emphatically commended his wife and his kingdom to the care of Harold.^[98] With little debate, as it would seem, the last wishes of the last king of the line of Egbert were carried into effect; Harold was chosen king forthwith, and on the same day the sanction of the church made the step irrevocable. England was now committed to the rule of a king whose title to the crown depended solely upon the validity of the elective principle, and whose success or failure would depend upon the recognition which this principle would obtain among foreign powers, and upon the support which those who had chosen to accept him as their lord were prepared to extend to him, should his claim be challenged. Under the circumstances the choice of Harold was perhaps inevitable. The dying wish of Edward could not with decency be disregarded; the scene of the election lay in just that part of the country where the interest of the house of Godwine was at its strongest; and if traditional custom were to be disregarded and the royal line forsaken no stronger native candidate could have been found. On the other hand, there could be no doubt that the event of that memorable Epiphany was fraught with danger on every side. Even if it had not thrown defiance to the most formidable prince in Europe, it founded an ominous precedent, it showed that the royal dignity was not beyond the grasp of an aspiring subject, it exposed the crown to intrigues of a class from which England, weak at the best as was its political structure, had hitherto been exempt. The Norman Conquest was an awful catastrophe; but at least it saved England from the perils of an elective monarchy.



HAROLD ENTHRONED
FROM THE BAYEUX TAPESTRY

The impression which the coronation of Harold made upon the politicians of Europe was unmistakable. From Rome to Trondheim every ruler to whom the concerns of England were a matter of interest realised that a revolutionary step had been taken. From the crude narrative of the Latin historian of the Norwegian kings, as from the conventional periods of the papal chancery, we gather that the accession of Harold was regarded as an act of usurpation, although there is no unanimity as to the personality of the rightful heir whom he had supplanted. Old claims, long dormant, were revived; the kings of Norway and Denmark remembered that England had once belonged to the Scandinavian world. Had Edgar the Etheling or William of Normandy been elected, murmurings from this quarter at least would no doubt have been heard, but they would have lost half their force: the former could have appealed to the prevailing sentiment in favour of hereditary right; the latter could in addition have poured at once into England a military force sufficient to meet all possible invaders on equal terms. Harold had neither of these safeguards, and his oath to William had given to the most powerful section of his opponents an intelligible ground on which to base their quarrel. Seldom in any country has a new dynasty been inaugurated under circumstances so full of foreboding.

All this, of course, meant a corresponding increase of strength to William. Vague as is our knowledge of the negotiations with the several

powers whose good-will was desirable for his enterprise, we can see that he brought them at least into a general attitude of friendly neutrality. We are told that the Emperor Henry IV. promised the unqualified support of Germany if it should be needed,^[99] and also that Swegen Estrithson of Denmark joined William's side, though our informant adds that the Danish king proved himself in effect the friend of William's enemies. The French crown was, as we have seen, under the influence of Baldwin of Flanders, William's father-in-law; and so long as a war of succession distracted Anjou, William need fear no danger from that quarter. Maine was a dependency of the Norman duchy. Nothing, in fact, in William's history is more remarkable than the way in which, at the very moment of his great attempt, the whole political situation was in his favour. No invasion of England would have been possible before 1060, when King Henry of France and Geoffrey Martel were removed from William's path, while the growth of King Philip to manhood and the formation of Flanders into an aggressive anti-Norman state under Robert the Frisian would have increased William's difficulties a thousandfold if Edward the Confessor had lived for five years longer. In great part William's advantageous position in 1066 was due to his own statesmanship; in no small degree it resulted from the discredit which the national cause of England suffered in the eyes of Europe from the election of Harold; but above all it must be set down to William's sheer good luck. William the Conqueror, like Napoleon, might have believed in his star without incurring the reproach of undue superstition.

Of all William's negotiations that which was most characteristic of the temper in which he pursued his claim was an appeal to the head of the church to decide between his right and that of Harold:

"That no rashness might stain his righteous cause he sent to the Pope, formerly Anselm, bishop of Lucca, asserting the justice of the war he had undertaken with all the eloquence at his command. Harold neglected to do this; either because he was too proud by nature, or because he mistrusted his own cause, or because he feared that his messengers would be hindered by William and his associates, who were watching all the ports. The Pope weighed the arguments of both sides, and then sent a banner to William as an earnest of his kingdom."^[100]

The nature of this transaction should not be misunderstood. By inviting the papal arbitration William was in no sense mortgaging any of the royal prerogatives in the island which he hoped to conquer. His action, that is, does not in any way resemble the step which his descendent John took a hundred and fifty years later, when he surrendered his kingdom to Innocent III. to be held thenceforward as a papal fief.^[101] William was simply submitting his cause to the court which was the highest recognised authority in all matters relating to inheritance, and which was doubly competent to try the present case, involving as it did all the questions of *laesio fidei* which arose out of Harold's oath. Nor need we doubt that the verdict given represented the justice of the case as it would be presented to the pope and his advisers; we know at least, on the authority of Hildebrand himself, that it was not without an acrimonious discussion that judgment was given in favour of William. It would seem, in fact, that it required all the personal influence that Hildebrand could exercise to persuade the leaders of the church to commit themselves to the support of claims which, if prosecuted, must inevitably lead to bloodshed. And in later years Hildebrand told William that his action had been governed by his knowledge of the latter's character, and by the hope that when raised to a higher dignity he would continue to show himself a dutiful subject of the church.^[102] Hildebrand added that he had not been disappointed; and in fact the attraction of the great island of the west within the influence of the ideas of the reformed papacy was worth the suppression of a few scruples on the part of the Curia.



HAROLD'S OATH

FROM THE BAYEUX TAPESTRY

Seventy years afterwards the papal court was again called upon to adjudicate in a dispute relating to the succession to the English throne, and this under circumstances which deserve notice here as illustrating the nature of William's appeal. In 1136, immediately, it would seem, after the coronation of Stephen, his rival, the Empress Matilda sent envoys to Pope Innocent II. to protest against the usurpation. Stephen, wiser in his generation than Harold, replied by sending his own representative, and the case was argued in detail before a council specially convened for the purpose by the pope. Just as in the more famous episode of 1066, the point on which the plaintiff's advocates grounded their case was the fact that the defendant had taken an oath to secure the succession of his rival; and it rested with the pope to decide whether this oath were valid. It is with reference to this last point that the parallel between the events of 1066 and 1136 ceases: in the latter case the pope by refusing to give judgment tacitly acquitted Stephen of the guilt of perjury; in 1066 Harold's neglect to lay a statement of his case before the papal court produced its natural result in the definite decision which was given against him.^[103] In either case it will be seen that what is submitted to the Curia is a question of law, not of politics; the pope is not regarded as having any right to dispose of the English crown; he is merely asked to consider the respective titles of two disputants.

Armed thus with the sanction of the church there lay before William the serious task of raising an army sufficiently large to meet the military force at his rival's command on something like equal terms. Such an army could not possibly be derived from Normandy alone, great as was the strength of the duchy in comparison with its area. However favourable the general outlook might be for William's plans, he cannot have thought for an instant of staking the whole resources of Normandy upon a single venture; a venture of which the possible results might be very brilliant but of which the immediate risk was very great. Nor was it possible for William by any stretch of feudal law to summon his vassals and their men to follow him across the Channel as a matter of right and duty; if he were to obtain their support he was bound to place the expedition before them as a voluntary enterprise. Thus stated there can have been little doubt as to the response

which would be made to his appeal. The Norman conquest of Naples and the Norman exploits in Spain had proclaimed to the world the mighty exploits of which the race was capable, nor need we believe that the Normans themselves mistrusted their reputation. And although William's contemporary biographer, anxious to display the magnanimity of his hero, has represented the latter's subjects as viewing the enterprise with dismay,^[104] it is not really probable that the Norman knighthood was seriously deterred from adventuring itself for unlimited gains in the rich and neighbouring island by the prospect of having to fight hard for them.

In the early part of 1066, but most probably after the termination of William's cause at Rome, a council of the Norman baronage met at Lillebonne^[105] to discuss the proposed invasion of England. It is plain that what most exercised the minds of William and his barons was the difficulty of building, equipping and manning a number of ships sufficient for the transport of the army within a reasonable time. In fact it seems probable that one special purpose of the council was to ascertain the number of ships which each baron was prepared to contribute towards the fleet—a matter which lay altogether outside the general question of military service and could only be solved by amicable agreement between the duke and his vassals taken individually. William stipulated that the ships should be ready within the year; a demand which to some at least appeared impossible of fulfilment; and, indeed, the creation of an entire fleet of transport vessels within six months is a wonderful illustration of the energy with which the Norman nobility adopted the cause of the duke. Transport vessels the ships were, and nothing else, as is evident from the representation of them in the Bayeux tapestry, and we are bound to conclude that it was well for William that his passage of the Channel met with no serious opposition on the part of Harold. As might be expected, the number of ships actually provided is very variously given by different writers. Curiously enough the most probable, because the lowest, estimate is made by a very late authority, the Norman poet Wace, who says that when he was a boy his father told him that six hundred and ninety-six ships assembled at St. Valery. There have also come down to us several statements of the contribution which the greater barons of Normandy made to the fleet, which are probably true in substance although the lists differ among themselves and the totals which they imply exceed the modest figures presented by Wace.^[106] It would appear that William's two half-brothers headed the list; Robert of Mortain

giving a hundred and twenty ships, Odo of Bayeux a hundred. The counts of Evreux and Eu, both members of the ducal family, furnished eighty and sixty ships respectively. William Fitz Osbern, Roger de Beaumont, Roger de Montgomery, and Hugh d'Avranches gave sixty ships each; Hugh de Montfort, fifty. Two men who do not appear in the subsequent history, a certain Fulk the lame and one Gerald, who, although styled the seneschal, is difficult to identify at William's court, gave forty ships each. Thirty ships were given by Walter Giffard and by Vulgrin, bishop of Le Mans; and Nicholas, abbot of St. Ouen, and the son of Duke Richard III. contributed twenty. An interesting figure in the list is Remi, the future bishop of Lincoln, who in 1066 was only almoner of Fécamp abbey, but nevertheless provided a ship and manned it with twenty knights. The Duchess Matilda herself supplied the ship, named the *Mora*, which was to carry her husband. One fact stands out clearly enough on the surface of this list—the great bulk of the fleet was supplied by William's kinsmen and by men whom we know to have enjoyed his immediate confidence, and it is significant that we can recognise in this brief account just those men who received the greatest spoils of the conquered land. Among these few names the future earldoms of Kent, Shrewsbury, Hereford, Chester, Buckingham, Warwick, and Leicester are represented. Doubtless the rest of the Norman nobility in one way or another contributed in proportion to its wealth, but we have just accounted for nearly eight hundred vessels, and it is clear that in the all-important matter of the fleet William found his fullest support among his relatives and personal friends.

How far this statement would hold good in relation to the army of the Conquest is a question which we have no detailed means of answering. Doubtless the lords of Montfort, Longueville, Montgomery, and their fellows brought the full complement of their vassals to the duke's muster, but the essential fact in the composition of William's army lies in the width of the area from which it was recruited. From every quarter of the French kingdom, and from not a few places beyond its borders, volunteers crowded in to swell the Norman host. Brittany supplied the largest number of such volunteers, and next to Brittany came Flanders, but the fame of William's expedition had spread beyond the Alps, and the Norman states in South Italy and Sicily sent their representatives.^[107] And this composite character of the army which fought at Hastings had deep and abiding results. A hundred years after the Conquest, Henry II. will still be sending out writs

addressed to his barons and lieges “French and English,” and the terminology here expresses a fact of real importance. The line of racial distinction which was all-important in later eleventh-century England was not between Englishmen and Normans, but between Englishmen and Frenchmen. England fell, not before any province, however powerful, of the French kingdom, but, in effect, before the whole of French-speaking Europe, and, by her fall, she herself became part of that whole. For nearly a hundred years England had been oscillating between the French and the Scandinavian world; the events of 1066 carried her finally within the influence of Southern ideas in religion, politics, and culture.

The French auxiliaries of William have often been described as adventurers, and adventurers in a sense no doubt they were. But the word should not be pressed so as to imply that they belonged to a social rank inferior either to their Norman associates or to the English thegnhood whom they were to displace,—there should be no talk of “grooms and scullions from beyond the sea”^[108] in this connection. Socially there was little to distinguish a knight or noble from Brittany or Picardy from Normans like Robert d’Oilly or Henry de Ferrers; nor, rude as their ideas of comfort and refinement must seem to us, have we any warrant for supposing that Wigod of Wallingford or Tochi the son of Outi had been in advance of either in this respect. Like the Normans themselves the Frenchmen varied indefinitely in point of origin. Some of them were the younger sons of great houses, some belonged to the lesser baronage, some to the greater; Count Eustace of Bologne might by courtesy be described as a reigning prince. Some of the most famous names in the succeeding history can be traced to this origin—Walter Tirel was lord of Poix in Ponthieu, Gilbert of Ghent was the ancestor of the medieval earls of Lincoln. But the best way of realising the prevalence of this non-Norman element among the conquerors of England is to work through one of the schedules which the compilers of Domesday Book prefixed to the survey of each county, giving the names of its land-owners, and to note the proportion of “Frenchmen” to pure Normans. In Northamptonshire, for example, among forty-three lay tenants there occur six Flemings, three Bretons, and two Picards, and Northamptonshire in this respect is a typical county.

At or about the time of the council of Lillebonne there is reason to believe that messages were passing between William and Harold concerning the fulfilment of the fateful oath. It is fairly certain that William

demanded the surrender of the crown and Harold's immediate marriage to his daughter, agreeing in return to confirm him in his earldom of Wessex, which last is probably what is meant when our rhetorical informants tell us that William promised to grant half the kingdom to his rival. Such negotiations were bound to fall through; Harold had gone too far to withdraw, even if he had been so minded, and William's object in making these proposals could only have been to maintain in the eyes of the world the appearance of a lawful claimant deprived of his inheritance. Also we may be quite sure that the building of the fleet was not interrupted during the progress of the negotiations.

The difficulties of Harold's reign began early. The weakness of his position was revealed at the outset by the refusal of Northumbria to accept him as king, a refusal very possibly prompted by Earl Morcar, who could not be expected to feel much loyalty towards the new dynasty. By making a special journey to York, Harold succeeded in silencing the opposition for the moment, and his marriage with Ealdgyth, the sister of Earls Edwin and Morcar, which may be dated with probability to about this time,^[109] was very possibly intended to conciliate the great midland house. It would certainly serve as a definite assertion that Harold had no intention of fulfilling that part of his oath to William which pledged him to a marriage with the duke's daughter, nor can we doubt that Harold realised the expediency of providing an heir to his crown with the least possible delay. At any rate he seems to have been enjoying a few weeks of tranquillity after his visit to York when he received an unmistakable intimation of the coming storm, which was none the less ominous because its immediate results were insignificant.

Tostig, the dispossessed earl of Northumbria, had spent the winter of 1065–6, as we have seen, with Baldwin of Flanders,^[110] a fact which is suggestive when we remember the relations between Baldwin and William of Normandy. It is evident that Tostig was spending the period of his banishment in forming schemes for his restoration, and the fact that his brother on becoming king dare not or would not recall him made him inevitably a willing tool of William's policy. Accordingly, early in 1066 Tostig moved from Flanders into Normandy, appeared at the duke's court, and urged him on to an invasion of England. It is quite possible that he was present at the assembly of Lillebonne; one writer goes so far as to say that the arguments of Tostig contributed largely to persuade the Norman nobility

to undertake the enterprise,^[111] and William may have derived some little advantage from the fact that he could point to one man of high rank among the English nation as an adherent. But it would seem that Tostig was unwilling to await the development of his host's plans, and in May he set off from the Cotentin on an expedition of his own intended to ravage the English coasts. He landed first in the Isle of Wight, where the inhabitants bought him off with money and provisions, and then sailed, ravaging the coast of Sussex and Kent, until he came to Sandwich. At Sandwich he raised a small force of sailors, but at the same time the news of his expedition was brought to his brother in London, who at once set out for the Kentish coast. Before he could reach Sandwich, however, Tostig had started northward again and finally entered the Humber with sixty ships, harrying the coast of Lindsey. Upon receiving the news Earls Edwin and Morcar, having called out the local fyrd, marched with it to the Humber and compelled Tostig to take refuge in his ships. At this point Tostig was deserted by the men of Sandwich whom he had impressed, and, his fleet being now reduced to twelve ships, he made his way to Scotland and spent the summer, we are told, with King Malcolm.^[112]

Tostig's futile raid has an interest of its own in the glimpse which it gives us of the English defences just before the Norman invasion. The evidence of Domesday Book shows that an Anglo-Saxon king had some sort of naval force permanently at his disposal, and we know that Harold built and manned a number of ships to keep the Channel against his Norman rival, but, from whatever cause, the English navy in this critical year proved itself miserably ineffective.^[113] A mere adventurer, with no foreign aid of any consequence and no local support in England, Tostig could still spread devastation with impunity along half the English coast. The story of Tostig's expedition reads like a revival of one of the Danish raids of the ninth century—the enemy sacks a town, the fyrd are summoned and hurry to the spot to find that the raiders have just left to plunder the nearest unprotected locality. Clearly the coast defences of England, for all the bitter experience of the Danish wars, had made no real advance since the days of Alfred, and it is not unfair to remark that this fact reflects little credit upon the statesmanship of Harold. He had himself been an exile and had made a bid for power by a piratical descent upon England very similar to the present expedition of Tostig's. If he really possessed the power, during the last ten years of the Confessor's reign, with which he is usually credited, it

should not have been impossible for him to create a naval force strong enough to counteract such attempts for the future. The events of 1066 are an excellent illustration of the influence of sea power in history; wind and weather permitting, an invader could land an army in England at whatever time and place best suited him. As for Tostig himself, his expedition had been ignominious enough, but before the year was out he was to earn immortality by his association with the last great Scandinavian invasion of England and by the part which he is made to play in the magnificent saga of Stamfordbridge.

The summer visit of Tostig to Scotland must have been interrupted by another voyage of greater distance and followed by most momentous consequences. Very possibly he was dissatisfied with the amount of immediate support which his claims had received from William of Normandy; at all events he now made application to a prince of higher rank, more restless spirit, and still more varied experience in the art of war. Although there are chronological difficulties in the story which cannot be discussed here, there can be little real doubt that Tostig in person sailed to Norway, was received by Harold Hardrada, and incited the most warlike king in Europe to an invasion of England. As a matter of fact it is probable that Harold Hardrada, like William of Normandy, would have made his attempt even if Tostig had never come upon the scene; the passage of the English crown to a subject house, coming at a time when there was a temporary lull in the chronic warfare between the three Scandinavian powers, might remind the king of Norway that he could himself, if he chose, put forward a decent pretext for an adventure which would be certain to bring him fame and might rival the exploits of Swegen and Cnut.^[114] The extent of the preparations which Harold Hardrada had evidently made for his enterprise would of itself suggest that they were independent of the representations of the banished earl of Northumbria, while on the other hand Tostig plays too prominent a part in the Norwegian traditions of the expedition for us to reject his voyage to Norway as mere myth, and his presence may have had some influence in determining the objective of the invaders when once they had touched the shores of England.

After making his appeal to Harold Hardrada, Tostig returned to Scotland and began to raise a force of volunteers there on his own account. Early in September the king of Norway set sail from the Sogne Fiord near Bergen, due west to the subject earldom of the Orkneys and Shetlands, where he

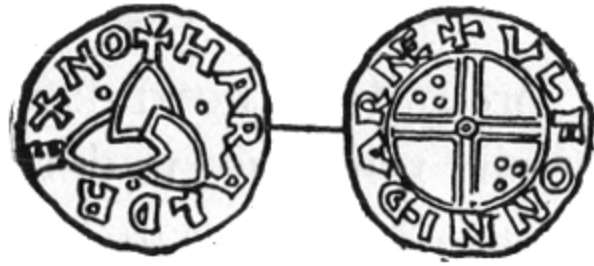
was joined by Paul and Erling, the two joint earls, and by a large reinforcement of the islanders.^[115] From the Orkneys Harold sailed on without recorded incident as far as the Tyne, where he was joined, according to agreement, by Tostig with his Scottish auxiliaries, and then the combined force made for the Yorkshire coast and began offensive operations by a harrying of Cleveland. Passing southward the invaders encountered an ineffectual resistance at Scarborough and along the coast of Holderness, but were able to round Spurn Head without any opposition from the English fleet. The Humber and the inland waters of Yorkshire lay open to Harold, and it would seem that as the Norwegian fleet sailed up the Ouse the English fleet retreated up the Wharfe, for Harold chose to disembark at Riccall, a village some five miles below the confluence of these rivers. Riccall was chosen as the headquarters of the fleet, which could easily block at this point any attempt on the part of the English vessels to break out to the open sea while Harold and his army marched straight on York. At Fulford, two miles from the city, the invaders met the fyrd of Yorkshire under Earls Edwin and Morcar, and the defeat of the local force led to the surrender of York four days afterwards. The city was not put to the sack; hostages^[116] were exchanged between Harold and the men of York, and it was very possibly to await the delivery of further sureties from the rest of the shire that the king moved out of his new conquest to the otherwise undistinguished village of Stamfordbridge.

On the following day King Harold of England himself arrived at York. News of what was happening in Yorkshire must have been brought to London with extraordinary rapidity, for the battles of Fulford and Stamfordbridge were fought, as men remarked at the time, within five days of each other. Harold possessed the permanent nucleus of an army in the famous body of “huscarles” who resided at his court, and with them he dashed up the great road from London to York, taking along with him so much of the local militia of the counties through which he passed as happened to fall in with his line of march. At Tadcaster, where the north road crosses the Wharfe, he found and inspected the English “fleet,” and on Monday, the 25th of September, one day after Harold Hardrada had entered the capital of Northumbria, it opened its gates to Harold of England. At this time Harold can have done scarcely more than pass through the city for the same day he covered the ten miles which separate York from Stamfordbridge and fell unexpectedly upon the Norwegian army scattered

in utter unpreparedness along either bank of the Derwent. The Norwegians on the right, or York, bank of the Derwent were driven into the river by the English attack, and then occurred a strange incident of which the record, curiously enough, is only preserved in the chronicle of the distant monastery of Abingdon. It was essential for the English to get possession of the bridge which spanned the unfordable river before the Norwegians on the left bank should have time to form up in line of battle, and we are told:

“There was one of the Norwegians who withstood the Englishmen so that they could not climb over the bridge and gain the victory. Then one of the Englishmen shot with an arrow and that did nothing, and then came another under the bridge and stabbed him underneath his coat of mail, and then Harold king of the English came over the bridge and his army with him.”^[117]

We have no details of the struggle which must have raged along the rising ground on which the modern village of Stamfordbridge stands, nor do we know with certainty how Harold Hardrada and Tostig fell, but it is clear that the result of that day's fighting was an unequivocal victory for the English; the men who had been left in charge of the Norwegian fleet at Riccall were willing to accept peace at Harold's hands and were allowed to depart with their ships to Norway. Harold indeed in this great fight had proved himself a worthy inheritor of the crown of the West Saxon kings, and it was a strange destiny which ruled that the last victory in the struggle of three centuries between Englishman and Northman should fall to no descendant of Egbert or Alfred, but to an English king who was half a Northman himself by blood. But a stranger destiny was it which ruled that one week should see the overthrow of the last great invader from the north and the opening of a new era for England in the entry of the greater invader from beyond the Channel. Harold Hardrada fell at Stamfordbridge on Monday, William of Normandy landed at Pevensey on Thursday.



Penny of Harold Godwinson

CHAPTER V

THE PRELIMINARIES OF THE CONQUEST AND THE BATTLE OF HASTINGS

The spring and summer of 1066 must have been a time of restless activity on the part of William and of those who were associated with him in the preparations for the great enterprise of the autumn. The building of the fleet was being pushed forward, and volunteers from kindred states were continually arriving to be incorporated in the Norman army; this much we may infer from the fact that by August both fleet and army were ready for the expedition, but we know scarcely anything as to William's own movements in the interval. On the fifteenth of June a council was held at Bonneville at which Lanfranc was appointed abbot of William's new foundation of St. Stephen's Caen, and three days later Cicely, the eldest daughter of William and Matilda, was formally dedicated to the religious life at the consecration of her mother's house, the sister monastery of the Holy Trinity. The motives which prompted the duke and duchess to complete their religious undertakings were widely felt among the Norman baronage. The conquerors of England appear in a somewhat unaccustomed light as we read the charters by which they gave or confirmed land, each to his favoured monastery, "when Duke William was setting out across the sea." It was fully realised that the enterprise might end in utter disaster; the prudent abbot of Marmoutier, for instance, in case of accidents, secured from Robert, the heir of Normandy, at his father's request, a confirmation of all the grants which the latter had made to the house during his reign.^[118]

The temporal affairs of Normandy were also discreetly arranged at this time. Matilda was appointed regent, and was supported by a council presided over by Roger de Beaumont, a man of age and experience, and a personal friend of the duke. No doubt if William had perished in England Robert would have succeeded him, but, although he was now of sufficient age to make a voluntary confirmation of his father's grants of land, he was

clearly not old enough to undertake the government of the duchy during an interregnum. The fact that the expedition itself provided employment for the great mass of the fighting men of Normandy would promise a quiet rule for Matilda and her advisers, nor indeed do we hear of any disturbances taking place in the duchy while William was across the Channel.

Before the close of August the fleet was ready at last, and lay at the mouth of the Dive ready to set sail at any moment.^[119] The army also was ready for embarkation, and the only thing which was lacking to the expedition was a south wind to carry the fleet to the Sussex coast. But for six weeks at least that south wind refused to blow, and every week of delay increased William's difficulties a hundredfold. Nothing could have been more discouraging to an army of adventurers than week after week of compulsory inaction; and the fact that William was able to keep perfect order, among a force part only of which owed direct allegiance to him as feudal lord, suggests that he possessed qualities of leadership which were not very common among the captains of his day. At more than one crisis in his life William had already shown that he could possess his soul in patience until the moment arrived at which it was possible to strike, and he must have succeeded in imparting something of this spirit to his troops in their vigil by the Dive. In the more definite work of commissariat we know that he proved himself a master; for no shortage of provisions was felt at any time during the unexpected delay, and few eleventh-century armies could have remained for a month in the same quarters without being driven to find their own means of subsistence in plunder. William's biographer was justified in remarking on the fact that the unarmed folk of the neighbourhood could pass to and fro without trembling when they saw a body of soldiers;^[120] and before the task of provisioning the army by regular means had become an impossibility, a west wind served to carry the fleet to a point which offered a shorter passage across into England than that which was presented by its original station on the Dive.

Within the county of Ponthieu, which had become a member of the Norman group of vassal states when Count Guy became William's "man" after the battle of Mortemer, the estuary of the Somme supplied an excellent natural harbour beneath the town of Saint Valery. The passage from the mouth of the Dive seems to have been accomplished without incident, and William and his forces took possession of their new quarters on the twelfth day of September. For more than a fortnight the situation did not seem to

have improved in any way; the wind which was carrying Harold Hardrada down the coast of Yorkshire kept William locked in the mouth of the Somme. The weather was cold and squally and we have a contemporary description of the way in which William kept watching the weathercock on the church tower and of his joy if for a moment the gale drove it to point northward.^[121] The strain of suspense was now beginning to tell upon the army:

“The common soldiers, as frequently happens, began to murmur in their tents that the man must be mad to wish to conquer a foreign country, that his father had proposed to do the same and had been baffled in the same way, that it was the destiny of the family to try for things beyond their reach and to find God for their enemy.”^[122]

It was clearly necessary to do something to relieve the prevailing tension, and the expedient chosen was characteristic of the time; the relics of the patron saint of the town were brought with great solemnity out of the church, and the casket which contained them was exhibited to receive the prayers and offerings of the duke and his army. The result was a convincing proof of the virtue of the bones of St. Valery; without further delay the south wind blew.^[123]

The same day saw the embarkation of the Norman army, the work being carried through as quickly as possible in evident fear that the wind might slip round again to its former quarter. Night was falling before all was ready, and before the duke, after a final visit to the church of St. Valery, had given his last orders on the Norman shore. It was important that the fleet should be prevented from scattering in the darkness, so each vessel was ordered to carry a light, a lantern of special power adorning the masthead of the duke's own ship. With the same object it was directed that the fleet should anchor as soon as it was clear of the estuary of the Somme, and await further orders. Through the dead of night the fleet hung outside the harbour, and it was still dark when the expedition ventured out at last into the open waters of the Channel. The great body of the ships, each of which carried a heavy load of horses in addition to its freight of men-at-arms, was inevitably outstripped by the unimpeded galley which bore William to his destiny; and when the dawn began to break, the duke found himself out of sight of the rest of the fleet, and not yet within view of the English shore. In

these circumstances William cast anchor and breakfasted “as it had been in his own hall,” says one of his companions; and, under the influence of the wine with which the *Mora* was well supplied, his spirits rose, the prospects of his enterprise seemed golden in the morning light, and he spoke words of encouragement to his companions. And at last the sailors reported that the rest of the fleet began to come in sight; the four ships which first appeared together upon the horizon grew more and more until the man on the look-out could be made by our imaginative informant to remark that the masts of the fleet showed like a forest upon the sea.^[124] Then the duke weighed anchor for the last time, and the south wind still holding carried him and his fleet into Pevensey bay at nine in the morning; the day being St. Michael’s Eve—by an appropriate chance, for the archangel was highly honoured in the Norman land.

William’s landing was entirely undisputed; the good luck which, as we have noticed, waited on his expedition in its diplomatic antecedents, attended its military details also. During the summer months, Harold, making what use he could of the antiquated military system of England, had called out the fyrd, and lined the south coast with troops, which, however helpless they might be in a pitched battle with the Norman chivalry, might have brought considerable inconvenience to William, if they had been in evidence at the moment of his landing. From May to September the Sussex coast in general, Hastings and Pevensey in particular, were guarded by the rural forces of the shire.^[125] At last, about the time when William was moving from the Dive to St. Valery, the patience and provisions of the fyrd gave out together; the rustics had been kept away from their homes for four times the customary period of service without anything happening, and they refused to stay on guard any longer. They probably would not have made any difference to the ultimate result in any case, nor need we blame Harold for being unable to keep them together; but the fact is another illustration of the hopeless inefficiency of the old English state. And then, one week before William’s landing, Harold had gathered the whole of such professional soldiers as England contained, and had spent them in the life-and-death struggle at Stamfordbridge. Harold Hardrada had fallen, but his overthrow had gone far to exhaust the military resources of England, and it was a shattered, if victorious, army which was resting with Harold Godwinson, at York, when a fugitive from Sussex arrived to tell that William of Normandy had landed, and that the south lay at his mercy.

William's first movements in England were very deliberate. His immediate care was to fortify his position at Pevensey and so protect his fleet against surprise. At Pevensey, as afterwards at Lincoln, a line of Roman walling could be turned to account in the construction of a castle,^[126] which was run up in the course of the day; and having thus, like his Scandinavian ancestors, secured for himself a base of operations if events turned out ill, William marched to Hastings, which was to be his base of operations for the rest of the campaign.^[127] At Hastings, therefore, another castle was thrown up, the building, like nearly all the castles built during the twenty years which followed the Conquest, consisting merely of a mound, with wooden defences on the top and a ditch and one or more outer works below. Hastings is a point of departure for many roads; a fact which no doubt very largely accounts for William's choice of the town as his headquarters; for it could easily be provisioned by supplies from the neighbouring country, and it lay very conveniently as a base for an attack on London.

The men of east Sussex were not long before they felt the pressure of the invading army. Most of the villages in the neighbourhood of Hastings are recorded in Domesday to have been "waste" at some period between the death of King Edward and 1066, and the connection between these signs of ravage and William's camp at Hastings is sufficiently obvious. But it is not probable that William attempted any systematic harrying of this district such as that which three years afterwards he carried out with grim success in the country beyond the Humber; the Sussex villages, as a rule, had quite recovered their former prosperity by the date of the great survey. The passage of foraging parties over the land demanding provisions, which would be none too readily granted, and the other incidents of a medieval war of invasion, are enough to account for depreciation of the kind recorded. Harold himself, as he drew towards Hastings, left traces of his march in similar cases of temporary devastation, and there is no reason to suppose that William undertook a deliberate harrying of Sussex in order to provoke Harold to a general engagement.^[128]



THE BUILDING OF HASTINGS CASTLE FROM THE
BAYEUX TAPESTRY

William, indeed, as yet can hardly have known the result of Stamfordbridge with any degree of certainty. Rumours of the great battle in the north would no doubt gradually filter down into Sussex during the week following the event, but for some days after his arrival at Hastings William cannot have ignored the possibility that it might be a Norwegian host which would ultimately appear upon the edge of the downs. Definite news, however, at some unspecified date, was brought to William by a message from an unexpected quarter.^[129] Robert, the son of Wymarc, a Breton knight, who in some unknown way could claim kindred with both William and Edward, had been “staller” or master of the horse to the latter, and had stood together with Harold and Stigand by the king’s deathbed. Whether he had actually been present at the battle of Stamfordbridge is uncertain; but shortly after the fight he sent a messenger to William to advise a speedy withdrawal to Normandy before something worse happened to him. The message ran that Harold had destroyed the huge forces of the king of Norway, himself the bravest man in the world, and that now, inspired by victory, he was turning upon the duke with a great and enthusiastic army. Rather unwisely Robert went on to add that the Normans were no match for the English, either in numbers or bravery, and that William, who had always

shown himself discreet hitherto, would do well to retire at once, or at all events to keep within his fortifications and avoid a battle in the open field. To this well-meaning person William replied that his one desire was to come to blows with Harold, that although Robert's advice might have been better expressed yet he thanked him for it, and that if he had with him but ten thousand instead of sixty thousand men^[130] he would never retire without wreaking vengeance on his enemy. It is not unlikely that Robert's message was really inspired by Harold himself, and from one or two turns of expression in William's reply we may perhaps gather that he suspected as much; although it might be thought that Harold, who had seen something of his rival in past years, cannot have had much hope of getting rid of him by mere intimidation. However this may be, it is interesting to find Robert, a prominent member of a class which has suffered much abuse because of an assumed lack of patriotism towards its adopted country, playing a part which so admirably saves his duty to his king and his kinsman alike.

We have two poetical accounts of the way in which the news of William's landing was brought to Harold at York. Wace, the Norman poet of the twelfth century, tells how a Sussex "chevalier" heard the shouting of the "peasants and villeins" as the fleet drew in to the shore, and how, attracted by the noise, he came out, hid behind a hill and lay there until the work of disembarkation was over and the castle at Pevensey thrown up; then riding off with lance and sword, night and day, to York, to tell the king the news of what he had seen.^[131] Guy, bishop of Amiens, who wrote within a short time of the event, makes the news of the Norman arrival be borne by a rustic from Hastings, not Pevensey; and the details which are told to Harold relate to the devastation caused by the invaders near Hastings, not to the landing itself.^[132] Perhaps these two stories are not quite incompatible with each other; but we need not attempt to reconcile them here, in view of the undoubted fact that Harold was informed of William's landing within some three days of the event.

At this crisis Harold acted with astonishing energy. Taking with him his faithful huscarles, a body sadly thinned by the battle of a few days before, he hurried southwards by way of Tadcaster, Lincoln, Stamford, and Huntingdon, the same route which in the reverse direction he had followed in the previous week; now as then drawing into his force the fyrd of the shires through which he passed. Edwin and Morcar were directed to raise the levies of their respective earldoms, and in their expected absence the

government of the north was entrusted to Marleswegen, the sheriff of Lincolnshire,^[133] an Englishman who remains little more than a name in the narrative of the Conquest, but who, if Harold had triumphed at Hastings might probably have played an important part in the history of the following years. How far Harold really believed in the fidelity of the northern earls is uncertain; they had shown no overt signs of disaffection during the last months since he had married their sister. On the other hand, considering the long-standing rivalry between his house and theirs, and their probable share in the Northumbrian difficulties at the beginning of his reign, Harold was perhaps not altogether surprised that Edwin and Morcar, in the words of Florence of Worcester, “withdrew themselves and their men from the conflict.” With the best intentions they would have found it difficult to join him in time for the battle; it would not have been easy for them to raise the fyrd from all the shires between the Humber and the Tweed on the one part and between the fens and the Severn on the other, and to bring the troops to London within the five days which Harold spent there. For on October 11th,^[134] a fortnight after the battle of Stamfordbridge, Harold set out from London on his last march towards the Sussex downs.

It is an interesting, but not very profitable, speculation how far Harold was justified in staking his all upon the result of a single battle with the invader. With our knowledge of what happened it is natural to condemn him; he was condemned by the general opinion of the historians of the next generation, and very possibly their sentence is right. On the other hand we cannot but feel that we know very little of the real facts of the case; even the essential question of the relative numbers of the English and Norman armies cannot be answered with any degree of accuracy. It may be argued with much plausibility that the wisest course for Harold would have been to let William work his will upon the unfortunate inhabitants of Sussex, trusting to time and the national feeling likely to be aroused by the ravages of an invader to bring an overwhelming superiority in numbers over to his side. This, we may be sure, would have been the course taken by William himself in such a case, but Harold was probably by nature incapable of playing a waiting game of this kind. His ability, so far as we can tell, lay in sudden assaults and surprises; the more deliberate processes of generalship were foreign to his temperament. And then there remains the fact that the loyalty of Mercia and Northumbria was at least doubtful; delay on Harold’s part might only mean that Edwin and Morcar with their forces would have

time to come over effectively to William's side, while another great victory so soon after Stamfordbridge would have placed Harold in a position from which, for the time being, he could defy all rivals. At any rate he took the step, and paid the penalty of failure.

But, whatever we may think of the general wisdom of Harold's strategy, it is impossible to deny that he showed a general's appreciation of the tactical possibilities of the ground on which he chose to put the fate of England to the test. After a forced march through the thick woods which at that time covered the Sussex downs, the king halted his army on a barren ridge of ground seven miles north-east of the town of Hastings. It is plain from all the narratives of the forthcoming encounter that the ridge in question was quite unoccupied at the time of the battle; and when the English chroniclers wish to describe its site they can only tell us that Harold and William came together "by the hoar apple-tree."^[135] The strength of the position was determined, not so much by the general elevation of the ground, which at no point reaches a greater height than 300 feet above sea level, as by the fact that it was surrounded by country very hilly and much broken by streams, and that its physical features lent natural support to the disposition of an army which relied for success on its capacity for stolid resistance. The position was undoubtedly chosen by Harold with the object of forcing his enemy to an immediate battle; for William could not move either east or west from Hastings without exposing his base to an English attack; and Harold, who knew that the main strength of a Norman army lay in its troops of mailed horsemen, had been careful to offer battle on a site in which the cavalry arm would be placed by the ground at a natural disadvantage.^[136]

From the nature of the case it has come about that we possess very little information either as to the numbers of the English army or as to the details of its formation on the day of battle. The Norman writers, on whom we are compelled to rely, have naturally exaggerated the former, nor did any survivor from the English army describe the order of its battle array to the chroniclers of Worcester or Peterborough. In recent studies of the great battle there is manifested a strong unwillingness to allow to either the English or the Norman host more than a small proportion of the numbers which used to be assigned to it thirty years ago.^[137] It is very improbable that William led more than 6000 men into action on October 15, 1066, and there is good reason for doubting whether the knightly portion of his army

can have exceeded 5000. Small as this last number may appear, every man included in it was an efficient combatant; but the English force was largely composed of rustics impressed from the shires through which Harold had rushed on his great march from York to London after the battle of Stamfordbridge, and even so, it is far from certain that the native force was materially stronger than the army of invasion. With regard to its distribution, we know that the English line of battle seemed convex to the Normans on their approach from the south-east,^[138] and it is probable that it ran for some 800 yards along the hill of battle, the flanks being thrown well back so as to rest upon the steep bank which bounds the ridge towards the north. It is certain that the English troops were drawn up in extremely close order, and it is a natural assumption that Harold would place the kernel of his army, the huscarles who had survived Stamfordbridge, in the front rank; stationing his inferior troops in the rear so as to support the huscarles in resisting the impact of the Norman cavalry.^[139] On the highest point of the whole line, a spot now marked by the high altar of the Abbey church of Battle, Harold planted his standard; and it was round the standard that the fight was most stoutly contested, and that, after seven hours of struggle, the king at last fell.

In speaking of the generalship displayed by Harold's rival on this occasion, it is important to beware of the associations aroused by modern military terminology. At least if we speak of him as a strategist or tactician, we should be careful to remember that strategy and tactics themselves had attained to but a rudimentary stage of development in Northern Europe in the eleventh century. Recent studies of the battle of Hastings, the one fight of the period in regard to which we possess a considerable amount of detailed information, have brought out the fact that William's host was far too stiff and unwieldy a body to perform the complicated evolutions by which it used to be assumed that the day was won.^[140] We should be committing a grave error if we were to suppose that the Norman army possessed that mobility and capacity for concerted action among its several divisions which belonged to the forces led by Turenne or Marlborough. Feudal battles were determined more by the event of simple collisions of large masses of men than by their manœuvres when in the field: the skill of a great feudal captain lay chiefly in his ability to choose his ground so as to give his side the preliminary advantage in the shock of battle; apart from the example of his personal valour he had but little influence upon the

subsequent fortunes of the day. On the present occasion William was compelled to fight on the ground of his opponent's choice; and this initial disadvantage cost the Norman leader an indefinite number of his best troops, and, even after the issue of the battle had been decided, protracted the English resistance until nightfall had put an end to the struggle. On the other hand, there was one fatal weakness in the English host which must have been recognised by the other side already before the fight had begun. The fact that Harold, for all effective purposes, was totally unprovided with either archers or cavalry exposed his army to a method of attack which he was quite unable to parry, and the arrangement of the Norman line of battle shows that William from the first relied for success on this advantage. The battle of Hastings was won by the combination of archery and cavalry against infantry whose one chance of success lay in the possibility that it might keep its formation unbroken until the strength of the offensive had been exhausted. ^[141]



THE DEATH OF HAROLD
(FROM THE BAYEUX TAPESTRY)]

In the early morning of the 14th of October the Norman army moved out of Hastings and advanced across the seven miles of broken country which lay between the English army and the sea. The march must have been a toilsome business, and the rapidity with which it was accomplished is remarkable. ^[142] At the point marked by the modern village of Telham, the

road from Hastings to Battle passes over a hill which rises to some 350 feet above sea-level, and commands a view of the English position. On the far side of this hill it is probable that William halted, waited for his scattered troops to come together, and then drew them out in order of battle. In his first line he placed his light-armed infantry, who probably formed a very inconsiderable portion of his army, and were unprovided with defensive harness. To these inferior troops succeeded infantry of a higher class, protected by armour, but, like the light-armed skirmishers in the front rank, armed only with bows and arrows and slings. The function of the infantry in the coming encounter was to harass the English with their missiles and tempt them to break their ranks. Lastly came the main body of the Norman army, the squadrons of cavalry, on whom it rested to attack the English line after it had been shaken by the missiles of the previous ranks.^[143] The whole army was further arranged in three great divisions, the native Normans composing the centre, the Bretons, under the command of Alan, son of Count Éon of Penthievre, forming the left wing, and the French volunteers the right.^[144] In the centre of the whole line of advance, the Norman counterpart of the English standard, there was borne the consecrated banner which William had received from the pope.^[145]

So quickly had the march from Hastings been made that the actual fighting was opened at about nine in the morning^[146] by an advance of the Norman foot. Galled by a heavy fire from the archers, which could only be answered very ineffectively by the spears and stones which were almost the sole missile weapons of the English, numbers of the native troops broke away from their line, in defiance of the strict orders issued by Harold to the effect that no man should leave his post. In the meantime, the Norman cavalry had been steadily making its way to the front in order to take immediate advantage of the disorder caused in the English ranks by the fire of the archers. But the knights could only move their horses slowly up the hill; the solidity of the English formation had not been seriously affected as yet, and the cavalry were compelled to attack an unbroken line. The result was disaster. The Breton auxiliaries on the left fell back, the confusion spread rapidly, and the English, seizing their advantage, sallied forth and drove the entire Norman line before them in headlong flight down the hill.^[147] Fortunately William had not joined in this first attack in person, and when in their panic the Normans believed that their leader had fallen, they were soon recalled to their senses by the sight of the duke with bared head,

laying about him with his spear, and shouting words of reproof and encouragement.^[148] Mounted as they were, the flying knights could have but little difficulty in outstripping their pursuers, but, if we may trust the Bayeux tapestry, a number of English and Normans perished together in the course of the flight, by falling into a deep depression in the ground situated somewhere between the base of the hill and the duke's post. According to the same authority, the bishop of Bayeux did good service at this moment, restoring order among the baggage-carriers and camp-followers, who were apparently becoming infected with the panic which had seized their masters.^[149] Between the duke and his brother, the flight was checked, and then the knights, eager to avenge their disgrace, rallied, turned, and cut off their pursuers from their comrades on the hill, making a wholesale slaughter of them.^[150] Mainly through William's self-possession the Norman rout had ended after all in a distinct success gained for his side.

As soon as the cavalry had re-formed, the attack on the English position was resumed; this time under the immediate leadership of the duke. The struggle at the foot of the hill had given its defenders time to close their ranks, and the English continued to present an impenetrable front to the Norman cavalry. All along the line a desperate struggle raged for some hours, but of its details no tale can be told, although it is probable that it was at this point in the battle that Gyrth and Leofwine, Harold's brothers, fell, and there is good reason for believing that the former was struck down by the hand of the duke himself. William, indeed, in all our authorities is represented as the life and soul of the attack, "more often calling to his men to come on than bidding them advance" says William of Poitiers; he had three horses killed under him before the day was over, and he did all that might be done by a feudal captain to keep his troops together and to inspire them by his example. But notwithstanding his exertions it is evident that the English were more than holding their own,^[151] and a second repulse suffered thus late in the day by the Norman cavalry would almost certainly have passed into a rout of the whole army. At this crisis it occurred to some cunning brain, whether that of the duke or another, that it might be possible by feigning flight to tempt the English troops to break their formation, and then, by turning on suitable ground, to repeat the success which had ended the real flight in the forenoon. The movement was easily carried out; a body of Normans rode away, and a crowd of Englishmen, regardless of everything except the relief from the immediate strain of keeping their

ranks, hurled themselves down the hill shouting curses and cries of victory. No discipline could have been kept under the circumstances, and when the galloping knights suddenly spread out their line, wheeled around their horses, and surrounded the disordered mob of their pursuers the latter were ridden down and cut to pieces by scores.^[152]



FOSSE DISASTER, BATTLE OF HASTINGS
FROM THE BAYEUX TAPESTRY

It is, of course, impossible to estimate the actual extent of the loss which the English sustained in the episode of the feigned flight, but there can be little doubt that its success marks the turning-point in the fortune of the day. No incident in the great battle made a deeper impression upon the historians who have described it for us, and the tale of the feigned flight is told in different narratives with great variety of circumstance and detail. But from the writers who lived nearest to the time we may infer with tolerable certainty that the manœuvre in question was a sudden expedient, devised and acted upon without previous organisation, and also that it was a simple, not a combined movement. The whole business of decoying the English from the hill, turning upon, and then surrounding them, was the work of one and the same body of knights. On the other hand, it is probably incorrect to speak of the feigned flight in the singular, for our best authority distinctly

asserts that the same stratagem was used twice^[153]; fighting was going on along a front of at least half a mile in length, and different sections of the Norman army may very well have carried out the movement at different times, and in complete independence of each other. However this may be, the effect of the manœuvre was soon apparent. The English line, though shrunk in numbers, closed its ranks and kept its formation, wedged together so tightly that the wounded could not fall behind to the rear, nor even the dead bodies drop to the ground. But the superior endurance of the Norman troops was beginning to tell; the English were rapidly losing heart,^[154] and the consummation of William's victory only waited for the destruction of King Harold, and of the warriors who fought with him round the standard.

The attack which finally beat down the resistance of the English line seems to have been delivered from some point to the south-east of the hill.^[155] The battle had already continued for seven or eight hours, and twilight was beginning to fall,^[156] but its approach could only remind the shaken remnant of the native host that the day was lost, and the end of the great fight was now very near. It was in the last confused struggle which raged round the standard in the fading light that Harold met his death; and then his companions, tired out and hopeless of reinforcement, yielded the ground they had defended for so long, and broke away to the north-west along the neck of land which connects the hill of battle with the higher ridges of the downs beyond it. The victors followed in hot pursuit; but a strange chance gave to Harold, in the very hour of his death, a signal revenge over the men at whose hands he had just fallen. A little to the west of the original position of the English army one of the head-waters of the Asten had cut a deep ravine, of which the eastern face was so steep as to be a veritable trap for any incautious horsemen who might attempt to ride down it. In the gathering darkness knight after knight, galloping after the English fugitives in secure ignorance of the ground, crashed down into this gully; and the name Malfosse, borne throughout the Middle Ages by the ravine in question, bears witness to the extent of the disaster which the victorious army suffered at this point.^[157] Harold, after he had lost life and kingdom, was still justified of the ground which he had chosen as the place of battle.

Late in the night William returned to the battlefield and pitched his tent there. There could be no doubt that he had gained an unequivocal victory; his rival was dead, the native army annihilated; he could well afford to give

his troops the rest they needed. The early part of the following day was spent in the burial of the Norman dead; the work being carried out under the duke's immediate care. The English folk of the neighbourhood soon came in numbers to the battlefield and begged for the bodies of their fallen kinsfolk, which they were allowed to carry away for burial; but the unclaimed corpses were left strewn about the hill. Before long the bodies of Harold, Gyrth and Leofwine were found lying close together; but Harold's corpse had been horribly mangled, and, according to the later romantic story, it was only identified by means of certain marks upon the body which were known and recognised by the dead man's mistress, Edith the Swan-necked. Towards the close of the morrow of the battle, William returned to his castle at Hastings, bearing Harold's body with him for burial upon the shore in unconsecrated ground as befitted an excommunicate, and an urgent message from Gytha, Godwine's widow, offering for her son's body its weight in gold, did nothing to shake his purpose.^[158] With characteristic irony William remarked that it was but fitting that Harold in death should be appointed guardian of the shore and sea, which he had tried to defend in life; and the dead king's body, wrapped in a purple robe, was laid out of sight somewhere among the rocks along the shore of Hastings bay. Later tradition indeed asserted that Harold before long was translated from this unhallowed grave to a tomb in the minster of the Holy Cross at Waltham, which he had founded three years before^[159]; but the authority on which this story depends is none of the best, and, for all that we really know to the contrary, the last native king of England is still the guardian of the Sussex shore.

Harold, above all kings in English history with the possible exceptions of Richard III. and Charles I., was happy in the circumstances of his death. He gained thereby an immediate release from the performance of an impossible task, and he was enabled to redeem the personal ambitions which governed his past life by associating them in the moment of his fall with the cause of the national independence of England. It has been possible for historians to regret the outcome of the battle of Hastings only because it overthrew Harold before he could prove the hopelessness of the position in which he had placed himself. What chance had he, a man of uncertain ancestry and questionable antecedents, of completing the work which had overcome every king before him: the work of reconciling the antagonism of north to south, of making the royal word supreme in the royal council, of making the

provincial nobility of England and its dependents the subjects of the king and of the king only? It may well be that such a task would have proved beyond the power of any native king, though descended from the immemorial line of Cerdic; how could it be completed by an ambitious earl, invested indeed with the royal authority, but crippled in its exercise by the bitter rivalry of men who had formerly been his fellow-subjects; whose birth was more noble, whose wealth was scarcely less, who, in opposition to his rule, could rely upon endless reserves of local patriotism, the one source of political strength which the land contained? To genius, indeed, all things are possible, but to ascribe genius to this commonplace, middle-aged earl would be to do sheer violence to the meaning of words. Harold will always hold a noble place in the record of English history; but he owes that place solely to the events of his last month of life, when the terrible necessity of straining every faculty he possessed in the support of his trembling throne roused in him a quickness of perception and a rapidity of action which his uneventful career as earl of Wessex could never have called into being. Harold was undoubtedly the best captain that England had seen since the death of Edmund Ironside, just fifty years before the battle of Hastings; but the work which Harold had undertaken would have called for quite other powers than those which he revealed so unexpectedly on the eve of his death. William the Conqueror, endowed as he was by nature with the faculties of a great ruler to an extent perhaps without parallel in English history; superior by the fact that he came in by conquest to all the local jealousies which distracted Anglo-Saxon politics; and with unique opportunities of recasting the social and tenorial features of English life; could only create a strong and uniform government in England after three years of almost incessant war, the reduction of a third of England to a wilderness, and the remodelling in principle of the whole fabric of the English administration, civil and military. When it is remembered that the resistance to William was made essentially on grounds not of national feeling, but of local particularism, and that these forces would undoubtedly have conspired against Harold as they afterwards conspired against his rival, we can only conclude that fate was kind which slew Harold in the heat of battle in a noble cause, instead of condemning him to witness the disintegration of his kingdom, in virtual impotence, varied only by spasmodic outbreaks of barren civil war.



Penny of Harold II.

CHAPTER VI

FROM HASTINGS TO YORK

Catastrophic as the battle of Hastings seems to us now, in view of the later history, its decisive character was not recognised at once by the national party. The very incoherence of the Anglo-Saxon polity brought a specious advantage to the national cause, in that the defeat of one part of the nation by an invader left the rest of the country comparatively unaffected by the fact. The wars of Edmund Ironside and Cnut, fifty years before, show us groups of shires one after the other making isolated attempts to check the progress of the enemy, and few men could already have realised that the advent of William of Normandy meant the introduction of new processes of warfare which would render hopeless the casual methods of Anglo-Saxon generalship. Neither side, in fact, understood the other. William, on his part expecting that the total overthrow of the English king with his army would imply the immediate submission of the whole land, took up his quarters at Hastings on the day after the battle to receive the homage of all those Englishmen who might come in person to accept him as their lord. The passage of five days without a single surrender taught him that the fruits of victory would not fall into his hands without further shaking, and meanwhile the English nobility began to form plans for a continued resistance to his pretensions in the name of another national king.

Who that king should be was the first question which demanded settlement. There was no hope of preserving the English crown in the house of Godwine: the events of the past three weeks had been fatal to all the surviving sons of the old earl, with the exception of Wulfnoth the youngest, and he was most likely a prisoner or hostage in Normandy.^[160] Harold's one legitimate son was most probably as yet unborn; he had at least three illegitimate sons of sufficient age, but their candidature, if any one had suggested it, would certainly have been unacceptable to the churchmen on whom it rested to give ultimate sanction to any choice which might be

made. Two alternatives remained: either a return might be made to the old West Saxon line in the person of Edgar the Etheling, or a new dynasty might be started again by the election of Edwin or Morcar. The one advantage which the former possessed, now as earlier in the year, was the fact that his election would not outrage the local particularism of any part of the country; it might not be impossible for Wessex, Mercia, and Northumbria to unite round him in a common cause. Nor was it unnatural that in this hour of crushing disaster men's minds should involuntarily turn to the last male heir of their ancient kings. Apart from these considerations, there was something to be said in favour of the choice of one of the northern earls. It must have been clear that Mercia and Northumbria would have to bear the brunt of any resistance which might subsequently be made to the invader, whose troops were already occupying the eastern shires of the earldom of Wessex, and who would be certain before long to strike a blow at London itself. But the success of Harold's reign had not been such as to invite a repetition of the experiment of his election. Edgar the Etheling was chosen king, and the two brother earls withdrew to Northumbria, imagining in their own minds, says William of Malmesbury, that William would never come thither.^[161]

This motive gives an interest to their withdrawal which is lost if we regard it as a mere act of treachery to the national cause. There can be little doubt that what Edwin and Morcar intended was a partition of the kingdom between themselves and William, and it is at least questionable whether such a plan had not a better prospect of success than an attempt to recover the whole land for a king who had no personal qualities of leadership, and who could never hope to attach to himself any of that local sentiment in which lay the only real strength of the national party. The idea of a divided kingdom was by no means chimerical. Old men still living could remember the partition made by the treaty of Alney between Edmund Ironside and Cnut, and it was not a sign of utter folly for any man to suppose, within a week of the battle of Hastings, that William, having settled his score with Harold, might content himself with his rival's patrimonial earldom of Wessex, leaving the north of England to its existing rulers. No one at this date could be expected to understand the extent to which William's political ideas differed from those of Cnut; nor need we suppose that Edwin and Morcar were mistaken as to the reality, though they may have overestimated the military value, of the feeling for local independence in

their two great earldoms. In the case of Northumbria, indeed, even after William's presence had been felt in every part of the land, so acute an observer as Archbishop Lanfranc insisted on the subordination of the see of York to that of Canterbury on the ground that an independent archbishop of York might canonically consecrate an independent king of the Northumbrians.^[162] What was lacking to the plan was not local separatism, but the skill and consistency of purpose which alone could turn it to account. Neither the ignominious failure of Edwin and Morcar, on the one hand, nor the grandiose phrases of chancery clerks about the "Empire of Britain," on the other, should blind us to the fact that England was united only in name until the strong rule of its Norman lords had made the king's word as truly law in Yorkshire as in Middlesex.

While the English leaders were disposing of their crown William was pursuing his deliberate course towards London by a route roughly parallel with the coast of Kent and Sussex. His delay at Hastings had not been time wasted; it allowed his troops to recover from the strain and excitement of the great battle, and it gave him the opportunity of receiving badly needed reinforcements from Normandy. On the 20th of October, six days after the battle, the second stage of the conquest began; William, with the main body of his army, moved out of Hastings, leaving a garrison in the newly built castle, and marched across the border of Kent to Romney. The men of the latter place had cut off a body of Norman soldiers who had landed there by mistake before the battle of Hastings; and the most famous sentence written by the Conqueror's first biographer relates how William at Romney "took what vengeance he would for the death of his men."^[163] Having thus suggested by example the impolicy of resistance, a march of fifteen miles between the Kentish downs and the sea brought William to the greatest port and strongest fortress in south England, the harbour and castle of Dover. The foundation of the castle had probably been the work of Harold while earl of Wessex, and, standing on the very edge of the famous cliffs overhanging the sea, the fortress occupied a site which to Englishmen seemed impregnable, and which was regarded as very formidable by the Norman witnesses of this campaign.^[164] The castle was packed with fugitives from the surrounding country, but its garrison did not wait for a formal demand for its surrender. Very probably impressed by what had happened on the previous day at Romney, they met William half way with the keys of the castle, and the surrender was duly completed when the army

arrived at Dover. It was William's interest and intention to treat a town which had submitted so readily as lightly as possible, but the soldiers, possibly suspecting that the booty of the rich seaport was to be withheld from them, got out of hand for once, and the town was set on fire. William attempted to make good the damage to the citizens, but found it impossible to punish the offenders as he wished, and ended by expelling a number of Englishmen from their houses, and placing members of his army in their stead.^[165] Eight days were spent at Dover, during which the fortifications of the castle were brought up to an improved standard, and then William set out again "thoroughly to crush those whom he had conquered." But before his departure he appointed the castle as a hospital for the invalided soldiers; for dysentery, which was set down at the time to over-indulgence in fresh meat and strange water, had played havoc with the army.^[166]

With the surrender of Dover William's communications with Normandy were firmly secured, and he now struck out directly towards his destined capital, along the Roman road which then, as at every period of English history, formed the main line of communication between London and the Kentish ports. Canterbury was the first place of importance on the way, and its citizens followed the prudent example of the men of Dover. Before William had gone far from Dover, the Canterbury men sent messengers who swore fealty to him, and gave hostages, and—an act which was a more unequivocal recognition of his title to the crown—brought him the customary payment due yearly from the city to the king. From this point, indeed, William had little reason to complain of the paucity of surrenders; the Kentishmen, we are told, crowded into his camp and did homage "like flies settling on a wound."^[167] But the even course of his success was suddenly interrupted. On the last day of October, he took up his quarters at a place vaguely described by William of Poitiers as the "Broken Tower," and was there seized by a violent illness, which kept him for an entire month incapable of moving from the neighbourhood of Canterbury. But, if we can trust the chronology of our authorities, it was during this enforced delay that William received the submission of the capital of Wessex. Winchester at this time had fallen somewhat from its high estate under the West Saxon kings; along with certain other towns it had been given by Edward the Confessor to his wife Eadgyth as part of her marriage settlement, and it was now little more than the residence of the dowager queen. On this account, we are told that William thought it would be

unbecoming in him to march and take the town by force and arms, so he contented himself with a polite request for fealty and “tribute.” Eadgyth complacently enough agreed, took counsel with the leading citizens, and added her gifts to those which were brought to William on behalf of the city.^[168] This ready submission was a fact of considerable importance. Winchester lay off the track of an invader whose objective was London, and apart from his illness William could scarcely have afforded to part with a detachment of his small army sufficiently large to make certain the capture of the town. Yet the old capital was a most ancient and honourable city, containing the hall of the Saxon kings, in which probably were deposited the royal treasure and regalia; and its surrender with the ostentatious approval of King Edward’s widow was a useful recognition of William’s claim to be the true heir of the Saxon dynasty. In his dealings with Winchester the Conqueror’s example was followed by William Rufus, Henry I., and Stephen, though the paramount necessity for them of seizing the royal hoard at the critical moment of their disputed successions made them each visit the royal city in person.^[169]

On his recovery, at or near the beginning of December, William resumed his advance on London. Doubtless Rochester made a peaceful surrender, but we have no information as to this, nor as to any further details of the long march until it brought the Conqueror within striking distance of London. London, it is plain, was prepared for resistance; and the narrow passage of the bridge, the only means of crossing the river at this point, made the city virtually impregnable from the south. William was not the man to waste valuable troops in a series of hopeless assaults when a less expensive method might prevail, and on the present occasion he merely sent out a body of five hundred knights to reconnoitre. A detachment of the English was tempted thereby to make a sally, but was driven back across the bridge with heavy loss, Southwark was burned to the ground,^[170] and William proceeded to repeat the plan which had proved so successful in Maine three years before. Abandoning all attempt to take the city by storm, he struck off on a great loop to the west, and his passage can be traced clearly enough in Domesday Book by the devastation from which a great part of Surrey and Berkshire had not fully recovered twenty years afterwards. The Thames was crossed at last at Wallingford, and it was there that William received the submission of the first Englishman of high rank who realised that the national cause was doomed. Stigand, the schismatic

archbishop of Canterbury, did homage and swore fealty, explicitly renouncing his allegiance to Edgar the Etheling, in whose ill-starred election he had played a leading part.^[171] The weakness of Stigand's canonical position, which was certain to be called in question if William should ever be firmly seated on the throne, made it advisable for him to make a bid for favour by an exceptionally early submission, and it was no less William's policy graciously to accept the homage of the man who was at least the nominal head of the church in England. Probably neither party was under any misapprehension as to the other's motives; but in being suffered to enjoy his pluralities and appropriated church lands for three years longer Stigand was not unrewarded for his abandonment of the national cause at the critical moment.

The exact time and place at which the remaining English leaders gave in their allegiance are rather uncertain. There is some reason, in the distribution of the lands which Domesday implies to have undergone deliberate ravage about this time, to suppose that, even when William was on the London side of the Thames, he did not march directly on the city, but continued to hold a north-easterly course, not turning southwards until he had spread destruction across mid-Buckinghamshire and south-west Bedfordshire. The next distinct episode in the process of conquest occurred at a place called by the *Worcester Chronicle* "Beorcham," where allegiance was sworn to William on a scale which proved that now at last his deliberate policy had done its intended work, and that the party of his rival had fallen to pieces without daring to contest the verdict given at Hastings in the open field. Edgar the king-elect, and Archbishop Ealdred of York, with the bishops of Worcester and Hereford, and a number of the more important citizens of London "with many others met him [William], gave hostages, made their submission, and swore fealty to him." And William of Poitiers tells us that when the army had just come in sight of London the bishop and other magnates came out, surrendered the city, and begged William to assume the crown, saying that they were accustomed to obey a king, and that they wished to have a king for their lord. One is naturally tempted to combine these two episodes, but this can only be done by abandoning the old identification of "Beorcham" with Great Berkhamstead, thirty miles from London, and by assuming the surrender to have taken place when the army appeared on the edge of the

Hertfordshire Chilterns overlooking the Thames Valley, fifteen miles away, from the high ground of Little Berkhamstead near Hertford.^[172]

Whatever the exact place at which the offer of the crown was made to William, it was straightway submitted by him to the consideration of the chiefs of his army. Two questions were laid before them: whether it was wise for William to allow himself to be crowned with his kingdom still in a state of distraction, and—this last rather a matter of personal feeling than of policy—whether he should not wait until his wife could be crowned along with him. Apart from these considerations, the assumption of the English crown was a step which concerned William's own Normans scarcely less intimately than his future English subjects. The transformation of the duke of the Normans into the king of the English was a process which possessed a vital interest for all those Normans who were to become members of the English state, and William could not well do less than consult them on the eve of such a unique event. As to the ultimate assumption of the crown by William, no two opinions were possible: Hamon, viscount of Thouars, an Aquitanian volunteer of distinction, in voicing the sentiments of the army, began by remarking that this was the one object of the enterprise; but he went on to advocate a speedy coronation on the ground that were William once crowned king resistance to him would be less likely undertaken and more easily put down. With quite unintentional irony he added that the wisest and most noble men of England would surely never have chosen William for their king, unless they had seen in him a suitable ruler and one under whom their own possessions and honours would probably be increased. To guard against any wavering on the part of these “*prudentissimi et optimi viri*,” William immediately sent on a detachment to take possession of London and to build a castle in the city, while he himself, during the few days which had to pass before the Christmas feast for which he had fixed his coronation, devoted himself to sport in the wooded country of south Hertfordshire.^[173]

Of the deliberations within London which led to this unconditional surrender on the part of the national leaders, we know little with any certainty, but it is not improbable that at some stage in his great march William had entered into negotiations with some of the chief men in the etheling's party. Our most strictly contemporary account of these events^[174] makes the final submission the result of a series of messages exchanged between the duke and a certain “Esegar” the Staller, on whom as sheriff of

London and Middlesex fell the burden of providing for the defence of the city. We are given to understand that William sent privately to “Esegar” asking that he should be recognised as king and promising to be guided in all things by the latter’s advice. On receiving the message Esegar decided, rather unwisely, as the event proved, to try and deceive William; so he called an assembly of the eldest citizens and, laying the duke’s proposal before them, suggested that he should pretend to agree with it and thus gain time by making a false submission. We are not told the exact words of the reply which was actually sent, but we are informed that William saw through the plan and contrived to impress the messenger with his own greatness and the certain futility of all resistance to him to such an extent that the messenger on his return, by simply relating his experiences, induced the men of London to abandon the etheling’s cause straightway. The tale reads rather like an improved version of some simpler negotiations, but that is no reason for its complete rejection, and we may not unreasonably believe that, in addition to intimidating the city by his ravages in the open country, William tried to accelerate matters by tampering with some at least of those who were holding his future capital against him.

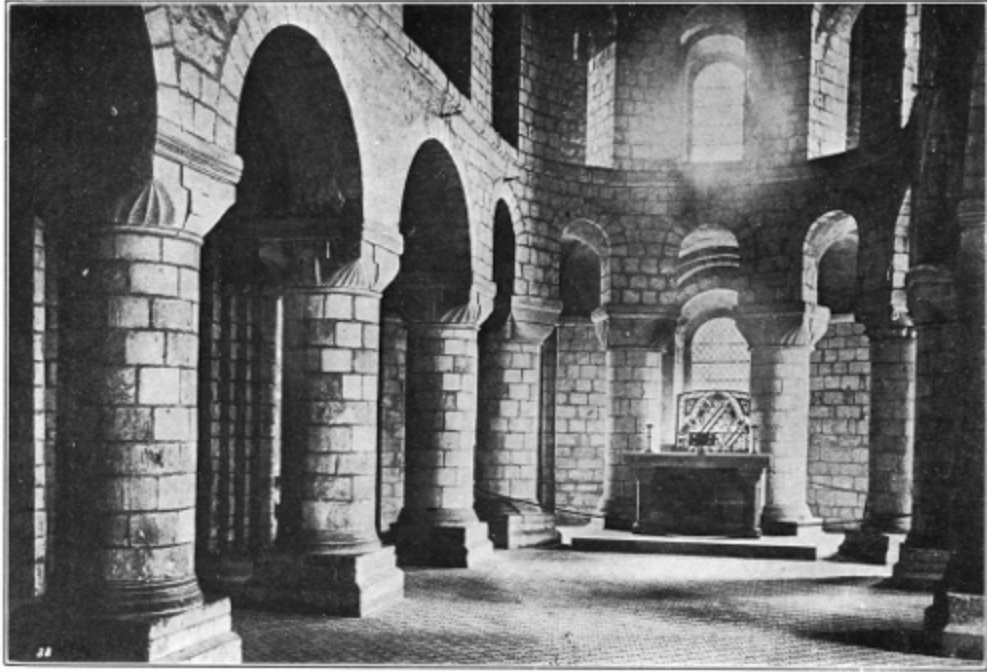
On Christmas day William was crowned King of England in Westminster Abbey by Archbishop Ealdred of York, a clear intimation that Stigand’s opportunist submission would not avail to restore to him all the prerogatives of the primacy. The ceremony was conducted with due regard, as it would seem, to all the observances which had usually attended the hallowing of the Anglo-Saxon kings, only on the present occasion it was necessary to ask the assembled people in French as well as in English whether they would accept William as their king. The archbishop of York put the question in English, Geoffrey, bishop of Coutances, that in French, and the men of both races who were present in the Abbey gave a vociferous assent. Unfortunately the uproar within the church was misunderstood by the guard of Norman horsemen who were stationed outside, and they, imagining that the new subjects of their duke were trying to cut him down before the altar, sought to relieve his immediate danger by setting fire to the wooden buildings around,^[175] and so creating a diversion. In this they were quite successful; amid indescribable confusion the congregation rushed headlong out of the church, some to save their own property, and some to take advantage of so exceptional an opportunity of unimpeded plunder. The duke and the officiating clergy were left almost alone; and in the deserted abbey

William, quivering with excitement,^[176] became by the ritual of unction and coronation the full and lawful successor of Alfred and Athelstan. But before the crown was placed upon his head the Conqueror swore in ancient words, which must have sounded ironical amid the noise and tumult, that he would protect God's churches and their rulers, would govern all the people subjected to him with justice, would decree and keep right law, and would quite forbid all violence and unjust judgments.^[177] And so the seal of the Church was set upon the work which had been in fact begun on that morning, three months before, when William and his army disembarked on the shore of Pevensey.

The disorder which had attended the coronation was actually the result of a misapprehension on the part of William's own followers, but he evidently felt that the possibility of a sudden rising on the part of the rich and independent city was a danger which should not be ignored. Accordingly, to avoid all personal risk, while at the same time keeping in close touch with his capital, William moved from London to Barking, and stayed there while that most famous of all Norman fortresses, the original "Tower of London," was being built. Most probably it was during this stay at Barking that William received the homage of such leading Englishmen as had not been present at the submission on the Hertfordshire downs. In particular Edwin and Morcar would seem to have recognised the inevitable at this time^[178]; the coronation of William as king of all England by the metropolitan of York may have taught them that a division of the kingdom no longer lay within the range of practical politics. At any rate William did not think that it would be well for him to let them out of his sight for a season, and within a few days of the New Year they are found accompanying him as hostages into Normandy.

Our sole knowledge of the general state of the country at this most critical time comes from certain scattered writs which can be proved to have been issued during the few weeks immediately following the coronation. The information which they give is but scanty; they were of course not intended to convey any historical information at all, but they nevertheless help us to answer the important question how much of England had really submitted for the time to William's rule by the end of 1066, and they do this in two ways. On the one hand, they were witnessed by some of the more important men, English as well as Normans, who were present in William's court; on the other hand, we may safely acquit William of the

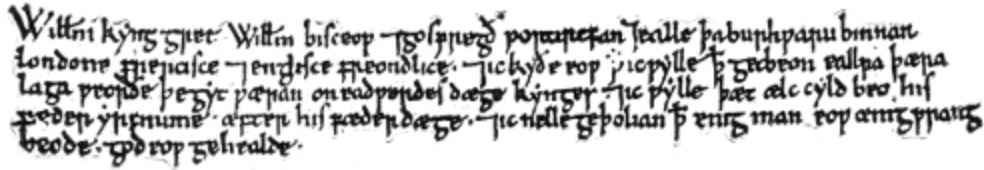
folly of sending his writs into counties in which there was no probability that they would be obeyed. Foremost among the documents comes a writ referring to land on the border of Wiltshire and Gloucestershire, which shows us King William, like King Edward before him, sending his orders to the native authorities of the shire—in the present case the bishops of Ramsbury and Worcester, and two thegns named Eadric and Brihtric, with whom, however, Count Eustace of Boulogne is significantly associated.^[179] From the other side of the country comes a more famous document in which William, “at the request of Abbot Brand,” grants to the said abbot and his monks of Peterborough the free and full possession of a number of lands in Lincolnshire and Nottinghamshire. Leofric, abbot of Peterborough, had been mortally wounded at the battle of Hastings, and on his death the monks had chosen their provost Brand as his successor. He, not discerning the signs of the times, had gone and received confirmation from Edgar the Etheling, of whose inchoate reign this is the only recorded event; and it required the mediation of “many good men” and the payment of ten marks of gold to appease the wrath of William at such an insult to his claim. The present charter is the sign of William’s forgiveness, but for us its special interest lies in the fact that it shows us the king’s word already current by the Trent and Humber, while the appearance among its witnesses of “Marleswegen the sheriff” shows that the man to whom Harold had entrusted the command of the north did not see fit to continue resistance to the new king of England.^[180]



ST. JOHN'S CHAPEL, IN THE TOWER OF LONDON

Much more evidence, if we can trust it, pointing in the same direction, can be derived from a number of writs in English, which were apparently granted at this time in favour of Westminster Abbey.^[181] Nothing could be more natural than that William at this time should show especial favour to the great religious house within whose precincts he had so recently been crowned, and although the language of these documents is very corrupt, and the monks of Westminster Abbey were practised and successful manufacturers of forged charters, there is not sufficient reason for us to condemn the present writs as spurious. And if genuine, and correctly dated, they add to the proof that William's rule was accepted in many shires which had never yet seen a Norman army. The king greets Leofwine, bishop of Lichfield and Earl Edwin and all the thegns of Staffordshire in one writ; Ealdred, archbishop, and Wulfstan, bishop, and Earl William and all the thegns of Gloucestershire and Worcestershire in another; and if his rule was accepted in these three western shires, and also in the eastern counties represented by the Peterborough document, the submission of the midlands and in fact of the whole earldom of Mercia would seem to follow as a matter of course. It is also worth noting that no document relating to Northumbria, the one part of the country which offered a really protracted

resistance to the Norman Conquest, can be referred to this early period in William's reign.



CHARTER OF WILLIAM I. TO THE LONDONERS (IN THE ARCHIVES OF THE CORPORATION)

All this, therefore, should warn us against underrating the immediate political importance of the battle of Hastings. It did much more than merely put William into possession of the lands under the immediate rule of the house of Godwine; the overthrow of the national cause which it implied brought about so general a submission to the Conqueror that, with the possible exception of the Northumbrian risings, all subsequent resistance to him may with sufficient accuracy be described as rebellion. William, it would seem, at the time of his coronation, was the accepted king of all England south of the Humber, and the evidence which suggests this conclusion suggests also that at the outset of his reign he wished to interfere as little as possible with the native system of administration. Even in the counties which had felt his devastating march, English sheriffs continued to be responsible for the government of their wasted shires. Edmund, the sheriff of Hertfordshire, and "Sawold," the sheriff of Oxfordshire, may be found in other writs of the Westminster series on which we have just commented. The Norman Conquest was to be followed by an almost complete change in the personnel of the English administration, but that change was first felt in the higher departments of government; the sheriffs of Oxfordshire and Gloucestershire were not displaced, but Earl William Fitz Osbern, Count Eustace of Boulogne, and Bishop Odo of Bayeux begin to be held responsible for the execution of the king's will in the shires where they had influence.

To the close of 1066 or the beginning of 1067 must also be assigned a charter of exceptional form and some especial constitutional interest in which King William grants Hayling Island, between Portsmouth and

Chichester, to the monastery of Jumièges. In this document William is made to describe himself as lord of Normandy and “basileus” of England by hereditary right, and to say that, “having undertaken the government of England, he has conquered all his enemies.” One of these enemies, namely Earl Waltheof, attests the charter in question, and is flanked in the list of witnesses by Bishop Wulfwig of Dorchester, who died in 1067, and by one Ingelric, a Lotharingian priest who is known to have enjoyed William’s favour in the earliest years of his reign.^[182] But it is the phrase “hereditario jure” which deserves particular attention. Rarely used in formal documents in later years, when the chancery formulas had become stereotyped, the words have, nevertheless, a prospective as well as a reflexive significance. They contain not only an enunciation of the claims in virtue of which King William had “undertaken the government of England,” but also a statement of the title by which that government would be handed down to his descendants. For, whatever may have been the title to the crown in the old English state, from the Norman Conquest onwards it has clearly become “hereditary” in the only sense in which any constitutional meaning can be attached to the word. Not a little of the evidence which has been adduced in favour of an “elective” tenure of the crown in Anglo-Norman and Angevin times is really the creation of an arbitrary construction of the terms employed. “Hereditary right” is not a synonym for primogeniture; the former words imply no more than that in any case of succession the determining factors would be the kinship of the proposed heir to the late ruler and the known intentions of the latter with respect to his inheritance. Disputed successions there were in plenty in the hundred and fifty years which followed the Conquest, but the essence of the dispute in each case was the question which of two claimants could put forward the best title which did not run counter to hereditary principles. The strictest law of inheritance is liable to be affected by extraneous complications when the crown is the stake at issue, and the disqualification which in 1100 attached to Robert of Normandy as an incapable absentee, in 1135 to Matilda the empress as a woman and the wife of an unpopular foreigner, in 1199 to Arthur as an alien and a minor, should not be allowed to mask the fact that in none of these cases did the success of a rival claimant contravene the validity of hereditary ideas. It was inevitable that, where the very rules of inheritance themselves were vague and fluctuating, the application made of them in any given instance should be guided by expediency rather than by a

rigid adherence to the strict forms of law; yet nevertheless we may be sure that William Rufus and Henry I., like William the Conqueror, would claim to hold the throne of England not otherwise than “hereditario jure.”

At Barking the submission of the leading Englishmen went on apace. Besides Edwin and Morcar, Copsige, a Northumbrian thegn, and three other Englishmen called Thurkill, Siward, and Ealdred, were considered by Norman writers men of sufficient importance to deserve mention by name, and in addition to these shadowy figures we are told that many other “nobles” also came in at this time.^[183] No apparent notice was taken by William of the tardiness of their submissions; all were received to favour, and among them must very probably be included the victim of the one great tragedy which stands out above all the disaster of the Conquest, Waltheof, the son of Siward. Waltheof was confirmed in his midland earldom of Northampton, and received a special mark of grace in being allowed to marry the Conqueror’s niece Judith, daughter of Enguerrand, the count of Ponthieu who had perished in the ambushade at St. Aubin in 1054, by Adeliz, the daughter of Robert of Normandy and Arlette. Nor was this an isolated measure of conciliation, for one of William’s own daughters was promised to Earl Edwin, and in general it would seem that at this time any Englishman might look for favour if he liked to do homage and propitiate the new king with a money gift. The latter was essential, and from an incidental notice in the *Anglo-Saxon Chronicle*, and a chance expression in the Domesday of Essex, it has been inferred that a formal “redemption” of their lands on the part of the English took place at this time.^[184] The direct evidence for so far-reaching an event is certainly slight, but it would fall in well with the general theory of the Conquest if all Englishmen by the mere fact of their nationality were held to have forfeited their lands. William, it must always be remembered, claimed the throne of England by hereditary right. He had been defrauded of his inheritance by the usurpation of Harold, in whose reign, falsely so called according to the Norman theory, all Englishmen had acquiesced, and might therefore justly incur that confiscation which was the penalty, familiar alike to both races, for treason. Stern and even grotesque as this theory may seem to us, it was something more than a legal fiction, and we should be driven to assume for ourselves some idea of the kind even if we did not possess these casual expressions of the *Anglo-Saxon Chronicle* and the Domesday scribe. On the one hand, all Englishmen had rejected William’s claim, and so many as could be hurried

down to Hastings in time had resisted him in the open field; on the other hand, the number of Englishmen who were still holding land of the king twenty years after the Conquest was infinitesimal in comparison with the number who had suffered displacement. It would be natural to connect these two facts, but nothing is more probable in itself than that, before repeated rebellions on the part of the English had sharpened the edge of the Norman theory, the conquered race was given an opportunity of compounding for its original sin by making a deprecatory payment to the new lord of the land.

Nevertheless, it is to this period that we must undoubtedly assign the initial stages of the process which, before twenty years were over, was to substitute an alien baronage for the native thegnhood of England. It was clearly necessary that William should give some earnest at least of the spoils of war to his leading followers, and the amount of land already at his disposal must have been very considerable. The entire possessions of the house of Godwine were in his hands, and the one form of statecraft which that family had pursued with consistency and success had been the acquisition of landed property, nor do the dubious methods by which much of that property had been originally acquired seem to have invalidated King William's tenure of it. The battle of Hastings, moreover, had been very fatal to the land-owning class of the southern shires, and no exception could be taken to William's right to dispose of the lands of men who had actually fallen whilst in arms against him. Even in this simple way, the king had become possessed of no small territory out of which he could reward his followers, and the complicated nature of the Anglo-Saxon land-law assisted him still further in this respect. If, for instance, a thegn of Surrey had "commended" himself and his land to Harold as earl of Wessex, King William would naturally inherit all the rights and profits which were involved in the act of commendation: he could make a grant of them to a Norman baron, and thus, without direct injury being done to any man, the Norman would become possessed of an interest in the land in question, which, under the influence of the feudal ideas which accompanied the Conquest, would rapidly harden into direct ownership. In fact, there exists a considerable quantity of evidence which would suggest that a portion at least of the old English land-owning class was not displaced so much as submerged; that the Norman nobility was superimposed upon it as it were, and that the processes of thought which underlay feudal law invested the newcomers with rights and duties which made them in the eyes of the state

the only recognised owners of the lands they held. We possess no detailed account of the great “confiscation” earlier than the Domesday Survey of twenty years after the battle of Hastings, and apart from the changes which must have occurred in the course of nature in that time, the great survey is not the sort of authority to which we should look for an accurate register of the fluctuating and inconsistent principles of a law of ownership which was derived from, and had to be applied to, conditions which were unique in Western Europe. But *a priori* it is not probable that all the thousands of cases in which an English land-owner has disappeared, and is represented by a Norman successor, should be explained by exactly the same principle in every instance. In one case the vanished thegn may have set out with Harold to the place of battle, and his holding have been given outright by the new king to some clamorous follower; in another, a dependent of the English earl of Mercia may have become peaceably enough a dependent of the Norman earl of Shrewsbury, and have sunk into the undifferentiated peasant class before the time arrived for Domesday to take cognisance of him; a third Englishman may have made his way to the court at Barking and bought his land of the Conqueror for his own life only, leaving his sons to seek their fortunes in Scotland or at Constantinople. The practical completeness of the actual transfer from the one race to the other should not lead us to exaggerate the simplicity of the measures by which it was brought about.^[185]

One word should perhaps be said here about the character of the Anglo-Saxon thegnhood, on which the Conqueror’s hand fell so heavily. It was far from being a homogeneous class. At one end of the scale were great men like Esgar the Staller or Tochi the son of Outi, whose wide estates formed the bulk of the important Domesday fiefs of Geoffrey de Mandeville and Geoffrey Alselin. But, on the other hand, a very large proportion of the total number of men styled “thegns” can have been scarcely superior to the great mass of the peasantry whom the Norman lawyers styled collectively “villeins.” When we find in a Nottinghamshire village five thegns, each in his “hall,” owning between them land worth only ten shillings a year,^[186] we see that we must beware of the romantic associations aroused by the word “thegn.” These men can have been distinguished from the peasantry around them by little except a higher personal status expressed in a proportionately higher *wergild*, and their depression into the peasant class would be rendered fatally easy by the fact that the law of status was the first part of

the Anglo-Saxon social system to become antiquated. When the old rules about *wer* and *wite* had been replaced by the new criminal jurisprudence elaborated by the Norman conquerors, the one claim of these *thegns* to superior social consideration vanished. And lastly, it should be noted that where the Domesday Survey does reveal members of the *thegnly* class continuing to hold land directly of the king in 1086, it shows us at the same time that the class is very far from being regarded as on an equality with the Norman baronage. The king's *thegns* are placed after the tenants in chief by military service, even after the king's servants or "sergeants" of Norman birth; they are only entered as it were on sufferance, under a heading to themselves, at the very end of the descriptions of the several shires in which they are to be found.^[187] They belonged in fact to an order of society older than the Norman military feudalism which supplanted them, and by the date of the Domesday Survey they were rapidly becoming extinct as a class in the shires south of the Humber, but no financial record like Domesday Book could be expected to tell us what became of them. Mere violent dispossession would no doubt be a great part of the story if told, but much of the change would have to be set down to the silent processes of economic and social reorganisation.

There remains one other legal document, more famous than any of these which we have considered, which was most probably granted at or about this time. The city of London had to be rewarded for its genuine, if belated, submission, and the form of reward which would be likely to prove most acceptable to the citizens would be a written security that their ancient customs and existing property should be respected by the new sovereign. And so "William the king greets William the bishop and Geoffrey the port-reeve and all the burghers, French and English, within London," and tells them that they are to enjoy all the customs which they possessed in King Edward's time, that each man's property shall descend to his children, and that the king himself will not suffer any man to do them wrong.^[188] Yet, satisfactory as this document may have been as a pledge of reconciliation between the king and his capital, it nevertheless bears witness in its formula of address to a significant change. Geoffrey the port-reeve is a Norman; he is very probably the same man as Geoffrey de Mandeville, the grandfather of the turbulent earl of Essex of Stephen's day,^[189] and his appearance thus early in the place of Esgar the Staffer suggests that the latter had gained little by his duplicity in the recent negotiations. It was of the first

importance for William to be able to feel that London at least was in safe hands; he could not well entrust his capital and its new fortress to a man who had so recently held the city against him.

William's rule in England was by this time so far accepted that he could afford to recross the Channel and show himself to his old subjects invested with his new dignities. The regency of Matilda and her advisers had, as far as we know, passed in perfect order, but it was only fitting that William should take the earliest opportunity of proving to the men of the duchy the perfect success of the enterprise, the burden of which they had borne with such notable alacrity. It was partly no doubt as an ostensible mark of confidence in English loyalty that, before crossing the Channel, William dismissed so many of his mercenary troops as wished to return home^[190]; but their dismissal coincides in point of time with a general foundation of castles at important strategic points all over the south of England. The Norman castle was even more repugnant than the Norman man-at-arms to the Anglo-Saxon mind, and when the native chronicler gives us his estimate of William's character and reign he breaks out into a poetic declamation as he describes the castles which the king ordered to be built and the oppression thereby caused to poor men.^[191] But deeper than any memory of individual wrong must have rankled the thought that it was these new castles which had really rendered hopeless for ever the national cause of England; that local discontent might seethe and murmur in every shire without causing the smallest alarm to the alien lords ensconced in their stockaded mounds. The Shropshire-born Orderic, writing in his Norman monastery, gives us the true military reason for the final overthrow of his native country when he tells us that the English possessed very few of those fortifications which the Normans called castles, and that for this reason, however brave and warlike they might be, they could not keep up a determined resistance to their enemies. William himself had learned in Normandy how slow and difficult a task it was to reduce a district guarded by even the elementary fortifications of the eleventh century; he might be confident that the task would be impossible for scattered bodies of rustic Englishmen, in revolt and without trained leadership.

But for the present there seems to have been no thought of revolt; the castles were built with a view to future emergencies. No very elaborate arrangements were made for the government of England in William's absence. It was entrusted jointly to William Fitz Osbern, the duke's oldest

friend, and Odo of Bayeux, his half-brother, who were to be assisted by such distinguished leaders of the army of invasion as Hugh de Grentmaisnil, Hugh de Montfort, and William de Warenne. The bishop of Bayeux was made primarily responsible for the custody of Kent, with its all-important ports, and the formidable castle of Dover. Hugh de Grentmaisnil appears in command of Hampshire with his headquarters at Winchester; his brother-in-law, Humphrey de Tilleul, had received the charge of Hastings castle when it was built and continued to hold it still; William Fitz Osbern, who had previously been created earl of Hereford, seems to have been entrusted with the government of all England between the Thames and the earldom of Bernicia, with a possible priority over his colleagues.^[192] On his part, William took care to remove from the country as many as possible of the men round whom a national opposition might gather itself. Edgar the Etheling, earls Edwin, Morcar, and Waltheof, with Archbishop Stigand, and a prominent Kentish thegn called Ethelnoth, were requested to accompany their new king on his progress through his continental dominions.^[193] We cannot but suspect that William must have felt the humour as well as the policy of attaching to his train three men each of whom had hoped to be king of the English himself; but it would have been impossible for the native leaders to refuse to grace the protracted triumphs of their conqueror, and early in the year the company set sail, with dramatic fitness, from Pevensey.

In the accounts which we possess of this visit, it appears as little more than a series of ecclesiastical pageants. William was wisely prodigal of the spoils of England to the churches of his duchy. The abbey church of Jumièges, whose building had been the work of Robert, the Confessor's favourite, was visited and dedicated on the 1st of July, but before this the king had kept a magnificent Easter feast at Fécamp^[194] where, thirty-two years before, Duke Robert of Normandy had prevailed upon the Norman baronage to acknowledge his seven-year-old illegitimate son as his destined successor. The festival at Fécamp was attended by a number of nobles from beyond the Norman border, who seem to have regarded Edwin and Morcar and their fellows as interesting barbarians, whose long hair gave unwonted picturesqueness to a formal ceremony. At St.-Pierre-sur-Dive, where William had spent four weary weeks in the previous autumn, waiting for a south wind, another great assembly was held on the 1st of May, to witness the consecration of the new church of Notre Dame. Two months later came

the hallowing of Jumièges; and the death of Archbishop Maurilius of Rouen, early in August, seems to have given occasion for another of these great councils to meet and confirm the canonical election of his successor. The monks of Rouen cathedral had chosen no less a person than Lanfranc of Caen as their head, but he, possibly not without a previous consultation with his friend and lord King William, declined the office, and when on a second election John, bishop of Avranches, was chosen, Lanfranc went to Rome and obtained the pallium for him.^[195] Whether Lanfranc's journey possessed any significance in view of impending changes in the English Church, is unfortunately uncertain for lack of evidence; but his refusal of the metropolitan see of Normandy suggests that already he was privately reserved for greater things. In any case, he is the man to whom we should naturally expect William to entrust such messages as he might think prudent to send to the Pope concerning his recent achievements and future policy in England.

From his triumphal progress in Normandy, William was recalled by bad news from beyond the Channel. Neither of his lieutenants seems to have possessed a trace of the more statesmanlike qualities of his chief. William Fitz Osbern, good soldier and faithful friend to William as we may acknowledge him to have been, did not in the least degree understand the difficult task of reconciling a conquered people to a change of masters, and Bishop Odo has left a sinister memory on English soil. William's departure for Normandy was signalled by a general outbreak of the characteristic vices of an army of occupation, in regard to which the regents themselves, according to the Norman account, were not a little to blame. Under the stimulus of direct oppression, and in the temporary absence of the dreaded Conqueror, the passive discontent of the English broke out into open revolt in three widely separated parts of the kingdom.

Of the three risings, that in the north was perhaps the least immediately formidable, but the most suggestive of future difficulties for the Norman rulers. Copsige, the Northumbrian thegn who had submitted at Barking, had been invested with the government of his native province, but the men of that district continued to acknowledge an English ruler in Oswulf, the son of Eadwulf, who had been subordinate earl of Bernicia under Morcar. Copsige in the first instance was able to dispossess his rival, but the latter bided his time, collected around him a gang of outlaws, and surprised Copsige as he was feasting one day at Newburn-on-Tyne. The earl escaped

for a moment, and took sanctuary in the village church; but his refuge was betrayed, the church was immediately set on fire, and he himself was cut down as he tried to break away from the burning building.^[196] The whole affair was not so much a deliberate revolt against the Norman rule as the settlement of a private feud after the customary Northumbrian fashion, and it may quite possibly have taken place before William had sailed for Normandy. Oswulf was able to maintain himself through the following summer, but then met his end in an obscure struggle with a highway robber, and the province was left without an earl until the end of the year, when Gospatric, the son of Maldred, a noble who possessed an hereditary claim to the title, came to court and bought the earldom outright from William.^[197] In the meantime, however, the Northumbrians were well content with a spell of uncontested anarchy, and they made no attempt to assist the insurgents elsewhere in the country.

The leader of the western rising was a certain Edric, nicknamed the “Wild,” whom the Normans believed to be the nephew of Edric Streona, the famous traitor of Ethelred’s time. This man had submitted to the Conqueror, but apparently refused to accompany him into Normandy, and the Norman garrison of Hereford castle began to ravage his lands. In this way he was driven into open revolt, and he thereupon invited Bleddyn and Rhiwallon, the kings of Gwynedd and Powys, to join him in a plundering expedition over Herefordshire, which devastated that country as far as the river Lugg, but cannot have done much to weaken the Norman military possession of the shire.^[198] Having secured much booty, Edric withdrew into the hills with his Welsh allies, and next appears in history two years later, when he returned to play a part in the general tumult which disquieted England in 1069.

The most formidable of the three revolts which marked the period of William’s absence had for its object the recovery of Dover castle from its Norman garrison.^[199] It is the one rising of the three which has an intelligible military motive, and it contains certain features which suggest that it was planned by some one possessed of greater political ability than can be credited to the ordinary English thegn. Count Eustace of Boulogne, the man of highest rank among the French auxiliaries of the Conqueror, had already received an extensive grant of land in England as the reward for his services in the campaign of Hastings, but he had somehow fallen into disfavour with the king and had left the country. The rebel leaders knowing

this, and judging the count to be a competent leader, chose for once to forget racial differences in a possible chance of emancipation, and invited him to cross the Channel and take possession of Dover castle. Eustace, like Stephen of Blois, a more famous count of Boulogne, found it an advantage to control the shortest passage from France to England; he embarked a large force of knights on board a number of vessels which were at his command, and made a night crossing in the hope of finding the garrison within the castle off their guard. At the moment of his landing Odo of Bayeux and Hugh de Montfort happened to have drawn off the main body of their troops across the Thames; a fact which suggests that the rebels had observed unusual secrecy in planning their movements. The count was therefore able to occupy the town, and to lay siege to the castle without hindrance, but failed to take the garrison by surprise, as he had hoped, and met a spirited resistance. The assault lasted for some hours, but the garrison more than held their own, and at last Eustace gave his troops the signal to retire to their ships, although it was known that a delay of two days would have brought large reinforcements to the side of the insurgents. It must also have been known that the same time would have brought Odo of Bayeux with his trained troops within dangerous proximity to Dover; and the impossibility in the eleventh century of successfully conducting a siege against time is some excuse for Eustace's rather ignominious withdrawal. The first sign of retreat, however, was turned to the advantage of the garrison, who immediately made a sally and threw the besiegers into a state of confusion which was heightened by a false rumour that the bishop of Bayeux was at hand. A large part of the Boulogne force was destroyed in a desperate attempt to reach the ships, a number of men apparently trying to climb down the face of the cliffs on which Dover castle stands. Count Eustace himself, who knew the neighbourhood, became separated from his men and escaped on horseback to an unrecorded port, where he was fortunate enough to find a ship ready to put out to sea. The English, thus deprived of their leader, dispersed themselves over the country, and so avoided the immediate consequences of their rout, since the Norman force in Dover was not strong enough to hunt down the broken rebels along all their scattered lines of retreat. ^[200]

With his kingdom outwardly restored to order, but simmering with suppressed revolt, William set sail from Dieppe on the 6th of December, and landed at Winchelsea on the following day. Queen Matilda was still left

in charge of Normandy, but her eldest son, Robert, was now associated with her in the government, and Roger de Beaumont, who had been the leading member of her council during her regency in 1066, on this occasion accompanied his lord to England.^[201] The king kept his Christmas feast at Westminster; a ceremony in which the men of both races joined on an equal footing, and for the moment there may have seemed a possibility that the recent disorders had really been the last expiring efforts of English nationalism. Yet the prospect for the new year was in reality very threatening. The political situation in England at this time is well described by Ordericus Vitalis, who tells us that every district of which William had taken military possession lay at his command, but that in the extreme north and west men were only prepared to render such obedience as pleased themselves, wishing to be as independent of King William as they had formerly been independent of King Edward and his predecessors.^[202] This attitude, which supplies a partial explanation of the overthrow of England in 1066, and a partial justification of the harrying of Northumbria in 1069, supplies also a clue to the purpose underlying William's ceaseless activity during the next two years. At Exeter, Stafford, and York, William was, in effect, teaching his new subjects that he would be content with nothing less than the unqualified submission of the whole land; that England was no longer to be a collection of semi-independent earldoms, but a coherent state, under the direct rule of a king identified with Wessex no more than with Northumbria or East Anglia. The union of England, thus brought at last into being, was no doubt achieved almost unconsciously under the dictation of the practical expediency of the moment, but this does not detract from the greatness of the work itself, nor from the strength and wisdom of the Conqueror whose memorial it is.

Meanwhile, danger from a distant quarter was threatening the Norman possession of England. Events which were matters of very recent history had proved that English politics were still an object of interest to the rulers of Norway and Denmark; and the present was an opportunity which could not fail to attract any Scandinavian prince who would emulate the glory of the great kings of the last generation. The death of Harold Hardrada, which had thrown the Norwegian claims on England into abeyance for a time, had left Swegn Estrithson, king of Denmark, unquestionably the most considerable personage in the Scandinavian world; and to him accordingly the English leaders, or such at least of them as were at liberty, had appealed

for help during the preceding months.^[203] As a Dane himself and the nephew of Cnut, Swegn Estrithson could command the particular sympathy of the men of Northumbria and would not be unacceptable to the men of the southern Danelaw; no native claimant possessed similar advantages in respect to anything like so large a part of England. Swegn indeed, whose prevailing quality was a caution which contrasts strangely with the character of his Danish ancestors and of his great Norwegian rival, had delayed taking action up to the present, but it was the fear that a northern fleet might suddenly appear in the Humber which had really been the immediate cause of William's return from Normandy.

At this moment, with the imminent probability of invasion hanging over the north and east of his kingdom, William was called away from his headquarters at London by the necessity of suppressing a dangerous rising in the extreme west. It is probable that William's rule had not yet been commonly recognised beyond the eastern border of Devonshire, although on the evidence of writs we know that Somerset was already showing him ostensible obedience. But the main interest of the following episode lies in the strangely independent attitude adopted by the city of Exeter. In the eleventh century the capital of Devon could undoubtedly claim to rank with York, Norwich, and Winchester among the half-dozen most powerful cities in England. With its strong fortifications which made it in a sense the key of the Damnonian peninsula, commanding also important trade routes between England, Ireland, and Brittany, Exeter in English hands would be a standing menace to the Norman rule scarcely less formidable than an independent York. The temper of the citizens was violently anti-Norman, and they proceeded to take energetic measures towards making good their defence, going so far as to impress into their service such foreign merchants within the city as were able to bear arms. We are also told that they tried to induce other cities to join them in resisting the foreign king, and it is not impossible that they may have drawn reinforcements from the opposite shore of Brittany. It was of the first importance for William to crush a revolt of this magnitude before it had time to spread, but before taking action, and probably in order to test the truth of the reports which had come to him as to what was going on in Devonshire, he sent to demand that the chief men of Exeter should take the oath of allegiance to him. They in reply proposed a curious compromise, saying that they were willing to pay the customary dues of their city to the king, but that they would not swear allegiance to

him nor admit him within their walls. This was almost equivalent to defiance and elicited from William the remark that it was not his custom to have subjects on such terms. Negotiations in fact ceased; Devonshire became a hostile country, and William marched from London, making the experiment, doubly bold at such a crisis, of calling out the native fyrd to assist in the reduction of their countrymen.

The men of Exeter, on hearing the news of William's approach, began to fear that they had gone too far; and, as the king drew near, the chief men of the city came out to meet him, bringing hostages and making a complete capitulation. William halted four miles from the city, but the envoys on their return found that their fellow-citizens, unwilling apparently to trust to the king's mercy, were making preparations for a continued resistance, and they threw in their lot with their townsmen. William was filled with fury on hearing the news. His position was indeed sufficiently difficult. It was the depth of winter; part of his army was composed of Englishmen whose loyalty might not survive an unexpected check to his arms, and Swegn of Denmark might land in the east at any moment. Before investing the city William tried a piece of intimidation, and when the army had moved up to the walls, one of the hostages was deliberately blinded in front of the gate. But it would seem that the determination of the citizens was only strengthened by the ghastly sight, and for eighteen days William was detained before the gates of Exeter, despite his constant endeavours either to carry the walls by assault or to undermine them.

At last, after many of his men had fallen in the attack, it would seem that the Conqueror for once in his life was driven to offer terms to the defenders of a revolted city. The details of the closing scene of the siege are not very clear; but it is probable that the more important citizens were now, as earlier in the struggle, in favour of submission, and that they persuaded their fellows to take advantage of King William's offer of peace. They had indeed a particular reason for trying to secure the royal favour, for the chief burden of taxation in any town fell naturally upon its wealthier inhabitants, and on the present occasion William seems to have given a promise that the customary payments due to the king from the town should not be increased. The poorer folk of Exeter secured a free pardon and a pledge of security for life and property, but the conduct of their leaders undoubtedly implies a certain lack of disinterested zeal for the national cause; and the native chronicler significantly remarks that the citizens gave up the town "because

the thegns had betrayed them.” The other side of the picture is shown by Ordericus Vitalis, who describes how “a procession of the most beautiful maidens, the elders of the city, and the clergy carrying their sacred books and holy vessels” went out to meet the king, and made submission to him. It has been conjectured with great probability that the real object of the procession was to obtain from the king an oath to observe the terms of the capitulation sworn on the said “sacred books and holy vessels,” and in any case the witness of Domesday Book shows that Exeter suffered no fiscal penalty for its daring resistance. To keep the men of Exeter in hand for the future a castle was built and entrusted to Baldwin de Meules, the son of Count Gilbert of Brionne, but this was no mark of particular disfavour, for it was universally a matter of policy for William to guard against civic revolts by the foundation of precautionary fortresses.^[204]

One immediate consequence of the fall of Exeter was the flight and final exile of one of the two greatest ladies in England at this time. Gytha, the niece of Cnut, and the widow of Earl Godwine, through whom Harold had inherited a strain of royal blood, had taken refuge in Exeter, and now, before William had entered the city, made her escape by water with a number of other women, who probably feared the outrages which were likely to occur upon the entry of the northern army. They must have rounded the Land’s End, and sailed up the Bristol Channel, for they next appear as taking up their quarters on a dismal island known as the Flat Holme, off the coast of Glamorgan. Here they stayed for a long while, but at last in despair the fugitives left their cheerless refuge and sailed without molestation to Flanders, where they landed, and were hospitably entertained at St. Omer. Nothing more is recorded of the countess; but her daughter Gunhild entered the monastic life and died in peace in Flanders in 1087, some two months before the great enemy of her house expired at Rouen.

It is likely enough that Gytha chose the Flat Holme as her place of refuge with the hope of joining in a movement which at this time was gathering head among the English exiles in Ireland. It is at least certain that, before the summer was over, three of Harold’s illegitimate sons, who had spent the previous year with the king of Dublin, suddenly entered the Devon seas with fifty-four ships. They harassed the south coast of the Bristol Channel, and even made bold to enter the Avon and attack Bristol itself, but were driven off without much difficulty by the citizens of the wealthy port, and sailing back disembarked at some unknown point on the coast of Somerset.

Here they were caught and soundly beaten by the Somersetshire natives under the leadership of Ednoth, an Englishman who had been master of the horse to Edward the Confessor, but who was clearly ready to do loyal service to the new king. Ednoth was killed in the battle, but the raiders were compelled to take to their ships, and after a brief spell of desultory ravage along the coast they sailed back to Ireland, having done nothing to weaken the Norman grip upon the south-west of England, but gaining sufficient plunder to induce them to repeat their expedition in the course of the following year.^[205]

It was well for William that even at the cost of some loss of prestige he had gained possession of Exeter in the first months of 1068, for the remainder of the year saw a general outburst of revolt against the Norman rule. Before returning to the east of England, William made an armed demonstration in Cornwall; and it was very possibly at this time that he established his half-brother, Count Robert of Mortain, in a territorial position in that Celtic land which shows that the Conqueror was quite willing upon occasions to create compact fiefs according to the continental model. Count Robert was never invested with any formal earldom of Cornwall, but in the western peninsula he occupied a position of greater territorial strength, if of lower official rank, than that held by his brother, Bishop Odo, in his distant shire of Kent. The revolt of Exeter had no doubt taught William that it would be advisable to take any future rising in Devonshire in the rear by turning Cornwall into a single Norman estate, and his own presence with an army in the west at this time would go far to simplify the preliminary work of confiscation.

His Cornish progress over, King William marched eastwards, disbanded the fyrd, and kept his Easter feast (March 23d) at Winchester. For a few weeks the land was at peace, and during this breathing space the Duchess Matilda came across into England, and was crowned at Westminster on Whitsunday (May 11th), by Ealdred, archbishop of York. The event was a clear expression of William's desire to reign as an English king, for Matilda stayed in England, and her fourth son, Henry, who was born early in the next year, possessed in English eyes the precedence, which by Anglo-Saxon custom belonged to the son of a crowned king and his lady, born in the land. Robert, the destined heir of Normandy, seems to have remained in charge of the duchy, and Richard, the Conqueror's second son, probably accompanied his mother across the Channel. By a fortunate chance, we happen to know

with exactitude the names of those who were present at the Whitsuntide festival,^[206] and the list is significant. Among the members of the clerical estate the Norman hierarchy supplied the bishops of Bayeux, Lisieux, and Coutances, but the arch-bishops of Canterbury and York and the bishops of Exeter, Ramsbury, Wells, and London were all of English appointment, although the last four of them were of foreign birth, and the eight abbots who were present were also men of King Edward's day. The laymen who attended the ceremony formed a more heterogeneous group; Edwin, Morcar, and Waltheof seem strangely out of place side by side with the counts of Mortain and Eu; with William Fitz Osbern, Roger de Montgomery and Richard, the son of Count Gilbert of Brionne. The company which came together in Westminster Abbey on that Whitsunday supplies a striking picture of the old order which was changing but had not yet given place to the new, and it is a notable thing that the ancestress of all Plantagenet, Tudor, and Stuart kings should have been crowned in the sight of men who had held the highest place in the realm in the last days of independent England.

This solemn inauguration of the new dynasty can have been passed but a few weeks before William had to resume the dreary task of suppressing his irreconcilable subjects. After a year and a half of acquiescence in the Norman rule, Earls Edwin and Morcar suddenly made a spasmodic attempt to raise the country against the foreigners. Their position at William's court must have been ignominious at the best, and although, as we have seen, the king had promised one of his daughters in marriage to Edwin, he had withheld her up to the present in deference to the jealousy which his Normans felt for the favoured Englishman. Under the smart of their personal grievances, Edwin and his brother broke away from the court, and headed a revolt which, although general in character, seems to have received most support in Morcar's earldom of Northumbria. The rising is also marked by a revival of the alliance between the house of Leofric and the Welsh princes which had been an occasional cause of disquiet during the Confessor's reign; for Bleddyn, the king of North Wales, came to the assistance of Edwin and Morcar,^[207] as in the previous year he had joined the Herefordshire raid of Edric the Wild. The rising was the occasion for a general secession of the leading Englishmen from William's court, for Edgar the Etheling and his mother and sisters, together with Marleswegen and many prominent Northumbrians, headed by Gospatric, their newly

appointed earl, probably fearing that they might be held implicated in the guilt of Edwin and Morcar, made a speedy departure for the north country.
[208]

The focus of disturbance was evidently the city of York. It is not probable that William had hitherto made any systematic attempt to establish Norman rule beyond the Humber, but we get a glimpse of the venerable Archbishop Aldred making strenuous efforts to restrain the violence of the men of his city. His protestations were useless, and while the Northumbrians were enthusiastically preparing for war after the manner of their ancestors, William was taking steps which brought the revolt to an end within a few weeks without the striking of a single blow.

It is in connection with these events that Orderic makes the observations which have already been quoted about the part played by the Norman castle in thwarting the bravest efforts of insurgent Englishmen. Some of the greatest fortresses of medieval England derive their origin from the defensive posts founded by William during the war of 1068. "In consequence of these commotions," said Orderic, "the King carefully surveyed the most inaccessible points in the country, and, selecting suitable places, fortified them against the raids of the enemy."^[209] But besides these "inaccessible points" we have seen that William made it a matter of regular policy to plant a castle in all the greater boroughs and along all the more important lines of road in the country, and, the present campaign affords an excellent example of his practice in this matter. The first fortress recorded as having been built at this time was the humble earthwork which developed in the next two centuries into the magnificent castle of Warwick. Henry de Beaumont, son of the Roger de Beaumont who had been Queen Matilda's adviser in 1066, was placed in command of it, and the Conqueror marched northward; but, possibly before he had left the Avon valley, Edwin and Morcar, now as ever unable to follow a consistent course of action, suddenly abandoned their own cause and made an ignominious submission. The surrender of the rebel leaders did not affect the king's movements; he continued his advance, probably harrying the plain of Leicester as he passed across it, and at Nottingham, on a precipitous cliff overhanging the town, he placed another castle, commanding the Trent valley at the point where the river is crossed by one of the great roads from London to the north of England. The march was resumed without delay, and at some point on the road north of Nottingham the army was met by the citizens of York,

bringing the keys of their city, and offering to give hostages for their future good behaviour. The defection of Edwin and Morcar had deprived the rising of its nominal leaders, and the military occupation of Nottingham had threatened to isolate the revolted area; but it is also probable that William's rapid movements had surprised the defenders of the northern capital before their preparations were completed. At York itself a certain Archil, who was regarded by the Normans as the most powerful man in Northumbria, came in to William and gave his son as a hostage, and on the line of the city walls, at the junction of the rivers Ouse and Foss, there arose the third castle of this campaign, now represented only by the mound on which rests the famous medieval keep known as "Clifford's Tower." The fortress was garrisoned with picked men, but its castellan, Robert Fitz Richard, is only known to us through the circumstances of his death in the next year.

Other matters than the fortifications of York demanded King William's attention at this time. Danger was threatening from the side of Scotland, for the rebels had sought the help of King Malcolm Canmore, and a great army was gathering beyond the Tweed. The northern frontier of England was as yet unprotected by the castles of Berwick and Carlisle, and on the west the possessions of the king of Scots extended as far south as Morecambe Bay. Also the best English authority asserts that Edgar the Etheling and his friends had already taken refuge with King Malcolm on their flight from William's court, and the marriage of the etheling's sister to the Scottish king was very shortly to make the northern kingdom a *point d'appui* for all unquiet nationalists in England. There was clearly good reason for William to define his position with regard to the king of Scots, and this the more as it would give him an opportunity of claiming fealty as well as submission at a moment when he was all-powerful in the north. An ambassador was found in the person of Bishop Ethelwine of Durham, who had revolted with the rest of Northumbria, but had made his peace with the Conqueror, and conducted the present business to a successful issue. King Malcolm sent representatives to York in company with the bishop of Durham, and according to the Norman account they swore fealty to William in the name of their master. It was no part of the Conqueror's plan to engage in an unnecessary war in Scotland, and, all the purposes of his northern journey being for the present accomplished, he turned south again by way of Lincoln, Huntingdon, and Cambridge, at each of which places the inevitable castle was raised and garrisoned.^[210]



Denier of Baldwin of Lille

CHAPTER VII

THE DANISH INVASION AND ITS SEQUEL

The year 1068 had closed under a specious appearance of peace, and the only result of the revolts of Exeter and York had been a proof of the futility of isolated resistance to a king who could strike with equal decision at the west or north. The following year opened with two north-country risings which formed an unconcerted prelude to fifteen months of incessant strife, in which the strength of the Norman hold on England was finally tested and proved. The flight of Gospatric in the previous summer had vacated the Bernician earldom, and at the beginning of 1069 the Conqueror tried the experiment of appointing a Norman baron to the command of the border province. His choice fell on one Robert de Comines, who immediately set out for the north at the head of a force of five hundred knights. The news of his appointment preceded him, and the men of Northumbria, who had enjoyed virtual independence for two years, were not minded to submit quietly to the rule of a foreign earl. A league was accordingly formed, the members of which bound themselves either to kill the stranger or to perish in the attempt. Bishop Ethelwine of Durham had evidently heard rumours of the plot, for as the earl approached Durham he was met by the bishop, who warned him of the impending danger. Robert took no heed, and his troops behaved badly as they entered Durham, killing certain of the bishop's humbler tenants, but meeting no armed opposition. The earl was entertained in a house belonging to the bishop, and his men were quartered all over the town, in open defiance of the bishop's warning. But during the night a large body of Northumbrians moved up to the city, and as dawn broke they burst through the gates and began a deliberate massacre of the Frenchmen. The surprise was complete, but the earl and his immediate companions were aroused in time to enable them to make a fight for their lives. They could expect no quarter, and their defence was so desperate that the rebels were unable to break into the house, and at last set it on fire, the

earl and his men perishing in the flames. Of the five hundred Normans in Durham, only one survivor made his escape.^[211]

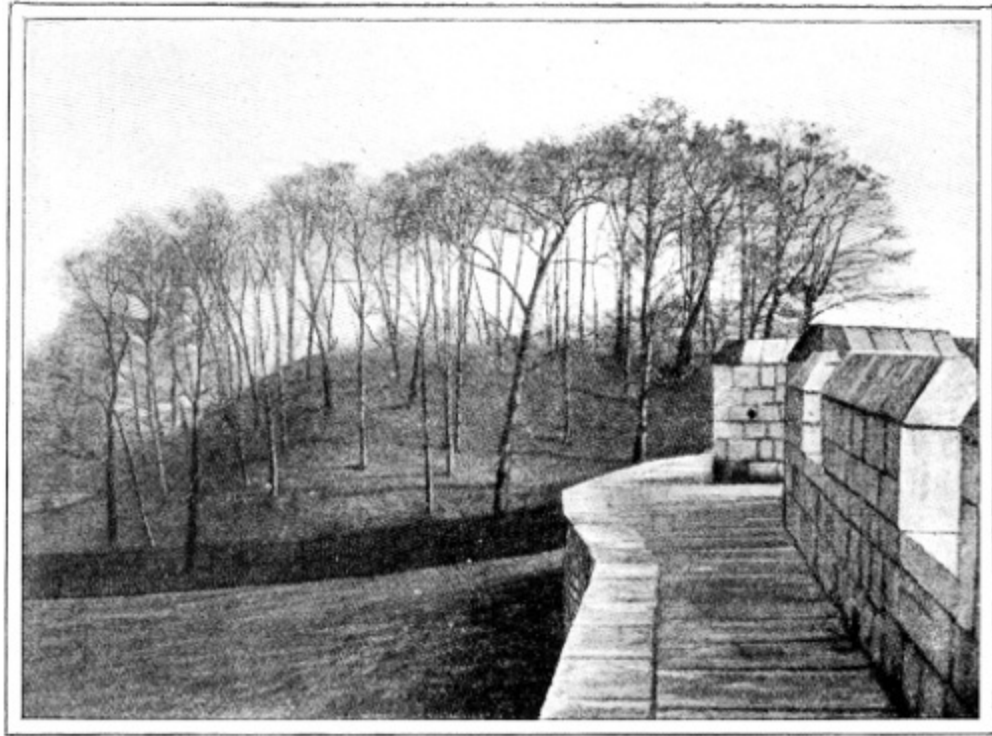


YORKSHIRE 1066-1087

This episode was quickly followed by the death of Robert Fitz Richard, the governor of York, who perished with a number of his men in an obscure struggle, which nevertheless left the castle untaken in Norman hands. Encouraged by these events, Edgar the Etheling, Marleswugen, Archil, and Gospatric reappeared upon the scene, and made a determined attack upon the fortress, so that William Malet, who would appear to have become castellan on Robert Fitz Richard's death, sent an urgent message to the king, saying that he must surrender at once unless he received reinforcements. Upon receiving this appeal, the Conqueror flew in person to York, scattered

the rebels with heavy loss, and planted a second castle within a few hundred yards of the first, but on the opposite bank of the Ouse. This fortress, of which the mound, known as the Baile Hill, still rests against the city wall, was committed to the charge of no less a person than Earl William Fitz Osbern, and the king after eight days returned to Winchester to keep his Easter feast there. His departure was followed by a renewal of the English attack, now directed against both the castles, but William Fitz Osbern and his men gave a good account of themselves against the insurgents.^[212]

It was, however, apparent by this time that a spirit of revolt was generally abroad, and Queen Matilda was sent back into Normandy to assume command of the duchy once more. No very coherent narrative of the military events of this year can be extracted from the confused tale of Ordericus Vitalis or the jejune annals of the *Anglo-Saxon Chronicle*, but the outline of the history is fairly plain. We seem to recognise three distinct areas of revolt: Devon and Somerset, Shropshire and Staffordshire, and, most dangerous of all, Yorkshire and the north. We have no reason to suppose that the English leaders had any thought of uniting in common resistance to the Norman rule; their plans extended to nothing more than the destruction of single fortresses, the execution of isolated revenge for local injuries. On the other hand the dispersion of the centres of revolt incidentally produced some of the effects of combination; the Normans were compelled to divide their forces, and the rapidity with which King William dashed about the country from point to point proved that he at least thought the situation sufficiently precarious.



THE BAILE HILL, YORK
THE SITE OF WILLIAM I.'S SECOND CASTLE

Early in the summer the three sons of Harold repeated their piratical excursion of the previous year. They landed on the 24th of June in the mouth of the Taw with sixty-six ships and raided over a large part of Devonshire, but were beaten off at last by Brian of Penthièvre, and vanish therewith from English history.^[213] The local forces were capable of dealing with an unsupported raid of this kind, but the case was otherwise with the powerful armament which at this time was being prepared in the fiords of Denmark. Swegn Esthrithson at last was about to take action, and the news excited once more the unstable patriotism of the men of Northumbria. The Danish army was recruited from a wide area to the south of the Baltic; there were numerous adventurers from Poland, Frisia, and Saxony, and we read of a contingent of heathen savages from Lithuania. The fleet was reported to consist of two hundred and forty vessels; a number capable, if each ship was fully laden, of carrying a force considerably larger than any army William could put into the field without calling out the native militia. The expedition was under the command of Harold and Cnut, the sons of King

Swegn, and Asbiorn, his brother, and included many Danes of high rank, among whom Christian, bishop of Aarhus, is mentioned by name.^[214]

The fleet set sail towards the end of August, and must have hugged the shores of Frisia and Holland, for it first touched the English coast at Dover. The royal forces were strong enough to prevent a landing both here and at Sandwich, where the Danes repeated the attempt, but the mouth of the Orwell was unguarded, and a body of the invaders disembarked at Ipswich with the intention of plundering the neighbourhood. We are, however, told that the “country people,” by which phrase the English peasantry of the district are probably meant, came out and, after killing thirty of the raiders, drove the rest to seek refuge in their ships. A similar descent on Norwich was repulsed by Ralf de Wader, earl of East Anglia and governor of Norwich castle, and the Danes passed on towards the Humber. In the meantime, news of these events was brought to King William, who, we are told, was hunting at the time in the forest of Dean away on the Welsh border; and he, seeing where the key to the situation really lay, instantly sent a messenger to York to warn the garrison and to direct that they should summon him in person if they were hard pressed by the enemy. He received the reassuring answer that they would require no assistance from him for a year to come, and he accordingly continued to leave the defence of the north in the hands of his subordinates, while the Danes were sailing along the coast of Lindsey.

It is an interesting question how far the men of the English Danelaw may have been led by a remembrance of their Scandinavian origin to make common cause with the army of the king of Denmark at this time. At the beginning of the century Swegn Forkbeard had been welcomed on this account by the men of the shires along the lower Trent, and had fixed his headquarters at Gainsborough in this district. So long as the Anglo-Saxon legal system retained a semblance of vitality a very definite barrier of customary law separated the Danelaw from the counties of the eastern midlands, and the details of its local organisation still preserved not a few peculiar features, plainly referable to a northern origin. On the other hand, in the names of the pre-Conquest owners of land in this district as recorded in Domesday Book the English element distinctly preponderates, while the particularism of Northumbria itself was perhaps rather political than racial. It is probable that the men of Lincolnshire would have preferred a Danish to either a Norman or an English king, but they play no distinctive part in the

incidents of this campaign, which centres round the city of York and its approaches by land and water.

While the Danish fleet still hung in the Humber, it was joined by the English exiles from Scotland, Edgar the Etheling, Gospatric, and Marleswegen, with whom Waltheof, the earl of Huntingdon, and others of lesser fame now associated themselves. Edgar, who had been raiding in Lincolnshire independently of his Danish friends, had narrowly escaped capture by the garrison of Lincoln castle; but he reached the Humber in safety though with only two companions, and the combined force, like that of Harold Hardrada three years before, passed on up the Ouse and disembarked for a direct attack on York. Volunteers assembled from all the neighbouring country, and in numbers at least it was a formidable army which on the 21st of September appeared before the northern capital, the English forming the van, the Danish host the rear. The Normans in York made no attempt to hold the city wall, and concentrated their defence on the two fortresses by the Ouse, setting fire to the adjoining buildings, so that their timber might not be used to fill up the castle ditches. The flames spread, the city was gutted, and, what was worse to the medieval mind, the church of St. Peter was involved in the ruin. The struggle which followed was soon over; on the very day of the Danish arrival, while the city was still burning, the garrison of the castles made a sally, were outnumbered by the enemy within the city walls and destroyed, after which the capture of the actual fortifications was an easy matter. The castles themselves were only wooden structures planted on mounds of earth; their defenders had been hopelessly weakened by the failure of the sally, and later tradition recounted in verse how Waltheof, Siward's son, stood by the gate and smote down the Normans one by one to the number of a hundred with his axe as they tried to break away.^[215] The castles once taken, the English hatred of these signs of bondage broke out with fury; the wooden buildings were instantly broken up and hurled to the ground, and the luckless William Malet, with his wife and children, a prisoner, was one of the few Normans in York who survived the day.

On the 11th of September, before the Danish army had sighted the walls of York, Archbishop Ealdred, one of the few Englishmen of high rank who accepted the Norman Conquest as irreversible, died, being worn out by extreme age, and grief at the ruin which he foresaw was about to fall on the men of his province. The fall of York was the most serious check which had

hitherto crossed King William's plans in Normandy or England; it might easily lead to the formation of a Danish principality beyond the Humber; it was certain to give encouragement to rebellious movements in the south. In his rage at the news the king caused the fugitives who had told the tale to be horribly mutilated as a warning to his captains against possible treachery^[216] and then set out for the north. As he drew towards the Northumbrian border, the Danes abandoned their new conquest, and made for their ships, crossing the Humber in them, and established themselves among the marshes of the Isle of Axholme. This movement diverted the king's march; he struck straight for Lindsey with a force of cavalry and crushed sundry isolated bodies of the enemy which were dispersed among the fens. The Danes, finding their position untenable, took to their ships again and crossed over to the Yorkshire bank, whither William had no means of following them. He therefore left part of his troops under the counts of Mortain and Eu, to protect Lindsey, while he himself turned westwards to suppress a local rising which had broken out at Stafford.

We know nothing as to the persons who were responsible for this last revolt, nor have we any clue as to their objects, but it is quite possible that they were acting in concert with the men who at this time were laying siege to the new castle of Shrewsbury. William in this year was contending with men of Celtic as well as of Scandinavian race; for Bleddyn, king of Gwynedd, for the third time within three years, had taken arms against the Normans on the Welsh border. To the men of North Wales, Edric the Wild brought a contingent from Herefordshire, and the citizens of Chester, which, it would seem, had not as yet been occupied by the Normans, joined in the attack. The allies were successful in burning the town of Shrewsbury and getting away before a Norman force arrived in relief of the castle, but the Staffordshire insurgents were less fortunate. We are merely told that King William "wiped out great numbers of the rebels with an easy victory at Stafford," but the Domesday survey of the country, in the large proportion of land which it returns as "waste," suggests that Staffordshire at this time received at William's hand some measure of the doom which was to fall upon Yorkshire before the year had closed.

In the meantime the revolt of the south-west had run its course. Here as elsewhere the plans of the revolted English do not seem to have extended beyond the capture of individual castles; notably the royal fortress which had been built in Exeter after the the siege of the previous year, and the

private stronghold of Count Robert of Mortain at Montacute in Somerset. The command against the besiegers of Montacute was assumed by Bishop Geoffrey of Coutances, who speedily scattered the insurgents with an army drawn from London, Winchester, and Salisbury, the chief towns on the main road from the east to Devon and Somerset. The situation at Exeter was complicated by the attitude of the citizens themselves, who must have been anxious not to forfeit the privileges which they had obtained from King William by the treaty which had so recently concluded their own revolt. Accordingly, when the new castle was beset by a host of Devonians and Cornishmen, the townspeople took the Norman side; and the garrison on making a sally threw the rebels into a state of confusion which was completed by the arrival of Brian of Penthievre, who was advancing to the relief of the castle men.

Now that no further danger was to be apprehended, from the lands between Trent and Severn King William's hands were free to deal with the Northumbrian difficulty. His lieutenants in Lindsey had contrived to surprise a number of the Danes as they were participating in the village feasts with which the men of that district were anticipating the customary orgies of midwinter and to which they had apparently invited their Danish friends. This, however, was a trivial matter; there was a probability that the Danes would return to take possession of York, and when the Conqueror next appears after the battle of Stafford, he is found at Nottingham on his way to the northern capital. For fifty miles north of Nottingham he followed the route by which he had advanced on to York in the previous year, but he received a sudden check at the point where the road in question crosses the Aire near to the modern town of Pontefract. The bridge was broken, and the river, swollen most probably by the winter's rains, could neither be forded nor crossed in boats, while the enemy lined the opposite bank in force. On this last account it was impossible to rebuild the bridge, and for three weeks the army was kept inactive by this unexpected obstacle. At last a knight called Lisois de Monasteriis, after examining the river in search of a ford for miles above and below the camp by the broken bridge, discovered a practicable crossing somewhere among the hills to the west of Leeds, and forced a passage with sixty horsemen in despite of the efforts of the enemy on the left bank. Having demonstrated the possibility of a crossing at this point Lisois returned to Pontefract; and under his guidance the whole army passed the Aire, and then wheeled round towards York through the difficult

country which borders the great plain of the Ouse. As the army drew near to York, news came that the Danes had evacuated the city, so the king divided his force, sending one detachment to occupy and repair the ruined castles, and another to the Humber to keep the Danes in check. But he himself had other work to do, and did not enter York at this time.

It would seem that the Norman passage of the Aire, hazardous as it had been, had really demoralised the Northumbrian insurgents and their Danish allies. The latter, as we have seen, fell back on the Humber at once without striking a blow; the mass of the native English under arms would seem to have retired simultaneously among the hills of western Yorkshire, for the Conqueror now turned to their pursuit and to the definite reduction of the inhospitable land. With grim determination he worked his way along the wooded valleys which intersect the great mountain chain of northern England, and deliberately harried that region so that no human being might find the means of subsistence there. Resistance isolated and ineffectual he must have met; but now for once submission brought no favour, and those who perished in the nameless struggles in which despairing men flung themselves hopelessly upon the line of his inexorable march, underwent a shorter agony than remained for those who survived to see their homes, with all their substance, smouldering in the track of the destroying army. But the spirit was soon beaten out of the ruined men, and without fearing surprise or ambush William could divide his army still further and quicken the dismal process of destruction. Soon his soldiers were scattered in camps over an area of a hundred miles, and the north and east of Yorkshire underwent the fate which the Conqueror in person had inflicted on the West Riding. Before Christmas it is probable that the whole land from the North Sea to Morecambe Bay had become with the rarest exceptions a deserted wilderness.

The harrying of Yorkshire is one of the few events of the kind in regard to which the customary rhetoric of the medieval chronicler is only substantiated by documentary evidence. From the narratives of Ordericus Vitalis and Simeon of Durham alone, we should gain a fair impression of the ghastly reality of the great devastation, but a few columns of the Domesday survey of Yorkshire, where the attempt is made to estimate the result of the havoc for the purposes of the royal treasury, are infinitely the more suggestive. On page after page, with deadly iteration, manor after manor is reported "waste," and even in the places where agricultural life

had been re-instituted, and the burned villages rebuilt, the men who inhabited them formed but pitiful little groups in the midst of the surrounding ruin. As to the fate of the individuals who had fled before King William's army, in the fatal December, no certain tale can be told. Many sold themselves into slavery in return for food, many tried to make their way southward into the more prosperous midland shires; the local history of Evesham Abbey relates how crowds of fugitives from the districts visited by the Conqueror in this campaign thronged the streets of the little town, and how each day five or six of them, worn out by hunger and weariness, died, and received burial by the prior of the monastery. Many no doubt tried to keep themselves alive in the neighbourhood of their old homes until the rigour of the winter had passed away; but fifty years later it was well remembered in the north how the bodies of those who were now overtaken by famine lay rotting by the roadsides. Even so late as Stephen's time, a southern writer, William of Malmesbury, tells us how the fertile lands of the north still bore abundant traces of what had passed during the winter of 1069.

The festival of Christmas caused a short break in the grim progress of King William. His work was not by any means completed in the north; the Danes were still in the Humber; Chester remained in virtual independence. And so the regalia and royal plate were brought from the treasury at Winchester, and the Christmas feast was held at York with so much of the traditional splendour as the place and occasion permitted. The ceremony over, the campaign was resumed, and in the New Year the Conqueror set out to hunt down a body of Englishmen who seem to have entrenched themselves among the marshes which then lay between the Cleveland hills and the estuary of the Tees.^[217] The rebels, however, decamped by night on hearing of the king's advance, and William spent fifteen days by the Tees, during which time Earl Waltheof made his submission in person and Gospatric sent envoys who swore fealty on his behalf. Gospatric was therefore restored to his earldom, and William returned to York, keeping to the difficult country of the East Riding in preference to the Roman road which led southward from the Tees near Darlington down the plain of the Ouse.^[218] It is probable that William chose this route with the object of hunting down any scattered bands of outlawed Englishmen which might have hung together thus far in this inaccessible region; but his force suffered severely through the cold, many of the horses died, and on one

occasion he himself lost his way and became separated from his army with only six companions for an entire night. York, however, was reached in safety at last, and the reduction of Northumbria was accomplished.

It was now possible to enter upon the final stage of the campaign, and, after making the arrangements necessary for the safety of York, William set out on the last and most formidable of the many marches of this memorable winter, towards the one important town in England which had never submitted to his rule. Chester still held out in English hands, and apart from its strategical importance the citizens of the great port had definitely attracted King William's attention by the part which they had played in the recent siege of Shrewsbury. His hold on the north would never be secure until he had reduced the town where Irish Vikings and Welsh mountaineers might at any time collect their forces for an attack upon the settled midlands. On the other hand, the geographical difficulties in the way of a direct march from York to Chester were enormous. From the edge of the plain of York to the Mersey Valley, the altitude of the ground never descends to a point below 500 feet above sea level; and, since the Roman highway from York to Manchester had fallen into ruin, no roads crossed this wild country except such tracks as served for communication between village and village. But a more serious cause of danger lay in the fact that the army itself now began to show ominous symptoms which might easily develop into actual mutiny. The strain of the protracted campaign was telling upon the men; and the mercenary portion of the army, represented by the soldiers from Anjou, Brittany, and Maine, began to clamour for their discharge, complaining that these incessant marches were more intolerable than even the irksome duty of castle guard. The Conqueror in reply merely declared that he had no use for the cowards who wished to desert him,^[219] and, trusting himself to the loyalty of his own subjects in the army, he plunged straightway into the hills which separate the modern counties of Yorkshire and Lancashire. Part at least of the route now followed at the close of January must have lain through districts which had been swept bare of all provisions in the great harrying of December; and the army was at times reduced to feed on the horses which had perished in the swamps, that continually intercepted the line of advance. The storms of rain and hail which fell at this time were considered worthy of mention in the earliest account of the march which we possess, and we can see that nothing but the example of King William's own courage and endurance held the army

together and brought it down in safety into the Cheshire plain. Chester would appear to have surrendered without daring to stand a siege, and with its submission, guaranteed as usual by the foundation of a castle,^[220] the Conqueror's work was done at last in the north. From Chester he moved to Stafford, where another castle was raised and garrisoned, and then marched directly across England to Salisbury, at which place the army was disbanded, with the exception of the men who had protested against the present expedition and were now kept under arms for forty days longer as a mark of the king's disfavour.

In the meantime, by a skilful piece of diplomacy, William had been insuring himself against active hostility on the part of the Danish fleet. Earl Asbiorn and his associates had taken but little gain as yet from their English adventure; and the earl proved very amenable when a secret embassy came to him from the king, promising him a large sum of money and the right of provisioning his men at the expense of the dwellers along the coast for the remainder of the winter, on the sole condition that he should keep the peace towards the royal troops thenceforward until his departure. The earl, thus made secure of some personal profit, agreed to the terms, and until the spring was far advanced, the Danish ships still hung in the English waters.

The harrying of Northumbria, the most salient event of these twelve months of ceaseless activity, was a measure which it would be impossible to justify and impertinent to excuse. It was the logical result of the opposition of an irreconcilable people to an inflexible conqueror. After the battle of Hastings had shattered the specious unity of the old English state, each of its component parts might still have secured peace by full submission, or honour by consistent and coherent resistance; the men of Northumbria took the one course which was certain to invite disaster, nor, terrible as was the resultant suffering, can we say that vengeance was undeserved. War in the eleventh century was at best a cruel business, but we cannot fairly accuse the Conqueror of deliberately aggravating its horrors without the impulse of what he must have regarded as necessity. He had to deal with a people whom he could not trust, who had sworn submission and had broken their oaths, and the means at his disposal were few. He could not deport the population of Northumbria as Cromwell was to deport the native Irish under not dissimilar circumstances; his Normans were too few as yet to garrison effectively all the wild land between the Humber and the Scottish border. The one course which remained to the Conqueror was for him to place the

rebels beyond the possibility of revolting again, and he followed this course with terrible success. And it was on this account—that Northumbria was wasted, not in the heat of wars, but deliberately, at the bidding of political necessity—that the act seemed most dreadful to the chroniclers who have described it. Men were only too well accustomed to the sight of ruined villages, of starving women and children; but these things seemed less terrible as the work of Scotch and Danish freebooters than as the conscious intention of the crowned king of the land. Nor must we forget that we do not know how far King William was really sinning against the current military practice of his time. The monastic chroniclers, whose opinion of the case commends itself to us in virtue of its humanity, were men brought by the fact of their vocation to a clearer sense of the value of the individual life than that possessed by the lay world around them. We know what Ordericus Vitalis thought of the great harrying, perhaps even what William of Poitiers, the Conqueror's own chaplain, thought of it, but we do not know how it appeared to William Fitz Osbern or Roger de Montgomery.

According to his approved custom, the Conqueror kept the Easter following these events at Westminster, and the feast was attended by three papal legates of high rank whose presence marks the beginning of the ecclesiastical reformation which we shall have to consider in its place as the counterpart of the legal and administrative changes produced by the Norman Conquest. In the meantime, however, the broken national party was gathering its forces for a last stand, and the focal point of the English resistance shifts to the extreme east of the land.

At each stage in the Norman Conquest there is always one particular district round which the main interest centres for the time, the operations of war elsewhere being of subsidiary importance. It was the men of Kent and Sussex who bore the brunt of the first shock of the invasion; it was the men of the north who held the field in 1069, and now, in the last period of English resistance, our attention is concentrated on the rectangular tract of land which lies between Welland, Ermine Street, Ouse, and Wash. Even at the present day, after eight centuries of drainage, it is not difficult to reconstruct the geographical features which in 1070 made the Fenland the most inaccessible part of England south of the Humber. Except for a narrow tract north of Huntingdon and St. Ives, no part of this district rises to one hundred feet above sea-level, and in great part it was still covered with the swamps and meres of stagnant water which gave to the eastern half of this

region the name of the Isle of Ely. In so far as cultivation had already extended into this inhospitable quarter, it may fairly be set down to the credit of the five great abbeys of Peterborough, Thorney, Crowland, Ramsey, and Ely, which dominated the fens and round which the events of the campaign of 1070 arrange themselves.

Abbot Brand of Peterborough, whose recognition of Edgar the Etheling as king had so deeply moved the Conqueror's wrath at the time of his coronation, had died on November 27, 1069.^[221] At this moment King William was in the thick of his Northumbrian difficulties, and it does not appear that any appointment to Peterborough was made until the quieter times of the following spring. In or before May, however, the abbey was given to a man whose selection for the post proves that the king had received warning of the coming disquiet in the east. Thorold of Fécamp, abbot of Malmesbury, had probably made himself useful in north Wiltshire while William was engaged beyond the Humber, for the reputation for militant severity which he had created in the south was the reason for his translation to a post of danger in the Fenland. "By God's splendour," said King William, "if he is more of a knight than an abbot I will find him a man who will meet all his attacks, where he can prove his valour and his knighthood and practise the art of war."^[222] The man in question was no other than the famous Hereward, and Thorold was not long before he saw traces of his handiwork.

The amount of authentic fact which we know about Hereward is in very small proportion to the great mass of legend which has gathered round his name. His parentage is quite unknown, but there are several incidental entries in Domesday which connect him with the western edge of the Fenland and which all occur in the Lincolnshire portion of the survey. From these entries we learn that Hereward had been a tenant of two of the great Fenland abbeys, namely Crowland and Peterborough, and we also gather that the former house had found him an unsatisfactory person with whom to have dealings. The jurors of Aveland Wapentake in Lincolnshire told the Domesday commissioners that Abbot Ulfketil of Crowland had let the abbey's estate in the vill of Rippingale to Hereward on terms to be arranged mutually year by year, but they add that the abbot took possession of the land again before Hereward fled from the country because he did not keep to his agreement.^[223] On the other hand, Hereward was seemingly still in the

possession of the lands which he held of Peterborough abbey at the moment when his name first appears in the national history.

At some time in the course of May, but before Abbot Thorold had taken possession of his abbey, the Danish fleet, of which we have heard nothing since the previous year, sailed up the Ouse to Ely. Thus far its leaders would seem to have kept the agreement which they had made with King William after his capture of York, and the fact that they now appear as taking the offensive once more is probably explained by a statement in the *Anglo-Saxon Chronicle* that King Swegn of Denmark had come in person to the Humber.^[224] The men of the Fenland were clearly expecting a Danish reconquest of England, and on the appearance of Earl Asbiorn at Ely they joined him in great numbers. Among them, and probably at their head, was Hereward, and the first fruit of the alliance was a successful raid on the wealthy and unprotected monastery of Peterborough. The monks received just sufficient warning of approaching danger to enable them to send an urgent message to Abbot Thorold, asking for help, and also to hide some of the more precious treasures of their house, and then at mid-day Hereward and his gang were on them. They came by boat, for even at this date there were canals which connected the Ouse at Ely with the Nene at Peterborough, and began to clamour for admission to the abbey.^[225] But the monks had closed their doors and defended them stoutly, so that Hereward was driven to burn the houses which clustered round the abbey gate in order to force an entrance. Incidentally the whole of Peterborough was burned down, with the exception of the church and a single house, but the outlaws had got inside the monastery. The monks begged them to do no harm, but, without heeding, they burst into the church, seized all the movable articles of value on which they could lay their hands, and tried to tear down the great rood cross. To the clamours of the monks around them they shouted that they did it all for the good of the church, and as Hereward was a tenant of the abbey the monks believed him. Indeed, Hereward himself in after years declared that he had been guided in this matter by the best intentions, for he believed that the Danes would beat King William and he thought that it would be better that the treasures of the church should remain in the hands of his friends for a little while, than that they should fall for ever into the possession of the Frenchmen.

So the monks were scattered and the wealth of the Golden Borough was carried off to Ely and handed over to the Danes, who do not seem to have

shared Hereward's sentiments with regard to its ultimate destination. Among the captives who were carried off from Peterborough was Ethelwold, the prior, who, in hope of better days, devoted himself secretly to the recovery of the relics contained in the jewelled shrines which formed the most valuable part of the plunder that had just been taken. With this object in view, he deliberately set himself to win the favour of the despoilers of his home, and succeeded so well, that the Danes committed their treasure to his custody, and promised him a bishopric in Denmark if he chose to return with them. Being a discreet man, he pretended to comply with their wishes, and in the meantime possessed himself of the tools which were necessary for the abstraction of the relics. And on a certain day, while the Danes were holding a great feast, to celebrate the winning of so great a treasure at so small a cost, Ethelwold took his tools and set to work, beginning his operations on the reliquary which he knew to contain the arm of St. Oswald. To prevent interruption he placed two servants on guard, one in the house where the Danes were feasting, and the other midway between the latter place and the scene of his own labours. The task progressed without greater difficulty than was to be expected, although one of the chests was so tightly clamped with iron that Ethelwold would have abandoned it had he not trusted in God and St. Oswald. At last the relics were all secured and hidden temporarily in the straw of the prior's bed, he being careful to replace the gold and silver fittings of the shrines as they were before. But at the critical moment the Danes broke up to go to vespers and Ethelwold was in imminent danger of being taken, in which event it is probable that his pious zeal would have been rewarded with the crown of martyrdom. But, without leaving his room, the prior, who was covered with sweat and very red from his labour in the heat of a June afternoon, washed his face in cold water and went out to his captors as if nothing had happened, and they, who we are told revered him as a father, flocked round him but asked no inconvenient questions. And on the following day he sent his two servants to Hereward—because his comrades were infesting all the water-ways—under the pretence that they wished to fetch something from Peterborough, but in reality they went to the nearer monastery of Ramsey and gave the relics into the charge of the abbot of that place.

At this point the adventures of Prior Ethelwold touch the current of the general history. King William, in order, presumably, to divide the insurgent Englishmen from their Danish allies, made a treaty with Swegn of

Denmark, by which his subjects were to be allowed to sail for their fatherland without hindrance and in possession of all the spoil they had gained in the course of the past months. They took advantage of the offer, but gained little by it in the event, for a great storm arose which scattered their ships, and the last we hear of the treasures of Peterborough is their destruction, in a nameless Danish town, in a great fire which arose through the drunkenness of their guardians. In the meantime, Ethelwold, his troubles over, collected his fellow-monks and came back to Peterborough, where they found Abbot Thorold, and restored the services which had been suspended during the recent disturbances. One unexpected difficulty indeed manifested itself: the Ramsey people refused to give up the relics which had been entrusted to their care in the moment of peril. But the abbot of Ramsey was soon brought into a better mind; the sacristan of the monastery received a supernatural intimation that his house was acting unjustly, and Thorold of Peterborough threatened to burn Ramsey abbey to the ground unless the relics were given back. And so the heroic efforts of Ethelwold were not frustrated of their purpose.

So quickly had events moved that only one week had elapsed between the coming of Hereward to Peterborough and the departure of the Danish fleet. But an entire year had yet to pass before the Isle of Ely was finally cleared of its rebel garrison. It does not seem that the withdrawal of the Danes made any difference to the occupation of Ely by the English, and during the winter of 1070 the Isle became a gathering point for the last adherents of the broken national party. Very few of them were left now. Edgar, their nominal head, was living in peace with King Malcolm of Scotland; Waltheof, the last representative of the Danish earls of Northumbria, was at this moment in enjoyment of an earldom in the midlands which there is every reason to believe included the Isle of Ely itself. On the other hand, Edwin and Morcar now finally took their departure from William's court, and raised the last of their futile protests against the Norman rule.

Hitherto inseparable, on this occasion the brother earls took different courses, and the result was disastrous to both of them. Morcar joined the outlaws in Ely; Edwin struck out for the Scotch kingdom, and from our meagre information about his last months it would seem that he had in view some great scheme of reviving once more the old friendship between his house and the Welsh princes and of supporting the combination with Scotch

aid. But fate overtook him before he had time to give another exhibition of his political worthlessness, and the circumstances of his end were tragic and mysterious. Three brothers, who were on terms of intimacy with him and were attending him in his wanderings, betrayed him to the Normans, and in attempting to escape, his retreat was blocked by a river swollen at the moment by a high tide. On its bank the last earl of Mercia turned at bay, and with twenty horsemen at his side made a desperate defence until the whole band was cut down; Edwin himself, it would appear, falling by the hands of the three traitors of his household. His head was cut off and the same three brothers brought it to King William in the expectancy of a great reward. But the Conqueror on the spot outlawed them for their treason to their lord, and shed tears of grief over Edwin's head; for the handsome, fickle young earl, with all his faults, had really won the love of the grim sovereign from whom he had thrice revolted.^[226]

Edwin fell through treachery, but he met his death in the sight of the sun; another fate remained for his brother and for those of his associates whose end is known to us. The cause of the defenders of Ely was hopeless from the outset. Their revolt was a hindrance to the orderly conduct of the Anglo-Norman government, but a band of outlaws in the fenland could do little to affect the course of events elsewhere; Ely commanded no great road or river, and its Isle was too small an area to support an independent existence apart from the rest of the land. Its reduction was only a question of time, complicated by the geographical difficulties of the district. It was necessary that all the waterways leading from the fens to the open sea should be blocked, and this implied the concentration of a considerable number of ships and men-at-arms along the Great and Little Ouse. The siege of a quarter of Cambridgeshire demanded a greater expenditure of men and money than that of a single town or castle; but Hereward and his friends in due time were driven back on Ely itself, from which their raiding parties would make occasional descents upon the neighbouring villages. The Conqueror fixed his headquarters at Cambridge, some fifteen miles from Ely, and his main attack was directed at the point where the Ouse is crossed by an ancient causeway near the village of Aldreth. But even from the latter place there remained some six miles of fen to be crossed before Ely itself could be reached, and we are told on good authority that William caused a bridge, two miles long, to be built on the western side of the Isle.^[227]

The legendary accounts of the exploits of Hereward tell many tales of the struggle which raged before the Norman army had pierced the natural defences of Ely, but we cannot be sure of the exact means by which the place was finally reduced. One stream of tradition assigned the fall of the Isle to the treachery of the abbot and monks of Ely, and, although the authority for such a statement is not first-rate, it has commonly been accepted as representing the truth of the matter.^[228] It is at least certain that the position in which the monks of Ely found themselves was undesirable at the best. The conduct of Hereward and his men at Peterborough proves them to have been no respecters of holy places, and if the abbey bought immediate safety by conniving at the deeds of the outlaws in its neighbourhood, it ran the risk of the ultimate confiscation of its lands when King William had restored order. Small blame should rest upon the abbot if he broke through the dilemma in which he was placed by assisting the Conqueror in the reduction of the Isle. But whatever the immediate cause of the fall of Ely, a large number of its defenders fell into William's hands and many of them received from him such measure as twenty years before he had dealt to the men of Alençon. Some were blinded or otherwise mutilated and allowed to go free, others were thrown into prison. Earl Morcar himself was sent into Normandy a prisoner and committed to the charge of Roger de Beaumont^[229]; the other captives of note were scattered over the country in different fortresses. But Hereward, who in all our authorities stands out as the leader of the resistance, escaped through the marshes and a small part of his band got clear of the Isle in his company.^[230]

Whatever the recent behaviour of the monks of Ely may have been, the abbey was constrained to buy the king's peace at a heavy price. Seven hundred marks of silver were originally demanded by the Conqueror, but the money was found to be of light weight, and three hundred marks more were exacted before the abbot and monks were reckoned quit by the king's officer. Moreover, the very precincts of the abbey were invaded to find the site for a castle to command the southern fenland: King William himself having chosen the ground during a flying visit which he had paid to Ely one day while the monks were seated at dinner. The building of the castle, by a Norman interpretation of the Anglo-Saxon duty of *burhbot*, was laid upon the men of the three adjacent counties of Cambridge, Huntingdon, and Bedford, and it was garrisoned when built by a body of picked knights. Another castle at Aldreth commanded the eastern approaches to the Isle.^[231]

On the other hand, it would be some compensation for these disturbances that within four years from the fall of Ely, and in the lifetime of Abbot Thurstan, King William decreed a formal restitution to the abbey of all the lands of which it had unjustly been despoiled in recent years.^[232] Now that no further danger was to be apprehended from the nationalist proclivities of the monks of Ely, there was no reason why the abbey should not be suffered to enjoy its ancient possessions in peace; but the record of the plea which followed the Conqueror's writ directing restitution proves that many of the greater people of the land, including the archbishop Stigand and Count Eustace of Boulogne, had been committing wholesale depredations on the estates of St. Ethelthryth.

The subsequent fate of Hereward is a matter of utter uncertainty; with his flight across the marshes of Ely he vanishes into the night which has engulfed the entire class to which he belonged, the smaller native land-owners of King Edward's day. Two lines of tradition were current in later years about the manner of his end. According to the more dramatic narrative, Hereward became reconciled to the Conqueror, accompanied him in the Mancel campaign of 1074, married a noble and wealthy Englishwoman, and fell at last, before overwhelming odds, at the hands of a number of Normans, whose feud he would seem to have provoked in the wild days of his outlawry.^[233] In the other story, Hereward still receives King William's favour and marries the same English lady as in the former legend, but he dies at last in peace after many years in the quiet possession of his father's lands.^[234] The choice which we may make between these divergent traditions will largely be guided by inference from more truly historical sources of information. It is very probable that Hereward made his peace with King William—both traditions agree upon this point; and that casual expression in the narrative of the sack of Peterborough, that Hereward "in after time often told the monks that he had done all for the best," proves at least that there had been a period after the troubles of 1071 in which Hereward had been on terms of peaceful intercourse with his monkish neighbours. So too the coincidence of both lines of tradition with regard to his marriage is in favour of its probability, but the negative evidence of Domesday Book compels us to put a period to his life before the winter of 1085. In no part of England did a more numerous body of native thegns hold land at the latter date than in Hereward's own county of Lincoln, but Hereward's name is not written among them, and the lands

which he had held of Peterborough abbey had been let to a stranger. But if the Hereward legend is not consistent with itself, there is a more significant discrepancy between the part which its subject plays in recorded history and his position as a hero of romance. It is at least certain that the man must have been something more than the vulgar freebooter who appears in the story of the ruin of Peterborough. To him we may safely credit the long defence of the Isle of Ely, and we may feel confident that that defence was accompanied by deeds of gallantry round which minstrel and gleeman might weave their fabric of legend and marvel. Hereward, after all, in literature, if not in fact, is the English hero of the Norman Conquest. A native annalist might express his bitter regret for the tragedy of King Harold, the common folk of England might turn Earl Waltheof into an uncanonised saint, but Hereward was removed by no great chasm of rank from the humble people who made his deeds their story. And it is not a small thing that the tale of the resistance to the Norman Conqueror, inglorious as much of it had been, should end with the name of a man in whom the succeeding generations might see a true champion of the independence of the beaten race.



Penny of Swegn Estuthson

CHAPTER VIII

THE CENTRAL YEARS OF THE ENGLISH REIGN

The conquest of England had exalted William of Normandy to a position of dignity and influence far above all his fellow-vassals of the French crown, it had renewed the lustre of the fame which the Norman race had won in its earlier conquest of southern Italy, but it did not mean an unqualified gain to the Norman state, considered merely as a feudal power. The process which had turned the duke of the Normans into the king of the English had meant the withdrawal of Normandy from the feudal politics of France for four years, and in that interval certain changes of considerable importance had taken place within the limits of the French kingdom. The Angevin succession war was now over; Fulk le Rechin had his brother safely bestowed in prison and could begin to prove himself the true heir of Geoffrey Martel by renewing the latter's schemes of territorial aggrandisement. King Philip of France had reached an age at which he was competent to rule in person, and it was inevitable that the enmity between Normandy and France should become deeper and more persistent now that William had attained to a rank which placed him on an equality with his suzerain, and could employ the resources of his new kingdom for the furtherance of any designs which he might form upon the integrity of the royal demesne. More important than all, Count Baldwin of Flanders had died in 1067, and events were in progress which for twenty years placed the wealthy county in steady opposition to the interests of the Anglo-Norman state.

Between 1067 and 1070 Flanders was under the rule of Count Baldwin VI., the eldest son of Baldwin of Lille, who had greatly increased his borders by a marriage with Richildis, the heiress of the neighbouring imperial fief of Hainault. The counts of Flanders made it a matter of policy to transmit their inheritance undivided to the chosen heir, and Robert, the younger son of the old Count Baldwin, before his father's death had secured

himself against his ultimate disinherison by marrying Gertrude, widow of Florent I., count of Holland, and assuming the guardianship of her son Theodoric. On the death of Baldwin VI., the ancestral domain of Flanders descended to his eldest son, Arnulf, who was placed under the wardship of his uncle Robert, while Hainault passed to Baldwin, the second son, under the regency of his mother Richildis. The two regents were on bad terms from the start, but Robert at the time was hard pressed to maintain his position in Holland, and Richildis soon got possession of Arnulf, the heir of Flanders, and ruled there in his name. But her overbearing conduct rapidly made her unpopular in the county, and Robert was soon invited to invade Flanders and reign there in his own right. He accepted the invitation, and Richildis thereupon hired King Philip of France to support her with an army, and offered her hand and her dominions to William Fitz Osbern, Earl of Hereford. The earl, like a good knight-errant, accepted the adventure and hastened to the succour of the lady with the full assent of his lord King William, but fell into an ambush laid by his enemy Robert, at Bavinkhove, near Cassel, and perished there together with Arnulf his ward. Richildis maintained the struggle for a short time longer with the aid of troops supplied by the prince-bishop of Liège; but on their defeat near Mons, followed a little later by the surrender of Terouenne, the ecclesiastical capital of Flanders, she retired into the monastery of Maxines, and Robert, who is generally described in history as the “Frisian” from the name of his earlier principality on the shores of the Zuyder Zee, had the permanent possession of Flanders thenceforward.

The enterprise of William Fitz Osbern meant the dissolution of the alliance between Normandy and Flanders, which had been founded by the Conqueror’s marriage in 1053. It was true that French as well as Norman troops had been involved in the disaster at Bavinkhove, but William deliberately refused to make peace with Robert by recognising his right to Flanders, and threw him into the arms of the king of France by maintaining the claims of Baldwin, the brother of the dead Arnulf. The close friendship which this policy produced between France and Flanders for a time may suggest that William for once subordinated questions of state to personal feeling, but his own relations with a former king of France may have taught him that the alliances which a French monarch founded with one feudatory on a common hostility towards another were not likely to be very strong or permanent. It was not long after these events that King Philip threw away

his Flemish connections by the unprovoked capture of Corbie, preferring, perhaps wisely, a definite territorial gain to a hazardous diplomatic understanding; and when Robert the Frisian, in 1085, at last tried to take the offensive against William, he found support, not in the French monarchy, but in the distant powers of Norway and Denmark.^[235]

More dangerous than the open hostility of Flanders were the symptoms of disaffection which at this time were beginning to show themselves in the Norman dependency of Maine. Fortunately for William, the county had kept quiet during his occupation with the affairs of England, and the revolt which we have now to consider occurred at a time when he could give his full attention to the work of its reduction. The nationalist party in Maine had only been suppressed, not crushed, by the conquest of 1063, and after some five years of Norman rule their hopes began to revive, fomented probably by external suggestion on the part of Count Fulk of Anjou. There were in the field two possible claimants, both connected by marriage with the line of native counts: Azo, marquis of Liguria, husband of Gersendis, the eldest sister of the Herbert whose death in 1063 had led to the Norman occupation, and John de la Flèche, who had married Paula, the youngest of Herbert's three sisters. The seigneur of La Flèche was an Angevin lord, but he took the Norman side in the war which followed, and the nationalists made their application to the marquis of Liguria, who appeared in Maine with Gersendis his wife and Hugh their son, the latter being received as the heir of the county.^[236] Azo had brought with him great store of treasure from his Italian lordship, with which he secured a recognition of his son's claims from great part of the Mancel baronage, but upon the failure of his supplies his supporters began to fall away, and he soon retired in disgust beyond the Alps, leaving behind his wife and son to maintain the family cause under the guardianship of Geoffrey of Mayenne.

Thus far the Mancel revolt had run the normal course of its kind, but a more interesting development followed.^[237] Shortly after the departure of Azo the citizens of Le Mans, rejecting the leadership of their baronial confederates, broke away on a line of their own which gives them the distinction of anticipating by some twenty years the movement of municipal independence which in the next generation was to revolutionise the status of the great cities of Flanders and northern France. The men of Le Mans formed themselves into a "commune"^[238]; that is, a civic republic administered by elective officers and occupying a recognised legal position

in the feudal hierarchy to which it belonged. Had this association persisted, the citizens in their collective capacity might have held their city of the duke of Normandy or the count of Anjou, but they would have enjoyed complete independence in their local government and no principle of feudal law would have prevented them from appearing, still collectively, as the lord of vassals of their own. We do not know whether they may have been prompted to take this step by news of Italian precedents in the same direction, but the formation of a commune raised the revolt at a bound to the dignity of a revolution. The citizens, as was usual in such cases, united themselves in an oath to maintain their constitution and they compelled Geoffrey of Mayenne and the other barons of the neighbourhood to associate themselves in the same. Herein lay the seeds of future trouble, for Geoffrey of Mayenne, a typical feudal noble, had no liking for municipal autonomy, and it was largely his oppression as the representative of Azo and his heir which had stung the citizens into this assertion of their independence.

At the outset all went well with the young republic. We hear rumours of various violations of accepted custom, of the death penalty inflicted for small offences, and of a certain disregard for the holy seasons of the church; but the citizens were able to enter without immediate mishap upon the work of reducing the castles which commanded the country around. The commune of Le Mans did not live long enough to face the problem of welding a powerful rural feudality into a coherent city state, and its overthrow, when it came, came suddenly and disgracefully. Some twenty miles from Le Mans, the castle of Sillé was being held by Hugh its lord against the commune, and the men of the capital called out a general levy of their supporters within the county to undertake the siege of the fortress. A considerable body of men obeyed the summons, and the communal army set out for Sillé with Arnold, bishop of Le Mans, marching at its head. Hard by the castle the army from Le Mans was joined by Geoffrey of Mayenne with his tenants; but Geoffrey felt the incongruity of joining with a host of rebellious burghers in an attack on the castle of a fellow-noble, and he secretly entered into communications with Hugh of Sillé. Whether the rout of the civic host which occurred on the following day was the result of Geoffrey's treason cannot now be decided, but a sudden sally on the part of the garrison threw the besiegers into confusion, and, although they recovered themselves sufficiently to maintain the fight, they were finally

scattered by a report that Le Mans itself had fallen into the enemy's hand. Great numbers of them perished in the panic which followed, more by the precipitancy of their flight than by the efforts of the men of Sillé, and Bishop Arnold was among the prisoners.

Within the capital all was confusion. The cause of the commune had been hopelessly discredited, and there was treachery within the city as well as in the camp by Sillé. The castle of Le Mans was occupied in the nationalist interest by Gersendis of Liguria, who, immediately upon the retreat of her elderly husband to Italy, had become the mistress of Geoffrey of Mayenne. But Geoffrey, after his conduct at Sillé, did not venture to return to the capital, and Gersendis, unable to endure her lover's absence, began to plot the surrender of the castle to him. Her object was soon gained, and a fierce struggle raged for many days between the citizens and Geoffrey of Mayenne, now in the possession of their fortress. Betrayed and desperate, the men of Le Mans appealed for help to Fulk of Anjou, and pressed on the siege with such fury that Geoffrey was driven to make his escape by night. On Fulk's arrival the castle surrendered to him, and was dismantled, with the exception of such of its fortifications as could be turned to the general defence of the city against the greater enemy who was already on the way.

Quickly as events seem to have moved, there had yet been time for news of the revolt to be brought to King William in England, and the messenger of evil had been no less a person than Arnold bishop of Le Mans himself. Long before William's army had been set in motion Arnold had returned to Le Mans to play, as we have seen, a somewhat ignominious part in the catastrophe at Sillé. Meanwhile William had gathered a force, which is especially interesting from the fact that in it for the first time Englishmen were combined with Normans in the service of the lord of both races beyond the sea. Englishmen in the next generation believed that it was their compatriots who did the best service in this campaign, and William of Malmesbury thought that though the English had been conquered with ease in their own land yet that they always appeared invincible in foreign parts.

^[239] On the present occasion, however, there was little call for feats of arms. William entered Maine by the Sarthe Valley and besieged Fresnay, whose lord, Hubert, was soon driven by the harrying of his lands to surrender Fresnay itself and the lesser castle of Beaumont lower down the river. Sillé was the next point of attack, but Hugh of Sillé made his submission before the investment of his castle had begun, and William moved on southward

towards Le Mans. After the strife and confusion of the past months men were everywhere disposed to welcome the King as the restorer of peace, castles were readily surrendered to him, and the way lay open to the distracted capital. Here too, after a brief delay, he was received without opposition, but the men of Le Mans, before they surrendered the keys of the city, obtained from the king a sworn promise that he would pardon them for their revolt, and would respect their ancient customs and the independence of their local rights of jurisdiction.^[240] The commune of Le Mans ceased to exist, but in its last moments it had shown itself strong enough to win an act of indemnity from its formidable conqueror, and to guard itself against the possible consequences of a feudal reaction.

The war now entered upon another phase. Count Fulk was little minded to forego the position he had won in Le Mans as the protector of its commune, and, but for the unwonted strength of the Anglo-Norman army, it is likely enough that he would have made some effort to oppose William's march to the city. As it was, however, he contented himself with turning upon John de la Flèche, William's leading Angevin adherent, who immediately appealed to his ally for help. William at once despatched a force to his assistance under William de Moulins and Robert de Vieux Pont, a move which had the effect of widening the area of hostilities still further. Fulk proceeded to the siege of La Flèche, and called to his assistance Count Hoel of Brittany.^[241] The combined Breton and Angevin host would be far superior to any force which William's lieutenants had in the field in that quarter; and at the head of a large army, now as formerly composed of English as well as Norman troops, he hastened to La Flèche in person and everything betokened a pitched battle of the first class. But, at the supreme moment, an unnamed cardinal of the Roman Church, together with some pious monks, intervened in favour of peace, and within the circle of the Norman leaders Counts William of Evreux and Roger of Montgomery were of the same mind. Various conferences were held to discuss the conditions of a possible settlement, and at last, at Blanchelande, just outside the walls of La Flèche, a treaty was concluded.^[242] Now, as ten years earlier, Robert of Normandy was selected as count of Maine, and to him Fulk of Anjou released the direct suzerainty which he claimed over the barons of the county, together with all the fiefs which were Robert's marriage portion with Margaret, his affianced bride in 1061. Robert, in return, recognised Fulk as the overlord of Maine, and did homage to him in that capacity.

William promised indemnity to those Mancel barons who had taken the Angevin side in the late war, and Fulk was formally reconciled to John de la Flèche, and the other Angevin nobles who had leagued themselves with the king of England.

The treaty was in effect a compromise. All the immediate advantage, it is true, lay on the Norman side: the heir of Normandy was now the lawful count of Maine, and Robert's countship meant the effective rule of William the Conqueror, who even appropriated his son's title and in solemn documents would at times add to his Norman and English dignities the style of "Prince of the men of Maine." Yet, on the other hand, the formal recognition of the Angevin overlordship was no small thing. It gave to succeeding counts of Anjou a vantage ground which they did not neglect. The line which separated suzerainty from immediate rule, clear enough in law, would rapidly become indistinct when a strong prince like Fulk the Rechin was the overlord, and a feckless creature like Robert Curthose the tenant in possession. More than sixty years were to pass before a count of Anjou became the immediate lord of Maine, but the seeds of such a development were laid by the treaty of Blanchelande.

In the period which follows the suppression of the fenland rising of 1070, the bulk of our historical information relates to the affairs of the Conqueror's continental dominions. But in English history proper the time was one of crucial importance. Its character was not such as to invite the attention of a medieval chronicler, eager to fill his pages with a succession of battlepieces: with the exception of the revolt of the earls in 1075, England was outwardly at peace from the flight of Hereward to the Conqueror's death; but it is to this time that we must assign the systematic introduction of Norman methods of government, and the gradual reconciliation of the English people to the fact that they had thrown their last try for independence, and that for good or ill they must make the best of the permanent rule of their alien masters. A process of this kind, in itself largely subconscious, lay beyond the understanding of the best monastic annalist or chronicler, and we shall never know exactly in what light the great change presented itself to the peasantry of a single English village; but there are certain matters, more on the surface of the history, with regard to which we possess definite information, and which themselves are of some considerable importance.

Prominent among these last stands the question of the relations between the Conqueror and his unquiet neighbour, or, as William would probably have described him, his unruly vassal, Malcolm Canmore, king of Scots. The Scotch question had merely been shelved for a little time by the submission of 1068, and up to the Conqueror's death there remained several matters in dispute between the kings, each of which might serve as a decent pretext for war if such were needed. In particular the English frontier on the north-west emphatically called for rectification from King William's standpoint. Ever since the commendation of Cumbria to Malcolm I., in or about 954, the south-western border of Scotland had cut the English frontier at a re-entrant angle at a particularly dangerous point. From the hills which rise to 2000 feet along the boundary between Cumberland and Durham, the valley of the Tees affords a gradual descent to the fertile country which lies between the moors of the North Riding of Yorkshire and the hills of Cleveland. So long as Lothian remained part of the Bernician earldom, the strategical significance of Teesdale was to a great extent masked; no king of Scots could ravage the plain of north Yorkshire without facing the possibility that his country might be harried and his own retreat cut off by a counter raid from Bamburgh or Dunbar. But the cession of Lothian to Malcolm II. after the battle of Carham in 1018 materially altered the military situation, and but for the dissensions within the Scotch kingdom which followed Malcolm's death, it is probable that Yorkshire during the Confessor's reign would have received sharp proof of the danger which impended from the north-west.

Malcolm was succeeded by Duncan, the son of his sister by Crinan, lay abbot of Dunkeld; and on Duncan's displacement by Macbeth, leader of the Picts beyond the Forth, the position of the new king was too unstable to allow him to interfere effectively on the side of Northumbria. Relying as he did on Highland support, Macbeth seems to have left Cumberland in virtual independence, and it has recently been proved that during some part of the first fifteen years of his reign Cumberland was largely settled by English thegns who seem to have regarded themselves as subject to Earl Siward of Northumbria.^[243] On his part, Siward supported the party of Malcolm, Duncan's son; but when, three years after Siward's death, Malcolm had become king of Scots, the tide began to turn, and Cumberland became once more a menace to the peace of northern England.

The restoration of the son of Duncan to the throne of Scotland brought into importance the marriage relationship which existed between his line and the family which for a century had held hereditary possession of the Bernician earldom. The complicated relationships which united the local earls of Bernicia will best be illustrated in tabular form,^[244] but the outline of the Northumbrian succession is fairly clear. Siward, although a Dane by birth, was connected by marriage with the great Bernician house, but on his death in 1055 the ancient family was dispossessed of the earldom in favour first of Tostig and then of Morcar. Their earldoms, however, were mere incidents in the general rivalry between the houses of Godwine and Leofric, and the attachment of the Northumbrians to their local dynasty is shown by the fact that, at the crisis of 1065, Morcar is found appointing Oswulf, son of Earl Eadwulf II., subordinate earl of Bernicia beyond the Tyne. Upon Oswulf's murder his cousin Gospatric, as we have seen, bought a recognition of the family claims from the Conqueror; and it is not improbable that the latter, when making Gospatric his lieutenant in Northumbria, may have had in mind some idea of securing peace from the side of Scotland and conciliating the local sentiment of the north through an earl who inherited the blood of the ancient lords of Bamburgh and was near of kin to the king of Scots. The plan in the first instance failed through the defection of Gospatric in the summer of 1068, but the rapidity with which his restoration followed the submission which he tendered by proxy to William on the bank of the Tees at the close of 1069 is itself significant. In the interval created by Gospatric's deposition there had occurred the disastrous experiment of the appointment of Robert de Comines. It was as important now as two years previously to prevent the men of Northumberland and Durham from making common cause with Malcolm of Scotland against the Norman government; and now as formerly Gospatric was the one man who could, if he chose, perform this work. But before another year had passed the precarious tranquillity of the north was again broken, and the Scotch danger reasserted itself in the acutest of forms.

We might gather from the table above referred to, alone, that Malcolm, by his English connections, would be the natural protector of any dispossessed natives who might choose to seek refuge at his court, and we have seen that Edgar the Etheling had twice been driven to escape beyond the Tweed. We possess no information as to the motives which induced Malcolm in the course of 1070 to break peace with King William. In his

barbarian mind Malcolm may have conceived of himself as avenging the wrongs of his English friends by harrying the land from which they had been driven, or, more probably, the withdrawal of the Conqueror from the north may have seemed to him to open a safe opportunity for an extended plunder raid. Possibly he regarded his cousin Gospatric as having betrayed the cause of his people by doing homage to the Norman Conqueror, but whatever the immediate cause, he suddenly fell upon Northumbria by way of Cumberland and Teesdale, harried Cleveland and Holderness, and then turned back again upon the modern shire of Durham.^[245] And it was while he was in the act of burning the town of Wearmouth that Edgar the Etheling, with his mother and sisters, accompanied by Marleswegn, Harold's former lieutenant in the north, and other battered relics of the national party, landed from their ships in the harbour.^[246] So long as the Danes under Earl Asbiorn had kept to the Humber, it would seem that the etheling had been content to drift about aimlessly with them, but their departure for Ely had driven him to seek refuge for a third time within two years at the Scottish court. Malcolm went down to the fugitives and assured them of a welcome in Scotland, whither they sailed off without delay, while he betook himself with renewed energy to his work of devastation.

For in the meantime Gospatric had been doing what he would consider to be his duty as the lawful earl of Bernicia: while Malcolm was harrying Durham, Gospatric was harrying Cumberland. The action taken by King Malcolm had for the time being destroyed all possibility of a coalition between Scot and Bernician, and, on the present occasion, Gospatric's fidelity was unimpeachable, if his generalship was bad. He was successful in carrying off much booty to his fortress of Bamburgh, but he did nothing to check the Scot king's depredations, and the news of what had been happening in Cumberland excited Malcolm to a state of fury, in which he committed the most appalling atrocities on the country folk of the region through which his northward march lay. Red-handed as he was, Malcolm on his return to Scotland found the English exiles in the enjoyment of his peace, and forthwith insisted that Margaret, the etheling's sister, should be given to him in marriage. Some project of the kind had undoubtedly been mooted during the etheling's earlier visits to Scotland, but Margaret felt a desire to enter the religious life; and nothing but the fact that the very existence of the fugitives lay at Malcolm's mercy induced the etheling to give his consent to the union. The exact date of the ceremony is uncertain,

but it may not unreasonably be placed in the course of 1071, and with the alliance of the royal houses of Scotland and Wessex the northern kingdom begins to emerge from its barbaric isolation, and to fill a permanent place in the political scheme of English statesmen.

To William the marriage was no matter of congratulation. It meant that the Scottish court would become definitely interested in the restoration of the old English dynasty; so long as such an event were possible, it was likely to make Scotland both a refuge and a recruiting ground for any political exile who might choose to attempt his return by force and arms. To minimise these evils, and to avenge the harrying of 1070, the Conqueror in the summer of 1072 set out for Scotland in person. The expedition was planned on a great scale; the fyrd was called out, and the naval force which was at William's command co-operated with the native host. Malcolm seems to have felt himself unequal to meeting a force of this size in the open field; he allowed William to pass through Lothian and to cross the Forth without any serious obstruction, and the two kings met at Abernethy on the Tay. There Malcolm renewed his homage to William, made peace, and gave hostages for its observance, among them Donald, his son by his first wife, Ingibiorg. The expedition could not have been intended to accomplish more than this, and William at once turned southwards, retracing his steps along the great east coast road.^[247]

Nothing appears to have been done at this time to improve the defences of the northern border. Carlisle remained in Scotch hands, and the site of the future Newcastle on the Tyne is only mentioned in the record of this march through the fact of the river being flooded at the moment when the army sought to cross it, thereby causing an inconvenient delay. The importance of the Teesdale gap had been sufficiently proved by the events of 1070, but no attempt was made to guard the course of the river in any special manner. On the other hand we should do well not to ignore the possibility that the first creation of the earldom of Richmond immediately to the south of the Tees may not have been unconnected with the advisability of keeping a permanent military force in this quarter. The earldom in question had been conferred upon Brian of Penthievre in or before 1068, and had passed from him to his brother Alan by the date of the events with which we are dealing.^[248] So far as we know King William never created an earldom save for purposes of border defence, and the geographical facts which we have just

noted make it distinctly improbable that Richmond was an exception to this rule.

Two important changes in the government of Northumbria would seem to have been carried out at this time. The first was the installation of Walcher of Lorraine as bishop of Durham, and his establishment in a castle especially built for him, so that he might be secure against any spasmodic rising on the part of the men of his great diocese. The second event was the deposition of Earl Gospatric. He was held guilty, we are told, of complicity in the murder of Robert de Comines, and the Danish storm of York in 1069, although his offences in both these matters had been committed previous to his reconciliation with William in 1070. Whatever may have been the true cause of his downfall, it was followed immediately by the restoration of the house of Siward to its former position in the north, for the earldom of Northumbria was now given to Waltheof of Huntingdon, Siward's son, and remained in his hands until the catastrophe which overtook him three years later. Gospatric in the meantime betook himself to his cousin's court and received from him a large estate in Lothian, centring round the town of Dunbar, until he might be restored to King William's favour. With this act his political importance ceases; Domesday proves that the whole or part of his Yorkshire estates had been restored to him by the time of the taking of the Survey, but he never recovered his former rank and influence.

It has been conjectured with much probability that one of the conditions of the peace of Abernethy was the expulsion of Edgar the Etheling from Scotland.^[249] Shortly after this time he appears as beginning a series of journeys, which before long brought him once more into England as the honoured guest of King William. His first visit was paid to Flanders, where he would be sure of a kindly reception from Robert the Frisian, by this time William's mortal enemy. After a stay of uncertain length in Flanders he returned to Scotland, where he landed early in July 1074, and was hospitably entertained by his sister and her husband. Before long, however, he received an invitation from King Philip of France, offering to put him in possession of the castle of Montreuil, which he might use as a base from which to attack his enemies.^[250] The offer shows considerable strategical sense in the young king of France. Montreuil was the first piece of territory which the Capetian house had gained on the Channel coast, but it was separated by the possessions of the house of Vermandois from the body of

the royal demesne, and it lay between the counties of Ponthieu and Boulogne. Once established in Montreuil Edgar could have received constant support from Robert the Frisian; and if the counts of Ponthieu or Boulogne wished to revolt from the Norman connection Edgar's territory would have made it possible to form a compact and powerful league against the most vulnerable part of the Norman frontier.

Edgar complied with King Philip's request, and set out by sea to take possession of his castle; the good-will of his Scottish protectors being expressed in a multitude of costly gifts. Unfortunately for the success of his enterprise he was speedily driven on to the English coast by a storm and some of his men were taken prisoner, but he succeeded in reaching Scotland again, although in very miserable condition. Curiously enough this slight check to his plans seems to have caused him to abandon outright the idea of occupying Montreuil, and we are told that his brother-in-law advised him to make terms with King William. The Conqueror was at the time in Normandy, but he gave a ready hearing to the overtures from Edgar and directed that an escort should be sent to accompany him through England and across the Channel. Of the meeting between the king and the etheling in Normandy we possess no details, but the English writers were struck with the honours which the Conqueror showed to his former rival,^[251] and Domesday reveals the latter in peaceable possession of upwards of a thousand acres of land in the north-east of Hertfordshire. For the rest of William's reign Edgar remained a political cipher.

We have now reached the central event of William's rule in England, the revolt of the earls in 1075. The rising in question is sufficiently characterised by the name which is generally assigned to it; it was a movement headed by two of the seven earls who held office in England, incited by the motives proper to men of their rank, and finding little support outside the body of their personal dependants. It had no popular or provincial feeling behind it; it cannot even be described as a purely Norman revolt, for the mass of the English baronage held true to King William, and its most striking result was the execution of the last English earl, for complicity in the designs of his Norman confederates.

On the death of William Fitz Osbern in 1071 his earldom of Hereford had passed to his son, a stupid and vicious young man, in every way a degenerate successor to the tried and faithful friend of the Conqueror. From the moment of his succession to his earldom Roger seems to have kept

himself in sullen isolation in his palatinate across the Severn; his name has not yet been found among the visitors to William's court who witnessed the charters which the king granted during these years, and we should know nothing about the man or his character if it were not for the preservation of three letters addressed to him by his father's old friend Archbishop Lanfranc. At the time when these letters were written, William was in Normandy, and Lanfranc had been left in a sort of unofficial regency, in which position he had clearly been rendered uneasy by rumours of Roger's growing disaffection. Lanfranc, in his correspondence, was tactfully indefinite on the latter point, but he was very outspoken in regard to Roger's personal acts of oppression and injustice. By the example of William Fitz Osbern, "whom," says Lanfranc, "I loved more than anyone else in the world," the archbishop pleaded with his friend's son to amend his conduct, and promised to see him and give him counsel on whatever occasion he might choose. But Roger remained obdurate, and in the last letter of the three which we possess Lanfranc declares Roger excommunicate until he has compensated those whom he has injured, and has made his peace with the king for his arbitrary acts in his earldom.

The position of Waltheof at this time has already been described. His Bernician earldom was less important on this occasion than were the group of shires in the eastern midlands over which he also possessed comital rights. The four counties of Northampton, Bedford, Huntingdon, and Cambridge, together with Waltheof's extensive estates in Leicestershire and Warwickshire, went far towards connecting the palatinate of Hereford with the distant earldom of East Anglia, the most dangerous quarter of the present rebellion.

The earl of East Anglia, Ralf of Wader, might, like Waltheof, claim to be considered an Englishman; for, although his mother was a Breton and his father also bore the Norman name of Ralf, the latter was an Englishman of Norfolk birth, and had been earl of East Anglia under Edward the Confessor and during the earliest years of the Conqueror. Ralf the younger, despite his succession to his father's earldom, is identified with his mother's land of Brittany, where he held the estates of Wader and Montfort, rather than with England.^[252] Like Roger of Hereford, and judging from the same evidence, Earl Ralf would seem to have been a consistent absentee from William's court, and his one appearance in the history of the latter's reign, previous to

his own revolt in 1075, took place in 1069, when he beat off the Danes from the estuary of the Yare.

The immediate cause of the present outbreak was the Conqueror's objection to a marriage which had been projected between Earl Ralf and Emma, daughter of William Fitz Osbern and sister of Roger of Hereford. The reasons for the Conqueror's action are intelligible enough; nothing could be further from his interest than the creation of a series of marriage ties among the greater vassals of his crown, especially when the parties to be connected in this way held the wide military and territorial powers which at this early date were inherent in the dignity of an earl. There is no reason to suppose that Earl Ralf's loyalty had been suspected at any earlier time or that there was anything deeper than the royal prohibition of his marriage which now drove him into revolt. Without the king's consent, the marriage was celebrated and the wedding feast held at Exning in Cambridgeshire, a vill within Waltheof's earldom. Earls Roger and Ralf had already made preparations for their rising, their friends had been acquainted with their intention, and their castles were prepared to stand a siege; and at Exning a determined attempt was made to seduce Waltheof from his temporary fidelity to King William. His accession to their cause might very possibly bring with it some measure of English support, he had a great popular reputation as a warrior, and the plans and motives of the conspirators were unfolded to him at the wedding feast with startling frankness. The occasion was hardly such as to produce sobriety of counsel, and in the one extended narrative which we possess of the original plot, the terms of the offer now made to Waltheof were involved in a long harangue, in which the deposition of the Conqueror was declared to be a matter pleasing to God and man, and every event in William's life which could be turned to his discredit was brought forward, heightened according to the taste of the conspirators or the literary skill of our informant. More important than the grotesque crimes attributed to the Conqueror are the plans formed by the earls for the event of his expulsion. Their object, we are told, was to restore England to the condition in which it had existed in the days of Edward the Confessor. With this object, one of the three chief plotters was to be king, the other two earls; Waltheof in particular was to receive a third part of England. William was declared to be fully occupied beyond the sea, his Normans in England were assumed to be discontented with the reward they had received for their services, and it was suggested that the native English might be willing to

rise once more if a chance of revenge were offered them. Waltheof was assured that the chances of a successful rising could never be higher than at the moment in question.^[253]

The narrative of Ordericus Vitalis, which we have hitherto been following, makes Waltheof indignantly refuse to be a party to any scheme of the kind. By the examples of Ahitophel and Judas Iscariot he demonstrated the sinister fate that was the portion of a traitor, and declared that he would never violate the confidence that King William had placed in him. On his refusal to join the plot, he was compelled to take a terrible oath not to betray the scheme and the rising was accomplished without his assistance; but after its suppression the tale makes Waltheof accused of treason by Judith his wife before the king, and describes his behaviour in prison and the manner of his end with great wealth of detail and a not improbable approximation to the facts of the case. It seems fairly certain that Waltheof took no effective part in the military operations which followed the bridal of Exning, and we may consider the difficult question connected with his trial and execution apart from the details of the war.

The plan of campaign followed by both sides was extremely simple. Neither the earldom of East Anglia or of Hereford acting by itself could obtain any permanent success against the loyal portions of the country; the object of the rebel leaders was to join their forces, and the object of King William's lieutenants was to prevent the combination. The line of the Severn was guarded against Earl Roger of Hereford by the local magnates of Worcestershire, Wulfstan the bishop, and Urse d'Abetot the sheriff of the shire, Agelwig, abbot of Evesham, and Walter de Lacy, at the head of a force composed of the local fyrd in conjunction with the knightly tenants from their own estates.^[254]

The Herefordshire revolt had soon run its course; Earl Roger never got across the Severn and within a short time had been taken prisoner, but the earl of East Anglia was a person of greater ability. Before engaging in the rebellion the earls had sought for external help; application had been made to the King of Denmark for a fleet, and reinforcements had been drawn from Brittany, recruited in great part, no doubt, from the Breton estates of Ralf de Wader. From the latter's head-quarters at Norwich a highroad of Roman origin stretched invitingly across the Norfolk plain towards the royal castle of Cambridge, and Earl Ralf moved westward in the hope of effecting a junction with Roger of Hereford; but at an unknown place in the

neighbourhood of this line, designated by Ordericus Vitalis as “Fagadun,” the rebel army was broken and scattered, and from a letter which Lanfranc wrote to the king immediately after this event, the archbishop was evidently in expectation of a speedy suppression of the whole rising. That this hope was frustrated was due to the heroism of Earl Ralf’s bride, who undertook the defence of Norwich castle in person, while her lord went off to Denmark, and held out for three months against all that the Norman commanders could do. At last she was compelled to surrender upon conditions. The Breton tenants of Earl Ralf in England were required to abandon their lands and to withdraw to Brittany within forty days; the mercenaries of the same race were allowed a month to get away from the country. Emma herself, to whom belonged all the honours of the war, went to Brittany, where she met her husband, and Norwich castle was once more occupied in the king’s name.

Earl Ralf’s journey to Denmark had not been fruitless, for a fleet of two hundred Danish ships appeared in the Humber shortly after the fall of Norwich, under the command of Cnut, son of King Swegn Estrithson, and a certain earl called Hakon.^[255] Their coming reopened an endless possibility of further trouble; the Conqueror, through Archbishop Lanfranc, enjoined Bishop Walcher of Durham to look well to the defences of his castle.^[256] But the first object of the ordinary Danish commander of those times was always plunder, and Cnut after successfully evading the royal troops contented himself with the sack of York cathedral, and quickly sailed away to Flanders. In the very year of this expedition (1075), Swegn Estrithson died, and Harold, his eldest son, who succeeded him, kept peace towards England throughout his reign. In the autumn of 1075 William had returned to England, and at Christmas he proceeded to deal with the persons and property of the revolted earls. Waltheof and Roger were in his power; Ralf was safe beyond the sea, but his English lands remained for confiscation, and such of his Breton associates as were in the king’s hands were punished according to the fashion of the times. Earl Roger was sent to prison, but his captivity at first was not over severe, and had it not been for his contumelious conduct towards the king he might have obtained his release in due course. Unfortunately for himself, he mortally offended William by throwing into the fire a rich present of silks and furs which the king sent to him one Easter, and perpetual captivity was the return for the insult. The relative leniency of the Conqueror’s treatment of Roger contrasts very

strikingly with his attitude to the third earl implicated in the revolt, and no incident in King William's career has won more reprobation from medieval and modern historians than the sentence which he allowed to be passed on Earl Waltheof.

We have already sketched in outline the narrative of Waltheof's action as given by Ordericus Vitalis, and it will be well now to consider briefly the independent story told by the native English chronicles.^[257] On all accounts it is certain that Waltheof had been implicated in the treason proposed at Exning, and it is no less clear, though the fact is suppressed by Orderic, that he had speedily repented and under the advice of Lanfranc had revealed the whole scheme to King William in Normandy.^[258] The part played by Lanfranc is explicable, not only by the species of regency he held in the kingdom at the time, but also by his position as metropolitan of the English church, and his reputation as a famous doctor of the canon law. No man was better qualified to give a sound opinion as to the circumstances under which an indiscreet oath might be broken without the guilt of perjury; and the penances which he imposed on Waltheof for his intended breach of the engagement which he had taken at Exning seem to have been accepted by all parties as a satisfactory solution of the matter. On his part, William bided his time; he appears to have accepted the gifts which Waltheof offered as the price of his peace, and he contented himself with keeping the earl under his own supervision until his return to England. Not till then was Waltheof placed under actual arrest, and it has been conjectured that the reason for this action was the fear that he might make his escape to the Danes in the Humber.^[259] At the midwinter council of 1075 he was brought to trial, whether or not upon information laid against him by his wife, the countess Judith, and although no definite sentence was passed against him at this time he was sent into closer imprisonment at Winchester.

For the first five months of 1076 Waltheof's cause remained undecided. It is clear that there was considerable uncertainty in high quarters as to what should be done with him. Lanfranc interceded on his behalf, apparently going so far as to declare him innocent of all complicity in the revolt. We are told nothing of the Conqueror's own sentiments in the matter, but the strange delay in the promulgation of definite sentence suggests that throughout these months he had been halting between two opinions. At last the sterner view prevailed, and under the influence of Waltheof's Norman

rivals at the royal court, according to Ordericus Vitalis, the king gave orders for the execution of the last English earl.

Early on the morning of the 31st of May, Waltheof was taken from his prison in Winchester to die on the hill of St. Giles outside the city. Accustomed hitherto to the active life of his northern ancestors, the monotony of his imprisonment would seem to have destroyed his courage, and the fatal morning found him in bitter agony of soul. The executioners, who feared a rescue, and were anxious to get through with the work, had little patience with his prayers and weeping, and bade him rise that they might carry out their orders. Waltheof begged that he might be allowed to say a *pater noster* for himself and them, and they granted his request, but at the clause "*et ne nos inducas in tentationem*" his voice failed him, and he burst into a storm of tears. Before he could recover his strength, his head had been struck from him at a single blow, but the monks of Crowland abbey, where his body lay in after years, told their Norman visitor Ordericus Vitalis that the severed head was heard duly to finish the prayer with "*sed libera nos a malo, Amen.*"

The case of Earl Waltheof involves two separate questions which it is well to keep distinct in estimating the justice of King William's conduct in the matter. The first is how far Waltheof had really implicated himself in the designs of the earls of East Anglia and Hereford; the second is what, on the assumption of his serious guilt, would have been the lawful punishment for it. It does not seem likely that the first question will ever be finally answered, for by a singular chance none of our authorities are quite disinterested when they relate the circumstances of Waltheof's fall. The Anglo-Saxon chronicler and Florence of Worcester, compatriots of the dead earl, lie under some antecedent suspicion of minimising the extent to which he had compromised himself; and Ordericus Vitalis, to whom we should naturally turn for a statement of the Norman side of the case, based his account of Waltheof upon information received from the monks of Crowland at a time when the earl was, in popular sentiment, rapidly becoming transformed into a national martyr. Orderic's narrative, written under such influences, has just as much historical value as any professed piece of martyrology; that is, it probably presents the authentic tradition of the details of its hero's death, but it is not concerned to pay a scrupulous regard to facts which might be inconvenient for his reputation. And so King William for once has no apologist; but sixty years after the event it was

recognised by an impartial writer like William of Malmesbury^[260] that the Norman story about Waltheof was very different from that which the English put forward. With such untrustworthy authorities as our only guides, we should scarcely attempt to settle a matter which in the days of King Stephen was already a burning question, but our hesitancy should make us pause before we accuse King William of judicial murder.

To the second of the problems arising out of the case—the sentence which followed Waltheof’s condemnation—it is possible to find a more satisfactory answer. Nothing is more probable than that the Conqueror, in sending Roger of Hereford into prison and beheading Waltheof, was simply applying to criminals of high rank the great principle that men of Norman or of English race should be judged respectively according to Norman or English law.^[261] Earl Roger as a Norman, according to a practice on which we have already had occasion to remark, was condemned to imprisonment, but English law regarded treason as a capital offence, and Waltheof suffered the strict legal penalty of his crime. Indeed, Waltheof himself, in Orderic’s version of his reply to the conspirators at Exning, is made to declare that the English law condemned a traitor to lose his head, and it is probable that he was better informed on this point than have been some of the later historians who have undertaken his defence. During the next century, members of the Norman baronage established in England who had raised an unsuccessful revolt uniformly received sentence according to the rule which applied to men of their race; and the execution of a traitor against the king will scarcely occur between 1100 and 1200, and but rarely in the course of the thirteenth century. But Waltheof had no privilege of the kind, and, stern as was his sentence, he might not complain that formal justice had been denied him.

The revolt of 1075 produced a sequel in a small continental war. Earl Ralf, as we have seen, had fled to his estates in Brittany, and his appearance coincided in point of time with the outbreak of a general revolt among the Breton baronage. Count Hoel, who possessed in his own right five-sixths of Brittany, was the first of his line to exercise effective rule over the whole peninsula, and the fact was little to the liking of his greater subjects. The malcontents found a leader in Geoffrey “Grenonat,” count of Rennes, an illegitimate son of Alan III.; and the dispossessed earl of East Anglia brought the resources of his barony of Wader to their side. Ralf and Geoffrey seized the castle of Dol; and the rising assumed such serious

proportions that Hoel sent to England, and requested King William's assistance. William, ever desirous of asserting Norman influence in Brittany, took the present opportunity, and in 1076 he crossed the Channel with a force which to the chroniclers of Worcester and Peterborough represented an English fyrd, and laid siege to Dol. The result was a serious loss of prestige, for the garrison had answered Hoel's application to William by making a counter-appeal to Philip of France, and held out valiantly in the expectation of relief. Philip took the field with a large army, advanced to Dol, and took a measure of revenge for his father's discomfitures at Mortemer and Varaville, by compelling William to beat a hasty retreat with the loss of his baggage and stores. William engaged no further in the war which dragged on for three years longer, but ended in 1079 with the final success of Hoel.^[262]

In the meantime, certain important changes had taken place in the administrative geography of England. The earldoms of Hereford and East Anglia, vacant through the treason of Earls Roger and Ralf, were allowed to fall into abeyance. Waltheof's earldom of Northampton likewise became extinct, although his widow, the countess Judith, was possessed in 1086 of large estates scattered over the shires which had lain within her husband's government. There was no particular reason why Northamptonshire should possess an earl, but it was still abundantly necessary that William should be represented by a permanent lieutenant on the Scotch border. An earl for Bernicia was now found in the person of Walcher of Lorraine, whose appointment anticipated by more than sixty years the beginning of the long series of bishops of Durham, whose secular powers within their diocese produced the "county palatine" which lasted until 1836.^[263] The experiment made in Walcher's appointment was destined to end in tragic failure, but for four years Northumbrian affairs relapse into unwonted obscurity, and the Conqueror was never again called upon to lead an army into the north.



Denier of Robert le Frison

CHAPTER IX

THE LAST YEARS OF THE CONQUEROR

With the peace of Blanchelande we enter upon the last phase in the life of William the Conqueror, and this although more than the half of his English reign still lay in the future. It must be owned that no unity of purpose or achievement can be traced underlying this final stage; the history of these last years is little more than a series of disconnected episodes, of which the details themselves are very imperfectly known to us. It has, in fact, been customary for historians to regard this period as marking somewhat of a decline in the character and fortunes of the Conqueror; a decline which the men of the next generation were inclined to attribute to supernatural vengeance pursuing the king for his execution of Earl Waltheof in 1076. "Such was his resolution," says Orderic, "that he still maintained a brave fight against his enemies, but success did not crown his enterprises now as formerly, nor were his battles often crowned with victory."^[264] This idea of retributive fate, characteristic of the medieval mind, has received from historians various adaptations and exemplifications, but perhaps a more reasonable explanation of the tameness of the last years of the Conqueror would be that the achievements of the decade between 1060 and 1070 inevitably make the succeeding history something of an anticlimax. The Conqueror's last wars are indeed inconsiderable enough when compared with the campaigns of Le Mans and Hastings, but the most unique undertaking of his life falls within two years of its close; and with the Domesday Survey before us we need no further proof that the far-sightedness of the king's policy and the strength of his executive power were still unimpaired at the very close of his career.

The main cause of the difficulties which beset the King in these latter years was the undutiful eagerness of Robert of Normandy to anticipate his inheritance. It was natural enough that Robert should wish to enjoy the reality of power; for a dozen years at least he had been the recognised heir

of Normandy, and the peace of Blanchelande had recently assigned him the county of Maine. But so early as 1074 the earls of Hereford and Norfolk, in planning their revolt, are understood to have reckoned the disagreement between the King and his eldest son among the chances in their favour,^[265] and it is certain that Robert had been bitterly discontented with his position for some time before he broke out into open revolt. The chronology of his movements is far from clear; but at some time or other he made a wild attempt to seize the castle of Rouen, and when this failed he found an immediate refuge and base of operations in the land of Hugh de Châteauneuf, a powerful lord on the border between Normandy and the royal demesne, who allowed him to occupy his castles of Raimalast, Sorel, and Châteauneuf. King William, on his part, confiscated the lands of the rebels; he also took into his pay Count Rotrou of Mortagne, the overlord of Hugh of Châteauneuf for Raimalast; and Robert was soon driven to seek a more distant exile in foreign parts. He first visited Flanders, but Robert the Frisian, notwithstanding his enmity towards his formidable brother-in-law, did not think it worth while to spend his resources upon his irresponsible nephew, for the latter is represented as wandering vaguely over Touraine, Germany, Aquitaine, and Gascony in great destitution. To such straits was he reduced, that his mother provoked the one dispute which varied the domestic peace of the Conqueror's married life by sending supplies to her son in exile. The king, on discovering this, became convulsed with rage, poured reproaches on his queen for her support of a rebel, and ordered one of her messengers, who happened to be within his power, to be seized and blinded. The latter, however, a Breton named Samson, received a timely hint of his danger from persons in the confidence of the queen, and took refuge in the monastery of St. Evroul, "for the safety alike of his soul and body," says Ordericus Vitalis, who for some forty years was his fellow-inmate in the abbey.

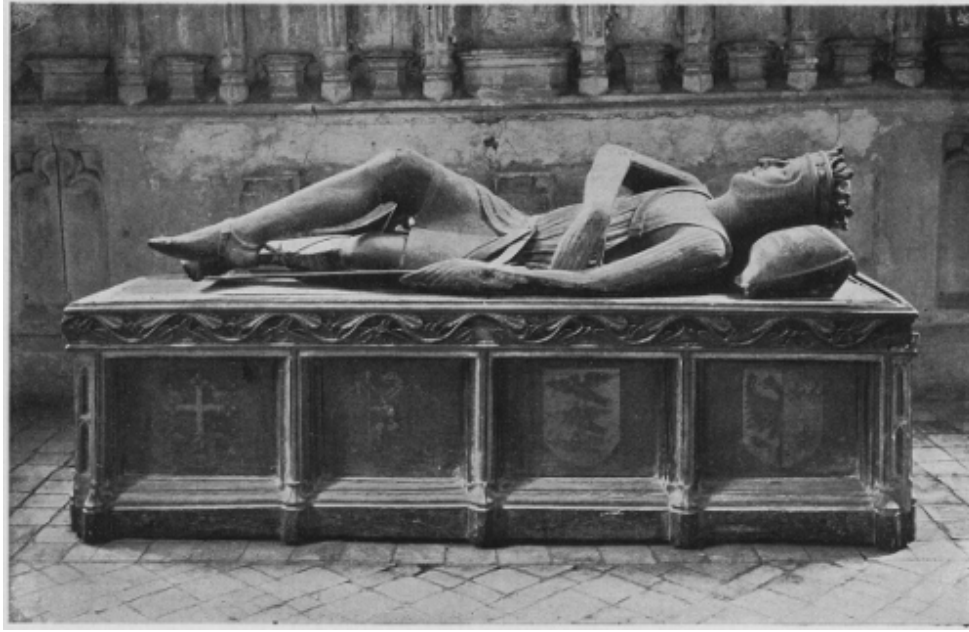
At last King Philip took pity upon the fugitive Robert and allowed him to establish himself in the castle of Gerberoi in the Beauvaisis. The king's patronage of Robert ranks, as a matter of policy, with his gift of Montreuil to Edgar the Etheling in 1074; Philip was always ready to take an inexpensive opportunity of harassing his over-mighty vassal. Around Robert, in this cave of Adullam, there gathered a force of adventurers from Normandy and the French kingdom, including many men who had hitherto been good subjects to King William, but now thought it expedient to follow

the rising fortunes of his heir. William retaliated by garrisoning the Norman castles which lay nearest to Gerberoi, so as to prevent the rebels from harrying the border; and in some way he must have brought the king of France over to his side; for when, in the last days of 1078, he laid formal siege to his son's castle, we know on good authority that King Philip was present in his camp.^[266] The siege lasted for three weeks, and in one of the frequent encounters between the loyalists and the rebels there occurred the famous passage of arms between the Conqueror and his son. William was wounded in the hand by Robert, his horse was killed under him, and had not a Berkshire thegn, Tokig, son of Wigod of Wallingford, gallantly brought another mount to the king,^[267] it is probable that his life would have come to an ignominious close beneath the walls of Gerberoi. It was very possibly the scandal caused by this episode which led certain prominent members of the Norman baronage to offer their mediation between the king and his heir. The siege seems to have been broken up by mutual consent; William retired to Rouen, Robert made his way once more into Flanders, and a reconciliation was effected by the efforts of Roger de Montgomery, Roger de Beaumont, Hugh de Grentemaisnil, and other personal friends of the king. Robert was restored to favour, his confederates were pardoned, and he once more received a formal confirmation of his title to the duchy of Normandy. For a short time, as charters show, he continued to fill his rightful place at his father's court, but his vagabond instincts soon became too strong for him and he left the duchy again, not to return to it during his father's lifetime.

One is naturally inclined to make some comparison between these events and the rebellion which a hundred years later convulsed the dominions of Henry II. Fundamentally, the cause of each disturbance was the same—the anxiety of the reigning king to secure the succession, met by equal anxiety on the part of the destined heir to enjoy the fruits of lordship. And in each case the character of the respective heirs was much the same. Robert Curthose and Henry Fitz Henry, both men of chivalry, rather than of politics, showed themselves incapable of appreciating the motives which made their fathers wish to maintain the integrity of the family possessions; the fact that they themselves were debarred from rewarding their private friends and punishing their enemies, seemed to them a sufficient reason for imperilling the results of the statesmanship which had created the very inheritance which they hoped to enjoy. Robert of Normandy, a gross

anticipation of the chivalrous knight of later times, represents a type of character which had hitherto been unknown among the sons of Rollo, a type for which there was no use in the rough days when the feudal states of modern Europe were in the making, and which could not attain any refined development before the Crusades had lifted the art and the ideals of war on to a higher plane. William the Conqueror, by no means devoid of chivalrous instincts, never allowed them to obscure his sense of what the policy of the moment demanded; Henry II. was much less affected by the new spirit; both rulers alike were essentially out of sympathy with sons to whom great place meant exceptional opportunities for the excitement and glory of military adventure, rather than the stern responsibilities of government.

We know little that is definite about the course of events which followed upon the reconciliation of King William and his heir. The next two years indeed form a practical blank in the personal history of the Conqueror, and it does not seem probable that he ever visited England during this interval. In his absence the king of Scots took the opportunity of spreading destruction once again across the border, and in the summer of 1079 he harried the country as far as the Tyne, without hindrance, so far as our evidence goes, from the clerical earl of Northumbria. The success of this raid was a sufficient proof of the weakness of the Northern frontier of England, and in the next year^[268] Robert of Normandy was entrusted with the command of a counter-expedition into Scotland, with orders to receive the submission of the king of Scots, or, in case he proved obdurate, to treat his land as an enemies' country. The Norman army penetrated Scotland as far as Falkirk, and, according to one account, received hostages as a guarantee of King Malcolm's obedience. Another and more strictly contemporary narrative, however, states that this part of the expedition was fruitless; but, in any case, Robert on his return founded the great fortress of Newcastle-on-Tyne as a barrier against future incursions from the side of Scotland.



PITCHER, PHOTO. GLOUCESTER

TOMB OF ROBERT COURTHOSE

Some information as to William's own movements in Normandy during 1080 may be gathered from charters and other legal documents. On the 7th of January he was at Caen,^[269] and on the 13th he appears at Boscherville on the Seine^[270]; at Easter he held a great court probably at Rouen.^[271] At Whitsuntide he presided over a council at Lillebonne,^[272] where a set of canons was promulgated which strikingly illustrates his opinion as to the relations which should exist between church and state.

Whitsunday in 1080 fell on the 31st of May, and serious disturbances had been taking place in England earlier in the month. Bishop Walcher of Durham had proved an unpopular as well as an inefficient earl of Northumbria. Himself a foreigner and a churchman, he must from the outset have been out of touch with the wild Englishmen placed under his rule, and the situation was aggravated by the fact that the bishop's priestly office compelled him to transact the work of government in great part by deputy. He entrusted the administration of his earldom to a kinsman of his own called Gilbert,^[273] and in all matters of business he relied on the counsel of an ill-assorted pair of favourites, one of them a noble Northumbrian thegn called Ligulf, who found his way to his favour by the devotion which he professed to Saint Cuthbert, the other being his own chaplain, Leobwine, a

foreigner. Jealousy soon broke out between the thegn and the chaplain, and at last the latter, being worsted by his rival in a quarrel in the bishop's presence, took the above mentioned Gilbert into his confidence and prevailed on him to destroy the Englishman secretly. On hearing the news the bishop was struck with dismay, and, in his anxiety to prove his innocence, summoned a general meeting of the men of his earldom to assemble at Gateshead. The assembly came together, but the Bernicians were in a dangerous humour; the bishop dared not risk a deliberation in the open air, and took refuge in the neighbouring church. Instantly the gathering got out of hand, the church was surrounded and set on fire, and the bishop and his companions were cut to pieces by the mob.

For such an act as this there could be no mercy. The punishment of the murderers was left to Walcher's fellow-prelate Odo of Bayeux, and the vengeance which he took was heavy. It must have been impossible to determine with accuracy the names of those who had actually joined in the crime, but it is evident that men from all parts of Bernicia had taken part in the meeting at Gateshead, and the whole earldom was held implicated in the murder. Accordingly the whole district was ravaged, and the bishop of Bayeux administered death and mutilation on a scale unusual even in the eleventh century.^[274] To the thankless dignity of the Northumbrian earldom, the Conqueror appointed Aubrey de Coucy, a powerful Norman baron; but he soon abandoned the task of governing his distressful province and retired to his continental estates. To him there succeeded Robert de Mowbray, who was destined to be the last earl of Bernicia, but who proved more successful than any of his predecessors in the work of preserving order and watching the movements of the king of Scots; and for the next ten years Northumbria under his stern rule ceases to trouble the central administration.

The chief interest of the following year in the history of the Conqueror lies in the singular expedition which he made at this time beyond the limits of his immediate rule into the extreme parts of Wales. The various but scanty accounts of this event which we possess are somewhat conflicting. The Peterborough chronicler says that the king "in this year led an army into Wales and there freed many hundred men." The *Annales Cambriæ* tell us that "William, king of the English, came to St. David's that he might pray there." Very possibly the Conqueror did in reality pay his devotions at the shrine of the apostle of Wales, but secular motives were not lacking for an armed demonstration in that restless land. So long as the Normans in

England itself were only a ruling minority, holding down a disaffected population, the conquest of Wales was an impossibility; and yet on all grounds it was expedient for the king to show the Welshmen what reserves of power lay behind his marcher earls of Shrewsbury and Chester. The expedition has a further interest as one of the earliest occasions on which it is recorded that the feudal host of England was called to take the field; the local historian of Abingdon abbey remarked that nearly all the knights belonging to that church were ordered to set out for Wales, although the abbot remained at home.^[275] It does not appear that any of the native princes of South Wales suffered displacement at this time; the one permanent result of the expedition would seem to have been the foundation of Cardiff castle^[276] as an outpost in the enemies' land. The strategical frontier of England in this quarter consisted of the line of fortresses which guarded the lower course of the Wye, and the settlement of the Welsh question, like the settlement of the Scotch question, was a legacy which the Conqueror left to his successors.

After these events, but not before the end of the year, King William withdrew into Normandy, and probably spent the greater part of 1082 in his duchy. But his return to England was marked by one of the most dramatic incidents in his whole career, the famous scene of the arrest of Odo, bishop of Bayeux and earl of Kent. Up to the very moment of the bishop's fall, the relations between the brothers appear to have been outwardly friendly, and in an English charter of the present year, the bishop appears at court in full enjoyment of his lay and spiritual titles.^[277] The cause of the final rupture is uncertain. Ordericus Vitalis^[278] assigned it to the unprecedented ambition of Bishop Odo, who, not content with his position in England and Normandy, was supposed to be laying his plans to secure his election to the papal chair at the next vacancy. According to this tale, the bishop had bought himself a palace in Rome, bribed the senators to join his side, and engaged a large number of Norman knights, including no less a person than the earl of Chester, to follow him into Italy when the time for action came. Whatever Odo's plans may have been, William received news of them in Normandy, and he hurried across the Channel, intercepting Odo in the Isle of Wight. Without being actually arrested, Odo was placed under restraint, and a special sitting of the Commune Concilium was convened to try his case. The subsequent proceedings were conducted in the Isle of Wight, very possibly in the royal castle of Carisbrooke, and King William himself seems

to have undertaken his brother's impeachment. The articles laid against Odo fell into two parts, a specific charge of seducing the king's knights from their lawful duty, and a general accusation of oppression and wrong-doing to the church and to the native population of the land. The task of giving judgment on these points belonged by customary law to the barons in council, but they failed to give sentence through fear of the formidable defendant before them, and the Conqueror himself was compelled to issue orders for Odo's arrest. Here another difficulty presented itself, for no one dared lay hands on a bishop; and upon William seizing his brother with his own hands, Odo cried out, "I am a bishop and the Lord's minister; a bishop may not be condemned without the judgment of the Pope." To this claim of episcopal privilege William replied that he arrested not the bishop of Bayeux, but the earl of Kent, and Odo was sent off straightway in custody to the Tower of Rouen. At a later date it was suggested that the distinction between the bishop's lay and spiritual functions was suggested to the king by Lanfranc,^[279] whose opinion as an expert in the canon law was incontrovertible; and apart from the dramatic interest of the scene the trial of Odo has special importance as one of the few recorded cases in which a question of clerical immunity was raised before the promulgation of the Constitutions of Clarendon.

The one extended narrative which we possess of these events was composed some forty years after the date in question, and the scheme which is attributed to Bishop Odo may well seem too visionary a project to have been undertaken by that very hard-headed person, yet on the whole we shall probably do well to pay respect to Orderic's version of the incident. For, although the militant lord of Bayeux might seem to us an incongruous successor for the saintly Hildebrand, it must as yet have been uncertain how far the church as a whole had really identified itself with the ideals which found their greatest exponent in Gregory VII., and the situation in Italy itself was such as to invite the intervention of a prelate capable of wielding the secular arm. The struggle between pope and emperor was at its height, and within three years from the date of Odo's arrest Hildebrand himself was to die in exile from his city, while Norman influence was all-powerful in south Italy. The tradition represented in Orderic's narrative shows an appreciation of the general situation, and if we regard the motive assigned for Odo's preparations as merely the monastery gossip of the next generation, yet the bishop's imprisonment is a certain fact, and the unusual

bitterness of King William towards his half-brother would suggest that something more than political disloyalty gave point to the latter's schemes. Nevertheless the captivity in which Bishop Odo expiated his ambition cannot have been enforced with very great severity, for in the five years which intervened between his disgrace and William's death he appears at least occasionally in attendance at his brother's court.

The circle of the Conqueror's immediate companions was rapidly breaking up now. On November 3rd, 1083, Queen Matilda died, and was buried in the convent of the Holy Trinity at Caen, which she had founded in return for her lord's safety amid the perils of his invasion of England. Archbishop Lanfranc and Earl Roger of Montgomery almost alone represented the friends of King William's early manhood at the councils of his last four years. Through all the hazards of her married life Matilda of Flanders had played her part well; if William the Conqueror alone among all the men of his house kept his sexual purity unstained to the last, something at least of this may be set down to his love for the bride whom he had won, thirty years before, in defiance of all ecclesiastical censure. Nor should Matilda's excellence be conceived of as lying wholly in the domestic sphere; William could leave his duchy in her hands when he set out to win a kingdom for himself and her, and William was no contemptible judge of practical ability in others. We shall hardly find in all English medieval history another queen consort who takes a place at once more prominent and more honourable.

In the year following Queen Matilda's death, the Conqueror's attention was for the last time concentrated on the affairs of Maine, and in a manner which illustrates the uncertain tenure by which the Normans still held their southern dependency. Twenty years of Norman rule had failed to reconcile the Manceaux to the alien government. The rising of 1073 had proved the strength and extent of the disaffection, and from the events of the present year it is plain that the Norman element in Maine was no more than a garrison in hostile territory, although the disturbance which called William into the field in 1084 was merely the revolt of a great Mancel baron fighting for his own hand, which should not be dignified with the name of a national movement. In the centre of the county the castle of Sainte-Suzanne stands on a high rock overlooking the river Arne, one of the lesser tributaries of the Sarthe. This fortress, together with the castles of Beaumont and Fresnay on the greater river, belonged to Hubert the viscount of Maine, who had been a

prominent leader of the Mancel nationalists in the war of 1063, and had subsequently married a niece of Duke Robert of Burgundy. Formidable alike from his position in Maine and his connection with the Capetian house, Hubert proved himself an unruly subject of the Norman *princeps Cenomannorum* and after sundry acts of disaffection he broke into open revolt, abandoned his castles of Fresnay and Beaumont, and concentrated his forces on the height of Sainte-Suzanne. Like Robert of Normandy at Gerberoi, five years before, Hubert made his castle a rendezvous for all the restless adventurers of the French kingdom, who soon became intolerable to the Norman garrisons in Le Mans and its neighbourhood. The latter, it would seem, were not strong enough to divide their forces for an attack on Sainte-Suzanne, and sent an appeal for help to King William, who thereupon gathered an army in Normandy, and made ready for his last invasion of Maine.



WILLIAM THE CONQUEROR

(AS CONCEIVED BY A FRENCH PAINTER OF THE SIXTEENTH CENTURY)

THE ORIGINAL OF THIS PICTURE, NOW LOST, WAS PAINTED BY AN ARTIST WHEN THE TOMB OF THE CONQUEROR WAS OPENED IN 1522. A COPY EXECUTED IN 1708, IS PRESERVED IN THE SACRISTY OF ST. ETIENNE'S CHURCH AT CAEN; THE PRESENT ILLUSTRATION IS FROM A PHOTOGRAPH OF THAT COPY



WESTERN NORMANDY

But for once in his life the Conqueror found himself confronted by an irreducible fortress. “He did not venture to lay siege to the castle of Sainte-Suzanne,” says Orderic,

“it being rendered impregnable by its position on rocks and the dense thickets of vineyards which surrounded it, nor could he confine the enemy within the fortress as he wished, since the latter was strong enough to control supplies and was in command of the communications. The king therefore built a fortification in the valley of Bonjen, and placed therein a strong body of troops to repress the raids of the enemy, being himself compelled to return into Normandy on weighty affairs.”^[280]

As William had no prospect of reducing the castle, either by storm or blockade, he was well advised to save his personal prestige by retreat, but the garrison of his counterwork under his lieutenant Alan Earl of Richmond proved themselves unequal to the task assigned them. For three years, according to Orderic, the operations in the Arne valley dragged on, and the fame of Hubert's successful resistance attracted an increasing stream of volunteers from remote parts of France. At last, when many knights of fame had been killed or taken prisoner, the disheartened Normans at Bonjen resolved to bring about a reconciliation between the king and the viscount. William was in England at the time, and on receiving details of the Norman losses before Sainte-Suzanne he showed himself willing to come to terms with Hubert, who thereupon crossed the Channel under a safe conduct and was restored to favour at the royal court.^[281]

With this failure closes the record of the Conquerors achievements in Maine. The events of the next ten years proved that the triumph of Hubert of Sainte-Suzanne was more than the accidental success of a rebellious noble; a national force lay behind him and his crew of adventurers, which came to the front when Helie de la Flèche struggled for the county of Maine with William Rufus. In the process which during the next half-century was consolidating the feudal world of France, Maine could not persist in isolated independence, but its final absorption into Anjou was less repugnant to local patriotism and the facts of geography than its annexation by the lords of Rouen. Those who have a taste for historical parallels may fairly draw one between William's wars in Maine and his descendant Edward I.'s attack on the autonomy of Scotland, with reference to the manner in which an initial success was reversed after the death of the great soldier who had won it, by the irreconcilable determination of the conquered people. But there lies a problem which cannot be wholly answered in the question why King William's work, so permanent in the case of England, was so soon undone in the case of the kindred land of Maine.

It is possible that the Conqueror's placability toward Hubert of Sainte-Suzanne was not unconnected with a more formidable danger threatening England from the north and east. Once more the Scandinavian peril hung over the land. Harold of Denmark, the eldest son of Swegn Estrithson, had died in 1080, and his brother and successor Cnut married the daughter of William's inveterate enemy, Count Robert of Flanders. In this way a family

alliance between the two strongest naval powers of the north was called into being; and in 1085 the king and the count planned a joint invasion of England. Cnut attempted to draw King Olaf of Norway into the expedition, and received from him a contingent of sixty ships, but Olaf would not join in person, giving as his reason that the kings of Norway had always been less successful than the kings of Denmark in enterprises against England, and that his kingdom had not yet recovered from the disaster of 1066.^[282] But now, as in the former year, England had no fleet available for serious naval operations; and King William's subjects must have thought that his defensive measures were as ruinous to the districts affected as the passage of an invading army itself. The king was in Normandy when he became apprised of the danger, and he hastened across the Channel, with a great force of French and Breton mercenaries, "so that people wondered how the land could feed all that army," remarks the Peterborough chronicler. The king arranged for the billeting of the host among his barons, and then proceeded deliberately to lay waste the parts of the country exposed to attack; a precaution which would have kept the enemy from advancing far from the coast, but which must have cruelly afflicted the poorer folk of the eastern shires.^[283] Meanwhile a great armament from Flanders and Denmark had been gathered in the Lijm fiord, and all was ready for the voyage when on July 10, 1086, Cnut was murdered in the church of Odensee.^[284] His death meant the abandonment of the expedition, but is probable that his abortive schemes contributed to one of the most notable events of William's reign—the oath of Salisbury of 1086.

The king had kept the feast of 1086 at Winchester and had knighted his youngest son, Henry, in the Whitsuntide council at Westminster. Not long afterwards he turned westward again, and by the first of August had come to Salisbury, where he held an assembly of very exceptional character. "There his Witan came to him," says the Anglo-Saxon chronicler, "and all the landholding men in England, no matter whose men they might be, and swore him fealty that they would be true to him against all men."^[285] The native chronicler in his cell at Peterborough was evidently impressed by the scale of all the Conqueror's measures in these last years, and his statement that all the land-holding men in England came to the Salisbury meeting must not be construed too literally, but he has seen clearly enough what was the real purpose of the famous oath. It was no slight matter that King William was strong enough to exact from each mesne tenant in his kingdom

an absolute oath of allegiance to himself in person, without explicit reference to the tie of homage which bound individual tenants to their immediate lords. But, significant as is this clear enunciation of the principle that the king's claim to fealty overrides the lord's claim to service, it should not be taken to imply any revolutionary change in the current doctrines of feudal law. It is highly probable that this general oath was demanded with the single purpose of providing against the defection of disloyal knights and barons to Cnut of Denmark in the imminent event of his landing. News travelled slowly in the eleventh century, and King William at Salisbury on August 1st could not well have heard of the murder at Odensee on July 10th. But apart from this, any feudal monarch could have maintained in theory that the facts of subinfeudation should not invalidate his sovereign rights; the question was merely as to the possibility of enforcing the latter. The exceptional power enjoyed by William and his successors in this respect was due to the intimate relations established between the king and his feudatories by the circumstances of the Conquest; the Oath of Salisbury was a striking incident and little more.

It was probably not long after the famous scene at Salisbury that the Conqueror crossed the Channel for the last time. No chronicler has recorded the name of the port which witnessed King William's last embarkation, but we know that he called at the Isle of Wight on his way to Normandy, and we may suppose that he had set sail from some Hampshire or Sussex haven. His subjects probably rejoiced at his departure, for England had fallen on evil times in these last years. The summer of 1086 had been disastrous for a population never living far from the margin of subsistence. "This year was very grievous," laments the native chronicler, "and ruinous and sorrowful in England through the murrain; corn and fruit could not be gathered and one cannot well think how wretched was the weather, there was such dreadful thunder and lightning, which killed many men, and always kept growing worse and worse. God Almighty amend it when it please him." But the bad harvest brought its inevitable train of famine and pestilence, and 1087 was worse than 1086 had been. It was the agony of this year that called forth the famous picture of the Conqueror's fiscal exactions, how the miserly king leased his lands at the highest rent that could be wrung out of the poor men by right or wrong; how his servants exacted unlawful tolls. Medieval finance was not elastic enough to adapt itself to the alternation of good and bad seasons; and in a time of distress men were crushed to the earth by rents

and taxes, which, as Domesday Book shows, they could afford to bear well enough in years of normal plenty. The monk of Peterborough took no account of this, and yet he clearly felt that he had reached the climax of disaster as he recorded the death of William the Conqueror.

The question of the Vexin Française, which, by a singular chance, was to cost the Conqueror his life, originated in the days of Duke Robert of Normandy and Henry I. of France. We have seen that King Henry, in return for help given by Robert to him in the difficult time of his accession, ceded the Vexin Française to the Norman Duke. Drogo, the reigning count, remained true to the Norman connection, and accompanied Duke Robert to the Holy Land, where he died; but his son Walter wished to detach the Vexin from association with Normandy and to replace himself under the direct sovereignty of the king of France. He proved his hostility to William of Normandy in the campaign of Mortemer, and by the claims which he raised to the county of Maine in 1063, but he died without issue, and his possessions passed to his first cousin, Ralf III., count of Valois. The house of Valois was not unfriendly to Normandy, and from 1063 to 1077 its powerful possessions were a standing menace to the royal demesne. But in the latter year the family estates were broken up by a dramatic event. Simon de Crepy, the son of Count Ralf, who had successfully maintained his position against Philip I., felt nevertheless a desire to enter the religious life, and on his wedding night he suddenly announced his determination, persuaded his young bride to follow his example, and retired from the world. Philip I. thereupon reunited the Vexin to the royal demesne without opposition from William of Normandy, who was at the time much occupied with the affairs of Maine.^[286] For ten years William acquiesced in the state of affairs, and his present action took the form of a reprisal for certain raids which the Frenchmen in Mantes had lately been making across the Norman border. It would clearly have been useless to expect King Philip to intervene, and William accordingly raised the whole Vexin question once more, and demanded possession of Pontoise, Chaumont, and Mantes, three towns which command the whole province.

It does not seem that Philip made any attempt to defend his threatened frontier, and he is reported to have treated William's threats with contempt. Thereupon, the Conqueror, stung by some insult which passed at the time, suddenly threw himself with a Norman force across the Epte, and harried the country until he came to Mantes itself. The garrison had left their posts

on the previous day, in order to inspect the devastation which the Normans had wrought in the neighbourhood, and were surprised by King William's arrival. Garrison and invaders rushed in together headlong through the gates of the city, but the Normans had the victory, and Mantes was ruthlessly burned. And then King William, while riding among the smouldering ruins of his last conquest, in some way not quite clearly known, was thrown violently upon the pommel of his saddle, and his injury lay beyond the resources of the rough surgery of the eleventh century.

Stricken thus with a mortal blow, King William left the wasted Vexin for his capital of Rouen, and for six weeks of a burning summer his great strength struggled with the pain of his incurable hurt. At first he lay within the city of Rouen itself, but as the days passed he became less able to bear the noise of the busy port, and he bade his attendants carry him to the priory of Saint-Gervase, which stands on a hill to the west of the town. The progress of his sickness left his senses unimpaired to the last, and in the quiet priory the Conqueror told the story of his life to his sons William and Henry, his friend and physician Gilbert Maminot, bishop of Lisieux, Guntard, abbot of Jumièges, and a few others who had come to witness the end of their lord. Two independent narratives of King William's *apologia* have survived to our day, and, although monastic tradition may have framed the tale somewhat to purposes of edification, yet we can see that it was in no ignoble spirit that the Conqueror, under the shadow of imminent death, reviewed the course of his history. He called to mind with satisfaction his constant devotion and service to Holy Church, his patronage of learned men, and the religious houses founded under his rule. If he had been a man of war from his youth up he cast the blame in part upon the disloyal kinsmen, the jealous overlord, the aggressive rivals who had beset him from his childhood, but for the conquest of England, in this his supreme moment, he attempted no justification. In his pain and weariness, the fame he had shed upon the Norman race paled before the remembrance of the slaughter at Hastings, and the harried villages of Yorkshire. No prevision, indeed, of the mighty outcome of his work could have answered the Conqueror's anxiety for the welfare of his soul, and under the spur of ambition he had taken a path which led to results beyond his own intention and understanding. We need not believe that the bishop of Lisieux or the abbot of Jumièges have tampered with William's words, when we read his repentance for the events which have given him his place in history.

It remained for the Conqueror to dispose of his inheritance, and here for once political expediency had to yield to popular sentiment. We cannot but believe that the Conqueror, had it been in his power, would have made some effort to preserve the political union of England and Normandy. But fate had struck him down without warning, and ruled that his work should be undone for a while. With grim forebodings of evil William acknowledged that the right of the first-born, and the homage done by the Norman barons to Robert more than twenty years before, made it impossible to disinherit the graceless exile, but England at least should pass into stronger hands. William Rufus was destined to a brief and stormy tenure of his island realm, but its bestowal now was the reward of constant faithfulness and good service to his mighty father. To the English-born Henry, who was to be left landless, the Conqueror bequeathed five thousand pounds of silver from his treasury, and, in answer to his complaint that wealth to him would be useless without land, prophesied the future reunion of the Anglo-Norman states under his rule. And then, while Henry busied himself to secure and weigh his treasure, the Conqueror gave to William the regalia of the English monarchy, and sealed a letter recommending him to Archbishop Lanfranc as the future king, and kissing him gave him his blessing, and directed him to hasten to England before men there knew that their lord was dead.

In his few remaining hours King William was inspired by the priests and nobles who stood around his bed to make reparation to certain victims of his policy, who still survived in Norman prisons. Among those who were now released at his command were Wulfnoth, Earl Godwine's son, and Wulf the son of King Harold; the prisoners of Ely, Earl Morcar and Siward Barn; Earl Roger of Hereford, and a certain Englishman named Algar. Like ghosts from another world these men came out into the light for a little time before they vanished finally into the dungeons of William Rufus; but there was one state prisoner whose pardon, extorted reluctantly from the Conqueror, was not reversed by his successor. It was only the special intercession of Count Robert of Mortain which procured the release of his brother, Bishop Odo. The bishop had outdone the Conqueror in oppression and cruelty to the people of England, and regret for his own sins of ambition and wrong had not disposed the king for leniency towards his brother's guilt in this regard. At length in sheer weariness he yielded against

his will, foretelling that the release of Odo would bring ruin and death upon many.

It is in connection with Bishop Odo's liberation that Orderic relates the last recorded act of William's life. A certain knight named Baudri de Guitry, who had done good service in the war of Sainte-Suzanne, had subsequently offended the king by leaving Normandy without his license to fight against the Moors in Spain. His lands had been confiscated in consequence, but were now restored to him, William remarking that he thought no braver knight existed anywhere, only he was extravagant and inconstant, and loved to wander in foreign countries. Baudri was a neighbour and friend to the monks of St. Evroul, hence no doubt the interest which his restoration possessed for Ordericus Vitalis.

In the final stage of King William's sickness, the extremity of his pain abated somewhat, and he slept peacefully through the night of Wednesday the 8th of September. As dawn was breaking he woke, and at the same moment the great bell of Rouen cathedral rang out from the valley below Saint-Gervase's priory. The king asked what it meant; those who were watching by him replied, "My lord, the bell is tolling for primes at St. Mary's church." Then the Conqueror, raising his hands, exclaimed: "To Mary, the holy mother of God, I commend myself, that by her blessed intercession I may be reconciled to her beloved Son, our Lord Jesus Christ." The next instant he was dead.

For close upon six weeks the king had lain helpless in his chamber in the priory, but death had come upon him suddenly at last, and the company which had surrounded him instantly scattered in dismay. Each man knew that for many miles around Rouen there would be little security for life or property that day, and the dead king was left at the mercy of his own servants, while his friends rode hard to reach their homes before the great news had spread from the city to the open country. By the time that the clergy of Rouen had roused themselves to take order how their lord might be worthily buried, his body had been stripped, his chamber dismantled, and his attendants were dispersed, securing the plunder which they had taken. The archbishop of Rouen directed that the king should be carried to the church of his own foundation at Caen, but no man of rank had been left in the city, and it was only an upland knight, named Herlwin, who accompanied the Conqueror on his last progress over his duchy. By river and road the body was brought to Caen, and a procession of clergy and

townsfolk was advancing to meet it, when suddenly a burst of flame was seen arising from the town. The citizens, who knew well what this meant among their narrow streets and wooden houses, rushed back to crush the fire, while the monks of Saint Stephen's received the king's body and brought it with such honour as they might to their house outside the walls.



ENGLAND
In 1087

Shortly afterwards, the Conqueror was buried in the presence of nearly all the prelates of the Norman church. The bishop of Evreux, who had

watched by the king's death-bed, preached, praising him for the renown which his victories had brought upon his race, and for the strictness of his justice in the lands over which he ruled. But a strange scene then interrupted the course of the ceremony. A certain Ascelin, the son of Arthur, came forward and loudly declared that the place in which the grave had been prepared had been the court-yard of his father's house, unjustly seized by the dead man for the foundation of his abbey. Ascelin clamoured for restitution, and the bishops and other magnates drew him apart, and, when satisfied that his claim was just, paid him sixty shillings for the ground where the grave was. And then, with broken rites, the Conqueror was laid between the choir and the altar of Saint Stephen's church.



Denier of Philip I. of France

CHAPTER X

WILLIAM AND THE CHURCH

Up to the present we have only dealt with the ecclesiastical relations of William the Conqueror in so far as they have directly affected political issues. But the subject has a unity of its own, quite apart from its bearing upon the course of war or diplomacy, and no aspect of the Conqueror's work is known to us in greater detail. It may be added that no aspect of the Conqueror's work is more illustrative of the general character of his government, nor of greater significance for the future history. For four centuries and a half the development of the church in England followed the lines which he had indicated.^[287]

But the church in Normandy was William's first concern, and some appreciation of his work here is necessary to an understanding of the tendencies which governed his ecclesiastical policy in England. Broadly stated, William's relations with the church in Normandy and England alike were governed by two main ideas. He was beyond all doubt sincerely anxious for the reform of the church, as he would have understood the phrase—the extension and stricter observance of the monastic life, the improvement of the learning and morals of the secular clergy, the development of a specific ecclesiastical law. But he was no less determined that, at all hazards, the church in his dominions should be subordinate to the state, and his enforcement of this principle ultimately threw him into opposition to the very party in the church which was most sympathetic to his plans of ecclesiastical reform. Between Hildebrand claiming in definite words that the head of the church was the lord of the world, and William asserting in unmistakable acts that the king of England was over all persons in all causes, as well ecclesiastical as temporal, through his dominions supreme, there were certain to be differences of opinion. But the two great men kept the peace for a surprising length of time, and it was not until ten

years before William's death that serious discord arose between him and the Curia in regard to the question of church government.

In this matter, indeed, William was but maintaining prerogatives which he had inherited from his predecessors, and which were simultaneously being vindicated by the other princes of his time. We have already remarked on the intimate connection of church and state which prevailed in Normandy at the beginning of the eleventh century, in relation to its bearing upon the general absolutism enjoyed by the duke. But the fact has a wider significance as governing the whole character of ecclesiastical life in the duchy. The rights of patronage which the duke possessed, his intervention in the process of ecclesiastical legislation, his power of deposing prelates who had fallen under his displeasure, not only forbade the autonomy of the church, they made its spiritual welfare as well as its professional efficiency essentially dependent upon the personal character of its secular head. Under these conditions, there was scanty room for the growth of ultramontane ideas among the Norman clergy; and such influence as the papacy exercised in Normandy before 1066 at least was due much more to traditional reverence for the Holy See, and to occasional respect for the character of its individual occupants, than to any recognition of the legal sovereignty of the Pope in spiritual matters. William himself in the matter of his marriage had defied the papacy, and the denunciations of the Curia found but a faint response among the prelates of the Norman church.

From the ultramontane point of view this dependence of the church upon the state was a gross evil, but it was at least an evil which produced its own compensation in Normandy. The chaos which had attended the settlement of the Northmen in the tenth century had involved the whole ecclesiastical organisation of the land in utter ruin, and its restoration was entirely due to the initiative taken by the secular power. The successive dukes of Normandy, from Richard I. onward, showed astonishing zeal in the work of ecclesiastical reform.^[288] Their zeal, however, must have spent itself in vain if their success had been dependent upon the co-operation of the Norman clergy; the decay of the church in Normandy had gone too far to permit of its being reformed from within. The reforming energy which makes the eleventh century a brilliant period in French ecclesiastical history was concentrated at this time in the great abbeys of Flanders and Burgundy, whose inmates, however, were fully competent, and for the most part willing, to undertake the restoration of ecclesiastical order in Normandy.

From this quarter, and in particular from the abbey of Cluny, monks were imported into the duchy by Dukes Richard I. and II., and under their guidance the reform of the Norman church was undertaken according to the highest monastic ideal of the time. Very gradually, but with ever increasing strength, the influence of the foreign reformers gained more and more control over every rank in the Norman hierarchy. The higher clergy, who at first resisted the movement, became transformed into its champions as the result of the judicious appointments made by successive dukes. Even the upland clergy, whose invincible ignorance had aroused the anger of the earliest reformers, were attracted within the scope of the reform, partly by means of the affiliation of village churches to monasteries, but above all through the educational work performed by the schools which were among the first fruits of the monastic revival.

If the foundation of new monasteries may be taken as evidence, the process of expansion and reform went on unchecked throughout the stormy minority of William the Conqueror. A period of feudal anarchy was not necessarily inimical to the ultimate interests of the church. Amid the disorder and oppression of secular life the church might still display the example of a society founded on law and discipline, it might in numberless individual cases protect the weak from gratuitous injury, and it certainly might hope to emerge from the chaos with wider influence and augmented revenues. The average baron was very willing to atone for his misdeeds by the foundation of a new religious house, or by benefactions to an old one, and the immortal church had time on its side. In Normandy, at least, the disorder of William's minority coincided with the foundation of new monasteries in almost every diocese in the Norman church; and the promulgation of the Truce of God in 1042 gave a wide extension to the competence of ecclesiastical jurisdiction in relation to secular affairs.

With William's victory at Val-es-dunes, the crisis was over, and for the next forty years the Norman church sailed in smooth waters. Autocratic as was William by temperament, nothing contributed more greatly to his success than his singular wisdom in the choice of his ministers in church and state, and his power of attaching them to his service by ties of personal friendship to himself. The relations between William and Lanfranc form perhaps the greatest case in point, but there were other and less famous members of the Norman hierarchy who stood on terms of personal intimacy with their master. And William was cosmopolitan in his sympathies. Men of

learning and piety from every part of Christendom were entrusted by him with responsible positions in the Norman church; in 1066 nearly all the greater abbeys of Normandy were ruled by foreign monks. Cosmopolitanism was the chief note of medieval culture, and under these influences a real revival of learning may be traced in Normandy. It is well for William's memory that this was so; but for the work of William of Poitiers and William of Jumièges, two typical representatives of the new learning, posterity would have remained in blank ignorance of the Conqueror's rule in Normandy. But it is a matter of still greater importance that in this way Normandy was gradually becoming prepared to be the educator of England, as well as her conqueror. The surviving relics of the literary activity at this time of Normandy—mass books, theological treatises, and books of miracles, which it produced—have but little interest for the general student of history, but the important point is that they are symptoms of an intellectual life manifesting itself with vigour in the only directions which were possible to it in the early eleventh century. Not until it had been transplanted to the conquered soil of England did this intellectual life produce its greatest result, the philosophical history of William of Malmesbury, the logical narrative of Eadmer, to name only two of its manifestations; but in matters of culture, as well as in matters of policy and war, the Norman race was unconsciously equipping itself in these years for its later achievement across the Channel.

It cannot be denied that the English church stood in sore need of some such external influence. The curious blight which seemed to have settled on the secular government of England affected its religious organisation also. The English church had never really recovered from the Danish wars of Alfred's time. It had been galvanised into fresh activity by the efforts of Dunstan and his fellow-reformers of the tenth century, but the energy they had infused scarcely outlasted their own lives, and in 1066 the church in England compares very unfavourably with the churches of the continent in all respects. It had become provincial where they were catholic; its culture was a feeble echo of the culture of the eighth century, they were striking out new methods of inquiry into the mysteries of the faith; it was becoming more and more closely assimilated to the state, they were struggling to emancipate themselves from secular control. There was ample scope in England for the work of a great ecclesiastical reformer, but the increasing

secularisation of the leaders of the church rendered it unlikely that he would come from within.

Ego. W. diuini potentis gra opante angloru
rex. omib; meis fidelibus in anglicis partib; co
morantib; notu esse uolo qd concedo sco petro
nouu monasteriu. & Riualloio eide genobu
abbi nec n & monachis mibi diuino seruitio ua
cuntib; eccliam Lutun; cu qnq; indit atq; decimis &
cu aliis redditib; q ad p dicta eccliam p tinent. in
sup & eccliam de clari cu qtuor indit & una ungtat
eiae atq; cu decimis & aliis redditib; q ad p dicta
eccliam p tinent. Prefatas q; ecclias cu tris & qd
in eis habeo sco petro & abbat. R. na libet
cedo que ad modu illa tra cimiteru genobu
u semel nominati p pa aut sei petri suoniq;
monachoru & aboni seruitio liba. q mego ad
aula mea faciendā mutuo ab abbe. accepi. & p q
ego don u istud sic u dictu e. cedo. Siq; aut p
supior sei petri ecclie & nre cessione aduſari.
istamq; donatione irrita facere uoluerit. ex co
municacionis supplicio in ppetuu cu pphanis
punatur. Et ut mun istud uari atq; incorp
uallum habatur. signu istud ego ipse manu
mea pono.



REDUCED FACSIMILE OF THE
CHARTER OF WILLIAM THE
CONQUEROR TO HYDE ABBEY

Even in 1066 the English church still retained distinct features of the tribal organisation which it had inherited from the century of the

conversion. Its dioceses in general represented Heptarchic kingdoms, and the uncertainty of their boundaries is here and there definitely traceable to the uncertain limits of the primitive tribes of which, they were the ecclesiastical equivalents. The residences of half the English bishops of the eleventh century were still fixed, like those of their seventh-century predecessors, in remote villages; "places of retirement rather than centres of activity," as they have well been called. The number of dioceses was very small in proportion to the population and area of the land, and it tended to decrease; Edward the Confessor had recently united the sees of Cornwall and Devon, under the single bishop of Exeter. Within his diocese each bishop enjoyed an independence of archiepiscopal supervision, the like of which was unknown to his continental fellows; the canonical authority of the archbishops was in abeyance, and in 1070 it was still an open question whether the sees of Dorchester, Lichfield, and Worcester, which represented nearly a third of England, belonged to the province of Canterbury or of York. The smaller territorial units of ecclesiastical government, the archdeaconry and rural deanery, are hardly to be traced in England before the Conquest, and the chapters in the several dioceses varied indefinitely in point of organisation.

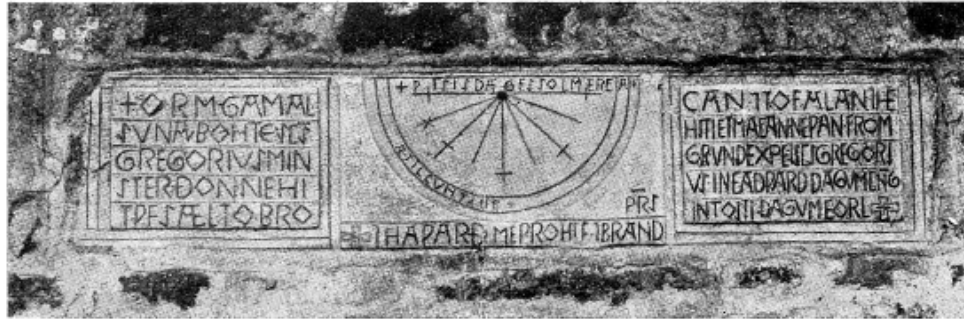
It was not necessarily an abuse that the right of making appointments to the higher ecclesiastical offices belonged in England to the king and the Witanagemot; it was another matter that the leaders of the church were becoming more and more absorbed in secular business. A representative bishop of King Edward's day would be a vigorous politician and man of affairs. Ealdred, archbishop of York, was sent by the king into Germany to negotiate for the return of Edgar the Etheling; Lyfing of Worcester earned the title of the "eloquent" through the part he played in the debates of the Witanagemot; Leofgar of Hereford, a militant person who caused grave scandal by continuing to wear his moustaches after his ordination, conducted campaigns against the Welsh. In Normandy, this type of prelate was rapidly becoming extinct; Odo of Bayeux and Geoffrey of Coutances stand out glaringly among their colleagues in 1066; but in England the circumstances of the time demanded the increasing participation of the higher clergy in state affairs. The rivalry of the great earls at Edward's court produced, as it were, a barbarous anticipation of party government, and during the long ascendancy of the house of Godwine, ecclesiastical dignities were naturally bestowed on men who could make themselves

politically useful to their patron. Curiously enough, the one force which operated to check the secularisation of the English episcopate was the personal character of King Edward. His foreign tendencies found full play here, and the alien clerks of his chapel whom he appointed to bishoprics came to form a distinct group, to which may be traced the beginnings of ecclesiastical reform in England. For a short time the highest office in the English church was held, in the person of the unlucky Robert of Jumièges, by a Norman monk in close touch with the Cluniac school of ecclesiastical reformers, who seems to have tried, during his brief period of rule, to raise the standard of learning among the clergy of his diocese. Robert fell before he could do much in this direction, but the foreign influences which were beginning to play upon the English church did not cease with his expulsion. Here and there, during Edward's later years, native prelates were to be found who recognised that much was amiss with the church, and followed foreign models in their attempts at reform; Ealdred of York tried to impose the strict rule of Chrodegang of Metz upon his canons of York, Ripon, Beverley, and Southwell, the four greatest churches of Northern England. But individual bishops could not go far enough in the work of reform, and their efforts seem to have met with little sympathy from the majority of their colleagues.

To a foreign observer, nothing in the English church would seem more anomalous than the character of its ecclesiastical jurisdiction. There existed, indeed, in the law books of successive kings, a vast mass of ecclesiastical law; it was in the administration of this law that England parted company with continental usage. In England the bishop with the earl presided over the assembly of thegns, freemen, and priests which constituted the shire court, and the local courts of shire and hundred had a wide competence over matters which, on the continent, would have been referred to a specifically ecclesiastical tribunal. The bishop seems to have possessed an exclusive jurisdiction over the professional misdoings of his clergy, and the degradation of a criminous clerk, the necessary preliminary to his punishment by the lay authority, was pronounced by clerical judges, but all other matters of ecclesiastical interest fell within the province of the local assemblies. Ecclesiastical and secular laws were promulgated by the same authority and administered by the same courts, nor does the church as a whole seem to have possessed any organ by means of which collective opinion might be given upon matters of general importance. No great

councils of the church, such as those of which Bede tells us, can be traced in the Confessor's reign, nor, indeed, for nearly two centuries before his accession. The church council had been absorbed by the Witanagemot.

To all the greater movements which were agitating the religious life of the continent in the eleventh century—the Cluniac revival, the hierarchical claims of the papacy—the English church as a whole remained serenely oblivious. Its relations with the papacy were naturally very intermittent, and when a native prelate visited the Holy See, he might expect to hear strong words about plurality and simony from the Pope. With Stigand the papacy could hold no intercourse, but, despite all the fulminations of successive Popes, Stigand continued for eighteen years to draw the revenues of his sees of Canterbury and Winchester, and other prelates rivalled him in his offences of plurality, whatever scruples they might feel about his canonical position as archbishop. Ealdred of York had once administered three bishoprics and an abbey at the same time. The ecclesiastical misdemeanours of a party among the higher clergy would have been a minor evil, had it not coincided with the general abeyance of learning and efficiency among their subordinates. We know very little about the parish priest of the Confessor's day, but what is known does not dispose us to regard him as an instrument of much value for the civilisation of his neighbours. In the great majority of cases, he seems to have been a rustic, married like his parishioners, joining with them in the agricultural work of the village, and differing from them only in the fact of his ordination, and in possessing such a knowledge of the rudiments of Latin as would enable him to recite the services of the church. The energy with which the bishops who followed the Conquest laboured for the elevation of the lower clergy is sufficiently significant of what their former condition must have been. The measures which were taken to this end by the foreign reformers—the general enforcement of celibacy, for example—may not commend themselves to modern opinion, but Lanfranc and his colleagues knew where the root of the matter lay. It was only by making the church distinct from the state, by making the parish priest a being separated by the clearest distinctions from his lay brother, that the church could begin to exercise its rightful influence upon the secular life of the nation.



GAMEL SON OF ORME'S SUNDIAL

FROM A SHORT ACCOUNT OF SAINT GREGORY'S MINSTER,
KIRKDALE, BY REV. F. W. POWELL, VICAR. THE TRANSLATION IS AS
FOLLOWS:

"ORM GAMAL'S SON BOUGHT S. GREGORY'S MINSTER WHEN IT
WAS ALL BROKEN DOWN AND FALLEN AND HE LET IT BE MADE
ANEW FROM THE GROUND TO CHRIST AND S. GREGORY, IN
EDWARD'S DAYS, THE KING, AND IN TOSTI'S DAYS, THE EARL."
THE CENTRAL PANEL HAS ON THE DIAL—

"THIS IS DAY'S SUN MARKER
AT EVERY TIME."

AND AT THE FOOT—

"AND HAWARTH ME WROUGHT AND BRAND,
PRIESTS"

Political circumstances delayed the beginnings of ecclesiastical reform for more than three years after the battle of Hastings had placed the destinies of the English church in Norman hands. While the Conqueror was fighting at Stafford and York, he could not be presiding over synods at Winchester and London. No steps, therefore, were taken in this question before 1070, when the fall of Chester destroyed the last chance of a successful English rising, and made it no longer expedient for William to be complaisant to Stigand and the nationalist party in the English episcopate. But in 1070 the work was begun in earnest under the immediate sanction of the Pope, expressed in the legation of two cardinal priests who visited England in that year. There could be little doubt what their first step would be; and when Stigand was formally arraigned for holding the sees of Winchester and Canterbury in plurality, usurping the pallium of his predecessor, Robert, and receiving his own pallium from the schismatic Benedict X., he had no defence to offer beyond declamation against the good faith of the king. Three other bishops fell at or about the same time;

Ethelmer, brother of Stigand, and bishop of East Anglia, Ethelwine, bishop of Durham, and Ethelric, bishop of Selsey. In regard to none of these last bishops are the grounds on which their deposition was based at all certain; and in the case of Ethelric, an aged man who was famed for his vast knowledge of Anglo-Saxon law, the Pope himself was uneasy about the point, and a correspondence went on for some time between him and Lanfranc on the subject. But it is a noteworthy fact that these four prelates are the only bishops deposed during the whole of the Conqueror's reign. Nothing was further from William's purpose than any wholesale clearance of the native episcopate. He was King Edward's heir, and he wished, therefore, to retain King Edward's bishops in office, so far as this was consistent with the designs of his ally the Pope. On the other hand, William was no less determined to fill all vacancies when they occurred in the course of nature with continental priests. Herein he and the Pope were in complete harmony. It was only by this means that continental culture and ideas of church government could be introduced into England, and William trusted in his own strength to repress any inconvenient tendencies which might arise from the ultramontane ideals of his nominees.

The deposition of Stigand meant the elevation of Lanfranc to the archbishopric of Canterbury. It is probable that the Pope would have preferred to attach him to the College of Cardinals, but William was determined to place his old friend at the head of the English church, and Alexander II. gave way. York, vacant through the death of Ealdred in 1069, was given to Thomas, treasurer of Bayeux, *protégé* of Odo, bishop of that see, and a man of vast and cosmopolitan learning. Almost immediately after his appointment a fierce dispute broke out between him and Lanfranc. The dispute in question was twofold—partly referring to the boundaries of the two provinces, but also raising the more important question whether the two English archbishops should possess co-ordinate rank or whether the archbishop of York should be compelled to take an oath of obedience to the primate of Canterbury. In a council held at Winchester in 1072 both questions were settled in favour of Canterbury. The dioceses of Lichfield, Worcester, and Dorchester were assigned to the latter provinces, and Lanfranc—partly by arousing William's fears as to the political inexpediency of an independent archbishop of York, partly by the skilful forgery of relevant documents—brought it about that the northern archbishopric was formally declared subordinate to that of Canterbury. In

ecclesiastical, as well as secular matters, William had small respect for the particularism of Northumbria.

The council which decided this matter was only one of a series of similar assemblies convened during the archiepiscopate of Lanfranc. The first of the series had already been held in 1070, when Wulfstan, the unlearned but saintly bishop of Worcester, was arraigned *pro defectu scientiæ*. He was saved from imminent deposition partly by his piety, partly by his frank and early acceptance of the Norman rule; and he retained his see until his death in 1094. In 1075 the third council of the series proceeded to deal with one of the greatest anomalies presented by the English church, and raised the whole question of episcopal residence. In accordance with its decrees, the see of Lichfield was translated to Chester, that of Selsey to Chichester, and that of Sherborne to Old Salisbury. Shortly afterwards, the seat of the east midland diocese of Dorchester was transferred to Lincoln; and in 1078 Bishop Herbert of Elmham, after an abortive attempt to gain possession of Bury St. Edmund's, removed his residence to Thetford, the second town in Norfolk. In all these changes the attempt was made to follow the continental practice by which a bishop would normally reside in the chief town of his diocese. But new episcopal seats implied new cathedral churches, and the Conqueror's reign witnessed a notable augmentation of church revenues,^[289] expressed in grants of land, the extent of which can be ascertained from the evidence of Domesday Book. Here and there are traces of a reorganisation of church property, and of its appropriation to special purposes; all of which enabled the new bishops to support the strain incurred by their great building activities. By 1087 new cathedrals had been begun in seven out of fifteen dioceses.

The church councils which supplied the means through which the king and primate carried their ideas of ecclesiastical reform into effect were bodies of a somewhat anomalous constitution. In the Confessor's day the Witanagemot had treated indifferently of sacred and secular law, but its competence in religious matters did not descend unbroken to its feudal representative, the Commune Concilium. In the Conqueror's reign the church council is becoming differentiated from the assembly of lay barons, but the process is not yet complete. The session of the church council would normally coincide in point of place and time with a meeting of the Commune Concilium; no ecclesiastical decree was valid until it had received the king's sanction, and the king and his lay barons joined the

assembly, although they took no active part in its deliberations. There was, indeed, small necessity for their presence, and in two of the more important councils of William's reign, at London in 1075 and at Gloucester in 1085 the spirituality held a session of their own apart from the meeting of the Commune Concilium. In any case the spiritual decrees were promulgated upon the authority of the archbishop and prelates, although the royal word was necessary for their reception as law.

No piece of ecclesiastical legislation passed during this time had wider consequences than the famous decree which limited the competence of the shire and hundred courts in regard to matters pertaining to religion.^[290] This law has only come down to us in the form of a royal writ addressed to the officers and men of the shire court, so that its exact date is uncertain. But intrinsically it is likely enough that the question of ecclesiastical jurisdiction would be one of the first matters to which William and Lanfranc would turn their hands, and the principle implied in the writ had already been recognised by all the states of the continent. According to this document no person of ecclesiastical status might be tried before the hundred court, nor might this assembly any longer possess jurisdiction over cases involving questions of spiritual law, even when laymen were the parties concerned. All these matters were reserved to the exclusive jurisdiction of the bishops and their archdeacons, and in this way room was prepared in England for the reception of the canon law of the church.^[291] Important as it was for the subsequent fortunes of the church, this decree was perhaps of even greater importance for its influence upon the development of secular law. The canons of the church, in the shape which they assumed at the hands of Gratian in the next generation, were to set before lay legislators the example of a codified body of law, aiming at logical consistency and inherent reason; a body very different from the collection of isolated enactments which the English church of the eleventh century inherited from the Witanagemots of Alfred and Edgar. We cannot here trace the way in which the efforts of the great doctors of the canon law were to react upon the work of their secular contemporaries; but the fact of such influence is certain, and the next century witnessed its abundant manifestation.

The transference of ecclesiastical causes from the sphere of the folk law to that of the canons of the church meant that the Pope would in time acquire, in fact, what no doubt he would already claim in theory—the legal sovereignty of the church in England. That William recognised this is

certain, and he was determined that the fact should in no way invalidate the ecclesiastical prerogatives which he already enjoyed in Normandy, and which in regard to England he claimed as King Edward's heir. Contemporary churchmen say this too, and the key to William's relations with the Pope is given in the three resolutions which Eadmer in the next generation ascribes to him. No Pope should be recognised in England, no papal letters should be received, and no tenant-in-chief excommunicated without his consent. In short, William was prepared to make concessions to the ecclesiastical ideas of his clerical friends only in so far as they might tend to the more efficient discharge by the church of its spiritual function. This was, of course, a compromise, and no very satisfactory one; it led immediately to strained relations between William himself and Hildebrand, it was the direct cause of the quarrel between William Rufus and Anselm, and it was indirectly responsible for the greater struggle which raged between Henry of Anjou and Becket. On one point, however, king and papacy were in perfect accord, and it was this fact which prevented their difference of opinion upon higher matters of ecclesiastical policy from becoming acute during the Conqueror's lifetime. Both parties were agreed upon the imperative necessity of reforming the mass of the English clergy in morals and learning, and here at least the Conqueror's work was permanent and consonant with the strictest ecclesiastical ideas of the time.

We have already remarked that to the men of the eleventh century, ecclesiastical reform implied the general enforcement of clerical celibacy. The Winchester Council of 1072 had issued a decree against unchaste clerks, but the matter was not taken up in detail for four years more, and the settlement which was then arrived at was much more lenient to the adherents of the old order than might have been expected. It made a distinction between the two classes of the secular clergy. All clerks who were members of any religious establishment, whether a cathedral chapter, or college of secular canons, were to live celibate for the future. The treatment applied to the upland clergy was summary. It would have been a hopeless task to force the celibate life upon the whole parochial clergy of England, but steps could be taken to secure that the married priest would become an extinct species in the course of the next generation. Accordingly, parish priests who were married at the time might continue to live with their wives, but all subsequent clerical marriage was absolutely forbidden, and the bishops were enjoined to ordain no man who had not previously made

definite profession of celibacy. In all this Lanfranc was evidently anxious to pass no decree which could not be carried into immediate execution, even if this policy involved inevitable delay before the English clergy in this great respect were brought into line with their continental brethren. The next century had well begun before the native clergy as a whole had been reduced to acceptance of the celibate rule.

The monastic revival which followed the Conquest told in the same direction. In the mere foundation of religious houses, the Conqueror's reign cannot claim a high place. Such monasteries as derive their origin from this period were for the most part affiliated to some continental establishment. The Conqueror's own abbey of St. Martin of the Place of Battle was founded as a colony from Marmoutier, though it soon won complete autonomy from the jurisdiction of the parent house. It was a noteworthy event when in 1076 William de Warenne founded at Lewes the first Cluniac priory in England, although it does not appear that any other house of this order had arisen in this country before 1087. In monastic history the interest of the Conqueror's reign centres round the old independent Benedictine monasteries of England, and their reform under the administration of abbots imported from the continent. Here there was much work to be done; not only in regard to the tightening of monastic discipline, but also in the accommodation of these ancient houses, with their wide lands and large dependent populations, to the new conditions of society which were the result of the Conquest. Knight service had to be provided for; the property of the monastery had to be organised to enable it to bear the secular burdens which the Conqueror's policy imposed; foreign abbots were at times glad to rely upon the legal knowledge which native monks could bring to bear upon the intricacies of the prevailing system of land tenure. The Conqueror's abbots were often men of affairs, rather than saints; their work was here and there misunderstood by the monks over whom they ruled, yet it cannot be doubted that a stricter discipline, a more efficient discharge of monastic offices, a higher conception of monastic life, were the results of their government.

The influence of their work was not confined within monastic walls. In the more accurate differentiation of monastic duties which they introduced, they were not unmindful of the claims of the monastery school. Very gradually the schools of such houses as St. Albans and Malmesbury came to affect the mass of the native clergy. And the process was quickened by the

control which the monasteries possessed over a considerable proportion of the parish churches of the country. The grant of a village to an abbey meant that its church would be served by a priest appointed by the abbot, and in Norman times no baron would found a religious house without granting to it a number of the churches situate upon his fief. Already in 1066 the several monasteries of England possessed a large amount of patronage; and the Norman abbots of the eleventh and twelfth centuries were not slow to employ the influence they possessed in this way for the elevation of the native clergy.

Of course, there is another side to this picture. In the little world of the monastery, as in the wide world of the state, it was the character of the ruling man which determined whether the ascendancy of continental ideas should make for good or evil. The autocracy of the abbot might upon occasion degenerate into sheer tyranny: there is the classical instance of Thurstan of Glastonbury, who turned a body of men-at-arms upon his monks because they resisted his introduction of the Ambrosian method of chanting the services.^[292] It was an easy matter for an abbot to use the lands of his church as a means of providing for his needy kinsmen in Normandy^[293]; the pious founder in the next generation would often explicitly guard against the unnecessary creation of knights' fees on the monastic estates. An abbot, careless of his responsibilities, might neglect to provide for the service of the village churches affiliated to his house; and it would be difficult to call him to account for this. But, judging from the evidence which we possess, we can only conclude that the church in England did actually escape most of the evils which might have resulted from the superposition of a new spiritual aristocracy. The bad cases of which we have information are very clearly exceptions, thrown into especial prominence on this very account.

And against the dangers we have just indicated we have to set the undoubted fact that with the Norman Conquest the English church passes at once from a period of stagnation to a period of exuberant activity. In the conduct of the religious life, in learning and architecture, in all that followed from intimate association with the culture and spiritual ideals of the continent, the reign of the Conqueror and the primacy of Lanfranc fittingly inaugurate the splendid history of the medieval church of England. And it is only fair for us to attribute the credit for this result in large measure to King William himself. Let it be granted that the actual work of

reform was done by the bishops and abbots of England under the guidance of Lanfranc; there will still remain the fact that the Conqueror chose as his spiritual associates men who were both willing and able to carry the work of reform into effect. Nothing would have been easier than for King William, coming in as he did by conquest, to treat the English church as the lawful spoils of war. Its degradation under the rule of feudal prelates of the type of Geoffrey of Coutances would have made for, rather than against, his secular autocracy. Had he reduced the church to impotence he would have spared his successors many an evil day. But, confident that he himself would always be supreme in church as well as state, he was content to entrust its guidance to the best and strongest men of whom he knew, and if he foresaw the dangers of the future he left their avoidance to those who came after him.

No detailed account can be given here of the prelates whom the Conqueror appointed to ecclesiastical office in England. In point of origin they were a very heterogeneous class of men. Some of them were monks from the great abbeys of Normandy; Gundulf of Rochester came from Caen, Remigius of Dorchester from Fécamp; others, such as Robert of Hereford, were of Lotharingian extraction. Under the Conqueror, as under his successors, service at the royal court was a ready road to ecclesiastical promotion; nor were the clerks of the king's chapel the least worthy of the new prelates. Osmund of Salisbury, who attained to ultimate canonisation, had been chancellor from 1072 to 1077. But a question immediately presents itself as to the relations which existed between these foreign lords of the church and the Englishmen, clerk and lay, over whom they ruled. Learned and zealous they might be, and yet, at the same time, remain entirely out of touch with the native population of England. To presuppose this, however, would be a great injustice to the new prelates. The very diversity of their origin prevented them from sharing the racial pride of the lay nobility, and their position as servants of a universal church told in the same direction. They learned the English language, and some at least among them preached to the country folk in the vernacular. They preserved the cult of the native saints, though they criticised with good reason the grounds on which certain kings and prelates had received canonisation, and in most dioceses they retained without modification the forms of ritual which had been developed by the Anglo-Saxon church. Among all the forces which made for the assimilation of Englishman to Norman in the

century following the Conquest the work of King William's bishops and abbots must certainly hold a high place.

The friendly relations which had existed between William and the Curia during the pontificate of Alexander II. were not interrupted immediately by the accession of Hildebrand, in 1073, but there soon appeared ominous symptoms of coming strife. It was no longer a matter of vital importance for William to retain the favour of the papacy—he was now the undisputed master of England and Normandy alike. Hildebrand, a man of genius, in whose passionate character an inherent hatred of compromise clashes with a statesmanlike recognition of the demands of practical expediency, could not be expected to refrain from advancing the ecclesiastical claims to the furtherance of which his whole soul was devoted. The Conqueror had indeed gone far in the work of reform, but neither in England nor in Normandy did he show any intention of conforming to the Hildebrandine conception of the model relationship which should exist between church and state. Of his own will he appointed his bishops and abbots, and they in turn paid him homage for their temporal possessions; he controlled at pleasure the intercourse between his prelates and the Holy See. Herein lay abundant materials for a quarrel; the wonder is that it did not break out for six years after Hildebrand's succession.

The immediate cause of the outbreak was the abstention of the English and Norman bishops from attendance at the general synods of the church which Hildebrand convened at Rome during these years. Lanfranc was the chief offender in this respect, but before long Hildebrand came to recognise that Lanfranc was only acting in obedience to his master's orders, and anger at the discovery drove the Pope to take the offensive against his former ally. Lanfranc was peremptorily summoned to Rome; the archbishop-elect of Rouen, William Bona Anima, was refused the papal confirmation, and Archbishop Gebuin of Lyons was given an extraordinary commission as primate of the provinces of Rouen, Sens, and Tours; a step which at once destroyed the ecclesiastical autonomy of Normandy. William's reply to this attack was characteristic of the man. He was not without personal friends at the papal court, and without yielding his ground in the slightest in regard to the main matter in dispute he contrived to pacify the angry Pope by protestations of his unaltered devotion to the Holy See. Gregory bided his time; Archbishop Gebuin's primacy came to nothing. William of Rouen received the pallium, and shortly after these events the Pope is found

writing an admonitory letter to Robert of Normandy, then in exile. The storm had in fact blown over, but a greater crisis was close at hand.

It is quite possible that Gregory considered that he had won a diplomatic victory in the recent correspondence. He had not, it is true, carried his main point, but he had drawn from the king of England a notable expression of personal respect, and it is possible that this emboldened him shortly afterwards to make a direct demand upon William's allegiance. In the course of 1080, to adopt the most probable date, Gregory sent his legate Hubert to William with a demand that the latter should take an oath of fealty to the Pope, and should provide for the more punctual payment of the tribute of Peter's Pence due from England. In making the latter demand Hildebrand was only claiming his rights; from ancient time Peter's Pence had been sent to Rome from England, and the Conqueror admitted his obligation in the matter. But the claim of fealty stood on a different footing. William, indeed, cannot have been unprepared for it; it was inevitable that sooner or later the papacy would endeavour to obtain a recognition, in the sphere of politics, of its support of the Norman claims on England in 1066. None the less, it was entirely inadmissible from William's standpoint. So far as our evidence goes, it is certain that William had made no promise of feudal allegiance in 1066^[294]; for him, as indeed for Alexander II., the papacy had already reaped its reward in the ecclesiastical sphere, in the power of initiating the reform of the English church, in the more intimate connection established between Rome and England. Alexander II. had been willing to subordinate all questions of spiritual politics to the more pressing needs of ecclesiastical reform, and Gregory had hitherto followed his predecessor's lead; nor on the present occasion did he do more than assert a claim of the recognition of which he can have held but slender hopes. For William repudiated the Pope's demand outright, asserting that none of his predecessors had ever sworn fealty to any former Pope, nor had he ever promised to do the like. We have no information as to the reception which William's answer met at Rome; but, whatever resentment he may have felt, Gregory was debarred by circumstances from taking offensive action against the king of England. In the very year of this correspondence, Gregory found himself confronted by an anti-pope, nominated by the emperor; and from this time onward, the Pope's difficulties on the continent increased, up to the hour of his death in exile five years later. Fortune continued true to William, even in his ecclesiastical relations.

There is no need to trace in detail the history of William's dealings with the church during his last years. In England the work of reform, well begun in the previous decade, continued without interruption under the guidance of the new prelates. There is some evidence, indeed, that towards the close of William's reign the English clergy were in advance of their Norman brethren in strictness of life and regard for canonical rule; at least in 1080, at the Synod of Lillebonne,^[295] the king found it necessary to assume for himself the jurisdiction over the grosser offences of the clergy, on the ground that the Norman bishops had been remiss in their prosecution. But in England the leaders of the church seem to have enjoyed the king's confidence to the last, and their reforming zeal needed no royal intervention. The work of Dunstan and Oswald, frustrated at the time by unkind circumstances, had at last, under stranger conditions than any they might conceive, reached its fulfilment.

CHAPTER XI

ADMINISTRATION

The art of government in the eleventh century was still a simple, or at least an untechnical, matter. It demanded rather a strong will in the sovereign than professional knowledge in his ministers: the responsibility was the king's, and his duty to his subjects was plain and recognised by all men. No one doubted that the maintenance of order was the king's work, but the method of its performance was left to his discretion. It was not a light task, but it was a task which would be done the better the simpler were the agencies employed, the more immediately each act of government was felt to be the personal act of the head of the state. The time was not ripe for the highly specialised administration of Henry II.; it was bound to take more than twenty years before a trained body of administrators could be elaborated out of the transplanted Norman baronage, before the king had learned to whom he could safely entrust the permanent work of civil government. The Conqueror's administration was by the nature of the case empirical; neither Normandy nor England had anything to offer in the way of centralised routine, but for all that it is from the simple expedients adopted by William that the medieval constitution of England takes its origin.

Just as in Normandy an indefinite body of "optimates" surrounded the duke, and expected to be consulted on occasions of special importance, so in England the king's greater tenants, lay and ecclesiastical, formed a potential council, the "Commune Concilium" of later writers. The connection between the council in its English and Norman manifestations was something closer than mere similarity of composition; many a man who witnessed the coronation of Queen Matilda in the Easter Council of 1068 must have sat in the assembly at Lillebonne which discussed the invasion of England; and judging from the evidence of charters the barons who accompany the king when in Normandy will probably appear as lords

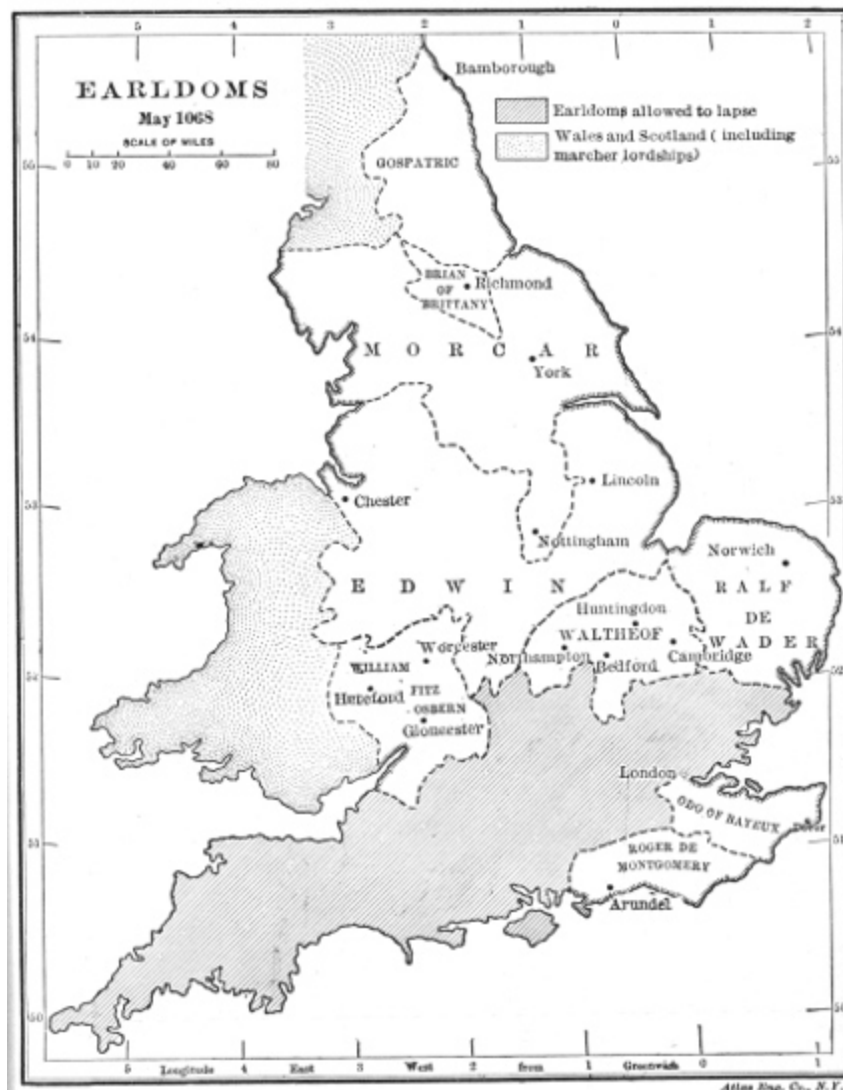
of English fiefs in the pages of Domesday Book. Roger de Montgomery, Henry de Ferrers, Walter Giffard, Henry de Beaumont—such men as these, who were great on either side the Channel, appear in frequent attendance on their lord, whether at Rouen or at Winchester. Their attendance, indeed, was a guarantee of good faith; the baron who, when summoned, neglected to obey, became thereby a suspected person at once: it was considered a sign of disaffection when Earl Roger of Hereford persistently absented himself from William's court.

In England we know that it was customary for the king to hold a great council thrice in each year. "Moreover" says the Peterborough chronicler, "he was very worshipful: he wore his crown thrice in every year when he was in England. At Easter he wore it at Winchester, at Whitsuntide at Westminster, at midwinter at Gloucester, and then there were with him all the great men of all England—archbishops and bishops, abbots and earls, thegns and knights"; "in order," adds William of Malmesbury, "that ambassadors from foreign countries might admire the splendour of the assembly and the costliness of the feasts." As it is only at these great seasons that the Commune Concilium comes practically into being; we may give a list of those known to be present at the Easter feast of 1069 and the Christmas feast of 1077, to which we may add a list of those in attendance on the king when he held his Easter feast of 1080 in Normandy.^[296]

It will be clear that an assembly of this kind is eminently unfitted to be the organ of systematic government. These great people, bishops, earls, and abbots, had their own work to do, work which for long periods kept them away from the king's presence. The Commune Concilium is at most what its name implies, an advisory body. As such it plays the part taken in the Anglo-Saxon policy by the "Witan," and the question arises whether it can be considered a continuation of that assembly under altered conditions and with restricted powers or whether it proceeds from some quite different principle.

It is plain that the Norman council is in no sense a popular assembly; we certainly cannot say of it, as has been said of the "Witan," that "every free man had in theory the right to attend." On the other hand it is probable that the alleged popular composition of the Witan is illusory, while the nature of the body which attended Edward the Confessor might be described equally with the Conqueror's councils as consisting of "archbishops and suffragan bishops, abbots and earls, thegns and knights." But it is probable that this

similarity of constitution is only superficial. If pressed for a definition of the Commune Concilium we might, perhaps, venture to say that it consisted potentially of all those men who held in chief of the crown by military service, of those *tenentes in capite* whose estates in Domesday are entered under separate rubrics. This definition would include the great ecclesiastical tenants, while it would exclude the undistinguished crowd of sergeants (*servientes*) and king's thegns, and it would suggest one most important respect in which the Commune Concilium differs from its Old English representative. All the members of the Norman council are united to the king by the strongest of all ties, the bond of tenure. That great change, in virtue of which every acre of land in England has come to be held mediately or immediately of the king, influences constitutional no less than social relations; the king's council is a body composed of men who are his own tenants. From this technical distinction follows a difference of great importance; the king's influence over his council becomes direct and inevitable to a degree impossible before the Conquest. Under Edward the Confessor it is not impossible for the Witan to be found going its own way with but scanty regard to the personal wishes of the king; under the Conqueror and his sons the king's will is supreme. Most true is it that the three Norman kings were men of very different quality from the imbecile Edward; but nevertheless, the tenurial bond between the king and his barons made it impossible for the latter when in council to follow an independent political course. The Norman kings were wise enough to entertain advice and too strong for that advice ever to pass into dictation.



EARLDOMS May 1068

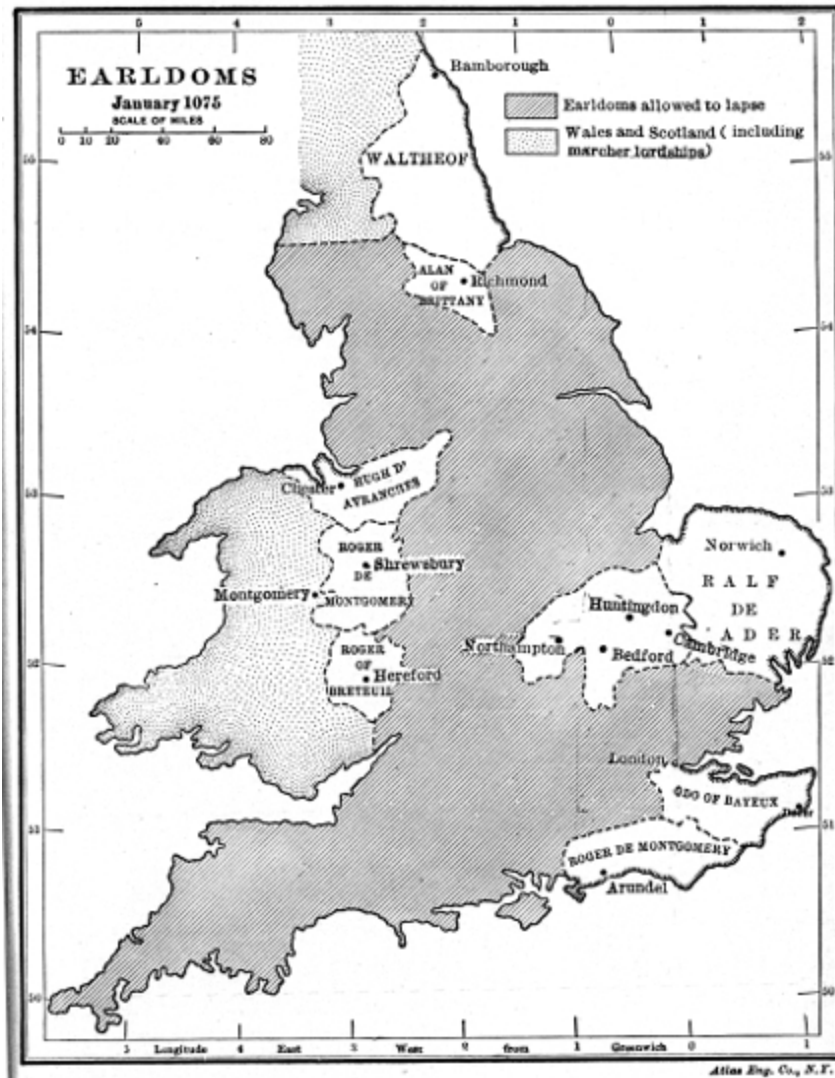
Distinct then as is the Commune Concilium from the Witan, we nevertheless meet in the earliest years of William's reign with certain assemblies which may fairly be considered as transitional forms between the two. Up to the last revolt of Edwin and Morcar not a few Englishmen continued to hold high positions at William's court; and among the witnesses to the few charters of this date which have survived there still exists a fair proportion of English names. Such men as Edwin and Morcar themselves must have represented the independent traditions of the Old English Witan, and there are other names which are common to the latest

charters of King Edward and the earliest charters of King William. As it is very rarely that we can obtain a glimpse of an assembly of this intermediate type we may subjoin a list of those in attendance on the king at or shortly after the Whitsuntide Council of 1069, taken from a charter restoring to the church of Wells lands which Harold, “inflamed with cupidity,” is said to have appropriated unjustly:

King William; Queen Matilda; Stigand, archbishop; Ealdred, archbishop; Odo, bishop of Bayeux; Hugh, bishop (of Lisieux); Herman, bishop (of Thetford); Leofric, bishop of Exeter; Ethelmer, bishop of Elmham; William, bishop of London; Ethelric, bishop of Selsey; Walter, bishop of Hereford; Remi, bishop of Lincoln; Ethelnoth, abbot of (Glastonbury); Leofweard, abbot of (Michelney); Wulfwold, abbot of Chertsey; Wulfgeat, abbot; Earl William; Earl Waltheof; Earl Edwin; Robert, the king’s brother; Roger, “princeps”; Walter Giffard; Hugh de Montfort; William de Curcelles; Serlo de Burca; Roger de Arundel; Richard, the king’s son; Walter the Fleming; Rambriht the Fleming; Thurstan; Baldwin “de Wailen leige”; Athelheard; Hermenc; Tofig, “minister”; Dinni; “Alfge atte Thorne”; William de Walville; Bundi, the Staller; Robert, the Staller; Robert de Ely; Roger “pincerna”; Wulfweard; Herding; Adsor; Brisi; Brihtric. ^[297]

Starting with the greatest persons in church and state the list gradually shades off to a number of obscure names, the bearers of which cannot be identified outside this record. Some of these last may be local people connected with the estates to which the grant refers, but most of even the English names can be recognised in the general history of the time. The peculiar value of the list is that it shows us Englishmen and Normans associated, apparently on terms of equality, at the Conqueror’s court. It is instructive to see the English earls of Northampton and Mercia signing between Earl William Fitz Osbern and Count Robert of Mortain; the fact that men whose names are among the greatest in Domesday Book are to be found witnessing the same document with men who had signed Edward the Confessor’s charters helps us to bridge the gulf which separates Anglo-Saxon from Norman England. But this phenomenon is confined to the years immediately succeeding the Conquest; very suddenly, after the date of this document, the English element at William’s court gives way and disappears, and with it disappear the names which unite the Old English “Witan” to the

Norman “Concilium.” This is a fact to which we have already had occasion to refer, for the general change in William’s policy which occurs in 1070 affects every aspect of his history.

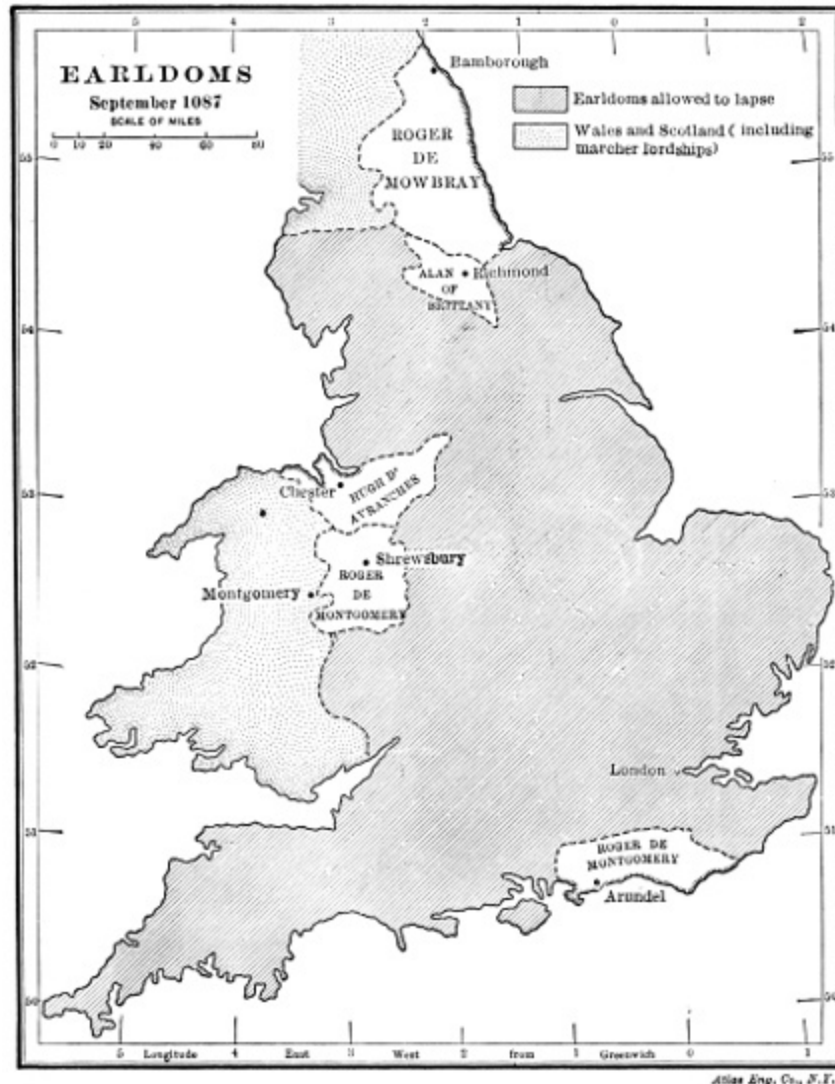


EARLDOMS
January 1075

The functions of this court or council seem to have been as indeterminate as its composition. Largely, no doubt, they were ceremonial; this aspect of the council was evidently in the mind of William of Malmesbury when he wrote the passage quoted on page [missing]. At times it appears as a judicial

body, Waltheof was condemned in the Midwinter Council of 1075; while of its advisory powers we have a supreme example in the “deep speech” at Gloucester, which led to the making of Domesday Book. If the title which is attached to the oldest copy of William’s laws has any validity, they were promulgated in accordance with Old English customs by the king *cum principibus suis*; one clause in particular is said to have been ordained “in civitate Claudia,” which may suggest that the law in question had been decreed in one of the Midwinter Councils at Gloucester. But of one thing only we can be sure, whatever functions the Council may have fulfilled, the king’s will was the motive force which underlay all its action.

In later times, the chief justiciar appears as the normal president of the Council, but in William’s reign it is hard to find any single officer bearing that title. No doubt, when William was in England he himself presided over his council; when he was in Normandy, if the council met at all, which is unlikely, his place would probably be taken by the representative he had left behind him. It is, perhaps, impossible to give a dated list of the vicegerents who appear in William’s reign; our notices of them are very scanty. We have seen that in 1067 William Fitz Osbern and Odo of Bayeux were left as “regents” of England when William made his first visit to Normandy after the Conquest; there has survived an interesting writ of that year in which “Willelm cyng and Willelm eorl” address jointly the country magnates of Somersetshire.^[298] At the time of the revolt of the three earls in 1075, it is clear that Lanfranc was the king’s vicegerent, an office which he probably filled again during William’s last continental visit in 1086–7. For several reasons it is probable that Odo of Bayeux was regent not long before his fall in 1082; it was as the king’s representative that he took drastic vengeance on the murderers of Bishop Walcher of Durham in 1080, and a most suggestive story in the Abingdon Chartulary shows us King William repudiating the judgment which his brother had given in a local lawsuit during his regency.^[299] From the same chartulary we learn that at some time between 1071 and 1081 Queen Matilda herself was hearing pleas at Windsor “in place of the king who was then in Normandy,”^[300] though this, of course, need not imply that she was regent in any wider sense of the term. In general, the writs which the king sent from Normandy into England will be addressed directly to the ordinary authorities of the shire; and our knowledge of the succession of William’s representatives is derived from incidental notices elsewhere.



EARLDOMS September 1087

So far as we can see King William was always attended by a varying number of his barons; a continually changing cortège followed the king in his progress over the country. To this fluctuating body, just as to the solemn council, our Latin authorities give the title of the King's Court, the "Curia Regis," a phrase which at once connects the amorphous group of William's courtiers with the specialised executive of Henry II. In a sense, no doubt, William's court was the only executive of its time, but the employment of these modern terms leads straight towards anachronism; the judicial function of the Curia Regis was quite as important as its executive work,

and the court was, after all, only a fraction of that larger council in which we have seen “judicial,” “executive,” and “legislative” powers to be combined. If we are to make for ourselves a distinction between two bodies which are tacitly identified by all early writers, we may say that the Curia Regis was composed of just those members of the Commune Concilium who happened to be in attendance on the king at any given moment. But we must remember that to the men of the eleventh century the king’s “court” and the king’s “council” were one and the same; any distinction between them which we may make exists for our own convenience and nothing more; the court was only a shrunken form of the council.

Even those men who are most frequently to be found in attendance on the king do not seem to be characterised either by special legal knowledge or by definite official position. Great officers of the court, such as the steward and the constable, do repeatedly appear; their positions have not yet become annexed to any of the greater baronial houses, and it is probable that their official duties are a reality; but, although Eudo Fitz Hubert (de Rye) the steward, for instance, seems to have been a personal friend of all three Norman kings, and accordingly is a frequent signatory of their writs, such members of the official class seem always to be accompanied by the unofficial barons present. Their attendance also is very intermittent; even the chancellor is much less in evidence in the Conqueror’s charters than in those of Henry I. or II., and under these circumstances we may fairly ask how this unprofessional body acted when required to behave as a court of law. English evidence helps us little, but we get a useful hint as to procedure in certain Norman charters and an analysis of one of them may be quoted:

“At length both parties were summoned before the king’s court, in which there sat many of the nobles of the land of whom Geoffrey, bishop of Coutances, was delegated by the king’s authority as judge of the dispute, with Ranulf the Vicomte, Neel, son of Neel, Robert de Usepont, and many other capable judges who diligently and fully examined the origin of the dispute, and delivered judgment that the mill ought to belong to St. Michael and his monks forever. The most victorious king William approved and confirmed this decision.”^[301]

Geoffrey, bishop of Coutances is one of the more frequent visitors at William's English courts, and we may suspect that this method was not infrequently used in England when the intricacy of a matter in dispute surpassed the legal competence of the court as a whole. It forms, in fact, the first stage in that segregation of a legal nucleus within the indifferenced *Curia* which created the executive organ of the days of the two great Henrys. The early part of this process takes place almost wholly in the dark so far as England is concerned, and we must seriously doubt whether it had led to any very definite results when the Conqueror died; for it is to Henry I., rather than to his father, that we should assign the formation of an organised body of royal administrators. In this, as in other institutional matters, the Conqueror's reign was a time of tentative expedients and simple solutions; it is essentially a period of origins.

The king's court is a very mobile body. The king is always travelling from place to place, and where he is at any moment there is his court held also. It is possible to construct an itinerary of our kings from Henry II. onward, but this cannot be done in the case of William, for it is exceptional for his charters to contain any dating clause. William is indeed to be seen issuing writs in very different parts of his kingdom: at Winchester, the ancient capital of Wessex, and York, the ancient capital of Northumbria; at hunting seats such as Brill and Woodstock; at Downton in Wiltshire, Droitwich, and Burton-on-Trent; but the list of places which we know to have been visited by William and his court in time of peace is very small compared with the materials which we possess for an itinerary of Henry I., or even of William Rufus. To this deficiency of information is largely to be attributed the fact that, compared with Henry I., William is rarely^[302] to be found in the northern parts of his kingdom; it is probable that fuller knowledge of the details of his progresses would reveal a number of unrecorded visits to the shires beyond Watling Street.



WILLIAM'S WRIT TO COVENTRY

A natural means of transition from the king's court to the local divisions of the country, the shires and hundreds, is afforded by the recognised means of communication between the two, those writs of which mention has already been made. In form a writ is simply a letter addressed to the persons who are responsible for the fulfilment of its directions, and it is usually witnessed, as we have seen, by a greater or less number of the persons present with the king at the time of its issue. Such a letter might be written either in Latin or in Old English, the former of course being more usual under the Norman kings, and it was usually authenticated with the king's great seal. This simple device seems to have been the legal means by which the great transfer of land which followed the Conquest was brought about; the king would send down one of these writs to the sheriff of a county directing him to put a certain baron in possession of certain specified lands, and the sheriff would need no further warrant. We may give the following as an example of a writ in its Latin form:

“William king of the English salutes Baldwin sheriff of Devonshire and all his barons and servants in that shire.

Know ye that I have granted to my monks of Battle [de Bello] the church of St. Olaf in Exeter with the lands of Shireford and with all other lands and

possessions belonging to the said church. Wherefore, I will and command that they hold it freely and in peace and quit from every duty of earthly service and from all pleas and claims and [attendance at] shire and hundred courts and from every geld and ‘scot’ and aid and gift and danegeld and army service, with sake and soke and infangenethef; [quit moreover from] all works on castles and bridges, as befits my demesne alms. Witnessed by Thomas, Archbishop of York, and William, the son of Osbert at Winchester.”^[303]

Any comment on the privileges conveyed by the document would be outside our present purpose, which is merely to illustrate the way in which King William sent his instructions into the different parts of his kingdom. But the formula of address deserves notice because it suggests that the writ was really directed to the shire court where the sheriff and the “barons and king’s servants” of the shire periodically met. There it would be read in the presence of the assembled men of the county, and the sheriff would forthwith proceed to carry its directions into effect. The sheriff in the king’s eyes is clearly the executive officer of the shire and his importance is not to be measured by the modern associations aroused by his title. The Latin word which we translate as “sheriff” is *vicecomes* and this word also represents the French *vicomte*, a fact which should by no means be ignored, for the sheriffs of the half-century succeeding the Conquest resemble their French contemporaries much more closely than either their English successors of the twelfth century or the shire reeves of the Anglo-Saxon period. For one thing, they are in a sense true *vicecomites*: the sheriff was the chief officer in each county in which there was no earl, and the earldoms created by William were few, and with the exception of Kent were situated in remote parts of the land. Then also it is certain that some at least of the more important sheriffdoms were hereditary in much the same sense as that in which the great earldoms before the Conquest were hereditary—the cases of Devon, Wiltshire and Essex are examples—to which we must add that the early Norman sheriffs are often very great men. Baldwin the sheriff of Devon was the son of William’s own guardian, Count Gilbert of Brionne, and two of his sons followed him in the office. Edward the sheriff of Wiltshire was the ancestor of the medieval earls of Salisbury. Urse de Abetot, alternately despoiler and tenant of the church of Worcester was the chief lay landowner in Worcestershire, Hugh Fitz Baldric, sheriff of

Yorkshire, was among the greater tenants in chief in that county. In local, as in general constitutional history, it is most important not to read the ideas of Henry II.'s time into the institutions which prevailed under the Conqueror. Had William in 1070 tried to carry out a general deposition of his sheriffs, such as Henry II. actually achieved in 1170, the attempt, we may be sure, would have led to a revolt, and the mass of the baronage would have sided with the official members of their class. But indeed, so long as the Normans were still intruders in a conquered country, it was only politic on William's part to govern through men of strong territorial position, men who had the power to enforce the king's commands in their own localities. In the choice of his local administrators, as in certain other aspects of his policy, William was preparing difficulties for his successors, but his justification lay in the essential needs of his own time. The great transfer of land from Englishmen to Normans, to take one instance, could never have been accomplished if the local government of the country had been in weak hands.

In the period immediately following the Conquest, the four years between 1066 and 1070, which in so many respects are distinct from the rest of William's reign, perhaps the majority of the sheriffdoms continued to be held by Englishmen. Within this period writs are addressed to Edmund, sheriff of Herefordshire, Sawold of Oxfordshire, Swegen of Essex, and Tofig of Somerset, and even after 1070 such Englishmen as Ethelwine, sheriff of Staffordshire,^[304] continue the series. In fact, the development of the provincial administration in this respect seems to have followed a very similar course to that which we have noted in the case of the king's court; there is a period in which men of both races are mingled in the government of the shires, as well as in attendance on the king's person. But by the end of the reign the change in both respects had become almost complete, and the introduction of Norman sheriffs began early; for before 1069 Urse de Abetot had already entered upon his aggressive course as sheriff of Worcestershire, and it is very probable that even by the time of William's coronation the Norman Geoffrey had succeeded Ansgar the Staller in his sheriffdom of London and Middlesex.^[305]

From the sheriffs we may pass naturally to their superiors in rank, the earls. Taught by experience, William regarded the vast, half-independent earldoms of the later Anglo-Saxon period with profound mistrust, and as the occasion presented itself he allowed them to lapse. All the earldoms held by members of the house of Godwine became extinct with the battle of

Hastings, but the great provincial governments of Mercia and Northumbria probably lasted until the final revolt of Earls Edwin and Morcar in the spring of 1069. After their suppression there remained three minor earldoms of Anglo-Saxon origin, East Anglia, Northampton, and Bernicia, the holders of which, as we have seen, were mainly responsible for the rebellion of 1075. Upon William's triumph in the latter year the East Anglian earldom was suppressed, that of Northampton ceases to exist for the remainder of the Conqueror's reign, and we have already noticed the reasons which led to the continuance of the earldom of Bernicia. Similar motives led to the creation of the four earldoms which alone can be proved to have come into being before 1087, and which deserve to be considered in detail here. They are:

1. Hereford, granted to William Fitz Osbern before January, 1067.
2. Shrewsbury, granted to Roger de Montgomery circ. 1070.
3. Chester, granted to Hugh d'Avranches, before January, 1071.
4. Kent, granted to Odo, bishop of Bayeux, possibly before January, 1067.

The exact extent of the earldom of Hereford is doubtful, for there exists a certain amount of evidence which makes it probable that William Fitz Osbern possessed the rights of an earl over Gloucestershire and Worcestershire in addition to the county from which he took his title. We have already discussed the general significance of the early writ which the king addressed to Earl William and the magnates of Gloucestershire and Worcestershire, and the evidence of this document is supported by the fact that the earl appears as dealing in a very arbitrary fashion with land and property in both shires.^[306] It is probable on other grounds that Gloucestershire lay within the Fitz Osbern earldom, for William's possessions extended far south of the Herefordshire border to the lands between Wye and Usk in the modern county of Monmouth, and the addition of Gloucestershire to Herefordshire is required to complete the line of earldoms which lay along the Welsh border. On the other hand it seems probable that Worcestershire never belonged to Roger, William Fitz Osbern's son, for in 1075 it was the main object of the royal captains in the west to prevent him from crossing the Severn to the assistance of his friends in the midlands. In any case the early date at which the earldom of Hereford

was created deserves notice, for it shows that within four months of the battle of Hastings William was strong enough to place a foreign earl in command of a remote and turbulent border shire. Short as was his tenure of his earldom William Fitz Osbern was able to leave his mark there; fifty years after his death there still remained in force an ordinance which he had decreed to the effect that no knight should be condemned to pay more than seven shillings for any offence.^[307] Lastly, it should be noted that in a document of 1067^[308] William Fitz Osbern is styled “consul palatinus,” a title which should not be construed “palatine earl,” but which rather means that William, though raised to comital rank, still retained the position of “dapifer” or steward of the court, which he inherited from his father, the unlucky Osbern of the Conqueror’s minority, and in virtue of which the earl of Hereford continued to be the titular head of the royal household.

To the north of William Fitz Osbern, Roger de Montgomery, the other friend of William’s early days, was established in an earldom threaded by the Severn as Herefordshire is threaded by the Wye, and stretching along the former river to the town and castle to which the house of Montgomery left its name. From the standpoint of frontier strategy Roger’s position was even more important than that held by his neighbour of Hereford; for Shrewsbury, the point where roads from London, Stafford and the east, and Chester and the north met before crossing the Severn, continued throughout the Middle Ages to be the key to mid-Wales. Unfortunately, the date at which Roger received the Shropshire earldom cannot be fixed with certainty, for, while he appears at court in the enjoyment of comital rank as early as 1069, the one account which we possess of the operations at Shrewsbury in the latter year virtually implies that the town was then in the king’s hand. Probably the discrepancy is to be explained by the fact that before he received his grant of Shropshire Roger had been given the castle of Arundel and the town of Chichester in the distant shire of Sussex.^[309] It is highly probable, in fact, that Roger possessed the rights of an earl over the latter county,^[310] and such a grant would fall in well with the general policy of the Conqueror, for Sussex was only less important than Kent as a point of arrival from the continent, and in the eleventh century Arundel was a port. Most probably Roger was appointed earl of Shrewsbury after the events of 1069 had shown that a coalition of Welsh and English was the most pressing danger of the moment, but he continued in possession of Arundel and Chichester.^[311] Once established at Shrewsbury, Roger and his

followers speedily proceeded to take the offensive against the Welsh, and in 1072 Hugh de Montgomery, the earl's eldest son, extended his raids as far south as Cardigan. In addition to being the earl of two English shires, Roger de Montgomery held great possessions in Normandy and France; in right of his wife he was count of Bellême, and by a more distant succession he became Seigneur of Alençon, while a series of marriage alliances placed him at the head of a powerful group of kinsmen. But it is probable that the place which he holds in history is due less to his wide lands and great power than to the accident that one of his knights became the father of the greatest historian whom Normandy had so far produced. The earl of Shrewsbury was a great baron and a loyal knight, but when we regard him as representing the best aspect of the Norman conquerors of England we are, consciously or otherwise, guided by the place which he fills in the narrative of the chronicler born within his earldom, Ordericus Vitalis.

The circumstances under which the earldom of Chester was created present a certain amount of difficulty. Chester itself was the last great town of England which called for separate reduction at William's hands, and it did not fall until the beginning of 1070. Then we are told that William gave the earldom of Cheshire to Gherbod, one of his Flemish^[312] followers, but an original charter^[313] of the time shows us Hugh Lupus of Avranches already addressed as earl of Chester in or before February, 1071. Now Gherbod (who never appears in any English document) was killed in Flanders in the latter month, so that we can only suppose that, if he ever received the earldom, he never took practical possession of it, and resigned it almost immediately. The historical earldom of Chester is that which remained in the family of Hugh of Avranches for two centuries and formed the "county palatine" which survived until 1536. It was a frontier earldom in a double sense: Chester controlled the passage of the Dee into North Wales and also the coast road to Rhuddlan and Anglesey, while so long as all England north of Morecambe Bay was Scotch territory, it was politic to entrust much power to the man who commanded the west coast route from the midlands to the north. Judging from the evidence of Domesday Book, the whole of Cheshire formed one compact fief in the hands of its earl; it is the only county in England possessed outright by one tenant-in-chief. Of Earl Hugh, we can draw the outlines of no very pleasing picture. He was devoted to every kind of sensual indulgence, and so fat that no horse could carry him; he is charged like most of his contemporaries with disrespect to

the rights of church property. On the other hand, he was, so far as we can see, unswervingly faithful to the king, and he abundantly fulfilled his natural duty of keeping the Welsh away from the English border; nor is it probable that William would have entrusted to a lethargic fool one of the most responsible positions in his kingdom.

The case of Kent stands apart from that of its three sister earldoms. The latter were created as the readiest means of securing a part of the country remote from the centre of authority. The importance of Kent lay in its position between London and the Channel ports. Through the county ran the great Dover road, the main artery of communication between all northern England and the continent, the obvious line along which an invader would strike at London. The rising of 1067 proved the reality of such danger and it was reasonable that the county should be placed in charge of the man who by relationship was the natural vicegerent of the king when the latter was across the Channel. Territorially, Kent was much less completely in the hands of its earl than was the case with either of the three western earldoms, but the possessions of Odo of Bayeux in the rest of England placed him in the first rank of landowners. The date at which the earldom was created is not quite certain; like William Fitz Osbern, Odo may have received his earldom at the time of his joint regency with the former in 1067. He is addressed as bishop of Bayeux and earl of Kent in a charter which is not later than 1077, and his rank as an earl is strikingly brought out in the circumstances of his dramatic arrest in 1082.

Judged by later events, the creation of these four great earldoms may seem to have been a mistake on the part of the Conqueror. Hereford, Kent, and Shropshire in turn served as the base of operations for a formidable revolt within fifty years of the Conquest. Their formation also contrasts with the general principles which governed the distribution of land among the Norman baronage, principles which aimed in the main at reproducing the discrete character of the greater old English estates. Before the Conquest no such compact block of territory as the earldom of Cheshire had ever been given in direct possession to any subject. But here, as in the case of the powerful sheriffdoms of William's time, his justification lay in his immediate necessities. His reason for the creation of the western earldoms was the same as that which prompted his successors to entrust almost unlimited power to the great lords on the march of Wales. It was absolutely necessary to secure central England against all danger from Welsh invasion,

and the king himself had neither the time nor the means to conquer Wales outright. He found a temporary solution by placing on the debatable border three earls, strong enough in land and men to keep the Welsh at bay and impelled by self-interest to carry out his wishes. And also we should remember that it was only wise to guard against a repetition of that combination of independent Welsh and irreconcilable English which had been planned in 1068; the three western earldoms were all created before the capture of Ely in 1071 ended the series of national risings against the Conqueror. Lastly, it will not escape notice that at the outset all four earldoms were given to men whom William knew well and had every reason to trust. Odo of Kent was his half-brother; Roger de Montgomery and William Fitz Osbern were young men already at his side in his early warfare before Domfront; Hugh of Chester belonged to a family which had held household positions in his Norman court. William might well have felt that he could not entrust his delegated power to safer hands than these.

Four or five shires only were placed under the control of separate earls, and in them as elsewhere in England the old English system of local government continued with but little change. The shire and hundred courts continued to meet to transact the judicial and administrative business of their respective districts though the manorial courts which sprang up in great numbers as a result of the Conquest were continually withdrawing more and more of this work. We know very little of the ordinary procedure of the local courts; it is only when they take part in some especially important affair such as the Domesday Inquest that the details of their action are recorded. An excellent illustration of the way in which the machinery of the shire court was applied to the settlement of legal disputes is afforded by the following record, taken from the history of the church of Rochester:

“In the time of William the Great, king of the English, father of William, also king of that nation, there arose a dispute between Gundulf, bishop of Rochester, and Picot, sheriff of Cambridge, about certain land, situated in Freckenham, but belonging to Isleham, which one of the king’s sergeants, called Olchete, had presumed to occupy in virtue of the sheriff’s grant. For the sheriff said that the land in question was the king’s, but the bishop declared that it belonged to the church of St. Andrew. And so they came before the king who ordered that all the men of that shire should be brought

together, that by their verdict [*judicio*], it might be determined to whom the land should rightly belong. Now they, when assembled, through fear of the sheriff, declared the land to belong to the king, rather than to Blessed Andrew, but the bishop of Bayeux, who was presiding over the plea, did not believe them, and directed that if they were sure that their verdict was true, they should choose twelve out of their number to confirm with an oath what all had said. But when the twelve had withdrawn to consider the matter, they were struck with terror by a message from the sheriff and so, on returning, they swore that to be true which had been declared before. Now, these men were Edward of Chippenham, Heruld and Leofwine ‘saca’ of Exning, Eadric of Isleham, Wulfwine of Landwade, Ordmer of Bellingham, and six others of the better men of the county. After all this, the land remained in the king’s hand. But in that same year a certain monk, called Grim came to the bishop like a messenger from God, for when he heard what the Cambridge men had sworn, he was amazed, and in his wrath called them all liars. For this monk had formerly been the reeve of Freckenham, and had received services and customary payments from the land in question as from the other lands belonging there, while he had had under him in that manor one of the very men who had made the sworn confirmation. When the bishop of Rochester had heard this, he went to the bishop of Bayeux and told him the monk’s story in order. Then the bishop of Bayeux summoned the monk before himself and heard the same tale from him, after which he summoned one of those who had sworn, who instantly fell down before his feet and acknowledged himself to be a liar. Then again he summoned the man who had sworn first of all, and on being questioned he likewise confessed his perjury. Lastly, he ordered the sheriff to send the remaining jurors to London to appear before him together with twelve others of the better men of the county to confirm the oath of the former twelve. To the same place also, he summoned many of the greater barons of England, and when all were assembled in London, judgment was given both by French and English that all the jurors were perjured since the man after whom all had sworn had owned himself to be a liar. After a condemnation of this kind the bishop of Rochester kept the land, as was just, but since the second twelve jurors wished to assert that they did not agree with those who had first sworn, the bishop of Bayeux said that they should prove this by the ordeal of iron. They promised to do so, but failed,

and by the judgment of the other men of their county they paid three hundred pounds to the king.”^[314]

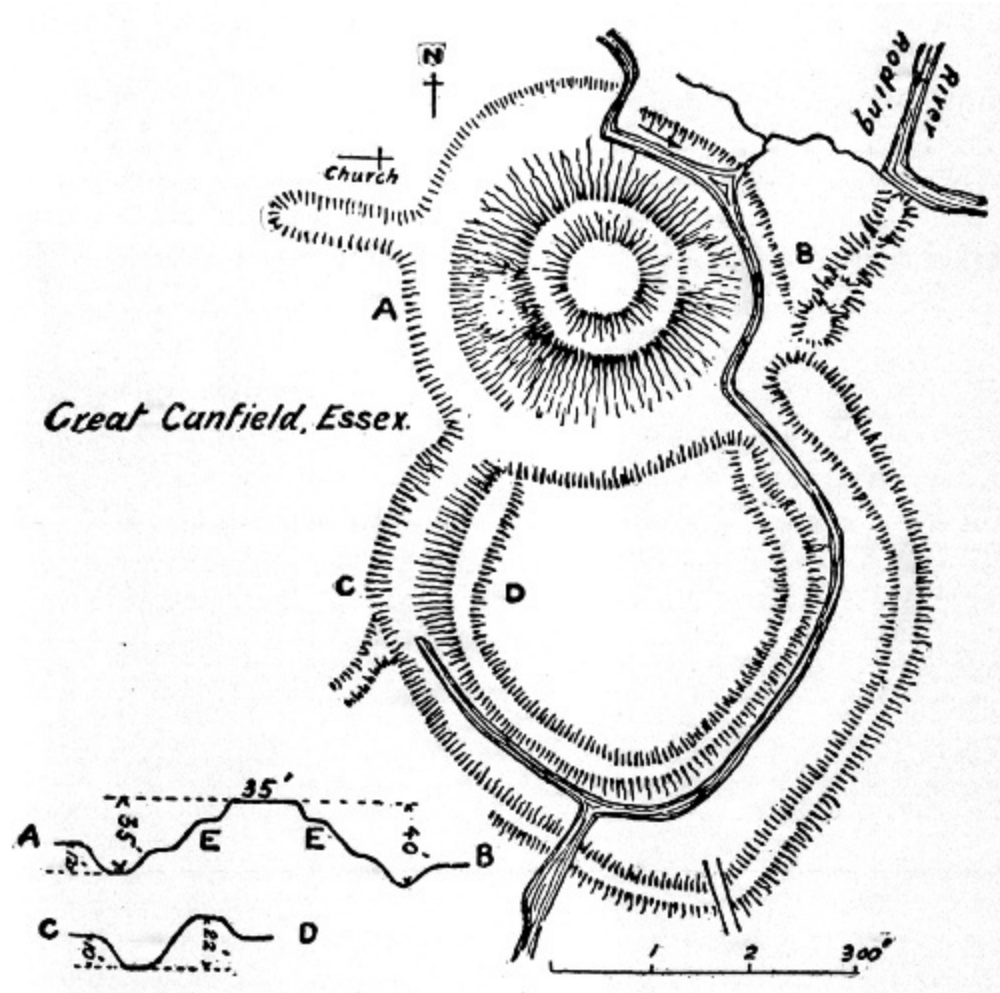
In this extract we get a vivid picture of the way in which the two systems of government, Norman and English, worked in conjunction. In the above transactions the matter in dispute is referred for settlement to the ancient shire court of Cambridgeshire, and determined by the oaths of English jurors, but the procedure is a Norman innovation, and it is the Conqueror’s brother who presides over the plea. The terror inspired by the sheriff is an eloquent commentary on the vague complaints of the chroniclers concerning the oppression of the king’s officers, and we may welcome this casual glimpse into the relations between the English folk of the county and the formidable president of their court. But the remaining details of the story may well be left to explain themselves.

But a suit of this kind must not be taken as typical of the ordinary work of the shire court; it was not every day that it had to discuss the affairs of a king and a bishop. It was the exceptional rank of the parties concerned in this instance which enabled them to traverse the original judgment of the shire court and to employ a procedure quite alien to the methods of the Old English local moots. So far as we can see, the practice of settling disputes by the verdict of a small body of sworn jurors was entirely a Norman innovation, and we may be sure that it would not have been employed in this case if the veracity of the men of the shire had not been called in question. Within ten years of the date of our story the king’s fiscal rights all over England were to be ascertained by the inquisition of sworn juries in the Domesday Inquest, but the employment of this method in ordinary judicial cases continued to be highly exceptional down to the beginning of the Angevin period, and our instance may perhaps claim to be the first recorded example of its use. The duty of the shire court in all pleas of the kind, to which it would have been confined in all probability in the above case if the king had not been attracted within the dispute, was simply to declare the customary law which related to the matter in hand. In principle, a judgment of this kind is entirely different from the verdict on oath given by men selected for their local knowledge as were the jurors in our story: if carried out honestly the result would be the same in either case—the land would be assigned to the proper person; but whereas this would only follow incidentally if inevitably from the unsworn judgment of the court as a

whole, the sworn verdict would consist of an actual award. The latter principle produced the Angevin juries of presentment; the former principle continued to underlie the action of the shire and hundred courts so long as they exercised judicial functions. The interest of the Isleham case above lies in its transitional character: it shows us the sworn jury used as a secondary resort after the accustomed practice of the shire court had failed to give satisfaction; already in 1077 it is available for the amendment of wrongs arising "*pro defectu recti*," on the part of the domesmen of the local assemblies.

But just as the introduction of the jury was bringing a new procedure into competition with the antiquated methods of the local courts, so a quite different set of causes was cutting at the root of their influence. Centuries before the Conquest considerable powers of jurisdiction had been placed in private, generally ecclesiastical, hands, but the gradual extension of the sphere of private justice, until it became an integral part of the whole manorial organisation, was due to the feudal principles which triumphed in 1066. Private jurisdiction, as it existed in the Conqueror's day, represents the blending of at least three distinct principles. In the first place, the king can confer jurisdictional rights on whomsoever he pleases; from this point of view a private court will represent a portion of royal power in the hands of a subject. But in the second place, the king himself is only the first of a number of men who possess these rights in virtue of their rank; it is probable that the political theory of the eleventh century would allow that a great man was naturally possessed of such powers of justice as were appropriate to his personal status, though it would be unable to give a rational explanation of the fact. And then even in the Conqueror's time there can be traced the idea, the prevalence of which was destined to cover England with manorial courts, that the tenorial relation between a lord and his tenant gave the former jurisdictional powers over the latter; that, independently of a royal grant, or of his personal rank, a lord was entitled to hold a court for his "men"; that the economic relation between landlord and tenant produced a corresponding tie in the sphere of jurisdiction. It is the first two of these principles which produced the "sake and soke" of Anglo-Saxon law, it is the last which explains the extension of manorial justice in the century following the Conquest.^[315] It is worth while making this classification, for it reveals one of the main lines of divergence between English and French law in the Middle Ages. That which in England was the

least persistent of our three principles, the element of personal rank, became in France the basis of the famous classification of jurisdictional powers into “haut, moyen, et bas justice,” which endured until the Revolution, and the main reason for this difference lies in the circumstances of the Norman Conquest. By that event, whatever the explanation of private justice which may have passed current among those who troubled themselves about such matters, all such powers proceeded directly or indirectly from the king; directly when the Conqueror made an explicit grant of “sake and soke” to a baron, indirectly if the latter claimed his court as proceeding from his tenure of his land, for the land itself was held of the king who had granted it to him. Here then, in the Sphere of local justice, we see the union of Norman and English ideas; the judicial power which results from the facts of tenure is added to the judicial power which is exercised in virtue of the king’s grant.



PLAN OF GREAT CANFIELD CASTLE, ESSEX

It should not be thought that the Norman barons, in their seats across the Channel, had exercised jurisdictional powers in advance of those possessed by the English nobles and thegns whom they were destined to displace. The fact that the grants of private justice which the Conqueror made to his followers in England were set forth in the same conventional phrases as Edward the Confessor would have employed in like case, may be set down to William's desire to preserve the forms of Old English law; but there is no doubt that the Norman barons were quite content to accept the Anglo-Saxon formulas as a satisfactory expression of the jurisdictional powers which they were to enjoy. In fact, the latter were ample enough. Thus, when the Conqueror confirmed his "customs" to the abbot of Ely, these included "sake and soke, toll and team and infangenethef, hamsocne and grithbrice,

fihtwite and fyrdwite within boroughs and without, and the penalties for all other crimes which are emendable on his land and over his men, as he held them on the day when King Edward was alive and dead.”^[316] Terms like these cover nearly the whole field of “civil and criminal justice.” Sake and soke may be construed as the right to hold a court; toll explains itself; “team” implies that persons might be “vouched to warranty” in the court, a process which is too technical to be explained here, but the grant of which made a court capable of entertaining suits arising out of the transfer of land; “infangenethef” is the right of trying and executing thieves taken on one’s land; “hamsocne” (or rather “hamfare”) is the breach of a man’s house; “grithbrice” is the violation of the grantees’ special peace; “fihtwite” is the fine for a general breach of the peace; “fyrdwite” is the fine for failure to appear in the national militia, the fyrd. Privileges like these, within the area to which they are applicable, empower the grantees’ court to take cognisance of all crimes and misdemeanours which might be expected to occur in the ordinary course of events; the Isle of Ely and some dozens of external manors were practically withdrawn altogether from the national system of justice. We have no reason to suppose that the average baron in Normandy was endowed with anything like these powers, nor need we suppose that grants of such wide application were very frequently made to the conquerors of England; but when, two years after the date of Domesday Book, we find Roger de Busli—a great baron certainly, but not belonging absolutely to the first rank—granting to his monks of Blyth “sac and soke, tol and team and infangenethef, iron and ditch and gallows with all other privileges [*libertates*] which I formerly held of the king,”^[317] we can see that the feudalisation of justice had gone far by the time of King William’s death.

We may then fairly inquire what was the relation which these new manorial courts bore to the old national courts which they were destined to supplant. With reference to the hundred and shire assemblies, the answer is fairly simple: the two systems of jurisdiction were concurrent. The hundred court, we must remember, was in no sense inferior to the shire court, and in the same way the manorial court was in no sense inferior to either of these bodies; it rested with the individual litigant before which of them he should bring his plea, with this most important exception—that the lord of the party impleaded could if he wished “claim his court,” and so appropriate the profits of the trial. Here was a most powerful force steadily drawing

business away from the shires and hundreds, and attracting it within the purview of the manor. But then the wishes of the peasantry told in the same direction: the manorial court was close at hand; it was composed of neighbours who knew each others' concerns, and were constantly associated in the common agricultural work of the vill; it gratified the tendencies towards local isolation, which were pre-eminently strong in the early Middle Ages. The manorial court supplied justice at home, and we should remember how many hindrances beset recourse to the hundreds and shires. In all Staffordshire there were only five hundreds; in all Leicestershire only four wapentakes; the prosecution of a suit in any of these courts must have meant grievous weariness and loss, the establishment of a manorial court must have meant an immediate alleviation of the law's delay. He would have been an exceptionally far-sighted villein who in 1086 could foresee that the convenient local court would eventually be the agent by which his descendants would be thrown into dependence on the will of the lord, with no other protection than the traditional and unwritten "custom of the manor"; that the establishment of the lord's justice would ultimately exclude all reference to the more independent if more antiquated justice of the men of the hundred of the shire, on the part of the lesser folk of his vill.

One question connected with the rise of manorial courts deserves attention here—did they displace any court proper to the vill as a whole, independently of its manorial aspect? It is clear that every now and again the men of the vill must have met, if only to regulate the details of its open-field husbandry. But whether such a meeting had any formal constitution or judicial functions—whether, that is, it was a "township-moot," in the accepted sense of the words^[318]—is excessively doubtful. The fact that we hear nothing definitely about it in the documents of the Anglo-Saxon period is not quite conclusive against its existence; it is more to the point that the hundred moot seems to be the lowest stage reached by the descending series of national courts. It is probable, therefore, that the ordinary township never possessed any court other than that which belonged to it in its manorial aspect.

We have seen enough to know that the jurisdictional and economic aspects of feudalism were intimately connected: the manorial court was the normal complement of the average manor. No less closely associated in practice were the military and tenurial elements of the feudal system, and upon a superficial view of this system it is these latter elements which rise

into greatest prominence. Nor is this altogether unjust, for, although it is not probable that any change induced by the Norman Conquest so profoundly affected English social life as did the universal establishment of private jurisdiction, yet the introduction of military tenures, and the creation of a feudal army rooted in the soil of England, are phenomena of the first importance, and the form which they assumed in the course of the next century was due in essence to the personal action of the Conqueror himself, and to the political necessities of his position.

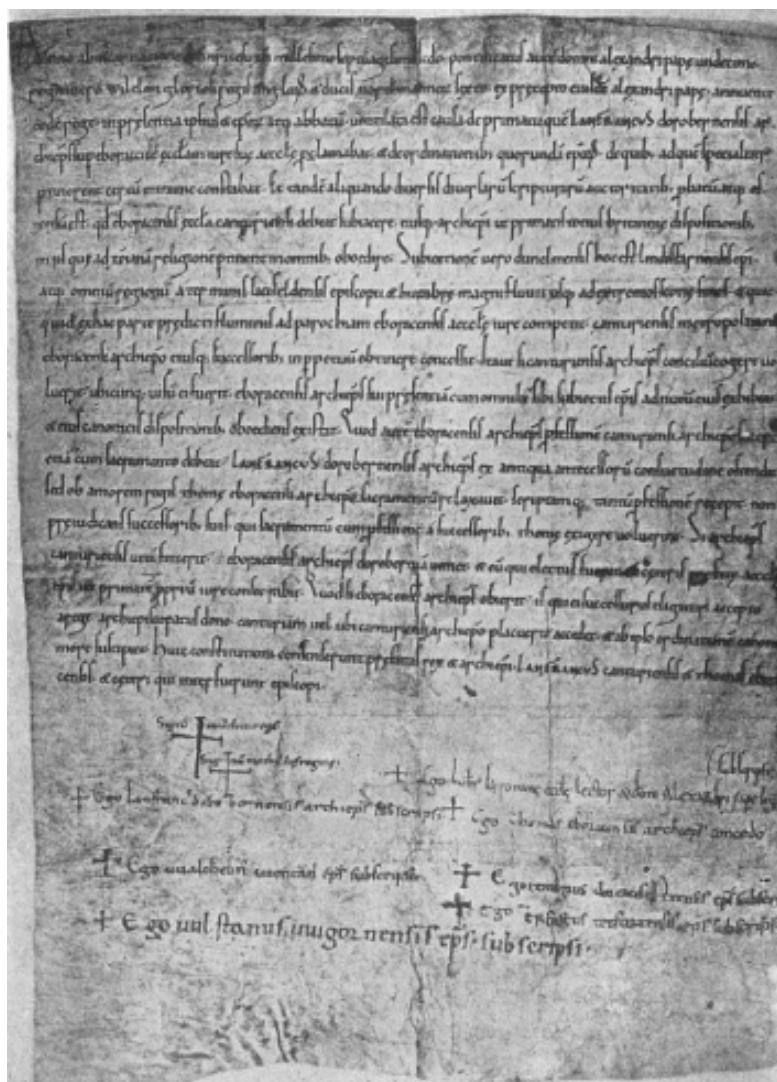
The rapidity with which England had been conquered had demonstrated clearly enough the inefficiency of the Anglo-Saxon military system, and the changes introduced in this matter by King William were revolutionary, both in details and in principle. The military force at the disposal of Edward the Confessor had consisted of two parts: first, the *fyrð* or native militia, based on the primitive liability of every free man to serve for the defence of his county, and secondly a body of *housecarles*, professional men-at-arms, who served for pay and were therefore under better discipline and available for longer periods of service than the rustic soldiery of the shires. There is no good evidence to prove that the Anglo-Saxon *thegn* was burdened with any military obligation other than that which rested on him as a free man, but there are certain passages which suggest that, in the latter days of the old English state, the king in practice would only call out one man from each five hides of land, and that he would hold his more powerful subjects responsible for the due appearance of their dependants. If this were an attempt to create a small but efficient host out of the great body of the *fyrð*, it came too late to save the situation and, so far as our evidence goes, it was the professional *housecarles* who bore the brunt of the great battles of 1066. By derivation at least the *housecarle* must have been a man who dwelt in his lord's house as a personal retainer; and, although we know that men of this class had received grants of land from the last native kings, there is no reason to believe that their holdings were conditional on their services, or indeed that they were other than personal marks of favour, quite unconnected with the military duty of the recipient.

The essential features of the Norman system were entirely different to this. Each tenant in chief of the crown, as the condition on which he held his lands, was required to maintain, equip, and hold ready for immediate service a definite number of knights, and the extent of his liability in this matter was not, save in the roughest sense, proportional to his territorial

position, but was determined solely by the will of the king. Transactions of this kind most probably took place at the moment when each tenant in chief was put into possession of his fief, and their observance on the part of the grantee was guaranteed by the penalty of total forfeiture in the event of his appearance at the king's muster with less than his full complement of knights. His military liability once ascertained, a tenant would commonly proceed to enfeoff some of his knights on portions of his estate, keeping the remainder in attendance on his person. As time went on the number of landless knights continually became less and less, and by the end of the Conqueror's reign, the greater part of every fief was divided into knight's fees, whose holders were bound by the circumstances of their tenure to serve with their lord in the discharge of the military service which he owed the crown. No definite quantity of land, measured either by assessment or value, constituted the knight's fee; but, judging from the evidence of a later period, it seems certain that each tenant in chief was burdened with the service of a round number of knights, twenty, thirty, or the like, and it is quite possible that these round figures were influenced by the Norman *constabularia* of ten knights, a military unit which we know to have prevailed across the Channel before the conquest of England.^[319]

But the work of subinfeudation once started, no limit in theory or practice was ever set to it in England, and in the earliest period of Norman rule we find knights, who held of a tenant-in-chief, subletting part of their land to other knights and the latter continuing the process at their own pleasure. In Leicestershire, for example, the vill of Lubbenham was held of the king by the archbishop of York, and had been let by him to a certain Walchelin, who had enfeoffed with it a man of his own called Robert, who had granted three carucates of land in the manor to an unnamed knight as his tenant. But this is an exceptional case, for it is unusual for Domesday to reveal more than two lords in ascending order between the peasant and the king. A process of the same kind had not been unknown in England in the time of King Edward; churches had been leasing land to their thegns; and thegns, whom a Norman lawyer would consider to hold of the king, had been capable of subletting their estates to their dependants. But the legal principles which underlay dependant land tenure had never been worked out in England, as they had been elaborated in Normandy before the Conquest, and in two important respects at least there was a marked difference between the old and the new system. On the one hand it is extremely doubtful whether

Anglo-Saxon law had developed the idea that all land, not in the king's immediate possession, was held directly or indirectly of the crown; and in the second place the old English system of land tenure was far slacker and less coherent than its Norman rival. Domesday Book contains frequent references to men who could leave one lord and seek another at will, and this want of stability in what was perhaps the most important division of private law meant a corresponding weakness in the whole of the Anglo-Saxon body politic. Here as elsewhere the Norman work made for cohesion, permanence, and theoretical consistency.



AUTOGRAPH SIGNATURES TO WINDSOR AGREEMENT

It was also an innovation upon accepted practice that the Conqueror extended to ecclesiastical estates the military responsibilities which he imposed upon lay fiefs. Long before the Confessor's time, the churches had been subletting land to their thegns on condition that the latter should do the military service which the said churches owed to the king; but the duty in question merely represented the amount of fyrd service due from the lands of each religious house, and was in no sense the result of any bargain between the king and the latter. On the other hand, the number of knights maintained by an ecclesiastical tenant of King William depended in the last resort upon the terms which that tenant, whether bishop or monastery, had made with the new sovereign. The Conqueror could not venture to dispossess a native religious house as he could dispossess a native thegn or earl; but he could insist that such a body should make its contribution towards the new army which he was planting on the soil of England, and he could determine the minimum amount of the contribution in each case. So far as our evidence goes, the knight service demanded from a monastery was fixed in a much more arbitrary manner than that imposed on a lay tenant; a baron's military liabilities would greatly correspond in the main, though very roughly, with the extent of his fief, but no principle of the kind can have been applied to the burden laid upon the church lands. The abbeys of Peterborough and Abingdon were bound to supply sixty and thirty knights respectively, but St. Albans escaped with a *servitum debitum* of six, and St. Benet of Hulme was only debited with three. It is more than probable that political conditions went far towards producing these violent discrepancies; a monastery, like Peterborough, which had displayed strong nationalist tendencies, might fairly enough be penalised by the imposition of a heavy burden of service towards the maintenance of the foreign rule. On the other hand, the process in question was regarded in a very different light by the Norman abbots who were gradually introduced in the course of the reign, and by the English monks placed under their government. To the former the creation of knights' fees meant a golden opportunity of providing for their necessitous kinsmen beyond the Channel; to the latter the withdrawal of land from the immediate purposes of the church forboded an ultimate shrinkage in the daily supply of beef and beer. The local chronicler of Abingdon abbey tells us sorrowfully how Abbot Ethelhelm sent over into Normandy for his kinsmen, and invested them with the possessions of the monastery to such an extent that in one year he granted

seventy manors to them, which were still lacking to the church a hundred years later.

Reference should perhaps be made here to the difficult question of the actual numbers of the territorial army which rose at King William's bidding upon the conquered land. In a matter of this kind the statements of professed chroniclers must be wholly ignored; they represent mere guesswork, and show a total insensibility to the military and geographical possibilities of the case. Several attempts, based upon the safer evidence of records, have recently been made to estimate the total number of knights whom the king had the right to summon to his banners at any given moment, and it is probable that the results of such inquiries represent a sufficiently close approximation to the truth of the matter. On the whole, then, we may say that the total knight service of England was fixed at something near five thousand knights, of whom 784 have been assigned to religious tenants-in-chief, 3534 have been set down as the contribution of lay barons, the remainder representing the allowance properly to be made for the deficiencies in our sources of information.^[320] The question is important, not only for the influence which tenure by knight service exercised on the later English land-law, but also for its bearing upon the cognate problem of the numbers engaged in the battle of Hastings, which has already received discussion here.

From knight service we may pass naturally enough to the kindred duty of castle-guard. The castles which had arisen in England by the time of the Conqueror's death belong to one or other of two great classes. On the one hand, there was the royal fortress, regarded as an element in the system of national defence, whether against foreign invasion or native revolt; to the second class belong the castles which were merely the private residence of their lord. In castles of the former class, which were mostly situated in boroughs and along the greater roadways, the governor was merely the king's lieutenant; Henry de Beaumont and William Peverel were placed in command of the castles of Warwick and Nottingham respectively, in order that they might hold those towns on the king's behalf. This being the case, it was only natural that garrison duty as well as service in the field should be demanded from the knights whom the barons of the neighbourhood were required to supply; the knights of the abbot of Abingdon were required to go on guard at Windsor Castle. Of the seventy castles which we may reasonably assume to have existed in 1087, twenty-four belong to this class,

and twenty of the latter are situated in some borough or other, and this close connection of borough and royal castle is something more than a fortuitous circumstance. In Anglo-Saxon times, it is well ascertained that each normal borough had been the military centre of the district in which it lay, and had in fact been the natural base of operations in the work of local defence. The Normans brought with them new ideas on the subject of defensive strategy, but the geographical and economic conditions which gave to the boroughs their military importance in early times were not annulled by the Norman Conquest; and it would still have been desirable to safeguard the growing centres of trade from external attacks, even if it had not been expedient in Norman eyes to set a curb upon the national spirit among the dwellers in the English towns. No general rule can be laid down as to the custody of these royal castles; it was not infrequent for them to be held on the king's behalf by the sheriff of the shire in which they might be situated, but the Conqueror would entrust his fortress to any noble of sufficient military skill and loyalty, and, as in the cases of Warwick and Nottingham, a tenure which was originally mere guardianship might pass in the course of time into direct possession.

The larger class of private castles is less important from the institutional standpoint. In Normandy the duke had the right to garrison the castles of his nobility with troops of his own, but the Conqueror does not seem to have extended this principle to England. It is very probable that he would insist on his own consent being given to any projected fortification on the part of his feudatories, but so long as his rule was threatened by English revolt, rather than by Norman disloyalty, he would not be greatly concerned to limit the castle-building tendencies of his followers. On the Welsh border, for example, where the creation of a strong line of castles was an essential part of the business of frontier defence, the work of fortification must largely have been left to the discretion of the earls of Shrewsbury and Chester, and to the enterprise of the first generation of marcher lords. East of a line drawn north and south through Gloucester, lie nearly half of the total number of castles which we can infer to have been built during the Conqueror's reign, but only fourteen of them were in private hands.

Underneath all these violent changes in the higher departments of the military art, the old native institution of the fyrd lived on. Two years after Hastings, at the dangerous crisis occasioned by the revolt of Exeter, we find the Conqueror calling out the local militia, and at intervals during his reign

the national force continues to be summoned, not only by the king but by his lieutenants, such as Geoffrey of Coutances at the time of the relief of Montacute. It is not necessary to assume that William had prescience of a day when an English levy might be a useful counterbalance to a feudal host in rebellion; he inherited the military as well as the financial and judiciary powers of his kinsman King Edward, and obedience would naturally be paid to his summons by everybody who did not wish to be treated as a rebel on the spot. It does not seem that the Conqueror materially altered the constitution or equipment of the fyrd; in fact he had no need to do this, for its organisation and armament, obsolete as they were in comparison with those of the feudal army, still enabled it to fight with revolted Englishmen or Scotch raiders on more or less of an equality. For the serious business of a campaign the Conqueror would rely on the small but efficient force of knights at his command, and it is to be noted that no barrier of racial prejudice prevented the absorption of Englishmen of sufficient standing into the knightly class. The number of Englishmen who are entered in Domesday Book, on a level with the Norman tenants of a great baron, is considerable, and it is by no means improbable that, below the surface of our records, a process had been going on which had robbed the heterogeneous militia of King Edward's day of its wealthier and more efficient elements. Many a thegn who would formerly have joined the muster of his shire with an equipment little, if at all, superior to that of the peasantry of his neighbourhood, will have received his land as the undertenant of some baron, and have learned to adopt the military methods of his Norman fellows. We cannot define with accuracy the stages by which this process did its work, but when the time came for Henry II. to reorganise the local militia, it was with a force of yeomen and burgesses that he had to deal.

We have now given a brief examination to the main departments of administration, military and political, as they existed under the Conqueror. Two general conclusions may perhaps be suggested as a result of our survey. The first is that, throughout the field of government, revolutionary changes in all essential matters have been taking place under a specious continuity of external forms. The second is, that the Conqueror's work is in no respect final; the shock of his conquest had wrecked the obsolescent organisation of the old English state, but the development of the new order on which his rule was founded was a task reserved for his descendants. The

Curia Regis, which attended King William as he passed over his dominions, was a body the like of which had not been seen in King Edward's day, but it was a body very unlike the group of trained administrators who transacted the business of government under the presidency of Henry II. The feudal host in England owed its being to the Conqueror, but no sooner was it firmly seated on the land than the introduction of scutage under Henry I. meant that the king would henceforth only allow the Conqueror's host to survive in so far as it might subserve the purposes of the royal exchequer. King William's destructive work had been carried out with unexampled thoroughness, order, and rapidity, but it was inevitable that the process of reconstruction which he began should far outrun the narrow limits of any single life.



Penny of William
I.

CHAPTER XII

DOMESDAY BOOK

The eventful life of the Conqueror was within two years of its close when he decreed the compilation of that record which was to be the lasting monument of his rule in England. It is probable that if due regard be paid to the conditions of its execution Domesday Book may claim to rank as the greatest record of medieval Europe; certainly it deserves such preference among the legal documents of England. For, while we admire the systematic treatment which the great survey accords to county after county, we must also remember that no sovereign before William could have had the power to draw such wealth of information from all England between the Channel and the Tees; and that the thousands of dry figures which are deliberately accumulated in the pages of Domesday represent the result of the greatest catastrophe which has ever affected the national history. Domesday Book, indeed, has no peer, because it was the product of unique circumstances. Other conquerors have been as powerful as William, and as exigent of their royal rights; no other conqueror has so consistently regarded himself as the strict successor of the native kings who were before him; above all, no other conqueror has been at pains to devise a record of the order of things which he himself destroyed, nor even, like William, of so much of it as was relevant to the more efficient conduct of his own administration. Domesday Book is the perfect expression of the Norman genius for the details of government.

It is needless to say that William had no intention of enlightening posterity as to the social and economic condition of his kingdom. His aim was severely practical. How it struck a contemporary may be gathered from that well-known passage in which the Peterborough chronicler opens the long series of commentaries on Domesday by recording his impressions of the actual survey:

“After this the king held a great council and very deep speech with his wise men about this land, how it was peopled and by what men. Then he sent his men into every shire all over England and caused it to be ascertained how many hundred hides were in the shire and what land the king had, and what stock on the land, and what dues he ought to have each year from the shire. Also he caused it to be written, how much land his archbishops, bishops, abbots, and earls had, and (though I may be somewhat tedious in my account) what or how much each land-holder in England had in land or in stock and how much money it might be worth. So minutely did he cause it to be investigated that there was not one hide or yard of land, nor even (it is shameful to write of it though he thought it not shameful to do it) an ox nor a cow or swine that was not set down in his writ. And all the writings were brought to him afterwards.”

RADULF filius SEIFRIDI *In pubescente hō.*
ex lix Radulf filius Seifrid tenet de rege *et* *com* *herald* *tenetur*.
 Tenet se desit p. v. hid. modo p. iii. hid. 7 dimid. 7 castellū de
 Windesore. ē in dñis hid. 7 1/2. 7 1/2. In dñio. ē una car.
 7 dimid. 7 1/2. uilli 7 vi. bord. cū. iii. car. 7 molin de. x. solid.
 7 xx. ac. p. Silua de. x. port. De hac tñā tenet gener ei Rad
 dimid. hid. 7 nichil ē ibi. Valut. vii. lib. modo. iii. lib. 7 x. sol.
Rog filius Seifrid tenet de rege *et* *com* *herald* *tenetur*.
 Lodric qdā lib hō tenetur t. R. E. Tenet p. iii. hid. se desit p. i. hid
 in similit. 7 1/2. ē. ii. car. In dñio. ē una. 7 iii. uilli 7 v. car. cū. i.
 7 1/2. car. 7 xxx. ac. p. Valut. xl. sol. modo. iii. lib.
TERRA ERNULFI DE HESDING. *In facie hōis.*
ex lix Ernulf de hesding tenet de rege *et* *com* *herald* *tenetur*.
 tenetur de rege. E. in alod. Tenet se desit p. x. hid. in p. ii. hid.
 7 dim. 7 1/2. ē. xii. car. In dñio. ē una car. 7 xi. uilli 7 xi. bord.
 cū. vii. car. lbi. ii. molin de. l. solid. 7 xxvii. ac. p. Silua
 de. xx. port. 7. l. i. haga de. xx. solid. 7 vii. denar.
 t. R. E. ualut. x. lib. 7 post. viii. lib. modo. xx. iii. lib.
TERRA HUGON FILII BALDRICI. *In facie hōis.*
ex lix Hugo filius Baldric tenet de rege *et* *com* *herald* *tenetur*.
 de rege. E. in alod. Tenet p. v. hid. modo p. ii. hid. 7 dimid.
 7 1/2. ē. v. car. In dñio. ē dimid. car. 7 iii. uilli 7 xii. bord. cū
 iii. car. lbi. iii. squi. 7 molin de. xx. solid. 7 v. ac. p. Silua
 de. l. port. Val. 7 ualut. vi. lib.

PORTION OF A PAGE OF DOMESDAY BOOK
(THE BEGINNING OF THE BERKSHIRE SECTION)

Opinion at Peterborough was clearly adverse to the survey, and Florence of Worcester tells us that the proceedings of the king's commissioners caused riots in various parts of England. The exact scope of the information demanded by the commissioners cannot be better expressed than in the words of a writer belonging to the neighbouring abbey of Ely, who took an independent copy of the returns made to those officers concerning the lands of his monastery, and describes the nature of the inquiry thus:

“This is the description of the inquiry concerning the lands, which the king's barons made, according to the oath of the sheriff of the shire and of all the barons and their Frenchmen and of the whole hundred-court—the priests, reeves and six villeins from every vill. In the first place [they required] the name of the manor; who held it in the time of King Edward, and who holds it now, how many hides [*hidæ*] are there, how many ploughs in demesne and how many belonging to the men, how many villeins, cottars, slaves, freemen and sokemen; how much woodland, meadow and pasture, how many mills and fisheries; how much has been added to or taken from the estate, how much the whole used to be worth, and how much it is worth now; and how much each freeman or sokeman had or has there. All this thrice over; with reference to the time of King Edward, and to the time when King William gave the land and to the present time; and if more can be got out of it than is being drawn now.”^[321]

Now, although the fact may not appear on a first reading of these passages, all these details were entirely subsidiary to one main object—the exact record of the local distribution of the king's “geld” or Danegeld, the one great direct tax levied on the whole of England. Domesday is essentially a financial document; it is a noteworthy example of that insistence on their fiscal rights which was eminently characteristic of the Anglo-Norman kings, and was the chief reason why they were able to build up the strongest government in Western Europe. Every fact recorded in Domesday bears some reference, direct or indirect, to the payment of the Danegeld, for the king's commissioners knew their business, and the actual scribes who arranged the results of the survey were remorseless in rejecting

all details which did not fit into the general scheme of their undertaking. It should not escape observation that this fact prepares many subtle pitfalls for those who would draw a picture of English society based on the materials supplied by Domesday; but more of this will be said later, for there are certain questions of history and terminology which demand attention at the outset.

The most important of those points is the meaning of those “hides,” which are mentioned in both of the above extracts. This, indeed, is the essential clue to the interpretation of Domesday, and it is unfortunately very elusive, for the term can be traced back to a very early period of Anglo-Saxon history and more than one meaning came to be attached to it in the course of its long history. When we first meet the “hide,” the word seems to denote the amount of land which was sufficient for the support of a normal household; it is the average holding of the ordinary free man of Anglo-Saxon law. This much is reasonably certain, but difficulties crowd in upon us when we attempt to estimate the capacity of the hide in terms of acreage. Much discussion has arisen about this point, but we may say that at present there are two main theories on the subject, one assigning to the hide one hundred and twenty acres of arable land, the other some much smaller quantity, such as forty-eight or thirty acres, in either case with sufficient appurtenances in wood, water, and pasture for the maintenance of the plough and its oxen. Just now the prevailing view seems to be that the areal capacity of the hide may have varied from county to county—that, for instance, while we know that in the eleventh century the hide stood at one hundred and twenty acres in Cambridgeshire and Essex, it may not improbably have contained forty-eight acres in Wiltshire. Important, or rather vital, as is the question for students of Anglo-Saxon history, it does not concern us to quite the same extent, and we must pass on to a change which came over men’s conception of this tenement and intimately affects the study of Domesday.

Our normal free householder, the man who held a “hide” in the seventh century, was burdened with many duties towards the tribal state to which he belonged. He had to serve in the local army, the *fyrð*, to keep the roads and bridges in his neighbourhood in repair, to help to maintain the strong places of his district as a refuge in time of invasion, and to contribute towards the support of the local king or ealdorman. Out of these elements, and especially the last, was developed a rudimentary military and financial

system which is recorded in certain ancient documents which have come down to us from the Anglo-Saxon period, and deserve our attention as the direct ancestors of Domesday Book. They may be described as a series of attempts to express, in terms of hides, the capacity of the several districts of England with which they deal, for purposes of tribute or defence. The eldest of these documents, which is now generally known as the Tribal Hidage,^[322] is a record of which the date cannot be fixed within a century and a half, while very much of its text is quite unintelligible, but in form it is clear enough. It consists of a string of names with numbers of hides attached; thus, the dwellers in the Peak are assigned 1200 hides, the dwellers in Elmet 600, the Kentishmen 15,000, and the Hwiccas 7000. Now, it is obvious that all these are round numbers, as in fact are all the figures occurring in the document; and this is a point of considerable importance, for it implies that the distribution of hides recorded in this early list was a matter of rough estimate, rather than of computation, since we cannot suppose that there were just 1200 free householders in the Peak of Derbyshire, nor exactly 15,000 in Kent. These figures are intended to represent approximately the respective strength of such districts, and are expressed in even thousands or hundreds because numbers of this kind will be easy to handle, a practice which we can see to be inevitable, for a barbarian king of the time of Beda would be a very unlikely person to institute statistical inquiries as to the exact number of hides under his “supremacy.” But the point that concerns us is, as we shall see later, that the distribution of hides in Domesday, for all its appearance of statistical precision, is in reality just as much a matter of estimate and compromise as was the rough reckoning which is recorded in the Tribal Hidage.

These remarks apply equally to the next document in the series of fiscal records which leads up to Domesday. Probably in the reign of Edward the Elder, when Wessex was recovering from the strain of the great Danish invasion, some scribe drew up a list of strong places or “burhs,” mostly in that country, with the number of hides assigned to the maintenance of each, and here again we find round figures resembling those which we have noticed in the Tribal Hidage.^[323] In this way 700 hides are said to belong to Shaftesbury, 600 to Langport, 100 to Lyng. Apparently the wise men of Wessex have decreed that an even number of hides, roughly proportional to the area to be defended, should be assigned to the upkeep of each of those “burhs,” and have left the men of each district to settle the incidence of

burden among themselves. It will be seen that the system on which this document (which is conveniently called the “Burghal Hidage”) is based is much more artificial than that represented in the Tribal Hidage—in the latter we are dealing with “folks” or “tribes,” if the word be not expressed too strictly; here we have conventional districts, the extent of which is evidently determined by external authority. This being so, it becomes possible to make certain suggestive comparisons between the Burghal Hidage and Domesday Book. Thus the former assigns 2400 hides to Oxford and Wallingford, respectively, and 1200 to Worcester; and if we count up the number of hides which are entered in the Domesday surveys of Oxfordshire, Berkshire and Worcestershire, we shall find that in all three cases the total will come very near to the number of hides assigned to the towns which represent these shires in the Burghal Hidage; the correspondence being much too close to be the result of chance. Hence, if the distribution of hides in the Burghal Hidage is artificial, we should be prepared for the conclusion that the similar distribution in Domesday is artificial also.

A century passed, and England was again being invaded by the Danes. In the vain hope of buying off the importunate enemy the famous Danegeld was levied, originally as an emergency tax, but one which was destined to be raised, at first sporadically, and then at regular intervals until the end of the twelfth century. This new impost must, one would suppose, have called for a re-statement of the old Hidages, but no such record has come down to us. On the other hand we possess a list of counties with their respective Hidages annexed, which is generally known as the “County Hidage,” and assigned to the first half of the eleventh century. This document^[324] forms a link between the Burghal Hidage and Domesday; for, while it agrees with the older record in the figures which it gives for Worcestershire, Berkshire, and Oxfordshire, its estimate approximates very closely to the Domesday assessment of Staffordshire, Gloucestershire, and Bedfordshire.

And so we come to the Norman Conquest. At the very beginning of his reign, William, undeterred by the legend of his saintly predecessor, who had seen the devil sitting on the money bags, and had therefore abolished the Danegeld, laid on the people a geld exceeding stiff. At intervals during his reign a “geld” was imposed: in particular, in 1083, he raised a tax of seventy-two pence on the hide, the normal rate being only two shillings. It is not improbable that the grievance caused by this heavy tax may have

been one chief reason why Domesday Book was compiled. We have seen enough to know that the system of assessment which underlies Domesday was, in principle at least, very ancient. It must have become very inequitable, for mighty changes had passed over England even in the century preceding the Conquest. We know that William had tried to rectify matters by drastic reductions of hidage in the case of individual counties, and it is by no means improbable that the Domesday Inquest was intended to be the preliminary to a sweeping revision of the whole national system of assessment. William died before he could undertake this, and so far as we know it was never attempted afterwards, for it has been pointed out that in 1194 the ransom of Richard I. was raised in certain counties according to the Domesday assessment.^[325] This rigidity of the artificial old system makes its details especially worthy of study, for it is strange to see a fiscal arrangement which can be traced back to the time of Alfred still capable of being utilised in the days of Richard I. and Hubert Walter.

R TERRA REGIS.
~~Willelmus tenet Willelmus~~ in dñio. Rex. E. tenuit.
 lbi. xx. hide. 7 pa. e. In dñio. e. una car. 7 xx. uilli
 7 ii. bord. cū. x. car. lbi. un. seruus. 7 piscaria de. vi. solid. 7 vii.
 denar. 7 xl. ac pa. Silua. de. l. porc. de pasnag. 7 alia silua
 missa. e. in defensa. 7 adhuc sunt in uilla. c. hage. 4. min. Ex his
 sunt. xvi. qet. de gablo. 7 de alus. xxi. solidi.
 De tra hui. cū. ten. Altr. una hīd. 7 dimid. 7 tū. parce. un. den.
 Wale. fili. ocher. una hīd. 7 dim. 7 una. 4. 7 tant. silue. unde. de
 exeut. v. porc. de pasnag. Gislebr. maminot. iii. uirg. Wille.
 una hīd. Aluric. i. hīd. 7 alr. Aluric. dimid. hīd. 7 pbr. uille.
 una hīd. 7 dim. 7 ii. seruientes. curie. regis. dimid. hīd. Eudo. apif.
 T. R. E. ualb. xv. lib. 7 post. vii. lib. Modo. xv. lib. 7 ii. hīd.
Rex ten. Taceha. in dñio. Rex. E. tenuit. In Taceha. hīd.
 Tē. se. def. p. ii. hīd. 7 nunq. get. 7 pa. e. xxv. car. lbi. sunt
 xxx. v. uilli 7 xii. bord. cū. xx. v. car. 7 ibi. xii. hage. reddit. de
 de firma. l. v. sol. 7 ii. molin. de. xxii. sol. 7 vii. den. 7 xl. vii.
 de pa. Silua. de. lx. porc.
 Ectam. hui. cū. ten. 4. clerici. cū. iii. hīd. que. par. ibi. 7 get.
 cū. comitatu. 7 ual. iii. lib.
 T. R. E. ualb. xv. lib. modo. xv. lib. 7 tam. redd. xxx. iii. lib.

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What, then, are the main features of this system? Much of its vitality, cumbrous and unequal as it was, may doubtless be ascribed to the fact that it was based on the ancient local divisions of the country, the shires, wapentakes or hundreds, and vills. Put into other words, the distribution of the hides which we find in Domesday is the result of an elaborate series of subdivisions. At some indefinitely distant date, it has been decreed that each county shall be considered to contain a certain definite number of hides, that Bedfordshire, for example, shall be considered to contain—that is, shall be assessed at—1200 hides. The men of Bedfordshire, then, in their shire

court, proceeded to distribute these 1200 hides among the twelve “hundreds” into which the county was divided, paying no detailed attention to the area or population of each hundred, nor even, so far as can be seen, obeying any rule which would make a hundred answer for exactly one hundred hides, but following their own rough ideas as to how much of their total assessment of their county each hundred should be called upon to bear. The assessment of the hundreds being thus determined, the next step was to divide out the number of hides cast upon each hundred among the various villis of which it was composed, the division continuing to be made without any reference to value or area. And then the artificiality of the whole system is borne in upon us by the most striking fact—the discovery of which revolutionised the study of Domesday Book—that in the south and west of England the overwhelming majority of villis are assessed in some fraction or multiple of five hides.^[326] The ubiquity of this “five-hide unit” is utterly irreconcilable with any theory which would make the Domesday hide consist of any definite amount of land; a vill might contain six or twenty real, arable hides, scattered over its fields, but, if it agreed with the scheme of distribution followed by the men of the county in the shire and hundred courts, that vill would pay Danegeld on five hides all the same. The Domesday system of assessment, then, was not the product of local conditions but was arbitrarily imposed from above. The hide was not only a measure of land, but also a fiscal term, dissociated from all necessary correspondence with fact.

But, before passing to further questions of terminology, it will be well to give some instances of the application of the “five-hide unit,” and, as Bedfordshire has been specially referred to above, we may take our examples from that county. Accordingly, if with the aid of a map we follow the course of the Ouse through Bedfordshire, we shall pass near to Odell, Risely, and Radwell, assessed at ten hides each; Thurghey and Oakley at five; Pavenham, Stagsden, Cardington, Willington, Cople, and Northill at ten; Blunham at fifteen; Tempsford at ten; Roxton at twenty; Chawston at ten; Wyboston at twenty, and Eaton Socon at forty. Thus, within a narrow strip of one county we have found seventeen instances of this method of assessment, and there is no need to multiply cases in point. On almost every page of the survey in which we read of hides, we may find them combined in conventional groups of five, ten, or the like.

Not all England, however, was assessed in hides; three other systems of rating are to be found in the country. In Kent, the first county entered in Domesday Book, a peculiar system prevailed in which the place of the hide was taken by the “sulung,” consisting of four “yokes” (*iugera*), and most probably containing two hundred and forty acres, thus equalling a double hide.^[327] The existence of the sulung in Kent as a term of land measurement can be traced back to the time when that county was an independent kingdom; the process by which the word came to denote a merely fiscal unit was doubtless analogous to the similar development which we have noticed in the case of the “hide.” Taken in conjunction with the singular local divisions of Kent, and with the well-known peculiarities of land tenure found there, this plan of reckoning by “sulungs” instead of hides falls into place as a proper survival of the independent organisation of the county.

Another ancient kingdom also preserves an unusual form of assessment in Domesday. In East Anglia we get for once a statement in arithmetical terms as to the amount which each vill must contribute to the Danegeld. Instead of being told that there are, say, five hides in a vill, and being left to draw the conclusion that that vill must pay ten shillings or more according to the rate at which the Danegeld is being levied on the hide, we are given the amount which each vill must pay when the hundred in which it is situated pays twenty shillings. This form of sliding scale is unknown outside Norfolk and Suffolk, and is even more obviously artificial than the assessment of other counties. Each hundred in East Anglia seems to have been divided into a varying number of “leets,”—and it has been suggested that each leet had to pay an equal amount towards the Danegeld due from the hundred,^[328] but the assessment of East Anglia in other respects presents some special difficulties of its own, although they cannot be discussed here.

Of much greater importance is the remaining fiscal unit to be found in Domesday. In Yorkshire, Derbyshire, Nottinghamshire, Lincolnshire, Leicestershire, and Rutland all assessments are expressed in “carucates,” instead of hides, each carucate being composed of eight bovates, and each bovat containing, as is probable, fifteen (fiscal) acres. This distinction was remarked on in the twelfth century by Hugh “Candidus,” the historian of Peterborough, who says, “In Lincolnshire there are no hides, as in other counties, but instead of hides there are carucates of land, and they are worth the same as the hides.” It is evident that by derivation at least the Domesday *carucata terræ* must originally have meant a ploughland, that is, the amount

of land capable of being tilled in one year by the great plough-team of eight oxen, according to whatever system of agriculture may have then been current, and it is equally certain that the word “bovate” takes its derivation from the ox. But, just like the hide, the carucate, from denoting a measure of land, had come to mean an abstract fiscal quantity, subject to the same conditions of distribution as affected the former unit. This is proved by the fact that the carucates are found combined in the above counties into artificial groups according to exactly the same principle as that which determined the distribution of hides in the south, with one highly curious variation in detail. Whereas we have seen that in the south and west villas are nominally assessed at some multiple of five hides, in the north-eastern counties, with which we are now concerned, the prevailing tendency is for the villas to be rated at some multiple or fraction of six carucates. Put in another way: the assessment of the south and west was decimal in character, that of the north and east was duodecimal; while we should expect a Berkshire villa to be rated at five, ten, or fifteen hides, we must expect to find a Lincolnshire villa standing at six, twelve, or eighteen carucates.^[329] We have in this way a “six-carucate unit,” to set beside and in distinction to the “five-hide unit,” which we have already considered.

Now, these details become very significant when we consider the geographical area within which these carucates are found combined after this fashion. The district between the Welland and the Tees has a historical unity of its own. As was the case with East Anglia and Kent, fiscal peculiarities are accompanied in this quarter also by a distinctive local organisation. The co-existence in this part of England of “Danish” place-names with local divisions such as the wapentake, which can be referred to northern influence, has always been considered as proving an extensive Scandinavian settlement to have taken place there; and we can now reinforce this argument by pointing to the above fiscal peculiarities, which we know to be confined to this quarter and which are invaluable as enabling us to define with certainty the exact limits of the territory which was actually settled by the Danes in the tenth century. In Denmark itself we find instances of the employment of a duodecimal system of reckoning similar to that on which we have seen the Domesday assessment of the above north-eastern counties to be based; and we may recognise in the latter the equivalent of the territory of the “Five Boroughs” of Nottingham, Derby,

Leicester, Lincoln, and Stamford, together with the Danish kingdom of Deira (Yorkshire), across the Humber.

Tedious as these details may well seem, the conclusions to which they lead us are by no means unimportant. In the first place, we see how such ancient kingdoms as Kent, East Anglia and Deira, to which we may add the territory of the Five Boroughs, preserved in their financial arrangements many relics of their former independent organisation long after they had lost all trace of political autonomy. And then in the second place we obtain a glimpse into the principles which governed the policy of the Norman rulers of England towards native institutions. These were not swept away wholesale; centralisation was only introduced where it was absolutely necessary, and so long as local arrangements sufficed to meet the financial needs of the crown, they were not interfered with. Here, as elsewhere, it was not the policy of William or of his successors to disturb the ancient organisation of the country, for it could well be adapted to the purposes of a king who was strong enough to make his government a reality over the whole land, and in this respect the Conqueror and his sons need have no fear.

In the above account we have considered the Domesday system of assessment in its simplest possible form, but certain complications must now receive notice. In the first place the plan on which the survey itself is drawn up places difficulties in our way, for it represents a kind of compromise between geographical and tenorial principles. Thus, each county is entered separately in Domesday, but within the shire all estates are classified according to the tenant-in-chief to whom they belonged, and not according to the hundred or other local division in which they are situated. This is a fact to which we shall have again to refer, but it will be evident that more than one tenant-in-chief might very well hold land in the same vill, and this being the case, we can never be sure, without reading through the entire survey of a county, that we have obtained full particulars of any single vill contained in it. In other words, vill and manor were never of necessity identical, and in some parts of England, especially the north and east, such an equivalent was highly exceptional. In this way, therefore, in the all-important sphere of finance, the lowest point to which we can trace the application of any consistent principle in the apportionment of the "geld" was not the manor, but the vill; and accordingly before we can discover the presence of those five-hide and six-carucate units, which have

just been described, we have often to combine a number of particulars which, taken individually, do not suggest any system at all. Two instances, one from Cambridgeshire and one from Derbyshire, will be in point here:

HASLINGFIELD (CAMBS.)^[330]

	Hides.	Virgates.	Acres.
The King	7	1	
Picot the Sheriff	4	3	
Count Alan	1	½	
” ”	½		
Geoffrey de Mandeville	5	0	
Guy de Reinbudcurt	1	1	3
Count Alan	—	—	<u>12</u>
	20	0	0

BREASTON (DERBY)^[331]

	Carucates.	Bovates.
Henry de Ferrers		3
Geoffrey Alselin		1
Gilbert de Gand	2	0
Roger de Busli	3	0
” ”	—	<u>4</u>
	6	0

These examples show very clearly that no consistent principle governed the assessment of a fractional part of villis, and are typical of the neatness with which unpromising figures combine into even totals. As to the way in which the men of a vill apportioned their fiscal responsibility, we are left almost entirely in the dark; the vill or township seems to have had no court of its own capable of deciding such a matter. Largely, no doubt, it was a matter of tradition; a certain holding which had once answered for two hides would continue to do so, no matter into whose hands it might come, unless the assessment of the whole vill were arbitrarily raised or lowered from without, when the assessment of this particular parcel of land would almost automatically be affected in proportion. But these local matters do not come within the scope of our slender stock of early fiscal authorities, and so we hear nothing about them.

We are now in a position to examine a normal entry from Domesday Book in the light of the above conclusions. A Nottinghamshire manor will do very well:

“M[anor]—In Hoveringham Swegn had two carucates of land and two bovates assessed to the geld. There is land for four ploughs. There Walter [de Aincurt] has in demesne two ploughs, and five sokemen on three and a third bovates of this land, and nine villeins and three bordars who have four ploughs. There is a priest and a church and two mills rendering forty shillings, and forty acres of meadow. In King Edward’s time it was worth £4; now it is worth the same and ten shillings more.”

We ought first to see how each detail here fits into the general scheme of the survey. The statement as to the former owner of the manor was important; for, just as King William maintained that he was the lawful successor of King Edward, so also he was determined that each of his men should occupy in each manor which he might hold the exact legal position filled by the Englishman or group of Englishmen, as the case might be, whom he had dispossessed in that particular estate. In particular it was essential that he should take up his predecessor’s responsibility with reference to the “geld” due from his land, a point which is well brought out in the above entry, for Walter de Aincurt clearly is being debited with the same number of carucates and bovates as were laid to the account of “Swegn” before the Conquest. Probably fiscal in character also is the statement which follows, to the effect that in Hoveringham “there is land for four ploughs.” For all its apparent simplicity, this formula, which is extremely common in the survey, presents upon investigation an extraordinary number of difficult complications. Taken simply it would seem to denote the number of ploughs which could find employment on the manor, and most probably it has such an agricultural significance in many counties, the argument in the mind of the commissioners being: if this estate has land for more ploughs than are actually to be found there, it is undeveloped, and more “geld” may be got out of it some day; if it is being cultivated to the full extent of its areal capacity or in excess of it (for this often happens) its assessment probably represents its agricultural condition well enough, and it may therefore stand. By making this inquiry about “ploughlands” the commissioners are probably fulfilling the instruction

which directed them to find out whether the king was drawing the largest possible amount from each manor, but great caution is needed before we decide that they are obtaining this information in quite the same way from every county surveyed. In one county, for example, the jurors may be stating the amount of land in their manor which has never been brought under the plough at all; in another we may be given the total number of ploughs, actual and potential, which could be employed in the estate; in yet a third the commissioners may have taken as an answer a statement of the number of ploughs that had been going in the time of King Edward. The commissioners are not in the least concerned with details about ploughs and ploughlands merely as such; their interest is entirely centred in a possible increase of the king's dues from each manor surveyed. But it is well to remember this fact, for it throws most serious difficulties in the way of any estimate of the agricultural condition of England in the eleventh century.

More straightforward are the details which follow in our entry. It will be seen that the scribes have marked a distinction between three divisions of the land of the vill: first the lord's demesne, then the land held of him by sokemen, then the holdings of the villeins and bordars. That such a distinction should be made was in accordance with the instruction given to the commissioners by which they were directed to find out not only how many ploughs were in demesne and on the villeins' land respectively, but also how much each free man and sokeman in the manor possessed. These latter are so entered, not necessarily because they were more definitely responsible for their share of the manorial Danegeld^[332] than were the villeins and bordars for their own portion, but largely no doubt because they were less directly under manorial control. We have seen that the sokemen and free men of Domesday most probably represent social classes which have survived the Conquest, and are rapidly becoming modified to suit the stricter conditions of land tenure which the Conquest produced. But in Domesday the process is not yet complete; the sokeman is still a somewhat independent member of the manorial economy, and as such it is desirable to indicate exactly the place which he fills in each estate. But that this part of the inquiry was not essential is proved by the fact that the holdings of the sokemen, whether in ploughs or land, are usually combined with those of the villeins and bordars, even in the surveys of the eastern counties, where the free population was strongest.

The communistic system of agriculture is sufficiently well brought out in this entry; the four plough teams which the men of Hoveringham possessed, so far as we can see, were composed of oxen supplied by sokemen, villeins, and bordars alike, and the survey is not careful to tell us what proportion of the thirty-two oxen implied in these teams was supplied by each of the above three classes. We should beware of the assumption that the sokemen of Domesday were invariably wealthier than the villeins; we know little enough about the economic position of either class, but we know enough to see that many a sokeman of the Conqueror's time possessed much less land than was considered in the thirteenth century to be the normal holding of a villein. In the entry we have chosen we can see that the average number of oxen possessed by each man in the vill is something under two; and we may suspect that the three bordars owned no oxen, at all; but although the possession of plough oxen may here and there have been taken as a line of definition between rural classes, we cannot be sure that this is so everywhere, certainly we cannot assume that it is the case here.^[333]

After its enumeration of the several classes of peasantry, with their agricultural equipment, the survey will commonly proceed to deal with certain incidental sources of manorial revenue; in the present case the church, the mills, and the meadow. Even in the eleventh century the relations between the lord of a manor and the church on his estate bear a proprietary character; the lord in most cases possesses the right of advowson and he can make gifts from the tithes of his manor to a religious house for the good of his individual soul. The village church and the village mill were both in their several ways sources of profit to the lord, and in the case we have chosen it will be noted that nearly half the value assigned to the manor by the Domesday jurors is derived from the proceeds of the latter. "Mill soke," the right of the lord to compel his tenants to grind their corn at his mill, long continued to be a profitable feature of the manorial organisation. The peculiar value of the meadow lay in the necessity of providing keep for the plough-oxen over and above the food which they obtained by grazing the fallow portion of the village lands. The distribution of meadow land along the rivers and streams of a county determines to a great extent the relative value of the vills contained in it.^[334]

The value which is assigned to a manor in Domesday Book seems to represent, as a general rule, a rough estimate of the rent which the estate would bring in to its lord if he let it on lease, stocked as it was with men and

cattle. In general it is probable that the jurors were required to make such an estimate with regard to three periods, namely, 1066, 1086, and the time when King William gave the manor to its existing owner. The last estimate, however, is frequently omitted from the completed survey; but it is included often enough for us to be able to say that the disorder which attended the Conquest was commonly accompanied by a sharp depreciation in the value of agricultural land; and in many counties manorial values in general had failed to rise to their pre-Conquest level in the twenty years between 1066 and 1086. If the whole of England be taken into account, it has been computed that the average value of the hide or carucate will be very close to one pound, and the Nottinghamshire manor we are considering is sufficiently typical in this respect. But it must be remembered that the jurors on making their estimate of value would certainly have to take into consideration sources of local revenue which were not agricultural in character, and the tallage of the peasantry and the profits of the manorial court will be included in one round figure, together with the value of the labour services of the villeins and the rent of mills and meadows.

Our attempt to understand the terms employed in a typical entry may serve to introduce us to a matter of universal importance, the indefiniteness of Domesday. We are not using this word as a term of reproach. The compilers of Domesday had to deal with a vast mass of most intractable material, and the marvel is that they should have given so splendid an account of their task. But for all that, it is often a most formidable business to define even some of the commonest terms used in Domesday. It has been shown, for instance, that the word *manerium*, which we can only translate by “manor,” was used in the vaguest of senses. It may denote one estate rated at one hundred hides, and another rated at eighty acres; most manors will contain a certain amount of land “in demesne,” but there are numerous instances in which the whole manor is being held of a lord by the peasantry; in the south of England the area of a manor will very frequently coincide with that of the vill from which it takes its name, but then again there may very well be as many as ten manors in one vill, while a single manor may equally well extend over half a dozen vills. In many cases the vague impression left by Domesday is due to the indefiniteness of its subject-matter—if we find it hard to distinguish a free man from a sokeman this is in great measure due to the fact that these classes in all probability did really overlap and intersect each other. Just so if we cannot be quite sure

what the compilers of our record meant when they called one man a “bordar” and another man a “villein,” we must remember that it would not be easy to give an exact definition of a “cottager” at the present day; and also that the villein class which covered more than half of the rural population of England cannot possibly have possessed uniform status, wealth, privileges, and duties over this vast area. But there exists another cause of confusion which is solely due to the idiosyncrasies of the Domesday scribes, and that is their inveterate propensity for using different words and phrases to mean the same thing. Thus when they wish to note that a certain man could not “commend” his land to anybody, without the consent of his lord, we find them saying “he could not withdraw without his leave,” “he could not sell his land without his leave,” “he could not sell his land,” “he could not sell or give his land without his leave”—all these phrases and many others describing exactly the same idea. This peculiarity runs through the whole of the survey; it is shown in another way by the wonderful eccentricities of the scribes in the matter of the spelling of proper names. So far as place names go, this variety of spelling does little more than place difficulties in the way of their identification; but when we find the same Englishman described in the same county as Anschil, Aschil, and Achi,^[335] matters become more serious. For there is hardly a question on which we could wish for more exact evidence than that of the number of Englishmen who continued to hold land after the Conquest; and yet, owing to the habits of the Domesday scribes, we can never quite avoid an uneasy suspicion that two Englishmen whose names faintly resemble each other may, after all, turn out to be one and the same person. We cannot really blame the scribes for relieving their monotonous task by indulging in such pleasure as the variation of phrase and spelling may have brought them, but it is very necessary to face this fact in dealing with any branch of Domesday study, and the neglect of this precaution has led many enquirers into serious error.

Closely connected with all this is the question of the existence of downright error in Domesday Book itself. To show how this might happen, it will be necessary to give a sketch of the manner in which the great survey was compiled. “The king,” says the Anglo-Saxon chronicler, “sent his men into every shire all over England.” We cannot be quite sure whether they went on circuit through the several hundreds of each shire or merely held one session in its county town^[336]; in either case there appeared before them

the entire hundred court, consisting, as we have seen, of the priest, the reeve, and six villeins from every vill. But out of this heterogeneous assembly there seems to have been chosen a small body of jurors who were responsible in a peculiar degree for the verdict given. We possess lists of the jurors for most of the hundreds of Cambridgeshire, from which it appears that eight were chosen in each hundred, and, a very important point, that half of them were Frenchmen and half were Englishmen. Thus the commissioners obtained for each hundred the sworn verdict of a body of men drawn from both races and representing, so far as we can see, very different levels of society. We cannot assume that precisely the same questions were put to the jurors in every shire. The commissioners may well have been allowed some little freedom of adapting the form of the inquiry to varying local conditions, and the terminology of their instructions may have differed to some extent according to the part of England in which they were to be carried out; but the similarity of the returns obtained from very distant counties proves that the whole Domesday Inquest was framed according to one general plan. It is more likely that the differences which undoubtedly exist at times between the surveys of different counties are really due to the procedure of the scribes who shaped the local returns into Domesday as we possess it.^[337]

It will be evident that the completed returns from each county must have consisted of a series of hundred-rolls arranged vill by vill according to the sequence followed by the commissioners in making the inquiry. The first task of the Domesday scribes was to substitute for the geographical order of the original returns a tenorial order based on the distribution of land among the tenants-in-chief in each shire. They must have worked through the returns county by county, collecting all the entries which related to land held by the same tenant-in-chief in each shire, and arranging them under appropriate headings, and we know that they paid no very consistent regard to local geography in the process. Where a vill was divided between two or more tenants-in-chief the division must have been marked by the jurors of its hundred in making their report; but, whereas the unity of the vill as a whole was respected in the original returns, it was disregarded by the Domesday scribes, for whom the feudal arrangements of the county were the first consideration. The first step to be taken in drawing a picture of the condition of any county surveyed in Domesday is the collection of their scattered entries and the reconstruction of the individual vill in their

entirety. As any one who has attempted this exercise can testify, the risk of error is very great, and we may be sure that it was no less for the Domesday scribes themselves. We cannot often test the accuracy of Domesday by a comparison with other documents, but the few cases where this is possible are enough to destroy all belief in the literal infallibility of the great record. The work was done under great pressure and against time, and we should not cavil at its incidental inaccuracies.

Domesday Book as we possess it consists of two volumes, the second, known as Little Domesday, dealing with Essex, Norfolk, and Suffolk, the first containing the survey of the rest of England. The two volumes are very different in plan and treatment. In Essex and East Anglia, the scribes have followed as nearly as possible the directions which we have quoted on page 458. They enumerate the live-stock on the several estates with an abundance of detail which quite justifies the complaint of the Peterborough Chronicler that there was not an ox or a cow nor a swine that was not set down in the king's writ. It is from the survey of these counties also that we draw the great body of our information about the different sorts and conditions of men, their tenurial relations and personal status. But this wealth of detail is accompanied by considerable faultiness of execution, and in the first volume of Domesday the plan is different. In compiling Great Domesday the scribes abandoned the idea of transcribing the original returns in full, and contented themselves with giving a *précis* of them; the details which had been collected about sheep and horses are jettisoned and the whole survey is drawn within closer limits. The most reasonable explanation of this change is that the so-called second volume of Domesday represents the first attempt at a codification of the returns^[338]; that the result was found too detailed for practical purposes, and that the conciser arrangement of the first volume was adopted in consequence. The volume combining Essex, Norfolk, and Suffolk contains 450 folios and even the Conqueror might have been appalled at the outcome of his survey if all the thirty counties of England were to be described on the same scale. Whatever the reason, the change is accompanied by a marked improvement in workmanship and practicability.

The "first" volume of Domesday contains 382 folios and its arrangement deserves notice. In regular course the survey proceeds across England from Kent to Cornwall; the first 125 folios of the volume are in fact the description of the earldom of Wessex. Next, starting again in the east, the

counties between Middlesex and Herefordshire are described; to be followed by the survey of the north midland shires from Cambridgeshire to Warwick, still following due order from east to west. Warwick is followed by Shropshire, for Worcestershire belongs to Domesday's second belt, and the rest of the survey progresses from west to east from Shropshire to Notts, Yorkshire and Leicestershire completing the tale. In general the boundaries of the counties are the same as at the present day, but portions of Wales are included in Gloucester, Hereford, and Berkshire; the lands "between Ribble and Mersey" form a sort of appendage to Yorkshire, and Rutland in 1086 has not yet the full status of a county. It is not quite easy to explain why Domesday stops short at the Tees and the Ribble. Cumberland and Westmoreland were indeed reckoned parts of the Scotch kingdom at this time, but Northumberland and Durham were undoubtedly English. Possibly they had been too much harried in recent years to be worth the labour of surveying; possibly in that wild and lawless land an attempt to carry out the survey would have led to something more than local riots. At any rate Domesday's omission is our loss, for it is in the extreme north that the old English tenures lingered the longest; we could wish for a description of them in the Conqueror's day and conceived on the same plan as the full accounts which we possess of the feudalised south.

All over England the scribes so far as was possible followed a consistent plan in the arrangement of the returns for each county. The case of Oxfordshire will do for a typical instance. Here, as in nearly every shire to the north of the Thames, the county town is surveyed first; the interesting description which is given of Oxford filling a column and a half. The rest of the folio is occupied by a list of all those in the county who held land in chief of the crown, arranged and numbered in the order in which their estates are entered in the body of the survey. The scale of precedence adopted by the compilers of Domesday deserves remark, for it is substantially the same as the order which we find observed in the lists of witnesses to solemn charters of the time. First comes the king in the case of every county in which he held land. Then comes the body of ecclesiastical tenants holding of him within the shire, archbishops first, then bishops, then abbots, or rather abbeys, for the tendency is to assign the lands belonging to a religious house to the foundation itself rather than to its head. Among laymen the earls come first, foreign counts being placed on a level with their English representatives, the same Latin word (*comes*) expressing both

titles. Then come the various “barons” undistinguished by any mark of rank, who of course form the larger number of the tenants-in-chief in any shire, and lastly, in most counties, the holdings of a number of men of inferior rank are thrown together under one heading as “the lands of the king’s servants, sergeants, or thegns.” Returning to the case of Oxfordshire we find the king, as ever, first on the list. He is followed by the archbishop of Canterbury and the bishops of Winchester, Salisbury, Exeter, Lincoln, Bayeux, and Lisieux, who in turn are succeeded by the abbeys of Abingdon, Battle, Winchcombe, Præaux, the church of Saint Denis of Paris, and the canons of Saint Frideswide of Oxford. Earl Hugh of Chester stands first among laymen of “comital” rank, being followed by the counts of Mortain and Evreux, Earl Aubrey of Northumbria, and Count Eustace of Bologne. Then come the barons, twenty-three in number in Oxfordshire, whose order in the survey seems to be determined by no more subtle cause than a shadowy idea on the part of the scribes of grouping them according to the initial letter of their extra names. The list becomes a little miscellaneous towards the close; three great ladies appear: Christina, the sister of Edgar the Etheling; the Countess Judith, Waltheof’s widow; and a lady who is vaguely described as “Roger de Ivry’s wife,” bringing the total up to fifty-five. Then comes another baron, Hascuit Musard, an important Gloucestershire land-owner, whose Oxfordshire holding would seem to have been overlooked by the scribes, for it is squeezed in along the foot of two folios of the survey. He is followed by Turkill of Arden, an Englishman, who was powerful in Warwickshire but only held one manor in Oxfordshire, the description of which is succeeded by “the land of Richard Engayne and other thegns.” Richard Engayne was the king’s huntsman, and a Norman, as were many of his fellows, but about half the names entered under this comprehensive heading are unmistakably English and characteristically enough they are entered in a group after the members of the conquering race. The fifty-ninth and last heading in this varied list runs, “These underwritten lands belong to Earl William’s fee,” a formula which is explained by the fact that the manors surveyed under it had belonged to Earl William Fitz Osbern, who as we know had been killed in Flanders in 1071, while his son and heir had been disinherited in 1075. And so we see that, although the earl’s tenants had lost their immediate lord in consequence of his forfeiture, they were not recognised as holding in chief of the crown, but were kept apart in a group by themselves in anticipation of the later feudal

practice by which the tenants of a great fief or honour in the royal hands were conceived of as holding rather of their honour than of the king himself.

In the present chapter we have mainly dealt with Domesday Book from its own standpoint as a fiscal register, but for the majority of the students its real value lies in the unique light which it throws upon legal and social antiquities and upon the personal history of the men of the Conquest. In these latter respects the different parts of the survey are by no means of equal value. The space assigned to each county in Domesday was determined solely by the caprice of the scribes; counties of approximately equal area are assigned very different limits of space in the record. Equally due to the action of the scribes is the amount of social and personal details, above the necessary minimum of fiscal information required, which is included in the description of each county. The surveys of Berkshire and Worcestershire, for instance, are many-sided records which throw light upon every aspect of the history of the times; while on the other hand for the counties of the Danelaw the fiscal skeleton of the record is left bare and arid; we get columns of statistics and little beside. The interest of Domesday of course is vastly increased when we are able to supplement its details with information derived from some other contemporary record; Buckinghamshire, for example, in which county there was no religious house in 1086, is at a disadvantage compared with Berkshire, where the local history of Abingdon Abbey fills in the outline of the greater record, and gives life to some at least of the men of whom the names and nothing more are written in its pages. Apart from this adventitious source of light, Domesday imparts some of its most precious information when recording a dispute between two tenants as to the possession of land, or noting new "customs," tolls, and so forth, which have been introduced since the Conquest, for then we may look for some statement of local custom or some reconstruction of the "status quo ante conquestum." And this leads naturally to the last division of our present subject—the legal theory which underlies Domesday Book.

It is abundantly plain from all our narratives of the Conquest that King William regarded himself, and was determined that he should be regarded, as the lawful successor of his cousin King Edward; he was the true heir by blood as well as by bequest. Unfortunately wicked men had usurped his inheritance so that he was driven to regain it by force and arms; the earl of

Wessex had taken upon himself the title of king and the whole nation had acquiesced in his unlawful rule. But the verdict of battle had been given in William's favour; he had been accepted as king by the great men of the realm, and he had been duly crowned; it would be no more than justice for him to disinherit every Englishman as such for his tacit or overt rebellion. Moreover even after he had been received as king his rebellious subjects in every part of the land had risen against him; they had justly forfeited all claim to his royal grace; their lands by virtue of these repeated treasons became at his absolute disposal. Some such ideas as these underlie that "great confiscation" of which Freeman considered Domesday to be essentially the record, and two all-important conclusions followed from them. The first is that the time of King Edward, that phrase which meets us on every page of Domesday, was the last season of good law in the land; should any man claim rights or privileges by prescription he must plead that they had been allowed and accepted under the last king of the old native line. Just as his subjects cried for "the law of King Edward" as the system of government under which they wished to live, so to the king himself these words expressed the test of legality to be applied to whatever rights claimed an origin anterior to his own personal grant. Rarely does Domesday refer to any of the kings before Edward; the Conqueror's reign has already become the limit of legal memory; never, except by inadvertence, does it refer to the reign of Harold by name. And then in the second place he who would prove the lawful possession of his land must rely in the last resort upon "the writ and seal" of King William. The whole tenor of Domesday seems to imply that all Englishmen as such were held to have been disinherited by the result of the Conquest. Save for the lands of God and his Saints all England had become the king's; the disposition he might make of his vast inheritance depended solely upon his own will. If he should please to allow to an Englishman the possession of his own or others' lands, this was a matter of pure favour, and Thurkill of Warwick and Colswegn of Lincoln could put forward no other title than that which secured their fiefs to the Norman barons around them. But then comes in that principle which is above all distinctive of the Norman Conquest—if William stepped by lawful possession into the exact position of the native kings who were before him, so each of his barons in each of his estates must be the exact legal successor, the "heir," of the Englishman whom he supplanted. The term used by Domesday to express the relationship of the old and the new

landlord is very suggestive: the Englishman is the Norman's *antecessor*, a word which we only translate inadequately by the colourless "predecessor." We are probably right in calling the Norman Conquest the one catastrophic change in our social history, but the change as yet was informal; it went on beneath the surface of the law; the terminology of Domesday testifies to the attempt to bring the social conditions of 1086 under formulas which would be appropriate to the time of King Edward. When we are told that there were ten manors in such a vill in the time of King Edward, or that there used to be twenty villeins in a certain manor but now there are only sixteen, we may gravely doubt whether the terms "manor" and "villein" were known in England before the Conquest, and yet we may recognise that the employment of these words in relation to the Confessor's day is of itself very significant. King William as King Edward's lawful heir wishes consistently to act as such so far as may be; his scribes in their terminology affect a continuity of social history, which does not exist.

Perhaps nothing could be more illustrative of these principles than a few extracts taken from the Lincolnshire "Clamores"—the statement of the various disputed claims which had come to light in the course of the survey, and the record of their settlement by the Domesday jurors. The following are taken at random in the order in which they are entered in Domesday:

"Candleshoe wapentake says that Ivo Taillebois ought to have that which he claims in Ashby against Earl Hugh; namely one mill and one bovat of land, although the soke belongs to Grainham.

"Concerning the two carucates of land which Robert Dispensator claims against Gilbert de Gand in Screnby through Wiglac, his predecessor [*antecessor*], the wapentake says that the latter only had one carucate, and the soke of that belonged to Bardney. But Wiglac forfeited that land to his lord Gilbert, and so Robert has nothing there according to the witness of the Riding.

"In the same Screnby Chetelbern claims one carucate against Gilbert de Gand through Godric [but the jurors], say that he only had half a carucate, and the soke of that belonged to Bardney, and Chetelbern's claim is unjust according to the wapentake, because his predecessor forfeited the land. The men of Candleshoe wapentake with the agreement of the whole Riding say that Siwate and Alnod and Fenchel and Aschel equally divided their father's land among themselves in King Edward's time, and held it so that if there

were need to serve with the king and Siwate could go the other brothers assisted him. After him the next one went and Siwate and the next assisted him and so on with regard to all, but Siwate was the king's man."

In these passages the actual working of the Domesday Inquest is very clearly displayed. In the first place we see that all really turns on those ancient local assemblies the wapentake and hundred courts. Not only do they supply the requisite information through the representative jurors to the commissioners, but it is by their verdict that the latter are guided in their pronouncements upon disputed claims. If Ivo Taillebois receives his seisin of that mill and oxgang of land in Ashby it will be because the wapentake court of Candleshoe has assigned it to him rather than the earl of Chester. This simple procedure has a great future before it; if the king can compel the local courts to give a sworn verdict to his officers, so in specific cases he can of his grace permit private persons to use these bodies in the same way. The Domesday Inquest is the noble ancestor of the Plantagenet "assizes," and through them, by direct descent, of the jury in its perfected form. But the action of the local courts becomes doubly significant when we remember their composition. The affairs of the greatest people in the land, of the king himself, are being discussed by very humble men, men, as we have seen, carefully chosen so as to represent Frenchmen and Englishmen alike. Nothing is a more wholesome corrective of exaggerated ideas as to the severance and hostility of the two races than a due remembrance of the part which both played in the Domesday Inquest.

Equally important is the respect which is clearly being paid in the above discussions to the strict forms of law, of English law in particular. No very knotty problems arise in the course of our simple extract, but we can see that a Norman baron will often have to stand or fall in his claim according to the interpretation of some old English legal doctrine. We know from other sources that the intricacies of the rules which in King Edward's time determined the rights and status of free men became a thing of wonder to the men of the twelfth century, and we may suspect that the Domesday commissioners were frequently tempted to cut these obsolete knots. But so far as is practicable, they are maintaining that the Norman must succeed to just the legal position of his English "antecessor"; Robert the Dispensator cannot claim the land which has been forfeited by Wiglac to Gilbert de Gand.

Lastly, one is always tempted to forget that twenty years had passed between the death of King Edward and the making of the Domesday Survey. Our attention is naturally and rightly concentrated on the great change which substituted a Norman for an English land-holding class, so that we are apt to ignore the struggles which must have taken place among the conquerors themselves in the division of the spoil; struggles none the less real because, so far as we can see, they were carried on under the forms of law. Death and confiscation had left their mark upon the Norman baronage; the personnel of Domesday Book would have been very different if the record had been drawn up a dozen years earlier. But, even apart from this, it was inevitable that friction should arise within the mass of Norman nobility as it settled into its position in the conquered land. The Domesday Inquest afforded a grand opportunity for the statement and adjustment of conflicting claims, and examples may generally be found in every few pages of Domesday Book.

The last point in connection with the survey which calls for special notice is the origin of the name by which it is universally known. "Domesday Book" is clearly no official title; it is a popular appellation, of which the meaning is not quite free from doubt. Officially, the record was known as the "Book of Winchester," from the city in which it was kept; it was cited under that name when the abbot of Abingdon, in the reign of Henry I., proved by it the exemption of certain of his estates from the hundred court of Pyrton, Oxfordshire. The best explanation of its other, more famous name may be given in the words of Richard Fitz Neal, writing under Henry II.:

"This book is called by the natives, 'Domesdei,' that is by a metaphor the day of judgment, for as the sentence of that strict and terrible last scrutiny may by no craft be evaded, so when a dispute arises concerning those matters which are written in this book, it is consulted, and its sentence may not be impugned nor refused with safety."^[339]

On the whole this explanation probably comes near the truth. We may well believe that to the common folk of the time, this stringent, searching inquiry into their humble affairs may have seemed very suggestive of the last great day of reckoning. Viewed in this light the name becomes invested with an interest of its own; it is an abiding witness to the reluctant wonder

aroused by the making of this, King William's greatest work and our supreme record.



Penny of William I.

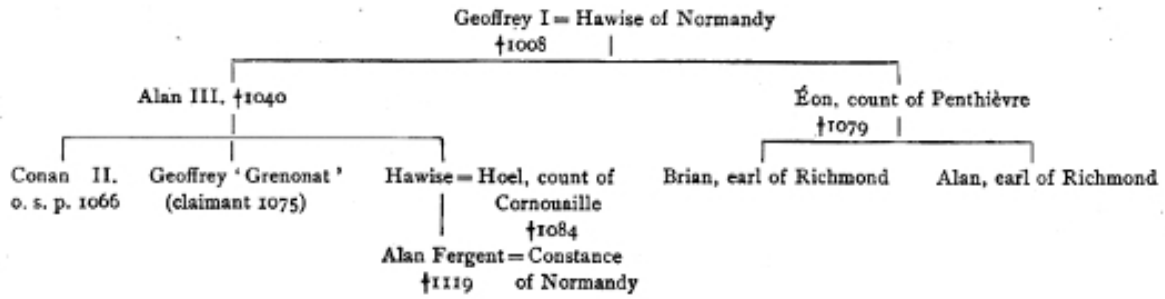


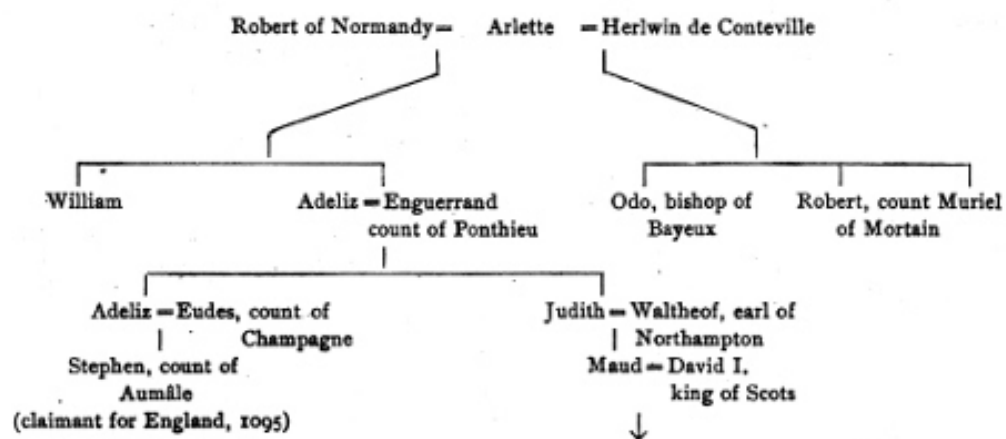
Penny of William I.

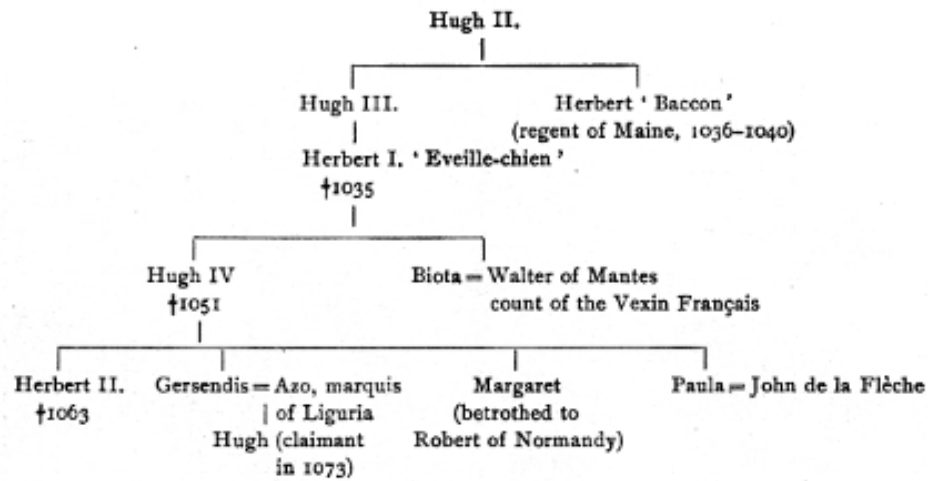
THE LOCAL WORK OF HIGMAN'S



[Transcription]

Table A: The Counts of Brittany. [[Transcription](#)]

Table C: The Descendants of Arlette. [[Transcription](#)]

Table D: The Counts of Maine. [[Transcription](#)]

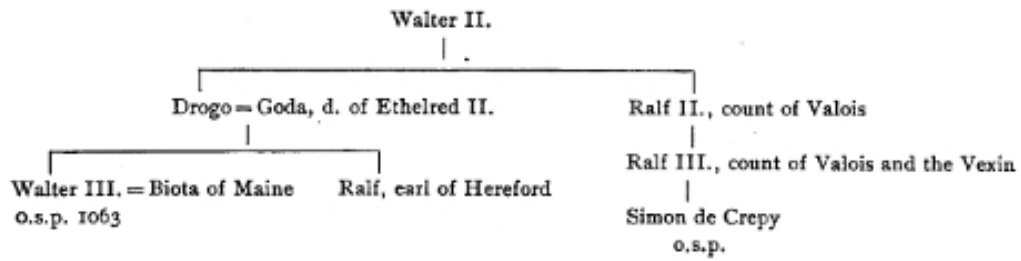
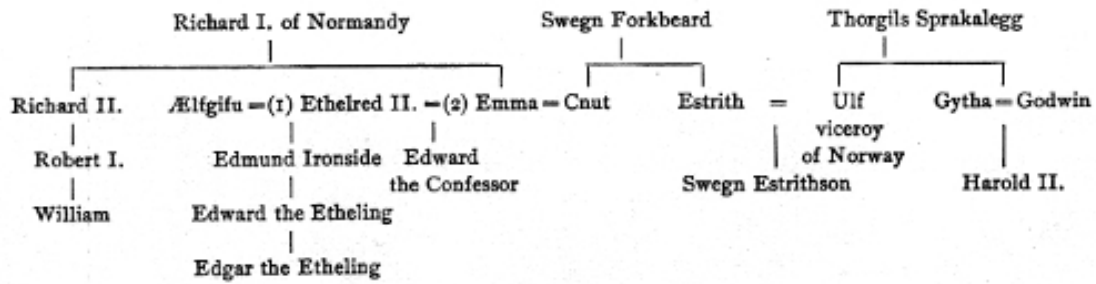
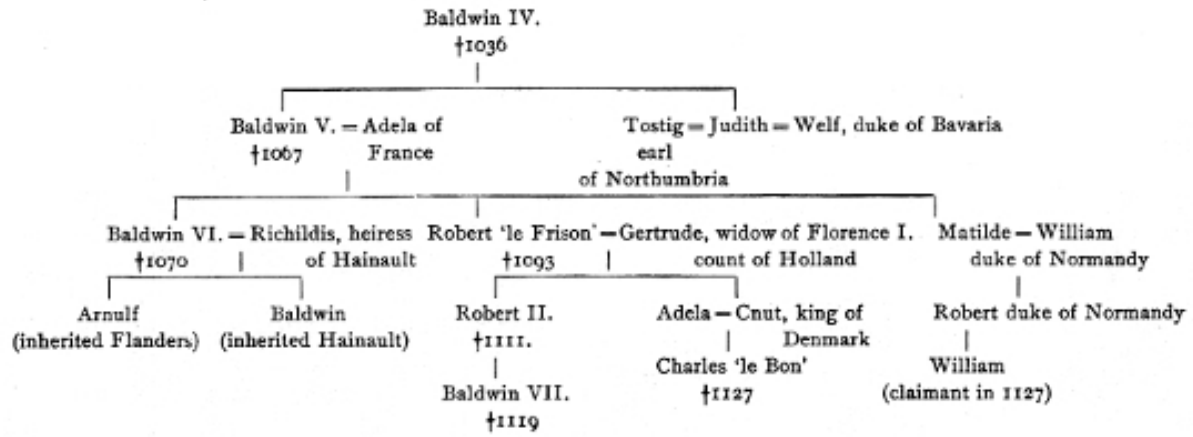


Table E: The Counts of the Vexin. [[Transcription](#)]

Table F: The Succession in 1066 [[Transcription](#)]

Table G: The Counts of Flanders [[Transcription](#)]

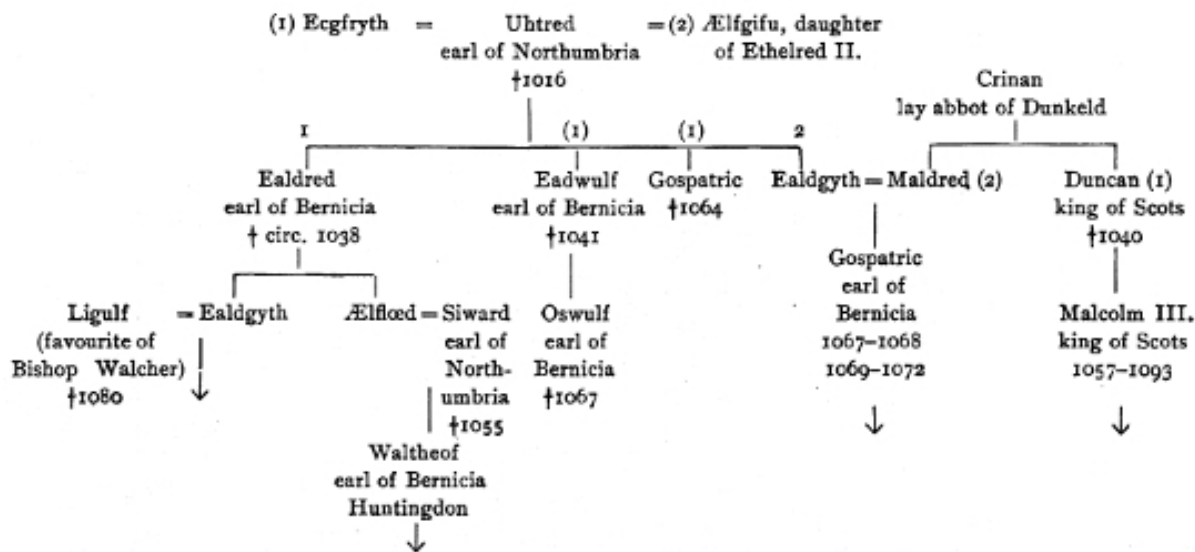


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Footnotes

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1. From the Catalogue of English Coins in the British Museum, Anglo-Saxon Series.
 2. From the *Traité de Numismatique du Moyen Age*, by Arthur Engel and Raymond Serrure.
 3. From the Handbook of the Coins of Great Britain and Ireland in British Museum.
 4. The boundary of the Danelaw in its full extent is proved by certain twelfth-century lists of shires which divide England into “Westsexenelage,” “Mirchenelage,” and “Danelage.” With regard to earlier times, the territory of the Five Boroughs is delimited by the fiscal peculiarities described below (Chapter XII.), and the kingdom of Northumbria substantially corresponds with Yorkshire as surveyed in *Domesday Book*, but it is very uncertain how far Guthrum’s kingdom extended westward after his final peace with Alfred. London was annexed to Wessex, but the boundary does not seem to have coincided in any way with the later county divisions.
 5. See below, Chapter XII.
 6. Chadwick, *Studies in Anglo-Saxon Institutions*, chapter v.
 7. Chadwick, *op. cit.*
 8. Maitland, *Domesday Book and Beyond*, 167.
 9. See the account of the council at Bretford, below, page 61.
 10. See Plummer, *Life and Times of Alfred the Great*, 67.
 11. “Unready” here represents the A. S. *unrædig*—“devoid of counsel”—and is applied to Ethelred because of his independence of the advice of the witan.
 12. *E. H. R.*, vii., 209.
 13. See Eckel, *Charles le Simple*.
 14. This identification cannot be considered certain. See Flodoard, ed. P. Lauer.
 15. The main features of Norman society in the eleventh century are described in outline by Pollock and Maitland, *History of English Law*, i., chapter iii., on which the following sketch is founded.
 16. The scanty evidence which exists on this matter is summarised by Pollock and Maitland, *H. E. L.*, chapter iii., and by Haskins, *E. H. R.*, Oct., 1907.
 17. See on this matter F. Lot, *Fidèles ou Vassaux*.

18. See *Histoire Général de France, Les Premiers Capetiens*, p. 90; also Sæhnée, *Catalogue des Actes d'Henri I^{er}* No. 38.

19. See Bohmer's *Kirche und Staat in England und in der Normandie*, 20.

20. The fullest account of Cnut's reign is given by Freeman. *Norman Conquest* i., chapter vi. Freeman was disposed to underrate the value of Scandinavian evidence, and hence considered Cnut's reign almost exclusively from the English standpoint.

21. See the lives of Earls Eric and Eglaf in the notes to the *Crawford Charters*, No. xii.

22. P. and M., i., 20.

23. The most recent discussion in detail of this episode is that of Plummer, *Two Saxon Chronicles*, ii. Freeman's attempt to clear Godwine of complicity was marked by a very arbitrary treatment of the contemporary authorities.

24. *Heimskringla*, trans. Morris and Magnusson, vol. iii., p. 10.

25. *Op. cit.*, p. 181.

26. This is the duty of "hospitium," exemption from which was frequently granted in Anglo-Norman charters.

27. Swegen, Godwine's eldest son, went on pilgrimage to Jerusalem, and died on his way back.

28. See the map of the earldoms in 1066 given by Freeman, *Norman Conquest*, ii.

29. In the next generation there was a tradition that Gospatric had been murdered by Queen Edith on her brother's behalf, Florence of Worcester, 1065.

30. *Victoria History of Northamptonshire*, i., 262–3.

31. In addition to the future Conqueror one other child was born to Robert and Arlette—a daughter named Adeliz, who married Count Enguerrand of Ponthieu; and after Robert's death Arlette herself became the lawful wife of a Norman knight named Herlwin of Conteville, whose two sons, Odo, bishop of Bayeux, and Robert, count of Mortain, play a considerable part in the succeeding history.

32. Ralf Glaber, iv., 6.

33. *De la Borderie, Histoire de Bretagne*, iii., 8–12.

34. Round, *Calendar of Documents Preserved in France*, 526.

35. This grant rests solely on the authority of Ordericus Vitalis, but it is accepted by Flach, *Les origines de l'ancienne France*, 528–530.

36. The meeting place of this council is only recorded by William of Malmesbury, *Gesta Regum*, ii., 285.

37. Ordericus Vitalis, iii., 431.
38. Among contemporaries who made the journey may be mentioned Count Fulk Nerra of Anjou and Archbishop Ealdred of York.
39. Ordericus, ii., 369. Tutorem sui, Ducis.
40. *Gesta Regum*, ii., 285.
41. *Gesta Regum*, ii., 285. "Normannia fiscus regalis erat." Henry of Huntingdon, 189.
42. This is the opinion of Luchaire, *Institutions monarchiques*, ii., 17.
43. William of Jumièges, vii., 3.
44. Round, *Calendar of Documents Preserved in France*, No. 37.
45. Round, *Calendar*, No. 251.
46. Luchaire, *Institutions monarchiques*, ii., 233.
47. This is asserted very strongly by Freeman, ii., 201, and is implied by Luchaire, *Les Premières Capétiens*, 163.
48. The whole story of the duke's ride from Valognes to Falaise rests upon the sole authority of Wace, and is only given here as a matter of tradition.
49. The topography of the battle is derived from Wace.
50. William of Poitiers, 81.
51. Ordericus Vitalis (iii., 342) makes a pointed reference to the length of time occupied by the present siege in comparison with the capture of Brionne in a single day by Robert of Normandy in 1090. But it is impossible to accept his statement that the resistance of Guy of Burgundy was protracted for three years.
52. William of Poitiers, 81: "Bella domestica apud nos in longum sopivit."
53. In the imperfectly feudalised state of England a stricter doctrine seems to have prevailed: see, on Waltheof's case below, page 338.
54. This rests on no better authority than Wace. We know with more certainty that the lands which Grimbald forfeited were bestowed by William upon the See of Bayeux, of which Odo, the duke's brother, became bishop in 1048.—*Eng. Hist. Rev.*, xxii., 644.
55. "Vicissitudinem post hæc ipse Regi fide studiosissima reddidit."
56. William of Poitiers, 82.
57. William of Poitiers, 82.

58. William of Poitiers, 87.

59. William of Poitiers, 88.

60. William of Jumièges, vii., 18.

61. William of Jumièges, vii., 18. The duke's oath is given by Wace: *Roman de Rou*, 9468.

62. William of Poitiers, 89.

63. William of Jumièges, vii., 19.

64. William of Jumièges, vii., 20.

65. The visit of William to England in 1051 will be considered below, Chapter IV, in its bearing upon the general question of the English succession.

66. William of Poitiers, 92.

67. This is definitely asserted by William of Malmesbury.

68. See on this episode, Round, *Feudal England*, 382–385.

69. Page 95.

70. William of Jumièges, vii., 7.

71. *Labbe Concilia*, xi., 1412.

72. For example, Freeman, *N. C.*, iii., 92.

73. Count Baldwin III. assumed the title of Marquis on the coins which he issued.

74. *Vita Eadwardi* (R.S.), 404.

75. Page 97. On this question there is a conflict of evidence William of Jumièges, whose authority is only second to that of William of Poitiers, definitely asserts Geoffrey's participation in the campaign. See Halphen, *Conté d'Anjou*, 77. On the other hand, although the argument from the silence of William of Poitiers should not be pressed too far, the terms of the treaty of 1053 (see below) certainly suggest that the king held Geoffrey guilty of a breach of feudal duty, and later writers, such as Orderic, cannot be trusted implicitly in regard to the detailed history of this period.

76. William of Poitiers, 99.

77. See note, page 112.

78. William of Jumièges, vii., 25.

79. See *The Laws of Breteuil*, by Miss M. Bateson, *Eng. Hist. Rev.*, xx.

80. William of Poitiers, 99, 100.

81. In a charter abstracted by Round, *Calendar of Documents Preserved in France*, No. 1256, there is a reference to a knight named Richard who was seized by mortal illness while defending the frontier post of Châteauneuf-en-Thimerais in this campaign.

82. William of Poitiers, 101. Wace gives topographical details.

83. William of Jumièges, vii., 28. The battle of Varaville led to the king's retreat, but a sporadic war lasted till 1060. It is probable that Norman chroniclers have attached more importance to the battle than it really possessed.

84. See Halphen, *Comté d'Anjou*, p. 133.

85. The history of Maine at this period has recently been discussed by Flach, *Les origines de l'ancienne France*, vol. iii., p. 543–9.

86. The native Mancel authorities have little to say about the war of 1063, the course of which is described by William of Poitiers, 103 *et seq.*

87. See the table on page 506.

88. Round. *Calendar of Documents Preserved in France*, No. 937.

89. Rhiwallon was brother of Junquené, the archbishop of Dol, whose presence at the Norman court during William's minority has been noted above. De la Borderie, iii., p. [missing].

90. William of Poitiers (109–112) is the sole authority for this war and he gives no dates. He definitely asserts the presence of Harold and his companions in the Norman army, and his narrative contains nothing irreconcilable with the relevant scenes in the Bayeux tapestry. The war was probably intended to enforce Norman suzerainty over Brittany, and the rising of Rhiwallon of Dol probably gave William his opportunity. De la Borderie, *Histoire de Bretagne*, iii., p. [missing].

91. The canons of Chartres celebrated his obit on December 11th, a fact which discounts the story in William of Jumièges that Conan was poisoned by an adherent of William. If William had wished to remove Conan the latter would certainly have died before William had sailed for England.

92. The scheme of policy which Green (*Conquest of England*, 522–524, ed. 1883) founded in relation to their marriage rests upon this assumption.

93. Poem in *Worcester Chronicle*, 1057.

94. *Vita Eadwardi Confessoris* (R. S.), 410.

95. *Worcester Chronicle*, 1042: "All the people chose Edward and received him for King, as it belonged to him by right of birth."

96. Chadwick, *Studies in Anglo-Saxon Institutions*, Excursus iv., p. 355.

97. The one contemporary account of Harold's oath which we possess is that given by William of Poitiers (ed. Giles, 108). According to this Harold swore (1) to be William's representative (*vicarius*) at Edward's court; (2) to work for William's acceptance as king upon Edward's death; (3) in the meantime to cause Dover castle to receive a Norman garrison, and to build other castles where the duke might command in his interest. In a later passage William of Poitiers asserts that the duke wished to marry Harold to one of his daughters. In all this there is nothing impossible, and to assume with Freeman that the reception of a Norman garrison into a castle entrusted to Harold's charge would have been an act of treason is to read much later political ideas into a transaction of the eleventh century. William was Edward's kinsman and we have no reason to suppose that the king would have regarded with disfavour an act which would have given his cousin the means of making good the claim to his succession which there is every reason to believe that he himself had sanctioned twelve years before.

98. *Vita Edwardi Confessoris* (R. S.), 432.

99. William of Poitiers, 123.

100. William of Malmesbury, *Gesta Regum*, ii., 299.

101. The statement that William promised, if successful, to hold England as a fief of the papacy is made by no writer earlier than Wace, who has no authority on a point of this kind.

102. *Monumenta Gregoriana*.

103. Round, *Geoffrey de Mandeville*, 8.

104. William of Poitiers, 124.

105. William of Malmesbury, *Gesta Regum*.

106. The list followed here is that printed by Giles as an appendix to the *Brevis Relatio. Scriptores*, p. 21.

107. Guy of Amiens, 34: "Appulus et Caluber, Siculus quibus jacula fervet."

108. Kingsley, *Hereward the Wake*, ed. 1889, p. 368.

109. This was Freeman's final view. *N. C.*, iii., 625.

110. Florence of Worcester, 1066.

111. Ordericus Vitalis, ii., 120.

112. *Chronicles of Abingdon, Peterborough, and Worcester*, 1066.

113. John of Oxenides, a thirteenth-century monk of St. Benet of Holme, asserts that Harold entrusted the defence of the coast to Ælfwold, abbot of that house. The choice of an East Anglian abbot suggests that his appointment was intended as a precaution against the Scandinavian danger.

114. See Introduction, above, page 48.
115. *Heimskringla*, page 165.
116. Simeon of Durham, 1066.
117. This episode forms the last entry in the Abingdon version of the *Chronicle*, and it is described in a northern dialect.
118. Round, *Calendar of Documents preserved in France*, No. 1713.
119. William of Poitiers, 122.
120. W. P., 123. “Turmas militum cernens, non exhorrescens.”
121. Guy of Amiens, ed. Giles, 58.
122. William of Malmesbury, *Gesta Regum*, ii., 300.
123. William of Poitiers, 125.
124. William of Poitiers, 126.
125. *Abingdon Chronicle*, 1066.
126. Guy of Amiens: “Diruta quae fuerant dudum castella reformas; Ponis custodes ut tueantur ea.”
127. W. P.: “Normanni previa munitione Penevesellum, altera Hastings occupavere.”
128. See on this point Round, *Feudal England*, 150–152.
129. William of Poitiers, 128.
130. William’s real numbers probably lay between six and seven thousand.
131. See the paraphrase of this passage in the *Roman de Rou*, Freeman, N. C., iii., 417.
132. Guy of Amiens, p. 31: “Ex Anglis unus, latitans sub rupe marina Cemit ut effusas innumeras acies. Scandere currit equum; festinat dicere regi.”
133. Gaimar, *l’Estoire des Engles*, R. S., i., p. 222. Gaimar wrote in the twelfth century, but he followed a lost copy of the A.-S. chronicle.
134. For the chronology of the campaigns of Stamfordbridge and Hastings the dates given by Freeman are followed here.
135. *Worcester Chronicle*, 1066: “He com him togenes at thære haran apuldran.”
136. The statement that Harold further strengthened his position by building a palisade in front of it rests solely on an obscure and probably corrupt passage in the

Roman de Rou (lines 7815 *et seqq*). Apart altogether from the textual difficulty, the assertion of Wace is of no authority in view of the silence both of contemporary writers and of those of the next generation. In regard to none of the many earlier English fights of this century have we any hint that the position of the army was strengthened in this manner; nor in practice would it have been easy for Harold to collect sufficient timber to protect a front of 800 yards on the barren down where he made his stand. The negative evidence of the Bayeux tapestry is of particular importance here; for its designer could represent defences of the kind suggested when he so desired, as in the case of the fight at Dinan.

137. Spatz, p. 30, will only allow to William a total force of six to seven thousand men.

138. W. P., 133. “Cuncti pedites consistere densius conglobati.” For the arrangement of the English army on the hill see Baring, E. H. R., xx., 65.

139. It is probable that the expressions in certain later authorities (*e.g.* W. M., ii., 302, “pedites omnes cum bipennibus conserta ante se testudine”) from which the formation by the English of a definite shield or wall has been inferred mean no more than this. The “bord weal” of earlier Anglo-Saxon warfare may also be explained as a poetical phrase for a line of troops in close order.

See Round, *Feudal England*, 360–366.

140. This fact, which must condition any account to be given of the battle of Hastings, was first stated by Dr. W. Spatz, “Die Schlacht von Hastings,” section v., “Taktik beider Heere,” p. 34.

141. This point is brought out strongly by Oman, *History of the Art of War*.

142. Spatz, p. 29, uses this fact to limit the numbers of the Norman army.

143. W. P., 132.

144. Guy of Amiens: “Lævam Galli, dextram petiere Britanni. Dux cum Normannis dimicat in medio.”

145. W. P., 132.

146. Florence of Worcester, 1066: “Ab hora tamen diei tertia usque ad noctis crepusculum.”

147. Guy of Amiens. W. P., 133: “Cedit fere cuncta Ducis acies.”

148. “Fugientibus occurrit et obstitit, verberans aut minans hasta.”—W. P., 134.

149. Bayeux tapestry scene: “Hic Odo episcopus, baculum tenens, confortat pueros.”

150. W. P., 134.

151. “Animadvertentes Normanni ... non absque nimio sui incommodo hostem tantum simul resistentem superari posse.”—W. P., 135.

152. “Normanni repente regirati equis interceptos et inclusos undique mactaverunt.”—W. P., 135.

153. “Bis eo dolo simili eventu usi.”—William of Poitiers, 135.

154. “Languent Angli, et quasi reatum ipso defectu confitentes, vindictum patiuntur.”—W. P., 135.

155. Baring, E. H. R., xxii., 71.

156. “Jam inclinato die.”—W. P., 137. Crepusculi tempore.—Florence of Worcester, 1066.

157. Baring, E. H. R., xxii., 69.

158. Guy of Amiens.

159. See the Waltham tract, *De Inventione Sancti Crucis*, ed. Stubbs. William of Malmesbury was evidently acquainted with this legend.

160. It is probable that Wulfnoth had been taken together with Harold by Guy of Ponthieu, and had been left behind in Normandy as a surety for the observance of his brother’s oath to William.

161. *Gesta Regum*, R. S., 307.

162. Thomas Stubbs, ed. Raine; *Historians of the Church of York*, R. S., ii., 100.

163. William of Poitiers, 139.

164. William of Poitiers, 139.

165. Guy of Amiens, 607.

166. William of Poitiers, 140.

167. Guy of Amiens, 617.

168. The embassy to Winchester is only mentioned by Guy of Amiens, who omits all reference to William’s illness, which is derived from William of Poitiers. Guy, however, places the message at this point of the campaign.

169. Round, *Geoffrey de Mandeville*, 4.

170. This is clearly meant by the statement of William of Poitiers that William’s troops burned “quicquid ædificiorum citra flumen invenere.”

171. William of Poitiers, 141.

172. The *Worcester Chronicle*, followed by Florence of Worcester, 1066, asserts that Edwin and Morcar submitted at “Beorcham,” but William of Poitiers, whose authority is preferable on a point of this kind, implies that they did not give in their

allegiance until after the coronation. On the geography relating to these events see Baring, E.H.R. xiii., 17.

173. William of Poitiers, 142.

174. Guy of Amiens, 687 *et seqq.*

175. William of Poitiers, 143.

176. “Vehementer trementem,” Ordericus Vitalis, ii., 157.

177. Florence of Worcester, 1066.

178. William of Poitiers, 147–8.

179. This writ was issued in favour of one Regenbald, who had been King Edward’s chancellor. It was printed by Round in *Feudal England*, 422, with remarks on its historical importance.

180. *Monasticon*, i., 383. See also Round, *Commune of London*, 29.

181. *Monasticon*, i., 301. The date assigned here to these documents, of which the text in the *Monasticon* edition is very faulty, is a matter of inference; but the personal names which occur in them suggest that they should be assigned to the very beginning of William’s reign.

182. Round, *Calendar of Documents Preserved in France*, No. 1423. See also *Commune of London*, 30.

183. William of Poitiers, 148; Ordericus Vitalis, ii., 165.

184. *Peterborough Chronicle*, 1066. “And menn guldon him gyld ... and sithan heora land bohtan.”—D. B., ii., 360. “Hanc Terram habet abbas ... quando redimebant Anglici terras suas.” The combination of these statements led Freeman to make the suggestion referred to in the text.

185. It may be noted that there exist a few proved cases in which a Norman baron had married the daughter of his English predecessor, so that here the king’s grant to the stranger would only confirm the latter in possession of his wife’s inheritance.

186. D. B., i., 285 b. (Normanton on Trent).

187. *Victoria History of Northamptonshire*, i., 324.

188. Frequently printed, *e.g.*, by Stubbs, *Select Charters*, 82.

189. Suggested by Round, *Geoffrey de Mandeville*, 439.

190. Ordericus Vitalis, ii., 167. The mercenaries were paid off at Pevensey before William sailed for Normandy.

191. *Peterborough Chronicle*, 1087.

192. William of Poitiers (149) states that William Fitz Osbern was left in charge of the city “Guenta,” which is described as being situated fourteen miles from the sea which divides the English from the Danes, and as a point where a Danish army might be likely to land. These indications imply that Norwich (*Venta Icenorum*) was Fitz Osbern’s headquarters, although the name Guenta alone would naturally refer to Winchester (*Venta Belgarum*). The joint regency of Odo and William is asserted by Florence of Worcester, 1067, and the phrase in William of Poitiers, that Fitz Osbern “toto regno Aquilionem versus præesset,” suggests that the Thames was the boundary between his province and that of Odo. The priority of Fitz Osbern in the regency is suggested by the fact that in a writ relating to land in Somerset, he joins his name with that of the king in addressing the magnates of the shire. Somersetshire certainly formed no part of his direct sphere of administration at the time. For further references to this writ see below, Chapter XI.

193. The fullest list of names is given by Orderic, ii., 167.

194. William of Poitiers, 155.

195. Ordericus Vitalis, ii., 170.

196. Simeon of Durham, under the year 1072. He asserts that Oswulf himself slew Copsige in the door of the church.

197. Simeon of Durham, under 1070.

198. Florence of Worcester, 1067.

199. Ordericus Vitalis, ii., 173.

200. The fullest account of the affair at Dover is given by Orderic (ii., 172–5), who expands the slighter narrative of William of Poitiers.

201. Ordericus Vitalis, ii., 178.

202. Ordericus Vitalis, ii., 179.

203. “Ad Danos, vel alio, unde auxilium aliquod speratur, legatos missitant.”—William of Poitiers, 157.

204. The story of the revolt of Exeter is critically discussed by Round, *Feudal England*, 431–455.

205. *Worcester Chronicle*, 1067; Florence of Worcester, 1068; William of Malmesbury, *Gesta Regum*, ii., 312.

206. The source of our information is an original charter granted by William to the church of St. Martin’s le Grand on May 11th.—E. H. R. xii., 109.

207. Ordericus Vitalis, ii., 183.

208. The rising of Edwin and Morcar is not mentioned by the English authorities, which are only concerned with the movements of Edgar and his companions. Florence

of Worcester says that the latter fled the court through the fear of imprisonment. They had given no known cause of offence since their original submission, but it is probable that they would have been kept in close restraint if they had been in the king's power when the northern revolt broke out and that they fled to avoid this.

209. Ordericus Vitalis, ii., 184.

210. Ordericus Vitalis, ii., 185.

211. Simeon of Durham, 1069.

212. Ordericus Vitalis, ii., 188. From his statement that Earl William beat the rebels "in a certain valley," it is evident that the military operations were not confined to the city of York.

213. Ordericus Vitalis, ii., 189.

214. For the events of 1069 Orderic is almost the sole authority, and his narrative is not always easy to follow. On the other hand he is doubtless in great part following the contemporary William of Poitiers, and his tale is quite consistent with itself if due allowance is made for its geographical confusion.

215. The exact scene of Waltheof's exploit is uncertain. Orderic implies that the entire Norman garrison in York perished in the unsuccessful sally. Florence of Worcester states that the castles were taken by storm. The latter is certainly the more probable, and agrees better with the tradition, preserved by William of Malmesbury, of the slaughter at the gate. The gate in question, on this reading of the story, will belong to one of the castles; it cannot well be taken to be one of the gates of the town.

216. The mutilation is only recorded by a late authority, the Winchester *Annals*.

217. Ordericus' narrative at this point is not very clear, but this is probably his meaning.

218. By Ordericus William is made to return to York through Hexham ("Hangustaldam revertabatur a Tesca"). This being impossible it is generally assumed that Helmsley (Hamilac in D. B.) should be read for Hexham, in which case William would probably cross the Cleveland hills by way of Bilsdale.

219. "Desertores, vero, velut inertes, pavidosque et invalidos, si discedant, parvi pendit."

220. Chester castle was planted within arrow shot of the landing stage on the right bank of the Dee, and also commanded the bridge which carried the road from the Cheshire plain to the North Wales coast.

221. *Peterborough Chronicle*, 1069.

222. William of Malmesbury, *Gesta Pontificum*, § 420.

223. Domesday Book, i., 346.

224. *Peterborough Chronicle*, 1070.

225. The passages which follow are founded on the narrative of Hugh “Candidus,” a monk of Peterborough, who in the reign of Henry II. wrote an account of the possessions of the abbey, and inserts a long passage descriptive of the events of 1070. The beginning of his narrative agrees closely with the contemporary account in the *Peterborough Chronicle*, but his tale of the doings of the Danes in Ely after the sack of Peterborough is independent, and bears every mark of truth. Wherever it is possible to test Hugh’s work, in regard to other matters, its accuracy is confirmed. See *Feudal England*, 163, V.C.H. Notts, i., 222. Hugh’s *Chronicle* has not been printed since its edition by Sparke in the seventeenth century.

226. Ordericus Vitalis, ii., 216. The death of Edwin formed the conclusion of the narrative of William of Poitiers as Orderic possessed it.

227. Florence of Worcester, 1070.

228. *Historia Eliensis*, 240.

229. Ordericus Vitalis, ii., 216.

230. Florence of Worcester, 1071.

231. *Historia Eliensis*, 245.

232. See “Ely and her Despoilers,” in *Feudal England*, 459.

233. Gaimar, *L’estoire des Engles*, R. S.

234. *Gesta Herewardi*, R. S.

235. See Varenbergh, *Relations Diplomatiques entre le comté de Flandre et l’Angleterre*. Luchaire, *Les Premiers Capetiens*, 169.

236. Halphen, *Comté d’Anjou*, 180, has shown that Azo had appeared in Maine by the spring of 1069.

237. The authorities for the present war are the history of Ordericus Vitalis and the life of Bishop Arnold of Le Mans, ed. Mabillon; *Vetera Analecta*.

238. “Facta conspiratione quam communionem vocabant.”—*Vet. An.*, 215.

239. *Gesta Regum*, ii., 316.

240. *Vetera Analecta*, 286.

241. Hoel, unlike his predecessors, followed a policy of friendship towards Anjou, and restored to Fulk le Rechin the conquests made by Count Conan on the Angevin march. De la Borderie, iii., 26.

242. The terms of the peace of Blanchelande are given by Orderic.

243. E. H. R., xx., 61.

244. See table H.

245. Simeon of Durham, 1072.

246. This third flight of Edgar to Scotland rests solely upon the authority of Simeon of Durham, and it is quite possible that the latter may have been confused about the course of events at this point.

247. *Worcester Chronicle*, 1073.

248. Brian's tenure of the earldom of Richmond is proved by a charter to the priory of St. Martin de Lamballe, in which lands are granted by "Brientius, comes Anglica terra." (De la Borderie, iii., 25.) As Brian's father, Count Éon of Penthievre, did not die before 1079 the title "comes" cannot refer to any French county possessed by Brian. As in the eleventh century every "earldom" consisted of a shire or group of shires, it would seem to follow that Richmondshire at this date was regarded as a territorial unit distinct from Yorkshire.

249. *Norman Conquest*, iv., 517.

250. *Worcester Chronicle*, 1075.

251. *Worcester Chronicle*, 1075.

252. According to Wace Ralf had served among the Breton auxiliaries at the battle of Hastings.

253. Ordericus Vitalis, ii., 258 *et seq.*

254. Florence of Worcester, 1074.

255. *Worcester Chronicle*, 1076.

256. *Epistolæ Lanfranci*.

257. Florence of Worcester, 1074.

258. It does not appear that any medieval historian regarded this as an act of treachery on Waltheof's part.

259. F. N. C., iv., 585.

260. *Gesta Regum*, ii., 312.

261. This point is made by Pollock and Maitland. H. E. L., i., 291.

262. For the rest of the Conqueror's reign, there was peace between Normandy and Brittany, except that in 1086 William, to whom the new count Alan Fergant, the son of Hoel, had refused homage, crossed the border once more and laid siege to Dol. In this siege also he was unsuccessful, and speedily came to terms with Alan, who received Constance, the Conqueror's daughter, in marriage.

263. Simeon of Durham, 1075.

264. Ordericus Vitalis, ii., 290.

265. Ordericus Vitalis, ii., 259.

266. Charter of King Philip to St. Quentin, Gallia Christ; X. Inst. 247. Among the witnesses are Anselm of Bec, and Ives de Beaumont, the father-in-law of Hugh de Grentemaisnil.

267. *Worcester Chronicle*, 1079.

268. S. D., *Gesta Regum*, 1080.

269. Round, *Calendar*, No. 1114.

270. *Ibid.*, 1113.

271. *Ibid.*, 78.

272. Orderic, ii., 315.

273. This fact is of importance, as giving an example, rare in England, of a true “vicecomes,” an earl’s deputy as distinguished from a sheriff.

274. For all these events Simeon of Durham is the authority giving most detail.

275. *Hist. Monast. de Abingdon*, ii., 10.

276. *Brut y Tywysogion*, 1080.

277. *Mon. Angl.*, vii., 993, from an “inspeximus” of 31 Ed. I. The charter in question is dated “apud villam Dontonam,” which in the index to the volume of *Patent Rolls* is identified with Downton, Wilts. William, at Downton, may very well have been on his way to one of the Hampshire or Dorset ports.

278. iii., 168. On the other hand, Giesbrecht (iii., 531) has suggested that a political difference was the occasion of the quarrel between Odo and William, the former wishing to take up arms for Gregory VII., while the latter was on friendly terms with the emperor. But Gregory himself in a letter addressed to William (*Register*, viii., 60), while reproving his correspondent for lack of respect towards his brother’s orders, admits that Odo had committed some political offence against the king. As to the nature of that offence, we have no contemporary statement, nor do we know how far Gregory may have possessed accurate information as to the motives which induced William’s action.

279. William of Malmesbury.

280. Ordericus Vitalis, iii., 196.

281. An isolated reference to the siege of Saint-Suzanne occurs in the Domesday of Oxfordshire, in which county the manor of Ledhall had been granted to Robert d’Oilly, “apud obsidionem S. Suzanne.”

282. *Heimskringla*, iii., 198.

283. The severity of the devastation should not be exaggerated, for in 1086 Lincolnshire, Norfolk, and Suffolk were the most prosperous parts of England.

284. Cnut's preparations and death are described at length in his life by Ethelnoth, printed in the *Scriptores Rerum Danicarum*.

285. *Peterborough Chronicle*, 1086.

286. See Flach, *Les Origines de l'ancienne France*, 531–534.

287. The ecclesiastical history of Normandy and England in the eleventh century is treated by Böhmer, *Kirche und Staat in England, und in der Normandie*, on which book this chapter is based.

288. See above, Introduction, ii., pp. 39, 40.

289. Especially in the Danelaw, V. C. H., Derby i., Leicester i.

290. Stubbs, *Select Charters*, 85. The writ in question probably belongs to the year 1075.

291. Pollock and Maitland, i., 89.

292. *Peterborough Chronicle*, 1083.

293. Abbot Ethelhelm of Abingdon was considered to have offended in this respect. *Hist. Monast. de Abingdon*, ii., 283.

294. See above, Chapter V.

295. Ordericus Vitalis, ii., 315.

296. *Easter*, 1069: King William; Matilda, the Queen; Richard, the King's son; Stigand, archbishop of Canterbury; Ealdred, archbishop of York; William, bishop of London; Ethelric, bishop of Selsey; Herman, bishop of Thetford; Giso, bishop of Wells; Leofric, bishop of Exeter; Odo, bishop of Bayeux; Geoffrey, bishop of Coutances; Baldwin, bishop of Evreux; Arnold, bishop of Le Mans; Count Robert (of Mortain), Earl William Fitz Osbern, Count Robert of Eu, Earl Ralf (of Norfolk?), Brian of Penthièvre, Fulk de Alnou, Henry de Ferrers; Hugh de Montfort, Richard the son of Count Gilbert, Roger d' Ivri, Hamon the Steward, Robert, Hamon's brother.—Tardif, *Archives de l'Empire*, 179.

Christmas, 1077: King William; Lanfranc, archbishop of Canterbury; Thomas, archbishop of York; Odo, bishop of Bayeux; Hugh, bishop of London; Walkelin, bishop of Winchester; Remi, bishop of Lincoln; Maurice, the chancellor; Vitalis, abbot of Westminster; Scotland, abbot of Ch. Ch., Canterbury; Baldwin, abbot of St. Edmunds; Simeon, abbot of Ely; Aelfwine, abbot of Ramsey; Serlo, abbot of Gloucester; Earl Roger of Montgomery, Earl Hugh of Chester, Count Robert of Mortain, Count Alan of Richmond, Earl Aubrey of Northumbria, Hugh de Montfort, Henry de Ferrers, Walter Giffard, Robert d' Oilli, Hamon the Steward, Wulfstan, bishop of Worcester.—Ramsey Chartulary, R. S., ii., 91.

Easter, 1080: King William; Matilda the Queen; Robert, the king's son; William, the king's son; William, archbishop of Rouen; Richard, archbishop of Bourges; Warmund, archbishop of Vienne; Geoffrey, bishop of Coutances; Gilbert, bishop of Lisieux; Count Robert, the king's brother; Count Roger of Eu, Count Guy of Ponthieu, Roger de Beaumont, Robert and Henry, his sons, Roger de Montgomery, Walter Giffard, William d' Arques.—*Calendar of Documents Preserved in France*, ed. J. H. Round, No. 78.

297. Printed in Transactions of Somerset Archæological and Historical Society, xxiii., 56

298. Bath Chartulary (Somerset Record Society), i., 36.

299. *Hist. Monasterii de Abingdon*, R. S., ii., 9.

300. *Ibid.*, 10.

301. Round, *Calendar of Documents Preserved in France*, No. 712.

302. Henry I. is seldom found north of Nottingham.

303. *Monasticon*, iii., 377.

304. V. C. H., Warwick, i., 258.

305. See above, Chapter VI.

306. See the complaints of his aggressions in Heming's *History of the Church of Worcester*; *Monasticon*, i., 593–599.

307. William of Malmesbury, ii., 314.

308. *Calendar of Documents Preserved in France*, No. 77.

309. Ordericus Vitalis, ii., 178.

310. Compare Round, *Geoffrey de Mandeville*, 322.

311. See the charters of William II. in *Monasticon*, viii., 1167.

312. Ordericus Vitalis, ii., 219.

313. Reproduced herewith.

314. Wharton, *Anglia Sacra*, i., 339.

315. Maitland, *Domesday Book and Beyond*, 80-83.

316. Charter of William I., *Monasticon*, i., 477.

317. Foundation charter of Blyth Priory, *Monasticon*, iv., 623.

318. There is some evidence to suggest that the lord of a vill could cause a court to be held there by his steward. This, however, is the result of seignorial, not communal, ideas.

319. Round, *Feudal England*, 225–314, has given the clearest account of the introduction and development of knight service in England.

320. *Feudal England*, as quoted above, page 447. See also Morris, *Welsh Wars of Edward*, i., 36, arguing for a total of 5000.

321. Frequently printed, e.g. by Stubbs, *Select Charters*, 86.

322. Birch, *Cartularium*, i., 414.

323. Birch, *Cartularium*, iii., 671; Maitland, *Domesday Book*, 502.

324. Birch, *Cartularium*, iii., 671; Maitland, *Domesday Book*, 456.

325. Maitland, *D. B. and Beyond*, 4.

326. The fact that the assessment of southern and western England was based upon a conventional unit of five hides was first enunciated by Mr. J. H. Round in *Feudal England*.

327. Vinogradoff, E. H. R., xix., 282.

328. *Feudal England*, 98–103.

329. For the “six-carucate unit” see *Feudal England*, 69. Victoria Histories, Derby, Notts, Leicester, and Lincoln.

330. *Feudal England*, 42.

331. V. C. H., Derby, i., 295.

332. This was the view of Professor Maitland, *Domesday Book and Beyond*, 24.

333. The contemporary description of the Domesday Survey published by Stevenson, E. H. R., xxii., 72, makes it probable that the bordars were in theory distinguished from other classes by the fact that they possessed no share in the arable fields of the vill.

334. See V. C. H., Hertford, i., 293.

335. V. C. H., Bedford, i., 200.

336. The former view is that of Mr. Round, the latter that of Professor Maitland.

337. We also know that the returns were checked in each county by a second set of commissioners who were deliberately sent by the king into shires where they possessed no personal interest.—E. H. R., xxii., 72.

338. *Feudal England*, 141.

339. *Dialogus de Saccario* (ed. 1902), p. 108.

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Transcriptions of Genealogy Tables

Transcription of [Table A](#)

THE DUCAL HOUSE OF NORMANDY

TABLE A

- 1** 'Rollo'
- 11** William I.
- 111** Richard I.
- 1111** Richard II. m. Judith of Brittany
- 11111** Richard III.
- 111111** Nicholas, abbot of St Ouen
- 11112** Robert I.
- 111121** William II.
- 1111211** Robert II.
- 111122** Adeliz → ([Table C](#))
- 11113** Adeliz m. Reginal, count of Burgundian Palatinate
- 111131** Guy of Brionne
- 11114** Malger, archbishop of Rouen
- 11115** William, count of Arques
- 1112** Robert, archbishop of Rouen
- 11121** Ralf de Wacy
- 1113** Malger count of Mortain
- 11131** William 'the Warling'
- 1114** William, count of Eu
- 11141** Robert, count of Eu
- 11142** William, 'Busac'
- 11143** Hugh, bishop of Lisieux
- 1115** Mahaut = Odo II of Blois
- 1116** Emma = Ethelred II.
- 11161** Alfred the Etheling
- 11162** Edward the Confessor
- 1117** Hawise = Geoffrey I. of Brittany → ([Table B](#))

Transcription of [Table B](#)

The Counts of Brittany

TABLE B

- 1** Geoffrey I. †1008 = Hawise of Normandy
 - 11** Alan III. †1040
 - 111** Conan II. o. s. p. 1066
 - 112** Geoffrey 'Grenonat' (claimant 1075)
 - 113** Hawise = Hoel, count of Cornouaille †1084
 - 1131** Alan Fergent = Constance of Normandy †1119
 - 12** Éon, count of Penthhièvre. †1079
 - 121** Brian, earl of Richmond
 - 122** Alan, earl of Richmond

Transcription of [Table C](#)The Descendents of Arlette

TABLE C

- 1** Arlette
 - m. Robert of Normandy
 - 11** William
 - 12** Adeliz m. Enguerrand, count of Ponthieu
 - 121** Adeliz m. Eudes, count of Champagne
 - 1211** Stephen, count of Aumâl (claimant for England, 1095)
 - 122** Judith m. Waltheof, earl of Northampton
 - 1221** Maud m David I. king of Scots
 - m. Herlwin de Conteville
 - 13** Odo, bishop of Bayeux
 - 14** Robert, count of Mortain
 - 15** Muriel

Transcription of [Table D](#)The Counts of Maine

TABLE D

- 1** Hugh II.
 - 11** Hugh III.
 - 111** Herbert I. 'Eveille-chien' †1035
 - 1111** Hugh IV. †1051
 - 11111** Herbert II. †1063
 - 11112** Gersendis m. Azo, marquis of Liguria
 - 111121** Hugh (claimant in 1073)
 - 11113** Margaret (betrothed to Robert of Normandy)
 - 11114** Paula m. John de la Flèche
 - 1112** Biota = Walter of Mantes count of the Vexin Français
 - 12'** Herbert 'Baccon' (regent of Maine, 1036–1040)

Transcription of [Table E](#)

The Counts of Vexin

TABLE E

- 1** Walter II.
 - 11** Drogo m. Goda, d. of Ethelred II.
 - 111** Walter III. o.s.p. 1063 m. Biota of Maine
 - 112** Ralf, earl of Hereford
 - 12** Ralf II., count of Valois
 - 121** Ralf III., count of Valois and the Vexin
 - 1211** Simon de Crepy o.s.p.

Transcription of [Table F](#)

The Succession in 1066

TABLE F

- 1** Richard I. of Normandy
 - 11** Richard II.
 - 12** Emma
 - m. Cnut **31**
- 2** Ethelred II.
 - m. (1) Ælfgifu
 - 21** Edmund Ironside
 - 211** Edward the Etheling
 - 2111** Edgar the Etheling
 - m. (2) Emma (**12**)
 - 22** Edward the Confessor
- 3** Swegn Forkbeard
 - 31** Cnut m. Emma {**12**}
 - 32** Estrith m. Ulf, viceroy of Norway (**41**)
 - 321** Swegn Estrithson
- 4** Thorgils Sprakalegg
 - 41** Ulf, viceroy of Norway m. Estrith(**32**)
 - 42** Gytha m. Godwin
 - 421** Harold II.

Transcription of [Table G](#)

The Counts of Flanders

TABLE G

- 1** Baldwin IV. †1036
 - 11** Baldwin V. †1067 m. Adela of France
 - 1111** Baldwin VI. m. Richildis, heiress of Hainault
 - 1111** Arnulf (inherited Flanders)
 - 1112** Baldwin (inherited Hainault)
 - 112** Robert 'le Frison' †1093 m. Gertrude, widow of Florence I. count of Holland
 - 1121** Robert II. †1111
 - 11211** Baldwin VII. †1119
 - 1122** Adela m. Cnut, king of Denmark
 - 11221** Charles 'le Bon' †1127
 - 113** Matilde = William duke of Normandy
 - 1131** Robert duke of Normandy
 - 11311** William (claimant in 1127)
 - 12** Judith m. Tostig earl of Northumbria

Transcription of [Table H](#)The Earls of Northumbria

TABLE H

- 1** Uhtred, earl of Northumbria †1016
 - m. (1) Ecgfryth
 - 11** Ealdred, earl of Bernicia, †circ. 1038
 - 111** Ealdred, earl of Bernicia †circ. 1038
 - 1111** Ealdgyth m. Ligulf, (favourite of Bishop Walcher) †1080 →
 - 1112** Ælflæd m. Siward, earl of Northumbria †1055
 - 11121** Waltheof, earl of Bernicia Huntingdon →
 - 12** Eadwulf, earl of Bernicia †1041
 - 121** Oswulf, earl of Bernicia †1067
 - 13** Gospatric †1064
 - m. Ælfgifu, daughter of Ethelred II.
 - 14** Ealdgyth
 - m. (1) Duncan ([22](#))
 - 141** Malcolm III. king of Scots 1057–1093 →
 - m. (2) Maldred ([21](#))
 - 141** Gospatric, earl of Bernicia 1067–1068 1069–1072 →
- 2** Crinan, lay abbot of Dunkeld
 - 21** Maldred
 - 22** Duncan, king of Scots †1040

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There are a number of editorial oversights wherein external and internal page references are left blank. Where the references could be found, they have been supplied.

[87.27](#) on Waltheof's case below, page [338.] Supplied.

[116.31](#) See note, page [112] above. Supplied.

[136.31](#) See the table on page [506] Supplied.

The missing page references to De la Borderie's *Histoire de Bretagne* on pp. [138](#) (footnote [89](#)), and [139](#) (footnote [90](#)) could not be resolved. Nor could the reference to a prior quotation of William of Malmesbury be definitely made (p. [414](#)). These are noted in this text as [missing].

The list of illustrations includes a reference at p. [x.13](#) to the image of a coin on p. 406, but no image was included in the text.

Footnote [260](#), on p. 339, had no reference in the text. One has been added at the most likely point in the narrative, given the context.

Errors deemed most likely to be the printer's have been corrected, and are noted here. The references are to the page and line in the original.

24.14	the orig[i]nal settlers of Normandy	Inserted.
26.26	the [enemity] of all his fellow-nobles	Obsolete.
40.15	the influence of the g[r]eat Cluniac movement	Inserted.
72.20	the s[ei/ie]ge of Montgomery Castle	Transposed.
76.13	to see two of Wil[l]iam's unlucky guardians	Inserted.
79.17	inflict gratuit[i]ous injury	Removed.
81.30	The B[a/e]ssin and Cotentin	Replaced.
129.30	which was de[s]cribed in the last chapter	Inserted.
267.16	appointing a No[r]man baron	Inserted.
327.18	in peaceable posses[s]ion	Inserted.

338.1	the mo[ton/not] of his imprisonment	Transposed.
339.7	based his accou[n]t	Inserted.
424.21	upon his ag[g]ressive course as sheriff	Inserted.
441.4	[“]infangenethef” is the right of trying	Inserted.
441.36	a great baron cert[ia/ai]nly	Transposed.
455.1	on a level w[i]th the Norman	Inserted.
458.6	for the details of government[.]	Added.
505.34	Clun[i/y], abbey of, 379	Replaced.



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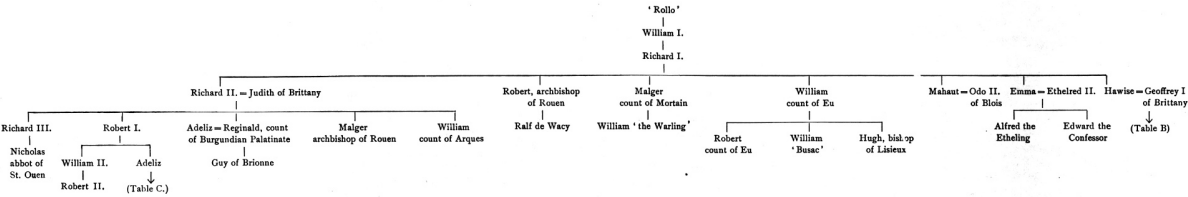
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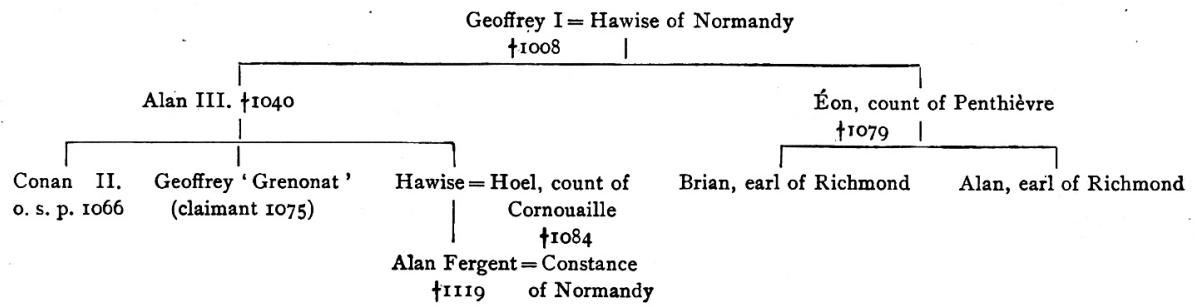
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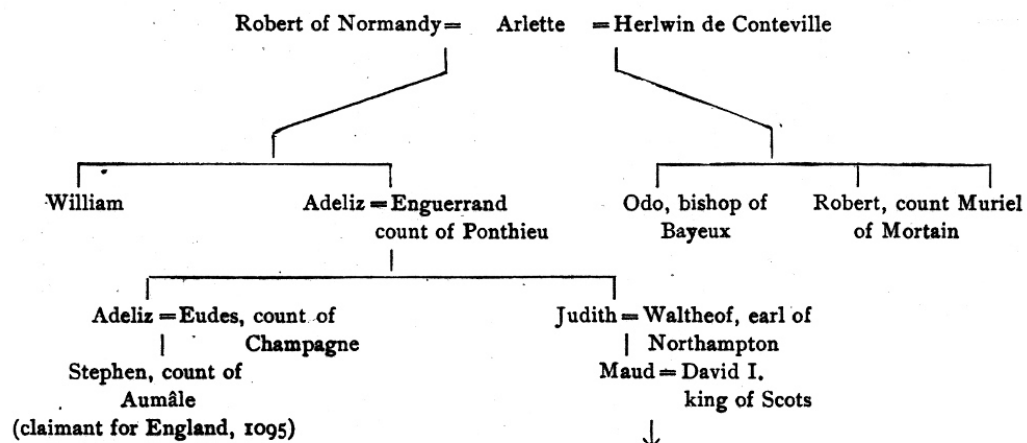
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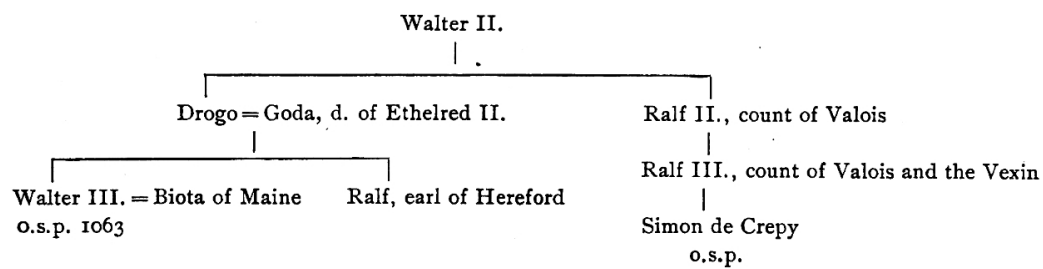
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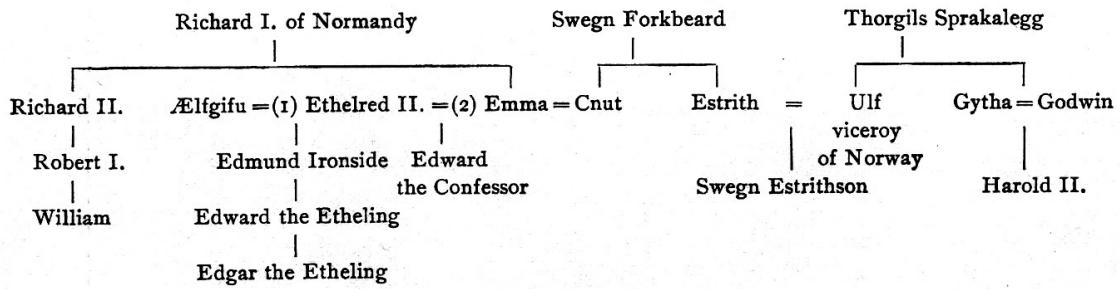
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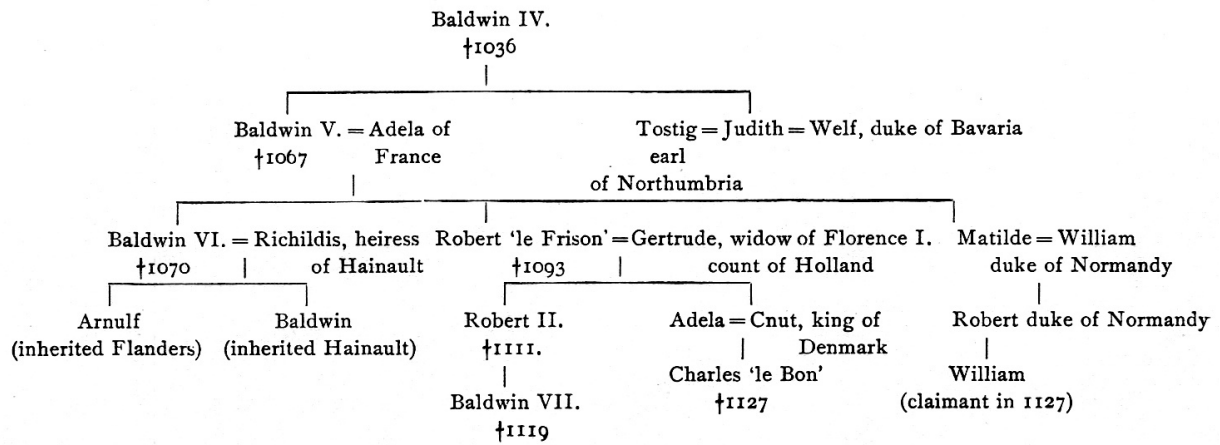


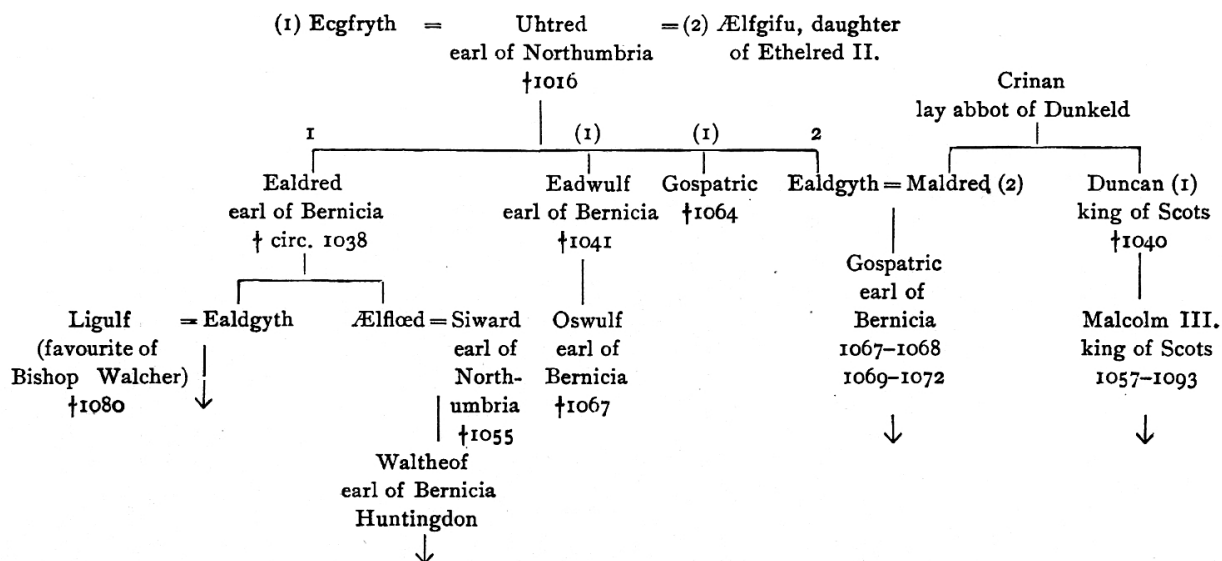


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